

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

**DECLARATION OF TYLER J.
O'CONNELL IN SUPPORT OF
DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT ("FAC")**

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

DATE: MAY 13, 2026

TIME: 9:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

///

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant
4 CSAA INSURANCE EXCHANGE ("Defendant"). Except for those matters stated on information
5 and belief, the facts set forth herein are true of my own personal knowledge and if called as a witness,
6 I could and would properly testify hereto.

7 2. I was unable to schedule an opportunity to meet and confer with Plaintiff, prior to
8 the original deadline to file a responsive pleading. Prior to this date, I was in the midst of drafting a
9 lengthy meet and confer correspondence, addressing Plaintiff's cause of action contained within
10 Plaintiff's original Complaint.

11 3. Then, on February 25, 2026, Plaintiff filed a First Amended Complaint ("FAC"),
12 therefore resetting the responsive pleading deadline, and revising the allegations in that pleading.

13 4. On March 4, 2026, I wrote a meet and confer letter to Plaintiff requesting mutual
14 consent to electronic service in this matter, including a request that Plaintiff prepare and file a
15 Consent to Electronic Service with the Court. Plaintiff agreed in principle, by preparing and filing a
16 Consent to Electronic Service; however, Plaintiff had earlier (late-February 2026) filed an
17 Amended Complaint. Plaintiff then continued making service attempts for that First Amended
18 Complaint upon Defendant CSAA, directly, by serving upon its agent for service of process,
19 instead of serving on my office, as agreed.

20 5. On March 13, 2026, Plaintiff caused to be served upon CSAA, directly on its agent
21 for service of process, a copy of his First Amended Complaint. This service directly upon CSAA
22 was contrary to the requirement in Code Civ. Proc. § 1015, and contrary to the parties' agreement.
23 Hence that service is defective.

24 6. Thereafter, I entered into an agreement with Plaintiff, in writing, stipulating to
25 Defendant's responsive pleading deadline in this case to be set on April 22, 2026.

26 7. On April 6, 2026, I provided a lengthy written correspondence to Plaintiff identifying
27 the objections to be raised on demurrer by Defendant to Plaintiff's First Amended Complaint—
28 along with citations to supporting legal authorities.

1 8. Also on April 6, 2026, I offered to Plaintiff, via email, to conduct a meet and confer
2 conference call with Plaintiff to address the FAC, the cause of action therein, and my intention of
3 pursuing a Demurrer to that pleading; absent an agreement from Plaintiff to withdraw that pleading.

4 9. On April 8, 2026, I conduct a lengthy meet and confer conference call with Plaintiff
5 discussing all those issues identified in my April 6, 2026 letter.

6 10. On that April 8, 2026 phone call, it became clear that Plaintiff would not withdraw
7 the pleadings, nor would (or, indeed, could) he amend the First Amended Complaint in a manner so
8 as to avoid the need for Defendant to file a Demurrer to the pleadings. Furthermore, Plaintiff sent a
9 incredibly lengthy correspondence after this phone call—wherein Plaintiff admitted his
10 correspondences are drafted with Artificial Intelligence—doubling down on all the same theories as
11 contained in the First Amended Complaint. To date, no agreement has been reached that would
12 resolve the objections to be raised in Defendant’s Demurrer.

13 11. I have personally reviewed the case docket in Plaintiff’s underlying personal injury
14 lawsuit, entitled *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-
15 594102.

16 12. Attached hereto as **Exhibit A** is a true and correct copy of *Plaintiff’s First Amended*
17 *Complaint* in the instant action (*see also* concurrently filed Request for Judicial Notice ¶ 1.)

18 13. Attached hereto as **Exhibit B** is a true and correct copy of *Plaintiff’s operative First*
19 *Amended Complaint in the Related Action*, contemporaneously filed with this action. That action is
20 entitled *Rosario v. Abdelhalim, et al.*, San Francisco County Superior Court Case No. CGC-25-
21 631801) (*see also* concurrently filed Request for Judicial Notice ¶ 2).

22 14. Attached hereto as **Exhibit C** is a true and correct copy of *Register of Actions*, in
23 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102 (*see also*
24 concurrently filed Request for Judicial Notice ¶ 3).

25 15. Attached hereto as **Exhibit D** is a true and correct copy of *Defendant’s Substitution*
26 *of Defense Counsel*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No.
27 CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 4).

28 ///

1 16. Attached hereto as **Exhibit E** is a true and correct copy of *Defendant's Motion in*
2 *Limine # 6*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-
3 21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 5).

4 17. Attached hereto as **Exhibit F** is a true and correct copy of *Defendant's Motion in*
5 *Limine # 8*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-
6 21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 6).

7 18. Attached hereto as **Exhibit G** is a true and correct copy of *Defendant's Motion in*
8 *Limine # 17*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-
9 21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 7).

10 19. Attached hereto as **Exhibit H** is a true and correct copy of *Order re Trial Scheduling*
11 *and Motions in Limine*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case
12 No. CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 8).

13 20. Attached hereto as **Exhibit I** is a true and correct copy of *Plaintiff's Judgment*
14 *Notwithstanding the Verdict*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court
15 Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 9).

16 21. Attached hereto as **Exhibit J** is a true and correct copy of *Plaintiff's Declaration in*
17 *Support of Judgment Notwithstanding the Verdict*, filed in *Rosario v. Abdelhalim*, San Francisco
18 County Superior Court Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial
19 Notice ¶ 10).

20 22. Attached hereto as **Exhibit K** is a true and correct copy of *Defendant's Opposition*
21 *to Plaintiff's Judgment Notwithstanding the Verdict*, filed in *Rosario v. Abdelhalim*, San Francisco
22 County Superior Court Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial
23 Notice ¶ 11).

24 23. Attached hereto as **Exhibit L** is a true and correct copy of Plaintiff's Motion for New
25 Trial, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-
26 594102 (*see also* concurrently filed Request for Judicial Notice ¶ 12).

27 24. Attached hereto as **Exhibit M** is a true and correct copy of *Defendant's Opposition*
28 *to Plaintiff's Motion for New Trial and Mistrial*, filed in *Rosario v. Abdelhalim*, San Francisco

1 County Superior Court Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial
2 Notice ¶ 13).

3 25. Attached hereto as **Exhibit N** is a true and correct copy of *Order on Plaintiff's Post-*
4 *Trial Motions*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-
5 21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 14).

6 26. Attached hereto as **Exhibit O** is a true and correct copy of Plaintiff's Prayer to Judge
7 East re: Motion for Disqualification of Judge Wong, filed in *Rosario v. Abdelhalim*, San Francisco
8 County Superior Court Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial
9 Notice ¶ 15).

10 27. Attached hereto as **Exhibit P** is a true and correct copy of *Order Denying Plaintiff's*
11 *"Prayer" and 170.6*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No.
12 CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 16).

13 28. Attached hereto as **Exhibit Q** is a true and correct copy of *Plaintiff's Notice of*
14 *Appeal*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-
15 594102 (*see also* concurrently filed Request for Judicial Notice ¶ 17).

16 29. Attached hereto as **Exhibit R** is a true and correct copy of *Plaintiff's Notice*
17 *Designating Record on Appeal*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior
18 Court Case No. CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 18).

19 30. Attached hereto as **Exhibit S** is a true and correct copy of *Defendant's Notice of*
20 *Entry of Judgment*, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No.
21 CGC-21-594102 (*see also* concurrently filed Request for Judicial Notice ¶ 19).

22 31. Attached hereto as **Exhibit T** is a true and correct copy of Plaintiff's *Original*
23 *Complaint* in the instant action (*see also* concurrently filed Request for Judicial Notice ¶ 20).

24 I declare under the penalty of perjury under the laws of the State of California that the
25 foregoing is true and correct, and that this declaration was executed on April 13, 2026, at
26 Sacramento, California.

27 *Tyler J. O'Connell*

28 Tyler J. O'Connell

EXHIBIT A

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

FILED
Superior Court of California
County of San Francisco

FEB 25 2026

CLERK OF THE COURT
BY: Alexandra Feale
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to CGC-21-594102)

Case Management Conference: May 27,
2026 at 10:30 a.m., Department 610, 400
McAllister Street, San Francisco, CA
94102-3680

**AMENDED COMPLAINT FOR
DAMAGES AND INJUNCTIVE RELIEF**

1. FRAUD AND DECEIT (Civ. Code §§
1709-1710)
2. VIOLATION OF BUS. & PROF. CODE §
17200 (UCL)

DEMAND FOR JURY TRIAL

INTRODUCTION AND LIMITED THEORY OF THE CASE

1. Plaintiff brings this action on a narrow, document-anchored theory: a pre-litigation business misrepresentation by Defendant CSAA Insurance Exchange in a liability-claim denial letter, made

1 **knowingly or recklessly and used as institutional leverage to discourage or curtail an injured**
2 **claimant's pursuit of a valid claim (a deny-delay-defend claim-suppression tactic).**

3 2. The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
4 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable
5 (the "Denial Letter"). A true and correct copy of the Denial Letter, on CSAA letterhead regarding
6 Claim No. 1004-09-1054 and signed by Sarah Rash, Claims Representative, is attached hereto as
7 Exhibit A and incorporated by this reference.

8 3. Plaintiff alleges that, in context and ordinary meaning, the Denial Letter represented a com-
9 pleted investigative fact, namely that CSAA had already performed and completed an investiga-
10 tion sufficient to justify a categorical liability denial as of the letter date. A reasonable claimant
11 would understand "concluded our investigation" to mean CSAA obtained and reviewed the ba-
12 sic objective incident records it would normally collect to evaluate liability (including 911/CAD
13 and police-generated incident records), before issuing a categorical denial. **The representation of**
14 **investigative finality was intended and reasonably understood to signal futility—i.e., that fur-**
15 **ther pursuit would be pointless unless Plaintiff undertook burdens CSAA represented had**
16 **already been completed.**

17 4. Plaintiff alleges that the Denial Letter representation of a "concluded" investigation was mate-
18 rially false when made because, at that time, CSAA had not obtained or reviewed **basic, readily**
19 **obtainable, and foundational objective liability evidence** for the incident, including:

- 20 • 911 audio;
- 21 • body-worn camera footage; and
- 22 • computer aided dispatch records.

23 As alleged below, these categories of foundational objective evidence were generated contempora-
24 neously with the February 4, 2021 incident and were identifiable and obtainable during the period
25 CSAA represented its investigation had already "concluded."

26 5. Plaintiff further alleges that **the falsity of the Denial Letter is corroborated by CSAA's later**
27 **claim activity reflecting post-denial pursuits of the same foundational objective liability evidence.**

28 6. Plaintiff alleges reliance and resulting injury in connected categories that include (a) discrete

1 out-of-pocket procurement and investigation expenses incurred to obtain foundational objective
2 evidence that CSAA represented had already been investigated; (b) fees and costs incurred in
3 related third-party litigation that Plaintiff alleges was reasonably and proximately forced by the
4 Denial Letter misrepresentation, **because the misrepresentation shifted the burden of founda-**
5 **tional evidence collection and authentication onto Plaintiff as the price of continuing,** sought
6 here as damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar.*
7 *Corp.* (1963) 59 Cal.2d 618; (c) incremental medical, therapeutic, and health-related expenses
8 incurred as a result of the fraud-induced delay and forced proof burden described herein; and (d)
9 incremental non-economic harm, including physical exacerbation, pain and suffering, emotional
10 distress, humiliation, and loss of enjoyment of life, proximately caused by the fraud-induced delay
11 and burdens created by CSAA's misrepresentation.

12 7. **Plaintiff pleads attorney-fee damages** with segregation and proof discipline, and does not seek
13 to recover unrecoverable or unsegregated fees. Plaintiff seeks third-party litigation fees and costs,
14 if any, only to the extent they are proximately caused by CSAA's tortious conduct and are proven
15 with competent evidence, segregation, and reasonableness.

16 8. **Plaintiff further alleges that he incurred additional economic loss in the form of lost earnings,**
17 **diminished earning capacity, and lost productive time attributable to the incremental procurement,**
18 **review, authentication, and litigation-support burdens created by CSAA's Denial Letter misrepre-**
19 **sentation.** Plaintiff pleads these categories separately from attorney-fee damages and will prove
20 them with competent, non-speculative evidence, including documentation of time expended, eco-
21 nomic value of that time, and the causal connection to the fraud-induced burdens alleged herein.

22 **TIMELINESS AND DELAYED DISCOVERY (CCP § 338(d))**

23 8A. Plaintiff brings this action within the applicable limitations periods, including Code of Civil
24 Procedure section 338(d), because Plaintiff did not discover, and could not reasonably have dis-
25 covered, the facts constituting CSAA's fraud until January 2025.

26 8B. From February 25, 2021 through the litigation period, CSAA's written Denial Letter and
27 continuing denial position represented investigative finality and did not disclose that CSAA had
28 failed to obtain and review basic, readily obtainable, foundational objective incident records be-

1 fore declaring its investigation “concluded.”

2 8C. Plaintiff first discovered facts revealing the falsity and/or reckless nature of the “investigation
3 concluded” representation in January 2025, on the eve of trial in the related action, when defense
4 counsel asserted in pretrial filings and proceedings that the 911 recording and related incident
5 records had not been produced in discovery, were of “unknown provenance,” and were being pre-
6 sented at the “eleventh hour”—thereby exposing that the foundational incident records had not
7 been collected and produced through the insurer/defense-side pipeline that would ordinarily exist
8 if CSAA had truly completed a reasonable pre-denial investigation as represented.

9 8D. Plaintiff acted diligently upon discovery by promptly raising the issue in pretrial proceedings,
10 including at the February 18, 2025 hearing, and by investigating the procurement history and chain
11 of custody necessary to plead this action with specificity.

12 8E. Accordingly, the limitations period began to run no earlier than January 2025, and this action
13 is timely.

14 **JURISDICTION AND VENUE**

15 9. This Court has jurisdiction over this action because the causes of action asserted herein arise
16 from conduct occurring in California and involve Defendants who do business in California.

17 10. Venue is proper in San Francisco County because Plaintiff resides in San Francisco County
18 and the events and omissions giving rise to the claims occurred, in substantial part, in this County.

19 **PARTIES**

20 11. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in San Francisco, Cali-
21 fornia.

22 12. Defendant CSAA INSURANCE EXCHANGE (“CSAA”) is a California reciprocal insurer
23 and, upon information and belief, does business in California, including in San Francisco County.

24 13. Plaintiff is ignorant of the true names and capacities of Defendants sued herein as DOES
25 1 through 50, inclusive, and therefore sues these Defendants by such fictitious names. Plaintiff
26 will amend this Complaint to allege their true names and capacities when ascertained. Plaintiff is
27 informed and believes, and based thereon alleges, that each Doe Defendant is legally responsible
28 in some manner for the occurrences alleged and that Plaintiff’s damages were proximately caused

1 by their conduct.

2 **FACTUAL ALLEGATIONS**

3 **THE COLLISION AND CLAIM SUBMISSION**

4 14. On or about February 4, 2021, Plaintiff was struck by a vehicle driven by CSAA's insured in
5 connection with the related matter CGC-21-594102.

6 15. Plaintiff made a bodily injury liability claim to CSAA as the liability insurer for its insured.

7 **THE FEBRUARY 25, 2021 DENIAL LETTER**

8 16. On February 25, 2021, CSAA mailed Plaintiff the Denial Letter (Exhibit A), stating, in sub-
9 stance:

10 "We have concluded our investigation... [and] concluded that our insured is not
11 liable."

12 17. Plaintiff alleges the Denial Letter represented that CSAA had already completed its investi-
13 gation as of February 25, 2021, and had reached its liability conclusion based on that completed
14 investigation.

15 18. Plaintiff alleges the Denial Letter statement that the investigation was "concluded" was ma-
16 terially false when made because, at the time of the Denial Letter, CSAA had not obtained and
17 reviewed foundational objective liability evidence, including:

- 18 • the 911 call audio;
- 19 • body-worn camera footage; and
- 20 • computer aided dispatch records.

21 Plaintiff alleges that the timing and obtainability facts supporting this falsity are set forth in para-
22 graphs 19 through 21, below.

23 **CHRONOLOGY OF PRE-DENIAL INVESTIGATION AND OBTAIN-** 24 **ABILITY**

25 19. Plaintiff alleges that the collision occurred on or about February 4, 2021. Plaintiff further
26 alleges that, because law enforcement responded and the incident was reported through emergency
27 channels, foundational objective incident records were generated contemporaneously in the or-
28 dinary course, including a 911 call recording, computer aided dispatch ("CAD") logs reflecting

1 the dispatch and response sequence, and officer body-worn camera footage (“BWC”) capturing
2 on-scene statements and observations.

3 20. Plaintiff alleges that CSAA’s Denial Letter dated February 25, 2021 necessarily represented
4 that CSAA had completed whatever investigation it claims to have performed during the approx-
5 imately three-week period between February 4, 2021 and February 25, 2021. Plaintiff further
6 alleges that the 911 recording and CAD logs were readily identifiable, requestable, and obtainable
7 within that time period through routine insurer claim-handling practices and ordinary third-party
8 record requests, and that BWC evidence was likewise identifiable and obtainable through appro-
9 priate requests, subpoenas, and/or law-enforcement record channels where liability was contested
10 and police responded.

11 21. Plaintiff further alleges that the practical obtainability of the 911 recording is corroborated by
12 later objective record history: Plaintiff’s then-counsel (Dolan Law Firm) obtained the 911 audio
13 recording on May 12, 2021, as reflected in sworn hearing testimony in the Underlying Action.
14 (Hearing Tr., Feb. 18, 2025, p. 31, ll. 22–24.) Plaintiff alleges that the same categories of foun-
15 dational objective evidence were obtainable during the period CSAA represented its investigation
16 had already “concluded,” and that CSAA’s failure to obtain and review such evidence before issu-
17 ing a categorical denial renders the “investigation concluded” representation materially false or, at
18 minimum, recklessly made without reasonable grounds.

19 21A. Plaintiff further alleges that the 911 call recording itself contains Defendant’s insured Subhi
20 Abdelhalim’s own admission, in substance: “I barely hit him with anything.” This admission was
21 authenticated by Abdelhalim at trial in the Underlying Action, when he confirmed under oath “Yes.
22 That is my voice.” (RT Day 8, 4/17/25, Line 1979.) Plaintiff alleges that the logical impossibility
23 of CSAA’s position is thereby demonstrated: if CSAA had in fact obtained and reviewed the 911
24 recording as part of a “concluded” investigation, CSAA could not have reached a conclusion that
25 its insured was “not liable” in the face of its own insured’s admission of contact. The existence of
26 this admission corroborates either that CSAA never obtained the recording (rendering the “investi-
27 gation concluded” representation false) or that CSAA obtained it and disregarded it (rendering the
28 denial reckless or fraudulent).

OBJECTIVE CLAIM ACTIVITY AFTER THE DENIAL LETTER

22. Plaintiff alleges that CSAA's post-denial claim activity reflects subsequent efforts to obtain the same foundational objective liability evidence identified above—i.e., 911 audio, body-worn camera footage, and computer aided dispatch records—corroborating that CSAA's investigation was not actually concluded when CSAA issued the Denial Letter, **and corroborating that CSAA's "investigation concluded" representation conveyed investigative finality that was untrue when made.**

Corroboration of Scienter and Institutional Claim-Suppression Purpose (DDD)

22A. Plaintiff alleges that describing an investigation as "concluded" in a categorical liability denial is not a neutral phrase; it is a representation of investigative finality that carries foreseeable coercive force. A reasonable consumer understands "concluded investigation" to mean the insurer has already obtained and evaluated basic objective incident records typically used to verify liability—especially where such records are readily obtainable from public agencies or routine channels.

22B. Plaintiff alleges CSAA's failure to obtain and review the foundational objective liability records identified above before issuing a categorical "investigation concluded / not liable" denial supports an inference of scienter: either CSAA actually knew the investigation was not complete when it represented otherwise, or CSAA made the representation recklessly without reasonable grounds for believing it true, because the existence and relevance of such records are obvious and central to a reasonable liability investigation.

22C. Plaintiff further alleges the purpose and natural consequence of falsely representing investigative finality is institutional claim suppression—i.e., to shift the cost and delay of basic evidence collection to the claimant, increase the claimant's burden to continue, and induce abandonment, curtailment, or discounted resolution. Plaintiff alleges this is consistent with a deny-delay-defend pattern in which the insurer creates leverage through delay and burden-shifting rather than through a good-faith investigation.

22D. Plaintiff alleges that CSAA's later claim activity corroborates the falsity and further corroborates CSAA's state of mind at the time of the Denial Letter, because post-denial efforts to obtain

1 the same foundational objective records are inconsistent with the claim that CSAA had already
2 “concluded” its investigation as of February 25, 2021.

3 **22E.** Plaintiff pleads paragraphs 22A–22D as corroboration of CSAA’s knowledge, recklessness,
4 and institutional purpose at the time of the Denial Letter, and not as an attempt to litigate privileged
5 communications or to transform this action into a separate “fraud on the court” cause of action.

6 **22F.** Upon information and belief, Plaintiff further alleges that CSAA funded and directed the
7 defense of the Underlying Action, Case No. CGC-21-594102, through retained defense counsel,
8 and that CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court
9 by making false and misleading representations regarding receipt, possession, and prior production
10 of the same foundational objective evidence CSAA had failed to obtain before issuing the Denial
11 Letter. Plaintiff alleges this continuity between CSAA’s pre-litigation misrepresentation and its
12 litigation-stage denial posture further corroborates the institutional deny–delay–defend purpose
13 and scienter alleged herein.

14 **RELIANCE AND ECONOMIC INJURY**

15 23. Plaintiff alleges he reasonably and justifiably relied on CSAA’s written statement that its
16 investigation was “concluded” by understanding it, in ordinary consumer meaning, to represent
17 that CSAA had already obtained and reviewed foundational objective liability evidence before
18 issuing a categorical denial—not merely that CSAA had reached an opinion, but that CSAA
19 had completed the basic investigative steps that would justify stating the investigation itself
20 was finished.

21 24. Plaintiff alleges that, as a direct and proximate result of CSAA’s misrepresentation, Plain-
22 tiff incurred discrete out-of-pocket procurement and investigation expenses to obtain records and
23 evidence that CSAA represented had already been investigated, including:

- 24 • fees paid to obtain public records and related materials;
- 25 • fees paid for copying, certification, and retrieval; and
- 26 • fees paid for transcription and review of obtained audio and video.

FORCED THIRD-PARTY LITIGATION AND PRENTICE ATTORNEY-FEE DAMAGES

25. Plaintiff alleges that CSAA's Denial Letter misrepresentation reasonably and foreseeably forced Plaintiff into third-party litigation in CGC-21-594102 to vindicate his claim and to obtain and authenticate foundational objective evidence relevant to liability, **because CSAA's misrepresentation and continuing denial position functionally required Plaintiff to undertake record procurement and authentication burdens CSAA represented had already been completed, thereby increasing delay and pressure to give up.**

25A. Plaintiff further alleges that the third-party litigation forced by CSAA's Denial Letter misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the governing legal standard and foundational evidence as a result of defense-side false representations regarding possession and prior production of the very evidence CSAA had failed to obtain before declaring its investigation "concluded." The scope and severity of the *Prentice* damages are measured by the full burden of the forced litigation, including a trial that was corrupted by the ongoing consequences of CSAA's initial misrepresentation.

26. Plaintiff alleges that the third-party litigation generated incremental evidence procurement and authentication burdens, and that Plaintiff incurred fees and litigation costs in that third-party action that would not have been incurred but for CSAA's Denial Letter misrepresentation.

27. Plaintiff alleges that the fees and costs incurred in the third-party litigation are sought here as tort damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, because CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.

28. Plaintiff does not seek attorney fees in this action as a prevailing-party fee award. Plaintiff seeks third-party litigation fees and costs as consequential damages proximately caused by CSAA's Denial Letter misrepresentation, subject to proof and segregation.

29. Plaintiff alleges that, consistent with California proof requirements for attorney-fee damages (including segregation and reasonableness requirements under California law), Plaintiff will prove at trial:

- the fact of the fees and costs incurred through competent evidence;
- that the fees and costs were reasonably and necessarily incurred as a proximate result of CSAA's Denial Letter misrepresentation; and
- segregation of recoverable fees and costs from any non-recoverable or unrelated time entries and tasks.

LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE TIME CAUSED BY FRAUD-INDUCED BURDENS

30. Plaintiff alleges that CSAA's Denial Letter misrepresentation created incremental burdens that required Plaintiff to spend substantial time and effort obtaining, reviewing, organizing, transcribing, authenticating, and presenting foundational objective evidence that CSAA represented had already been investigated before issuing a categorical denial.

31. Plaintiff alleges that these incremental tasks and burdens were reasonably foreseeable consequences of CSAA's misrepresentation and would not have been incurred, or would have been materially reduced, had CSAA truthfully investigated and communicated the status of its investigation rather than stating it was "concluded."

32. Plaintiff alleges that the incremental burdens described above caused Plaintiff to lose earnings and productive time, including time diverted from employment, business activity, recovery, and ordinary life functions, and that Plaintiff will prove the amount and value of this loss with competent evidence, including time logs, calendars, earnings history, and related documentation.

FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL HEALTH-RELATED HARM

33. Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA knew, or had reason to know, from the nature of the claim and the information provided in connection with the bodily-injury liability claim, that Plaintiff was physically vulnerable and that prolonged stress, delay, and repeated high-strain demands would foreseeably impose additional physical toll.

34. Plaintiff alleges that CSAA's false statement that its investigation was "concluded" foreseeably forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate

1 foundational objective evidence relevant to liability, resulting in recurring high-strain events in-
2 cluding prolonged sitting, travel, preparation demands, and extended periods of stress and uncer-
3 tainty.

4 35. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
5 described herein, Plaintiff suffered incremental physical harm beyond the underlying collision
6 injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and func-
7 tional decline, and that Plaintiff required additional medical or therapeutic care to address these
8 incremental harms.

9 36. Plaintiff alleges that the incremental physical harm described herein is pleaded as a separate
10 “fraud-delta” category of damages proximately caused by CSAA’s misrepresentation and is not
11 intended to duplicate damages sought or awarded for the underlying collision itself.

12 **EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL**
13 **HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND**
14 **BURDENS**

15 37. Plaintiff alleges that CSAA’s Denial Letter conveyed finality by stating, in substance, that
16 CSAA had “concluded” its investigation and “concluded” its insured was not liable. Plaintiff
17 alleges that this representation, when false, foreseeably inflicted substantial emotional and psy-
18 chological harm by placing Plaintiff in the position of being categorically denied while also being
19 forced to personally bear the burden of obtaining and proving the foundational objective evidence
20 CSAA represented had already been investigated.

21 38. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay, uncertainty,
22 and forced proof burdens described herein, Plaintiff suffered emotional distress and psychologi-
23 cal harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as
24 humiliation and loss of dignity associated with being treated as though his claim lacked merit
25 notwithstanding the existence of readily obtainable objective evidence.

26 39. Plaintiff alleges that the emotional and psychological harm described herein manifested phys-
27 ically and functionally, including exacerbation of pain and impairment of daily functioning, and

1 that Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing
2 these conditions.

3 40. Plaintiff alleges that the emotional, psychological, and dignitary harms described herein are
4 pleaded as incremental “fraud-delta” damages proximately caused by CSAA’s misrepresentation
5 and the resulting burdens, and not as a duplication of the pain and suffering caused by the under-
6 lying collision itself.

7 **ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EX-**
8 **PENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE**

9 41. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
10 described herein, Plaintiff incurred additional out-of-pocket expenses including, but not limited
11 to, medical visits, therapy or counseling, medication expenses, transportation expenses associated
12 with treatment and required events, and costs of assistance with household tasks and self-care that
13 were increased by the incremental physical and psychological toll caused by the fraud-induced
14 delay.

15 42. Plaintiff will prove the amount of these additional out-of-pocket expenses with competent
16 documentary evidence, including invoices, receipts, medical billing records, pharmacy records,
17 and other admissible proof.

18 **FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION**
19 **AND ONGOING HARM**

20 43. Plaintiff alleges that the fraud-induced physical and psychological toll described herein has
21 ongoing consequences and may require future medical or therapeutic care, and may continue to
22 impair Plaintiff’s ability to work and to engage in ordinary life activities. Plaintiff seeks recovery
23 of future economic and non-economic damages proximately caused by CSAA’s fraud, according
24 to proof.

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter (Exhibit A),
9 a standardized CSAA denial communication on CSAA letterhead regarding Claim No. 1004-09-
10 1054 and signed by Sarah Rash, Claims Representative, stating that CSAA had “concluded” its
11 investigation and “concluded” that its insured was not liable, **as a business claim decision and**
12 **denial communication issued in the ordinary course of CSAA’s claim-handling practices.**

13 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
14 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
15 and that its liability conclusion was based on that completed investigation.

16 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
17 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
18 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
19 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
20 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
21 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
22 19 through 21.

23 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
24 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
25 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
26 **and reviewing the foundational objective incident records identified above (or, at minimum,**
27 **without knowing whether such records exist and what they show).** Plaintiff further alleges

1 CSAA made the representation as **institutional leverage**—with intent to induce Plaintiff to aban-
2 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
3 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
4 with deny–delay–defend claim suppression.

5 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
6 affirmative business representation of investigative finality used to obtain leverage over an injured
7 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
8 foundational record collection constitutes despicable conduct in willful disregard of the rights of
9 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
10 and coercive pressure to give up.

11 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
12 approach reflect institutional practices, training, supervision, and performance incentives that au-
13 thorize, encourage, or tolerate categorical denial communications representing investigative final-
14 ity when foundational objective evidence has not been obtained or reviewed, including claim-
15 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
16 plates.

17 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
18 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
19 ing punitive damages under Civil Code section 3294 to the extent proven.

20 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
21 substantial factor in causing the economic losses pleaded herein.

22 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
23 continues to incur damages including:

24 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
25 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
26 public records and related materials, copying/certification/retrieval fees, and transcription and re-
27 view expenses;

28 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff

1 alleges were proximately caused by CSAA's misrepresentation and are recoverable as damages
2 under *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, subject to proof and
3 segregation as alleged;

4 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
5 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
6 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
7 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
8 **and delay leverage inherent in falsely representing investigative finality;**

9 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
10 induced delay and burdens described herein, including expenses incurred to address incremental
11 physical exacerbation and stress-related conditions;

12 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
13 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
14 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
15 that are distinct from the underlying collision damages; and

16 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
17 to proof.

18 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
19 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
20 a categorical liability denial without having obtained and reviewed foundational objective liability
21 evidence, and did so in a manner intended to convey investigative finality and to discourage or
22 defeat valid claims.

23 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
24 injured claimant faced with a categorical denial and false investigative finality would foreseeably
25 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
26 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
27 vulnerability and the foreseeable consequences of delay and forced proof burdens.

28 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-

1 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
2 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-
3 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
4 nications to obtain claims leverage and delay, and that such authorization or ratification supports
5 an award of punitive damages against CSAA.

6 53A. Plaintiff further alleges that the Denial Letter's standardized form language ("concluded our
7 investigation" / categorical liability denial) and its use as a claims-handling communication support
8 a reasonable inference that the challenged denial-letter practice was implemented, approved, or
9 ratified at a managerial or policy level rather than being an isolated, ad hoc statement.

10 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
11 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
12 sufficient to punish and deter, to the extent permitted by law.

13 **SECOND CAUSE OF ACTION**

14 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 15 **(AGAINST CSAA AND DOES 26-50)**

16 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
17 forth herein.

18 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
19 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
20 as alleged above, **as part of a claim-handling practice that uses categorical "investigation**
21 **concluded" denial communications to create leverage through burden-shifting and delay.**

22 57. Unlawful: Plaintiff alleges CSAA's conduct constitutes common-law fraud and deceit in vio-
23 lation of Civil Code sections 1709 and 1710.

24 58. Fraudulent: Plaintiff alleges CSAA's denial-letter practice is likely to deceive because a reason-
25 able consumer would understand a statement that an investigation is "concluded" to mean the in-
26 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
27 **the basic investigative steps necessary to truthfully represent investigative finality** before is-

1 suing a categorical liability denial, particularly where such evidence is generated at the time of the
2 incident through 911 and police response channels and is ordinarily obtainable during a routine
3 claim investigation.

4 59. Unfair: Plaintiff alleges CSAA's practice of issuing categorical denials that state an inves-
5 tigation is "concluded" when foundational objective liability evidence has not been obtained or
6 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-
7 tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a**
8 **deny-delay-defend pattern that induces abandonment or undervalued resolution.**

9 60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of
10 CSAA's unfair competition, including out-of-pocket procurement and investigation costs.

11 60A. Plaintiff also seeks injunctive relief because CSAA's challenged denial-letter practice is on-
12 going and, absent court-ordered restraint, threatens continuing and repeated injury. CSAA's "in-
13 vestigation concluded" denial language and related burden-shifting practice continues to be used
14 to resist payment and to impose evidentiary procurement burdens, including on Plaintiff in connec-
15 tion with the continuing dispute over CSAA's denial and the consequences alleged herein. Because
16 CSAA has not retracted the Denial Letter and continues to maintain the denial position, Plaintiff
17 faces a real and immediate threat of repeated application of the same denial-letter practice and
18 proof-burden shifting in ongoing and future efforts to obtain claim-related relief, absent injunctive
19 restraint.

20 61. Plaintiff seeks:

- 21 • restitution of the out-of-pocket procurement and investigation costs according to proof; and
- 22 • injunctive relief enjoining CSAA from issuing denial letters stating an investigation is "con-
23 cluded" **unless and until** CSAA has obtained and reviewed foundational objective liability
24 evidence reasonably necessary to support such a representation, including where applicable
25 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly**
26 **discloses that such records were not obtained and reviewed before stating any liability**
27 **conclusion;**

1 **PRAYER FOR RELIEF**

2 WHEREFORE, Plaintiff prays for judgment as follows:

- 3 1. For restitution pursuant to Business and Professions Code section 17200, in an amount according
4 to proof;
- 5 2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is
6 “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability
7 evidence reasonably necessary to support such a representation, including where applicable 911
8 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses**
9 **that such records were not obtained and reviewed before stating any liability conclusion;**
- 10 3. For compensatory damages for economic and non-economic losses caused by fraud and deceit
11 according to proof, including out-of-pocket procurement and investigation expenses, additional
12 medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
- 13 4. For attorney fees and litigation costs as damages to the extent permitted under *Prentice v. North*
14 *Am. Title Guar. Corp.* (1963) 59 Cal.2d 618 and proven with segregation and reasonableness as
15 alleged;
- 16 5. For punitive damages to the extent permitted by law;
- 17 6. For costs of suit;
- 18 7. For prejudgment interest as permitted by law; and
- 19 8. For such other and further relief as the Court deems just and proper.

20 **DEMAND FOR JURY TRIAL**

21 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

22 DATED: February 25, 2026

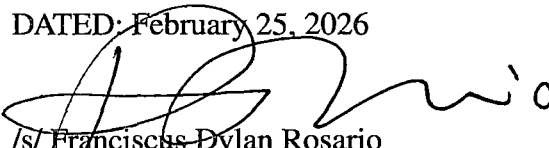
23 
24 /s/ Franciscus Dylan Rosario
25 FRANCISCUS DYLAN ROSARIO
26 Plaintiff, In Pro Per
27 7624 Melody Dr., Rohnert Park, CA 94928
28 650.488.7510
soltrinox@gmail.com

EXHIBIT B

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

FILED
Superior Court of California
County of San Francisco

FEB 25 2026

CLERK OF THE COURT
BY: Alexandra Feale
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**AMENDED COMPLAINT FOR
INDEPENDENT ACTION IN EQUITY
TO SET ASIDE JUDGMENT FOR
EXTRINSIC FRAUD**

(Code Civ. Proc., § 187; Inherent
Equitable Power; *Kulchar v. Kulchar*
(1969) 1 Cal.3d 467)

**DEMAND FOR JURY TRIAL ON ALL
ISSUES SO TRIABLE; EQUITABLE
ISSUES TO THE COURT**

PRELIMINARY STATEMENT AND NATURE OF THE ACTION

The Gravamen of the Action: This is an independent action in equity to set aside the Final Judgment entered in Case No. CGC-21-594102 (the "Underlying Action") on the grounds of extrinsic fraud that deprived Plaintiff Franciscus Dylan Rosario ("Plaintiff") of a fair opportunity to present material evidence and fairly litigate liability. This action is brought against Defen-

1 dant Subhi Abdelhalim (the judgment beneficiary in the Underlying Action), Defendant CSAA
2 Insurance Exchange (the liability insurer that funded, directed, and controlled the defense), De-
3 fendants PHILLIPS, SPALLAS & ANGSTADT LLP, PRIYA D. NAVARATNASINGHAM, and
4 ALBERTO REYNA (the retained defense counsel and attorneys who made false and misleading
5 representations to the Court that procured the judgment through fraud), Defendants MICHAEL R.
6 CHAMBERS and CARBONE, SMITH & KOYAMA (the original defense counsel and law firm
7 that had possession of the evidence during discovery and transferred the defense file to PSA on
8 May 4, 2023, without ensuring proper documentation of production history, which enabled suc-
9 cessor counsel to make the false representations), and DOES (collectively, “Defendants”).

10 **The Critical Distinction:** This action is not a mere attempt to relitigate settled facts, nor is it
11 a complaint regarding ordinary “intrinsic” credibility disputes. Plaintiff acknowledges the high
12 burden required to overturn a final verdict. However, the fraud committed here was a scheme
13 that prevented a fair contest by (a) obstructing access to and usable presentation of critical inci-
14 dent recordings and (b) making false or misleading representations to the Court, which induced
15 procedural and evidentiary rulings under materially false premises.

16 **Primary Equitable Relief and Ancillary Equitable Monetary Relief:** Plaintiff seeks equitable
17 relief to vacate the judgment and obtain a fair retrial. In addition, Plaintiff seeks ancillary equitable
18 monetary relief, restitutionary in nature and incident to vacatur, to restore Plaintiff from the process
19 corruption. All monetary relief sought is incremental, temporally bounded to the fraud-driven
20 period, and is not a relabeling of collision damages or ordinary litigation burdens. The categories
21 of such relief are set forth in Section III.H, below.

22 This action does not plead defamation or any tort claim for damages based on litigation commu-
23 nications as protected petitioning activity. Statements and litigation events are alleged as operative
24 facts to show how the judgment was procured through extrinsic fraud and why equity must set it
25 aside, and any equitable monetary relief sought is requested as ancillary relief incident to vacatur
26 and restoration of a fair adjudicatory process.

27 Plaintiff seeks equitable relief to set aside the judgment and restore a fair adjudication on a truthful
28 record because the adverse outcome was procured by fraud on the Court. Plaintiff does not plead

1 a separate damages tort based on litigation communications as such; the gravamen is corruption of
2 the adjudicatory process and court reliance resulting in an unjust judgment.

3 **The Mechanism of Fraud:** In the Underlying Action, Defendants Abdelhalim and CSAA In-
4 surance Exchange, through Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, PRIYA D.
5 NAVARATNASINGHAM, and ALBERTO REYNA (and other litigation agents), did not merely
6 dispute the facts. The defense obstructed Plaintiff's ability to present material evidence, including
7 (a) a 911 call recording containing Defendant Abdelhalim's party admission ("I barely hit him
8 with anything"), (b) body-worn camera footage containing eyewitness statements, and (c) CAD
9 logs. The defense then made false and misleading representations to the Court about receipt, pos-
10 session, and prior production of these materials, falsely denying knowledge and receipt despite
11 having received the materials during discovery. The Court relied on those representations to deny
12 continuances, exclude materials, and defer admission, which impaired Plaintiff's ability to present
13 the evidence in a usable, timely way at a liability-only trial.

14 **The Three-Leg Framework of Extrinsic Fraud:** This fraud operates on three legs: (1) defense-
15 side knowledge and access to the materials through prior possession and production history; (2)
16 false and misleading representations to the Court about receipt and prior production, including
17 false denials of knowledge and false claims of "unknown provenance"; and (3) Court reliance that
18 resulted in concrete rulings and procedural barriers that prevented Plaintiff from fairly presenting
19 the evidence.

20 **Extrinsic vs. Intrinsic:** This constitutes extrinsic fraud because the misconduct deprived Plaintiff
21 of a fair opportunity to present the case and obtain a true adversarial contest on liability. Plaintiff
22 was not merely handicapped by disputed evidence. Plaintiff was effectively prevented from pre-
23 senting and using critical evidence through Court orders and rulings induced by false or misleading
24 representations. This corruption of the Court's process prevented Plaintiff from having a full and
25 fair day in court, satisfying the strict requirements for equitable relief to set aside a judgment under
26 *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.

27 **The Resulting Injustice:** As a direct and proximate result of this fraud, a defense verdict and
28 judgment were entered against Plaintiff. Had Plaintiff been given a fair opportunity to present the

1 911 call admission, body cam footage, and CAD logs without procedural barriers created by false
2 or misleading representations, the outcome would likely have been different. Equity demands that
3 the judgment be vacated and that the case be retried on a fair record.

4 **Concrete Harms Caused by the Fraud:** The fraud and resulting deprivation of a fair contest
5 caused Plaintiff concrete harms beyond the adverse verdict itself. Plaintiff lost substantial pro-
6 ductive time and opportunities solely because the process was corrupted, including time spent on
7 emergency foundation work, repeated motions and appearances that would not have been nec-
8 essary but for the false “non-receipt/unknown provenance” premise, and record reconstruction.
9 Plaintiff experienced significant emotional distress, anxiety, and humiliation from being forced to
10 try the case on a distorted record while being accused of late disclosure and fabrication; these
11 facts support the prejudice showing and why equity should intervene. The process also imposed a
12 physical toll and medically documented exacerbation of stress-related symptoms during the fraud-
13 driven period. This includes incremental medical/therapy/pharmacy expenses temporally tied to
14 that period (e.g., visits, medications, and copays) as further described below. Plaintiff incurred
15 out-of-pocket costs as described in Section III.H, below.

16 **PARTIES, JURISDICTION, AND VENUE**

17 **Plaintiff:** Plaintiff Franciscus Dylan Rosario is an individual residing in the County of San Fran-
18 cisco, State of California, and was the Plaintiff in the Underlying Action, Case No. CGC-21-
19 594102, tried before the Honorable Garrett L. Wong in Department 504 of the Superior Court of
20 California, County of San Francisco.

21 **Defendant Subhi Abdelhalim:** Defendant Subhi Abdelhalim is an individual who was the defen-
22 dant and judgment beneficiary in the Underlying Action.

23 **Defendant CSAA Insurance Exchange:** On information and belief, Defendant CSAA Insurance
24 Exchange is a liability insurer that provided insurance coverage to Defendant Abdelhalim and
25 funded, directed, and controlled the defense of the Underlying Action through retained defense
26 counsel. CSAA Insurance Exchange is the real party in interest that funded, directed, and rati-
27 fied the litigation positions and representations that procured the judgment through fraud on the
28 court. CSAA’s institutional denial practice, including its issuance of a categorical “investigation

1 concluded” denial letter just 21 days after the collision without obtaining foundational objective
2 evidence, is the subject of the related action CGC-25-631802.

3 **Defendant PHILLIPS, SPALLAS & ANGSTADT LLP:** Defendant PHILLIPS, SPALLAS &
4 ANGSTADT LLP (“PSA”) is a law firm doing business in California with its office at 560 Mission
5 Street, Suite 1010, San Francisco, California 94105. PSA was retained by Defendant CSAA In-
6 surance Exchange to represent Defendant Abdelhalim in the Underlying Action. PSA substituted
7 in as counsel for Defendant Abdelhalim on or about May 4, 2023 (Substitution of Attorney, Trans-
8 action ID # 69953800), replacing prior defense counsel. PSA, through its attorneys Defendants
9 Navaratnasingham and Reyna, made false and misleading representations to the Court regarding
10 receipt, possession, and prior production of the 911 audio, bodycam footage, and CAD materials,
11 and filed motions in limine containing materially false statements. The fraudulent representations
12 and litigation positions that procured the judgment were made by PSA acting on behalf of and with
13 the knowledge, funding, and direction of Defendants Abdelhalim and CSAA Insurance Exchange.

14 **Defendant Priya D. Navaratnasingham:** Defendant Priya D. Navaratnasingham (State Bar No.
15 252686) is an attorney associated with Defendant PSA. She substituted in as counsel for Defendant
16 Abdelhalim on May 4, 2023, and thereby obtained possession of the defense file containing the 911
17 audio, bodycam footage, and CAD materials. She signed the Declaration in Support of Motions
18 in Limine Nos. 1 through 19 filed January 17, 2025, which contained false and misleading repre-
19 sentations about defense receipt and prior production of the evidence. On February 18, 2025, at a
20 pretrial hearing before the Honorable Garrett L. Wong, she stated in substance that the 911/BWC
21 evidence was “news to me” and that the defense office did not receive the materials until the day of
22 the MSC, despite the defense-side prior receipt and possession of those materials as established by
23 sworn hearing testimony. These representations were false and misleading and were relied upon by
24 the Court. She appeared at trial in April 2025 and made or ratified additional false or misleading
25 representations regarding evidence possession. Her conduct constituted fraud on the court.

26 **Defendant Alberto Reyna:** Defendant Alberto Reyna (State Bar No. 347323) is an attorney as-
27 sociated with Defendant PSA. He appeared as trial counsel for Defendant Abdelhalim at pretrial
28 hearings and trial in the Underlying Action. He was present at the February 18, 2025 pretrial hear-

1 ing when Defendant Navaratnasingham made the “news to me” representation. He appeared at trial
2 in April 2025 and made or ratified false or misleading representations to the Court regarding receipt
3 and possession of the supplemental police report and the 911 call recording, including statements
4 in substance that the supplemental report was “not anything that we received as part of the sub-
5 poena” and that counsel was “not sure what recording” Plaintiff was referring to regarding the 911
6 call. These representations were false and misleading in light of the defense-side possession and
7 production history. He signed the Notice of Entry of Judgment dated April 29, 2025, on behalf of
8 Defendant Abdelhalim. His conduct, individually and in concert with PSA and Navaratnasingham,
9 constituted fraud on the court.

10 **Defendant Michael R. Chambers:** Defendant Michael R. Chambers (State Bar No. 132394) is an
11 attorney associated with Defendant Carbone, Smith & Koyama. He was the original defense coun-
12 sel for Defendant Abdelhalim in the Underlying Action until May 4, 2023. Defendant Chambers
13 and Carbone, Smith & Koyama had possession of the defense file when the 911 audio, body-worn
14 camera footage, and CAD materials were served on defense counsel during discovery (August
15 through September 2022), as established by sworn hearing testimony. On May 4, 2023, Defendant
16 Chambers transferred the defense file to PSA pursuant to the Substitution of Attorney (Transaction
17 ID # 69953800) without ensuring proper documentation and conveyance of the production his-
18 tory to successor counsel. This failure enabled Defendants PSA, Navaratnasingham, and Reyna to
19 make false and misleading representations to the Court that the materials were “news to me” and
20 had not been received until the eve of trial, when in fact the defense had possessed them during
21 Defendant Chambers’ tenure. Defendant Chambers’ conduct constituted fraud on the court and
22 was a proximate cause of the process corruption that procured the judgment.

23 **Defendant Carbone, Smith & Koyama:** Defendant Carbone, Smith & Koyama (“CSK”) is a law
24 firm doing business in California with its office at 555 12th Street, Suite 1250, Oakland, California
25 94607-4095. CSK, through Defendant Chambers, was the original defense counsel for Defen-
26 dant Abdelhalim until May 4, 2023. CSK had possession of the defense file when the 911 audio,
27 body-worn camera footage, and CAD materials were served during discovery (August through
28 September 2022). CSK transferred the defense file to PSA on May 4, 2023, without ensuring

1 proper documentation of the production history. This inadequate handoff enabled successor coun-
2 sel to make false representations to the Court that corrupted the judicial process. CSK's conduct
3 constituted fraud on the court and was a proximate cause of the process corruption that procured
4 the judgment.

5 **Jurisdiction:** This Court has jurisdiction over this matter as a court of general jurisdiction sitting
6 in equity. This Court retains inherent equitable power, including under Code Civ. Proc., § 187, to
7 entertain an independent action to relieve a party from a judgment procured by extrinsic fraud.

8 **Venue:** Venue is proper in this County because the Underlying Action was litigated and the fraud-
9 ulent Judgment was entered in the Superior Court of California, County of San Francisco, Depart-
10 ment 504. The acts of fraud occurred within this jurisdiction during pre-trial hearings and trial
11 proceedings, and the effects of the fraud are felt herein.

12 **DETAILED FACTUAL BACKGROUND**

13 **THE UNDERLYING INCIDENT AND LAWSUIT**

14 On or about February 4, 2021, Plaintiff was involved in a vehicle-pedestrian collision in San Fran-
15 cisco, California. Plaintiff was walking his scooter in a crosswalk when Defendant Subhi Abdel-
16 halim, operating a vehicle, struck Plaintiff from behind. The central dispute in the Underlying
17 Action was whether contact occurred and whether Defendant Abdelhalim was negligent.

18 Plaintiff filed the Underlying Action, Case No. CGC-21-594102, in the Superior Court of Califor-
19 nia, County of San Francisco, seeking damages for personal injuries. The case was tried before
20 the Honorable Garrett L. Wong in Department 504. The trial was bifurcated, with Phase One tried
21 on liability only. The jury returned a defense verdict on April 25, 2025, finding that Defendant
22 Abdelhalim was not negligent.

23 The institutional context for this fraud is set forth in the related action CGC-25-631802: on Febru-
24 ary 25, 2021, just 21 days after the collision, CSAA Insurance Exchange issued a denial letter
25 stating its investigation was "concluded" and its insured was "not liable," without having ob-
26 tained or reviewed foundational objective evidence including the 911 call audio, body-worn camera
27 footage, and CAD records. This categorical denial of investigative finality, issued before CSAA
28 had reviewed the basic incident records, established the institutional deny-delay-defend context

1 that drove the courtroom fraud alleged herein. By representing investigative finality when it had
2 conducted no meaningful investigation, CSAA forced Plaintiff into the Underlying Action on a dis-
3 torted factual record, and CSAA-funded defense counsel subsequently repeated and perpetuated
4 the same denial pattern in court through the false representations described in this complaint.

5 **THE EXISTENCE OF DISPOSITIVE EVIDENCE: 911 CALL, BODY** 6 **CAM FOOTAGE, AND CAD LOGS**

7 Unbeknownst to Plaintiff at the time of trial, but fully known to Defendants and defense-side litiga-
8 tion agents, critical evidence existed that captured the incident and contained direct admissions of
9 contact: (1) a 911 call recording in which Defendant Abdelhalim stated “I barely hit him with any-
10 thing”; (2) body-worn camera footage from San Francisco Police Department officers containing
11 eyewitness statements corroborating contact; and (3) CAD logs documenting the incident.

12 **The 911 Call Evidence:** The 911 call recording contains Defendant Abdelhalim’s party admission
13 under Evid. Code, § 1220, in which he stated “I barely hit him with anything.” This statement
14 directly contradicts Defendant’s trial testimony that “no contact” occurred. At trial, Defendant
15 authenticated the recording, stating “Yes. That is my voice.” (Trial Transcript, Day 8 (4/17/25),
16 Line 1979.)

17 **The Body Cam Footage:** The body-worn camera footage contains eyewitness statements, includ-
18 ing a statement from an eyewitness (Mr. Rosemont) that “the man in the van hit the guy,” directly
19 corroborating contact and contradicting Defendant’s “no contact” defense.

20 **The CAD Logs:** The CAD logs document the incident and provide identifiers linking the 911 call,
21 body cam footage, and police reports together.

22 This evidence serves as objective, irrefutable proof that Plaintiff’s version of events was correct
23 and that Defendant’s denial of liability was false. Specifically, the 911 call admission establishes
24 contact occurred, and the body cam footage contains eyewitness corroboration of that contact.

25 **PLAINTIFF’S DILIGENCE DURING DISCOVERY**

26 During the discovery phase of the Underlying Action, Plaintiff exercised due diligence and ex-
27 hausted all available legal avenues to uncover the truth. Plaintiff propounded discovery requests

1 seeking 911 recordings, bodycam footage, and CAD logs. However, Defendant, through counsel,
2 suppressed and delayed usable access to this evidence through misleading discovery positions and,
3 more critically, through false and misleading representations to the Court that induced adverse
4 procedural and evidentiary rulings.

5 **Reasonable Reliance on Discovery Compliance and Court Enforcement:** Plaintiff alleges that
6 it was reasonable and appropriate to rely on the defense-side discovery obligations and represen-
7 tations regarding completeness and possession, rather than duplicating the defense's obligations
8 through last-minute third-party subpoenas. Plaintiff propounded discovery requests seeking 911
9 recordings, bodycam footage, and CAD logs. When the contradiction between defense-side repre-
10 sentations and the production history surfaced, Plaintiff raised the issue in the Underlying Action
11 and sought court intervention.

12 The core harm was not a failure to subpoena third-party records. The core harm was that the Court,
13 relying on defense-side false and misleading representations about receipt and prior possession,
14 made procedural and evidentiary rulings under a materially false premise. Plaintiff reasonably
15 relied on defense compliance with discovery obligations and on the Court to require verification
16 once the conflict was revealed on the record. Plaintiff alleges the defense side had already re-
17 ceived the materials through prior production history (as established by sworn hearing testimony),
18 yet Defendants Navaratnasingham and Reyna, on behalf of PSA and Defendants Abdelhalim and
19 CSAA, represented in court that the materials were not received until the day of the MSC and were
20 "news to me." Under these circumstances, Plaintiff alleges it was reasonable to rely on discovery
21 compliance and on the Court to require verification, rather than to assume the defense side had the
22 materials while simultaneously representing the opposite in open court.

23 **THE ACT OF EXTRINSIC FRAUD: FALSE STATEMENTS TO THE** 24 **COURT CORRUPTING THE JUDICIAL PROCESS**

25 The critical act of fraud, the act that moved this misconduct from "discovery violation" to extrinsic
26 fraud, occurred through a pattern of concealment and false or misleading representations to the
27 Court that caused the Court to make procedural and evidentiary rulings based on materially false
28 information. Defendants PSA, Navaratnasingham, and Reyna were the counsel who made, ratified,

1 and perpetuated these false representations.

2 **LEG 1: DEFENSE-SIDE KNOWLEDGE AND ACCESS**

3 Defense counsel and litigation agents acting for Defendants had access to the evidence at issue.
4 During discovery and depositions, Jeremy Jessup from the Dolan Law Firm (Plaintiff's prior coun-
5 sel) served or provided the 911 audio recording and body-worn camera materials to defense coun-
6 sel. At a hearing on February 18, 2025, Jeremy Jessup testified under oath, in substance, that
7 materials including bodycam footage (about five videos), a 911 audio recording, and a CAD log
8 had been served on defense counsel during discovery and depositions (including around Septem-
9 ber 2022), and that the defense file was later transferred to subsequent defense counsel (including
10 around August 2024). (Hearing Transcript, February 18, 2025.) Defendant Navaratnasingham had
11 substituted in as counsel on May 4, 2023, and thus had possession of the defense file contain-
12 ing these materials for approximately 20 months before trial. Plaintiff alleges Defendants PSA,
13 Navaratnasingham, and Reyna therefore had knowledge of and access to these materials well be-
14 fore trial. Plaintiff summarizes the record-anchored possession and misrepresentation chronology
15 in Section III.E, below.

16 **LEG 2: FALSE AND MISLEADING REPRESENTATIONS TO THE COURT**

17 Despite defense-side access and production history, Defendants PSA, Navaratnasingham, and
18 Reyna, acting on behalf of Defendants Abdelhalim and CSAA Insurance Exchange, made mul-
19 tiple false and misleading representations to the Court about receipt, possession, and prior produc-
20 tion of the materials. These false representations were memorialized in written motions in limine
21 and in open court statements: The key dates demonstrating continuity of defense-side receipt, file
22 possession, and repeated non-receipt narratives are summarized in Section III.E, below.

23 **False Representation in MIL No. 6 (January 17, 2025):** Defendant Navaratnasingham, on behalf
24 of Defendant PSA, filed or caused to be filed Motion in Limine No. 6 seeking to exclude "recorded
25 materials, photographs, or documents offered by Plaintiff that were not produced in discovery,"
26 including "audio of a 911 call purported to be related to the incident." (Clerk's Transcript, Volume
27 1, Page 149–151.) The motion asserted that such materials "were not produced in discovery" and
28 should be excluded. This representation was false and misleading because, as established by sworn

1 hearing testimony, the defense side had already received these materials during discovery.

2 **False Representation in MIL No. 17 (January 17, 2025):** Defendant Navaratnasingham signed
3 the Declaration in Support of Motions in Limine Nos. 1 through 19. Defendant filed or caused
4 to be filed Motion in Limine No. 17 specifically targeting the 911 call recording and transcript,
5 asserting: (1) “this alleged log and recording were not produced during discovery, rather produced
6 at the eleventh hour prior to trial”; (2) “Defendant has no idea where this 911 call log or audio
7 recording came from and who created it”; and (3) “Defendant has no idea who created the log
8 and recording, how they were maintained, how Plaintiff got them, or the identity of the custodian
9 of the log and recording.” (Clerk’s Transcript, Volume 1, Page 238.) These representations were
10 materially false because the defense side had already received the 911 audio and related materials
11 during discovery, as established by sworn hearing testimony. Defendants PSA, Navaratnasingham,
12 and Reyna knew or should have known of this production history by virtue of their possession of
13 the defense file.

14 In addition to these written false representations in motions in limine, Defendants Navaratnasing-
15 ham and Reyna made additional false and misleading representations in open court:

16 **False Statement #1: Pretrial hearing representation regarding non-receipt and “news to me”**
17 **(February 18, 2025):** At the February 18, 2025 pretrial hearing before the Honorable Garrett L.
18 Wong, Defendant Navaratnasingham represented, among other things, that the defense office did
19 not receive the 911 call until the day of the MSC (or immediately before), that it was “news to
20 me,” and that counsel could not confirm prior receipt or production. Defendant Reyna was present
21 at this hearing. Plaintiff alleges these representations were false and misleading in light of the
22 defense-side access and production history described above. Defendant Navaratnasingham had
23 possession of the defense file since May 4, 2023, which contained or referenced these materials.
24 These statements were materially false. The truth, as established by sworn hearing testimony and
25 the production history, was that the defense side had already received and had access to these
26 materials well before the MSC and before trial.

27 **False Statement #2: Trial representation regarding non-receipt via subpoena (April 16, 2025):**
28 During trial, when Plaintiff attempted to use a supplemental police narrative or report material,

1 defense counsel (Defendants Navaratnasingham and Reyna) represented, in substance, that the
2 defense subpoenaed the police records and that the document was not received as part of the sub-
3 poena. Plaintiff alleges this representation was false and misleading in light of the production
4 history and defense-side possession and access. This statement was materially false. The truth, as
5 established by sworn hearing testimony and the production history, was that the defense side had
6 already received and had access to the relevant incident materials well before trial.

7 **False Statement #3: Trial representation of uncertainty about the 911 recording (April 16,**
8 **2025):** During trial, when Plaintiff sought to admit the 911 call recording, defense counsel (Defen-
9 dants Navaratnasingham and Reyna) represented, in substance, uncertainty about what recording
10 was being referenced. Plaintiff alleges this representation was false and misleading in light of the
11 defense-side possession and production history, including the defense side's prior receipt of the
12 911 audio during discovery.

13 **Fraud Pleaded With Specificity (who, what, when, where, how):** Plaintiff alleges the follow-
14 ing statements were made in open court in the Underlying Action, on the record, by Defendants
15 Navaratnasingham and Reyna acting for Defendants Abdelhalim, CSAA, and PSA, and were false
16 or misleading:

- 17 1. Pretrial hearing (February 18, 2025): **Defendant Navaratnasingham stated**, in substance, that
18 "our office did not receive the 911 call until the day of the MSC," that "this is news to me,"
19 and that counsel could not confirm prior receipt or production.
- 20 2. Trial (April 16, 2025): **Defense counsel (Navaratnasingham and/or Reyna) stated**, in sub-
21 stance, that a supplemental police narrative or report was "not anything that we received as
22 part of the subpoena."
- 23 3. Trial (April 16, 2025): **Defense counsel (Navaratnasingham and/or Reyna) stated**, in sub-
24 stance, that counsel was "not sure what recording" Plaintiff was referring to regarding the
25 911 call.

26 **These statements were false or misleading because, among other reasons, sworn hearing testimony**
27 **and the production history reflected that the defense side had already received, possessed, or had**
28 **access to the 911 audio, CAD materials, and bodycam materials long before trial.** Defendants

1 PSA, Navaratnasingham, and Reyna had actual or constructive knowledge of this history by virtue
2 of their representation and file possession.

3 **LEG 3: COURT RELIANCE AND RESULTING RULINGS**

4 The Court made the following procedural and evidentiary rulings after defense-side false or mis-
5 leading representations by Defendants PSA, Navaratnasingham, and Reyna:

6 **Ruling #1: Exclusion of Supplemental Report (April 16, 2025):** After defense counsel repre-
7 sented that the supplemental report was “not anything that we received as part of the subpoena,” the
8 Court excluded the supplemental report, stating: “It is not evidence” and “it is not in the report.”
9 (Trial Transcript, Day 7 (4/16/25), Lines 2888–2896.) This procedural ruling was made based on
10 a false or misleading premise about defense-side receipt and access.

11 **Ruling #2: Acceptance of false or misleading non-receipt representation without inquiry**
12 **(February 18, 2025):** After Defendant Navaratnasingham stated that the 911 call was not received
13 until the day of the MSC and that it was “news to me,” the Court accepted the representation
14 without a meaningful verification inquiry, responding only: “I see. Okay.” (Hearing Transcript,
15 Page 141, Line 4221.) This acceptance of false or misleading information corrupted the judicial
16 process by allowing the Court to make procedural decisions based on materially false premises.

17 **Ruling #3: Denial of Continuances and lack of verification inquiry:** The Court denied continu-
18 ance requests and declined to conduct a meaningful verification inquiry after Defendants Navarat-
19 nasingham and Reyna made conflicting and or misleading representations about possession and
20 prior production of the 911, CAD, and bodycam materials. These rulings deprived Plaintiff of a
21 fair opportunity to investigate, authenticate, prepare transcripts and clips, and present the record-
22 ings and related materials in admissible, jury-usable form.

23 **Reliance and causation (but-for allegation):** Plaintiff alleges that, but for the false and mislead-
24 ing representations by Defendants PSA, Navaratnasingham, and Reyna that the defense did not
25 have the materials, could not confirm prior receipt or production, and was not sure what recording
26 was being referenced, the Court would have likely granted a short continuance and or ordered im-
27 mediate on-the-record verification measures (including written production verification, custodian
28 or vendor declarations, and a focused Evid. Code, § 402 foundation procedure) to allow Plaintiff

1 to authenticate and present the recordings. Plaintiff alleges the denial and non-inquiry were the
2 direct result of the Court crediting the defense-side falsehoods and proceeding under a materially
3 false premise about possession and provenance.

4 The fraud was material because it operated on the Court. The defense's false non-receipt/unknown-
5 provenance narrative was used to obtain and defend evidentiary and procedural outcomes, ex-
6 cluding or discounting the 911/BWC/CAD evidence, foreclosing effective cross-examination and
7 authentication pathways, and opposing continuance or other corrective relief. Those rulings and
8 trial constraints prevented Plaintiff from presenting the case on a truthful factual record and were
9 outcome-material.

10 **Ruling #4: Deferred 911 Call Admission (April 16, 2025):** After defense counsel claimed un-
11 certainty about the recording ("I am not sure what recording he is referring to"), the Court deferred
12 admission of the 911 call, requiring Plaintiff to testify first. (Trial Transcript, Day 7 (4/16/25),
13 Lines 3024–3057.) This procedural decision was made based on a false or misleading claim of
14 uncertainty, creating delay and confusion despite defense-side access and production history.

15 **The Effect of the Misconduct:** This misconduct did not merely hide evidence; it corrupted the
16 trial process. It caused the Court to make procedural and evidentiary rulings based on materially
17 false or incomplete information, stripping Plaintiff of the practical ability to:

- 18 1. Present evidence that the defense side had possessed for years.
- 19 2. Request continuances based on accurate information about evidence availability.
- 20 3. Argue spoliation or adverse inference based on the defense side's actual possession of evi-
21 dence.
- 22 4. Present the 911 call admission and body cam footage in a timely, orderly manner.

23 By securing these rulings through fraud, Defendants Abdelhalim, CSAA, PSA, Navaratnasingham,
24 Reyna, Chambers, and Carbone, Smith & Koyama removed issues entirely from the Court's fair
25 consideration. Defendants Chambers and Carbone, Smith & Koyama proximately caused that
26 result by transferring the defense file without proper documentation of the production history,
27 which enabled successor counsel to make the false representations that induced the Court's rulings.
28 Plaintiff was not just deceived; Plaintiff was judicially restrained from presenting the truth through

1 Court orders and rulings procured through false or misleading representations.

2 **CHRONOLOGY OF DEFENSE POSSESSION AND MISREPRESENTATIONS**

3
4 Plaintiff alleges the following record-anchored chronology to show continuity of defense-side receipt, access, and use of the 911 audio, body-worn camera footage, and CAD identifiers, and to
5 show that later “not received,” “news to me,” and “unknown provenance” representations were
6 materially misleading when made.
7

8 **August 18, 2022 (Plaintiff deposition; initial defense receipt/use):** Plaintiff alleges that at or
9 around Plaintiff’s deposition on August 18, 2022, Plaintiff’s then-counsel (Dolan Law Firm) served
10 or provided the defense side with incident materials including the 911 audio, multiple body-worn
11 camera videos, and CAD log identifiers. Plaintiff alleges this is corroborated by sworn hearing
12 testimony summarized below. (Hearing Transcript, February 18, 2025.)

13 **September 30, 2022 (Defendant deposition; materials utilized):** Plaintiff alleges that the same
14 incident materials were utilized during the deposition of Defendant Abdelhalim on September 30,
15 2022, further confirming defense-side possession and practical use during discovery. (Hearing
16 Transcript, February 18, 2025 [Jessup testimony in substance that materials were served and “uti-
17 lized in the deposition of defendants”].)

18 **Key Jessup sworn testimony (February 18, 2025):** Plaintiff alleges that attorney Jeremy Jessup
19 (Dolan Law Firm) testified under oath, in substance, that the materials had been served “at Mr.
20 Rosario’s deposition” and were “utilized in the deposition of defendants,” and that the defense file
21 was later transferred to subsequent defense counsel. (Hearing Transcript, February 18, 2025.)

22 **September 2022 through May 4, 2023 (Chambers and Carbone Smith had possession):** Plain-
23 tiff alleges that during this period, Defendants Michael R. Chambers and Carbone, Smith &
24 Koyama were defense counsel and had possession of the defense file containing the 911 audio,
25 body-worn camera footage, and CAD materials that had been served during discovery. (Hearing
26 Transcript, February 18, 2025; Substitution of Attorney, May 4, 2023, Transaction ID # 69953800.)

27 **May 4, 2023 (PSA substitutes in; Chambers transfers file without proper documentation):**
28 Plaintiff alleges that on May 4, 2023, Defendants Chambers and Carbone, Smith & Koyama trans-

1 ferred the defense file to PSA pursuant to the Substitution of Attorney (Transaction ID # 69953800)
2 without ensuring proper documentation and conveyance of the production history. PSA substituted
3 in as defense counsel and inherited the defense litigation file, thereby stepping into continuity of
4 defense-side possession of the previously served incident materials. The inadequate handoff en-
5 abled PSA and its attorneys to later represent to the Court that the materials were “news to me”
6 and had not been received until the eve of trial.

7 **February 26, 2024 (Reyna requests comprehensive incident records):** Plaintiff alleges that
8 defense counsel Alberto Reyna requested “all documents, records stored in any format” regarding
9 the incident on February 26, 2024, which would necessarily encompass the 911, CAD, and body-
10 worn camera categories later portrayed as “unknown” or “not received.” (Trial Transcript, Day 7
11 (4/16/25) [in substance: request made “on February 26, 2024 . . . all documents, records stored in
12 any format . . . regarding the report that occurred”].)

13 **August 2024 (renewed file transfer to PSA):** Plaintiff alleges that by August 2024, the defense
14 file (including the 911 audio, body-worn camera videos, and CAD-related materials) had been
15 transferred to PSA, further reinforcing defense-side possession well before the January 2025 mo-
16 tions in limine and the February–April 2025 hearings and trial. (Hearing Transcript, February 18,
17 2025 [Jessup testimony in substance re August 2024 transfer].)

18 **September 9, 2024 (CAD identifiers provided to Reyna):** Plaintiff alleges that on September 9,
19 2024, CAD numbers and identifiers were provided to Alberto Reyna, which are key linking iden-
20 tifiers for 911/dispatch/police incident materials. (Hearing Transcript, February 18, 2025 [Jessup
21 testimony in substance regarding September 9, 2024 delivery of CAD numbers].)

22 **September 17, 2024 (trial continued to January 27, 2025):** Plaintiff alleges the Court granted an
23 ex parte continuance continuing trial to January 27, 2025, yet defense continued to frame the evi-
24 dence as “eleventh hour” and “unknown provenance” notwithstanding defense-side receipt dating
25 back to August–September 2022 and renewed possession through 2024. (Order Granting Defen-
26 dant’s Ex Parte to Continue Trial, September 17, 2024.)

27 **January 17, 2025 (written misrepresentations in motions in limine):** Plaintiff alleges that on
28 January 17, 2025, PSA (through attorney Navaratnasingham) filed motions in limine asserting the

1 911 and related materials were “not produced during discovery,” were produced at the “eleventh
2 hour,” and were of “unknown provenance,” despite defense-side receipt/use years earlier as alleged
3 above. (Clerk’s Transcript, Volume 1, Pages 149–151; Clerk’s Transcript, Volume 1, Page 238.)

4 **February 18, 2025 (open-court misrepresentations; direct conflict with sworn testimony):**

5 Plaintiff alleges that at the February 18, 2025 pretrial hearing, defense counsel represented in sub-
6 stance that the defense office did not receive the 911 call until the day of the MSC (or immediately
7 before) and that it was “news to me,” despite sworn testimony (Jessup) describing service at Plain-
8 tiff’s deposition and use at depositions. (Hearing Transcript, February 18, 2025.)

9 **April 16, 2025 (trial repetition: “not received as part of subpoena”; “not sure what record-**

10 **ing”):** Plaintiff alleges that at trial on April 16, 2025, defense counsel repeated non-receipt and
11 uncertainty narratives inconsistent with the above chronology, including statements in substance
12 that materials were “not anything that we received as part of the subpoena” and “I am not sure
13 what recording he is referring to.” (Trial Transcript, Day 7 (4/16/25), Lines 2875; 2990–2994.)

14 **April 17, 2025 (Defendant authenticates 911 audio):** Plaintiff alleges that on April 17, 2025,
15 Defendant Abdelhalim authenticated the 911 recording at trial (“Yes. That is my voice.”), further
16 undermining the “unknown provenance” and “not sure what recording” posture. (Trial Transcript,
17 Day 8 (4/17/25), Line 1979.)

18 **Time-gap logic (implausibility of “unknown provenance” / “not received” as a benign mis-**
19 **understanding):** Plaintiff alleges the following elapsed-time gaps show why the defense narrative
20 was materially misleading in context and why the Court’s process was corrupted by reliance on a
21 false premise:

- 22 • Aug. 18, 2022 → Jan. 17, 2025: 883 days.
- 23 • May 4, 2023 → Feb. 18, 2025: 656 days.
- 24 • Sept. 9, 2024 → Jan. 17, 2025: 130 days.
- 25 • Aug. 18, 2022 → Apr. 16, 2025: 972 days.

26 Plaintiff alleges these gaps matter because the defense’s written and oral representations framed the
27 evidence as late-produced, suspicious, and procedurally defective, inducing the Court to impose
28 barriers that prevented Plaintiff from presenting the evidence in timely, usable form at a liability-

1 only trial.

2 **THE TAINTED TRIAL AND VERDICT**

3 The trial proceeded in April 2025. Bound by the procedural and evidentiary rulings procured
4 through false or misleading defense-side representations, Plaintiff was unable to present the true
5 facts in an orderly, timely manner.

6 Defendant Abdelhalim took the stand and testified that “no contact” occurred, directly contradict-
7 ing his own 911 call admission that he “barely hit” Plaintiff. When Plaintiff attempted to present
8 the 911 call admission and bodycam evidence, the Court, relying on defense-side representations
9 about evidence possession and production history made by Defendants PSA, Navaratnasingham,
10 and Reyna, deferred admission, excluded supplemental materials, and denied continuances, pre-
11 venting effective presentation of the evidence.

12 The Jury, denied the objective truth and presented with a sanitized, fraudulent version of reality
13 approved by the Court’s procedural rulings based on false information, returned a verdict in favor
14 of Defendant on April 25, 2025, finding that Defendant Abdelhalim was not negligent by a 9–3
15 vote. (Trial Transcript, Day 11 (4/25/25), Line 16.)

16 Judgment was entered on April 25, 2025. (Clerk’s Transcript, Volume 6, Page 1689.)

17 **DISCOVERY OF THE FRAUD**

18 Plaintiff first discovered the fraud in January 2025, when defense counsel’s written pretrial filings
19 (including motions in limine dated January 17, 2025) asserted that the 911 recording and related
20 incident records were “not produced during discovery,” were presented at the “eleventh hour,” and
21 were of “unknown provenance.” Those assertions revealed that the Court was being asked to rule
22 on a false factual premise about defense-side possession, production, and provenance of founda-
23 tional incident evidence, and triggered Plaintiff’s immediate efforts to investigate and correct the
24 record before trial.

25 **DILIGENCE AFTER DISCOVERY**

26 After discovery in January 2025, Plaintiff acted diligently and continuously to address the miscon-
27 duct: Plaintiff raised the issue in pretrial proceedings (including the February 18, 2025 hearing),
28 sought appropriate relief before and during trial when the defense repeated the non-receipt/unknown-

1 provenance narrative, and pursued post-trial relief as available. Plaintiff then undertook the mini-
2 mum additional investigation necessary to plead this independent action with particularity, includ-
3 ing tracing the procurement/transfer history and identifying the specific misrepresentations and
4 their procedural effects.

5 **TIMELINESS (EQUITY)**

6 This independent action is timely in equity. Plaintiff discovered the fraud in January 2025 and
7 pursued corrective relief promptly through the pretrial and trial stages. Plaintiff brings this ac-
8 tion within a reasonable time after discovery and after the proceedings in which the fraud op-
9 erated, and no prejudice results from the timing because the core issue is record-based (posses-
10 sion/production/provenance and the resulting rulings), with available transcripts and documentary
11 transfers.

12 During and after trial, Plaintiff discovered the full extent of the fraud through hearing testimony and
13 trial transcripts. Jeremy Jessup's sworn testimony at the February 18, 2025 hearing established, in
14 substance, that the defense side had received and or possessed the evidence well before trial, which
15 directly contradicted the representations made to the Court by Defendants Navaratnasingham and
16 Reyna. Upon review of the hearing transcripts, trial transcripts, and evidence, it became immedi-
17 ately clear that defense-side representations to the Trial Judge were false or misleading and were
18 used to secure procedural and evidentiary rulings that excluded evidence, denied continuances,
19 and deferred admission of critical materials. The fraud was not merely suppression; it was active
20 corruption of the judicial process through false or misleading representations that caused the Court
21 to make decisions based on materially false premises.

22 **DAMAGES / EQUITABLE MONETARY RELIEF (ANCILLARY AND** 23 **RESTITUTIONARY)**

24 The fraud-induced litigation burdens were compounded by CSAA's pre-litigation misrepresenta-
25 tion of investigative finality (alleged in the related action CGC-25-631802), which forced Plaintiff
26 into the Underlying Action in the first place. CSAA's February 25, 2021 denial letter, falsely
27 representing a "concluded" investigation, set in motion the entire chain of litigation that the court-
28 room fraud then corrupted. The damages sought herein reflect the incremental harm caused by the

1 courtroom fraud operating on top of the institutional denial that initiated the forced litigation.

2 All monetary relief sought herein is ancillary to vacatur, restitutionary in purpose, temporally
3 bounded to the fraud-driven period, and segregated from any collision damages or ordinary lit-
4 igation burdens. Plaintiff does not seek general personal-injury damages, punitive damages, or
5 attorney's fees for prosecuting this equity action; those theories are reserved for other proceedings.
6 The following categories are pleaded as incidental equitable monetary relief incident to vacatur:

- 7 1. **Out-of-pocket record, evidence, and process costs** caused by the fraud-on-the-court mech-
8 anism: reporter's transcripts, clerk's transcripts, certified copies, copying and printing, ex-
9 hibit creation, audio and video transcription, authentication costs, storage media, postage and
10 courier, filing fees, service fees, and travel, parking, and mileage for hearings tied to the fraud
11 dispute.
- 12 2. **Fraud-delta time loss and lost earnings:** The value of productive time wrongfully imposed
13 by the fraud-driven extension, segregated from ordinary litigation time. This includes time
14 spent solely because the process was corrupted: emergency foundation work, repeated mo-
15 tions and appearances that would not exist but for the false "non-receipt/unknown prove-
16 nance" premise, and record reconstruction. Plaintiff's timeline spine supports a bounded
17 fraud-period narrative.
- 18 3. **Additional medical, therapy, and pharmacy expenses:** Incremental costs temporally tied
19 to documented exacerbations during the fraud-driven period, including therapy visits, medica-
20 tions, and copays for care necessitated by the fraud-driven litigation strain (not the collision).
21 Plaintiff will prove such specials to the extent documented in treatment records.

22 Plaintiff alleges emotional distress, humiliation, and physical toll as concrete harms supporting
23 the prejudice showing and why equity should intervene. To the extent Plaintiff seeks monetary
24 relief for such harms, it is limited to objectively billed care (therapy visits, medications, copays) as
25 pleaded in category 3 above.

26 **LEGAL ARGUMENT: EXTRINSIC FRAUD**

27 **Nature of Independent Action:** An independent action in equity is an ancient remedy, preserved
28 by California common law and Code Civ. Proc., § 187, designed to prevent a grave miscarriage

1 of justice. It is available where a judgment was procured by fraud that is “extrinsic” rather than
2 “intrinsic.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.)

3 **Definition of Extrinsic Fraud:** Extrinsic fraud occurs when a party is deprived of the opportunity
4 to present their claim or defense to the court. It is fraud that prevents a real contest or trial of the
5 issues. It encompasses conduct where a party is kept in ignorance of the suit, or, as in this case,
6 where counsel fraudulently corrupts the court’s process to prevent the other party from utilizing
7 the judicial system effectively. (*Kulchar*, supra, 1 Cal.3d at p. 471; *Aldrich v. San Fernando Valley*
8 *Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

9 **Distinction from Intrinsic Fraud:** Intrinsic Fraud generally involves perjury or forged documents
10 presented during the trial. The law typically expects litigants to expose such lies through cross-
11 examination. Extrinsic Fraud is collateral to the matter. It involves conduct that prevents the trial
12 from legally taking place on the merits. It includes fraud that corrupts the judicial process itself,
13 such as false statements to the court that cause the court to make procedural and evidentiary rulings
14 based on materially false information.

15 **Application to Facts:** In this matter, Defendants’ conduct constitutes extrinsic fraud for the fol-
16 lowing reasons:

17 **Corruption of the Court’s Machinery:** When Defendants PSA, Navaratnasingham, and Reyna
18 made false and misleading representations to the Court during pretrial hearings and trial, the Court
19 made procedural and evidentiary rulings under materially false premises. The Court’s procedu-
20 ral and evidentiary rulings (excluding evidence, denying continuances, and deferring admission)
21 became the mechanism by which Plaintiff was prevented from fairly presenting critical evidence.
22 This is process corruption, not merely an ordinary evidentiary dispute.

23 **Prevention of Presentation of Case:** Defendants’ false and misleading representations did not
24 just hide evidence; they caused the Court to make procedural and evidentiary rulings that legally
25 barred Plaintiff from presenting evidence in a timely, orderly manner. Plaintiff was prevented from
26 presenting the 911 call admission and bodycam footage effectively because the Court, relying
27 on false or incomplete information provided by Defendants PSA, Navaratnasingham, and Reyna,
28 deferred admission, excluded supplemental reports, and denied continuances. Thus, Plaintiff was

1 deprived of the opportunity to present the case regarding this evidence entirely.

2 **No Remedy at Trial:** Because the Judge had already made procedural and evidentiary rulings
3 based on false information, Plaintiff had no remedy during the trial. One cannot “cross-examine”
4 a Judge’s procedural ruling. The issues were closed before the jury could fairly consider the evi-
5 dence.

6 **The “Process Corruption” Doctrine:** Courts have recognized that while simple discovery non-
7 disclosure may be intrinsic, false statements to the court that cause the court to make procedural
8 and evidentiary rulings based on materially false information constitute extrinsic fraud. (*Aldrich*,
9 *supra*, 170 Cal.App.3d at p. 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66.) Defendants
10 PSA, Navaratnasingham, and Reyna utilized the authority of the Court to validate the deception,
11 thereby making the fraud external to the trial facts and embedded in the trial’s procedural frame-
12 work. Defendants Chambers and Carbone, Smith & Koyama proximately facilitated that fraud by
13 transferring the defense file without proper documentation, enabling successor counsel to make the
14 false representations. Defendants Abdelhalim and CSAA are liable as principals for the conduct
15 of their agents and as direct beneficiaries of the fraud.

16 **The Three-Leg Framework:** This fraud operates on three legs: (1) defense-side knowledge and
17 access to the evidence (supported by sworn hearing testimony and the production history, includ-
18 ing during Defendant Chambers’ and Carbone, Smith & Koyama’s tenure); (2) false and mislead-
19 ing representations by Defendants PSA, Navaratnasingham, and Reyna (including on February 18,
20 2025 and April 16, 2025), enabled by Defendants Chambers and Carbone, Smith & Koyama’s inad-
21 equate file transfer; and (3) Court reliance producing procedural and evidentiary rulings (including
22 exclusion, continuance denials, and deferral of admission). This three-leg framework establishes
23 process corruption and extrinsic fraud.

24 **Equitable Maxims:** “No one shall take advantage of his own wrong.” To allow Defendants to
25 keep a verdict won through false or misleading representations that corrupted the adjudicatory pro-
26 cess would violate fundamental principles of equity and public confidence in the judicial system.
27 (*Kulchar*, *supra*, 1 Cal.3d at p. 471.)

28 **Anticipated Defense Moves (pleaded to pre-empt demurrer and early motions):**

1 1. **“This is intrinsic fraud and final judgment bars relief.”** Plaintiff alleges extrinsic fraud, not
2 intrinsic fraud. The misconduct alleged is not merely perjury or a disputed narrative presented
3 for the jury to weigh. The misconduct alleged is the procurement of court rulings and procedu-
4 ral barriers under materially false premises about receipt and prior possession of critical incident
5 recordings, which deprived Plaintiff of a fair opportunity to present the evidence and obtain a true
6 adversarial contest. The weapon used against Plaintiff was not the lie itself, but the Court’s reliance
7 on that lie to make procedural and evidentiary rulings (denying continuances, excluding evidence,
8 deferring admission) that prevented fair presentation. Equity allows relief where fraud prevents a
9 fair presentation on the merits. (*Kulchar*, supra, 1 Cal.3d at p. 471; *Aldrich*, supra, 170 Cal.App.3d
10 at p. 735.)

11 2. **“Plaintiff should have subpoenaed the police earlier, so there is no causation.”** The equitable
12 wrong is not that Plaintiff failed to subpoena third-party records. The equitable wrong is that the
13 Court was induced to make procedural and evidentiary rulings under a materially false premise
14 about defense receipt and knowledge. Plaintiff alleges that the Court’s denial of a continuance and
15 its refusal to conduct verification measures occurred after and because the Court credited defense-
16 side false and misleading representations by Defendants PSA, Navaratnasingham, and Reyna that
17 the defense did not have the materials and had no knowledge of them. Plaintiff alleges that, but
18 for those representations, the Court would have likely granted a short continuance and or ordered
19 verification measures that would have enabled authentication and admissible presentation. Plaintiff
20 further alleges that the law does not require a litigant to preemptively assume the adversary is
21 lying to the Court and to duplicate discovery and authentication efforts on an emergency basis,
22 especially where the Court is positioned to order verification once the conflict is revealed on the
23 record. The causation chain is: false representation, Court reliance, adverse ruling, deprivation of
24 fair presentation.

25 3. **“Litigation privilege and or anti-SLAPP bars the claim because it is based on in-court**
26 **statements.”** This action seeks equitable relief, including vacatur of a judgment procured by
27 extrinsic fraud and restoration of a fair contest on the merits, and ancillary equitable monetary
28 relief incident to that equitable set-aside. It does not seek tort damages for protected petitioning

1 activity. The in-court representations are alleged solely to show how the judgment was procured
2 and how the Court was induced to make rulings under materially false premises, which is the
3 extrinsic fraud mechanism. Plaintiff alleges a probability of prevailing because the complaint
4 pleads a meritorious case, a satisfactory excuse, diligence, and a direct causation chain from false
5 premises to rulings to deprivation of fair presentation.

1 **CAUSE OF ACTION**

2 **COUNT I: INDEPENDENT ACTION IN EQUITY TO SET ASIDE JUDG-**
3 **MENT FOR EXTRINSIC FRAUD**

4 (Against Defendants Subhi Abdelhalim, CSAA Insurance Exchange, PHILLIPS SPALLAS &
5 ANGSTADT LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, Carbone,
6 Smith & Koyama, and DOES)

7 Plaintiff incorporates and realleges all preceding paragraphs as though fully set forth herein.

8 A Final Judgment exists in Case No. CGC-21-594102 which is valid on its face but is, in reality,
9 the fruit of a poisonous tree procured through extrinsic fraud that corrupted the judicial process.
10 Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, Priya D. Navaratnasingham, and Alberto
11 Reyna participated directly in that fraud by making false and misleading representations to the
12 Court that induced procedural and evidentiary rulings under materially false premises. Defendants
13 Michael R. Chambers and Carbone, Smith & Koyama participated in that fraud by transferring
14 the defense file to PSA on May 4, 2023, without ensuring proper documentation of the production
15 history, which proximately enabled successor counsel to make those false representations. Defen-
16 dants Abdelhalim and CSAA Insurance Exchange are liable as principals and as beneficiaries of
17 the fraud.

18 **Meritorious Claim:** Plaintiff possesses a meritorious claim. The 911 call admission (“I barely hit
19 him with anything”), body cam footage containing eyewitness statements, and CAD logs clearly
20 demonstrate liability on the part of Defendant Abdelhalim. But for the fraud, it is reasonably
21 certain that the Plaintiff would have secured a favorable verdict. The jury’s 9–3 split on a single
22 negligence question, combined with the suppressed evidence, establishes that the fraud affected
23 the outcome.

24 **Resulting Harm and Need for Ancillary Monetary Relief:** The fraudulent procurement of
25 the judgment also caused Plaintiff substantial consequential harm as set forth in Section III.H.
26 Plaintiff seeks ancillary equitable monetary relief, restitutionary in nature, incident to vacatur and
27 restoration of a fair trial process, against all Defendants including PSA, Navaratnasingham, Reyna,

1 Chambers, and Carbone, Smith & Koyama. Such relief comprises: (i) record, transcript, and ev-
2 idence costs; (ii) fraud-delta lost time and lost earnings; and (iii) additional medical and therapy
3 expenses for documented exacerbations during the fraud-driven period. Plaintiff does not seek
4 general personal-injury damages, punitive damages, or attorney's fees for this equity action herein.

5 **Equitable Prerequisites (*Kulchar* factors):**

- 6 1. Meritorious case: Plaintiff had a meritorious liability case supported by the 911 party admis-
7 sion, corroborating eyewitness statements on bodycam, and CAD-linked incident records.
- 8 2. Satisfactory excuse: Plaintiff did not obtain a fair opportunity to present the evidence and the
9 related foundation and presentation mechanics at trial because the Court made key procedural
10 and evidentiary rulings under a materially false premise about defense-side receipt and prior
11 possession of the materials, based on false representations by Defendants PSA, Navaratnas-
12 ingham, and Reyna.
- 13 3. Diligence: Plaintiff acted diligently. Plaintiff raised the issue in the Underlying Action when
14 the dispute surfaced and seeks equitable relief promptly upon confirming the contradiction
15 between defense-side representations and the production history reflected in the record.
- 16 4. No adequate remedy at law: Ordinary remedies were rendered inadequate because the judg-
17 ment was procured through extrinsic fraud that impaired the integrity of the adjudicatory
18 process, not merely through adverse factfinding. Equity is required to restore a fair contest
19 on the merits.

20 **Fraud on the Court:** Defendants Abdelhalim, CSAA Insurance Exchange, PHILLIPS, SPALLAS
21 & ANGSTADT LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, and Car-
22 bone, Smith & Koyama engaged in an intentional, unconscionable scheme that interfered with the
23 judicial system's ability to adjudicate the matter impartially. Defendants PSA, Navaratnasingham,
24 and Reyna made false and misleading representations to the Court regarding receipt, possession,
25 and prior production of critical evidence. Defendants Chambers and Carbone, Smith & Koyama
26 proximately facilitated that fraud by transferring the defense file without proper documentation
27 of the production history, enabling successor counsel to make those false representations. CSAA
28 Insurance Exchange funded, directed, and ratified the litigation positions and representations used

1 to procure the judgment. Defendant Abdelhalim is the judgment beneficiary. The three-leg mecha-
2 nism is: (1) defense-side access and knowledge (including during Chambers' and Carbone Smith's
3 tenure); (2) false and misleading representations to the Court by Defendants PSA, Navaratnas-
4 ingham, and Reyna, enabled by Defendants Chambers and Carbone, Smith & Koyama's inade-
5 quate file transfer; and (3) Court reliance producing rulings that impaired Plaintiff's opportunity to
6 present the case.

7 **Balance of Equities:** The balance of equities favors set-aside and retrial. Defendants will suffer
8 no unfairness from a fair trial on the merits, while Plaintiff suffers a severe injustice if a judgment
9 procured through extrinsic fraud remains in place.

10 **PRAYER FOR RELIEF**

11 WHEREFORE, Plaintiff Franciscus Dylan Rosario prays for Judgment against Defendants as fol-
12 lows:

- 13 1. **Vacatur:** That the Court issue an Order vacating and setting aside the Judgment entered in
14 Case No. CGC-21-594102 on April 25, 2025.
- 15 2. **New Trial:** That the Court order a new trial on the merits of the underlying dispute, allowing
16 for the full presentation of the previously suppressed 911 call admission, bodycam footage,
17 and CAD logs without the procedural and evidentiary barriers created by false or misleading
18 defense-side representations.
- 19 3. **Equitable Monetary Relief (Ancillary and Restitutionary):** That the Court award equi-
20 table monetary relief incident to vacatur, restitutionary in purpose, for losses proximately
21 caused by the fraudulent procurement of the judgment, including: (i) out-of-pocket record,
22 transcript, and evidence costs; (ii) fraud-delta lost time and lost earnings; and (iii) additional
23 medical and therapy expenses for documented exacerbations during the fraud-driven period,
24 in an amount to be proven, against Defendants and each of them.
- 25 4. **Costs:** That Plaintiff recover allowable costs of suit.
- 26 5. **General Relief:** For such other and further relief as the Court deems just and equitable.

1 **VERIFICATION**

2 I, Franciscus Dylan Rosario, am the Plaintiff in the above-entitled action. I have read the foregoing
3 Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud. The
4 facts stated therein are true of my own personal knowledge, except as to those matters stated on
5 information and belief, and as to those matters, I believe them to be true.

6 I declare under penalty of perjury under the laws of the State of California that the foregoing is
7 true and correct.

8 Executed on February 25, 2026, at San Francisco, California.

9 /s/ Franciscus Dylan Rosario

10 Franciscus Dylan Rosario

Respectfully submitted,

Dated: February 25, 2026

A handwritten signature in black ink, appearing to read 'Francisco' or similar, with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Dr.
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT C

THE SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Case Number: CGC21594102
Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL
Cause of Action: PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED
Generated: 2026-03-25 3:16 pm

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2025-08-12	NOTICE OF ENTRY OF ORDER/NOTICE OF RULING FILED (TRANSACTION ID # 76852389) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
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2025-06-04	DECLARATION OF ALBERTO REYNA IN SUPPORT OF [PROPOSED] ORDER ON MEMORANDUM OF COSTS IN FAVOR OF DEFENDANT SUBHI ABDELHALIM (TRANSACTION ID # 76400627) (TRANSACTION ID # 76400627) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
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2025-05-28	LAW AND MOTION, 504, PLAINTIFF'S MOTION TO DECLARE A MISTRIAL BASED ON PREJUDICIAL JUDICIAL ERROR ARISING FROM IMPROPER INSTRUCTION AND TAINTED JURY RESPONSE, DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	LAW AND MOTION, 504, PLAINTIFF'S MOTION FOR MISTRIAL BASED ON PREJUDICIAL LEGAL ERROR: MISAPPLICATION OF VS 21651 AND ERRONEOUS NEGLIGENCE PER SE INSTRUCTION; IMPROPER COMPARATIVE FAULT ARGUMENTS CONTRARY TO VC 21950 AND "FUNCTIONAL PEDESTRIAN" DOCTRINE, DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
2025-05-28	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, NOT REPORTED, (504).		
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2025-05-27	PLAINTIFF'S MOTION TO DECLARE A MISTRIAL BASED ON PREJUDICIAL JUDICIAL ERROR ARISING FROM IMPROPER INSTRUCTION AND TAINTED JURY RESPONSE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:00 AM IN DEPT 504	View	IFP
2025-05-27	PLAINTIFF'S MOTION FOR MISTRIAL BASED ON PREJUDICIAL LEGAL ERROR: MISAPPLICATION OF VS 21651 AND ERRONEOUS NEGLIGENCE PER SE INSTRUCTION; IMPROPER COMPARATIVE FAULT ARGUMENTS CONTRARY TO VC 21950 AND "FUNCTIONAL PEDESTRIAN" DOCTRINE, DECLARATION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-28-2025 AT 09:00 AM IN DEPT 504	View	IFP
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Date	Proceedings	Document	Fee
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2025-04-15	MINUTES FOR APR-15-2025 9:30 AM	View	
2025-04-14	MOTION TO BIFURCATE AND SUBMIT SPECIAL VERDICT ON CAUSATION PRIOR TO DAMAGES PHASE; - PROPOSED SPECIAL VERDICT FORM (CAUSATION AND FAULT ONLY); - 1-PAGE BENCH BRIEF (TRANSACTION ID # 76067216) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
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2025-04-14	MINUTES FOR APR-14-2025 9:30 AM	View	
2025-04-14	ORDER EXCLUDING DR. RENE GONZALEZ'S TESTIMONY	View	
2025-04-14	REQUEST FOR ADMONISHMENTS PURSUANT TO RULINGS ON MOTIONS IN LIMINE BEFORE JURY SELECTION (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-14	DEFENDANT SUBHI ABDELHALIM'S RESPONSE TO PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE AND CLARIFICATION OF LEGAL RIGHT TO PROVE DAMAGES AND CAUSATION THROUGH LAY TESTIMONY AND BUSINESS RECORDS WITHOUT EXPERT WITNESS? (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-14	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 76059449) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-14	MOTION TO ADMIT BUSINESS RECORDS UNDER EVID. CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-14	TRIAL MOTION TO ADMIT MEDICAL RECORDS AS BUSINESS RECORDS (EVIDENCE CODE 1271, 1560, 1561 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-14	DECLARATION OF FRANCISCUS ROSARIO AS CUSTODIAN OF BUSINESS RECORDS PURSUANT TO CALIFORNIA EVIDENCE CODE 1271 (TRANSACTION ID # 76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.18 TO PRECLUDE PLAINTIFF, OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT AS TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.14 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT	View	
2025-04-10	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL SPECIALS/EXPENSES	View	
2025-04-10	ORDER ORDER DENYING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO.2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSE BY DEFENDANT.	View	

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2025-04-10	JURY TRIAL SET FOR APR-10-2025 CONTINUED TO APR-14-2025 AT 9:30 AM IN 504 FOR PRETRIAL MOTIONS & JURY HARDSHIPS. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-10	ORDER 1) DENYING "PLAINTIFF'S PEREMPTORY CHALLENGE TO JUDICIAL ASSIGNMENT PURSUANT TO CCP 170.6;" 2) DENYING 'PLAINTIFF'S MOTION FOR RECONSIDERATION AND REMINDER OT THE COURT REGARDING MANDATORY PROVISIONS OF CCP 170.6;" 3) STRIKING "PLAINTIFF DECLARATION AND MEMORANDUM OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP 170.1;" 4) STRIKING "OPPOSITION TO GARRET [SIC] WONG DENIAL OF MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE UNDER CCP 170.1;" 5) STRIKING "PLAINITFF FRANCISCUS DYLAN ROSARIO VERIFIED DECLARATION OF IN SUPPORT OF STATEMENT OF DISQUALIFICATION UNDER CCP 170.1(A)(6)(A)(III);" 6) STRIKING 'PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE GARRET [SIC] L. WONG PURSUANT TO CCP 170.1(A)(6)(A)(III);" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG. [TRANSACTION# 76047901]	View	
2025-04-10	MINUTES FOR APR-10-2025 9:30 AM	View	
2025-04-10	TRIAL BRIEF JURY ARGUMENT NOTES - EXPERT CHALLENGE ? DR. TERENCE DELANEY, ORTHOPEDIC SURGEON (TRANSACTION ID # 76039740) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	THIRD REQUEST SUPPLEMENTAL JUDICIAL NOTICE FOR CLARIFICATION AND OBIOUSNESS PURSUANT TO EVIDENCE CODE 452(G) AND (H) (TRANSACTION ID # 76039710) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	REQUEST FOR JUDICIAL NOTICE PART 2 (TRANSACTION ID # 76039710) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-09	MOTION FOR RECONSIDERATION OF RULING ON DEFENDANT'S MOTION IN LIMINE NO. 8 (TRANSACTION ID # 76039629) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-09	TRIAL BRIEF (TRANSACTION ID # 76039464) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-08	MOTION FOR JUDGMENT ON THE PLEADINGS (TRANSACTION ID # 76018066) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-08	MOTION FOR COURT-APPOINTED EXPERT (TRANSACTION ID # 76018043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-04-07	JURY TRIAL SET FOR APR-07-2025 CONTINUED TO APR-10-2025 AT 9:30 AM IN 504 FOR A 402 HEARING. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-07	MINUTES FOR APR-07-2025 10:00 AM	View	
2025-04-07	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL REFERENCE OR TESTIMONY RELATING TO LIABILITY INSURANCE AND PREJUDICIAL STATEMENTS WHICH ARE IRRELEVANT TO THE ISSUES IN THIS CASE	View	
2025-04-07	ORDER GRANTING DEFENDANT SBHI ABDELHALIM;S MOTION IN LIMINE NO. 19 TO EXCLUDE TESTIMONY OR ARGUMENT RELATING TO THE ERRONEOUS AND DEFAMATORY ALLEGATIONS OF ALLEGED DRUG ACTIVITY AT DEFENDANT'S PLACE OF BUSINESS	View	
2025-04-07	OBJECTION TO ADMISSION OF ANY TESTIMONY AND OR OPINIONS BY DR. RENE GONZALEZ AT TRIAL (TRANSACTION ID # 76011365) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-04	STATEMENT OF CASE (TRANSACTION ID # 76008605) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-04	*AMENDED* EXHIBIT LIST FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-04	PLAINTIFF'S DESIGNATION OF DEPOSITION TESTIMONY (AND SUPPORTING DECLARATION) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-04-02	JURY TRIAL SET FOR APR-02-2025 CONTINUED TO APR-07-2025 AT 10:00 AM IN 504 FOR CONTINUED MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-02	TRIAL TIME ESTIMATE (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	STATEMENT OF THE CASE (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75986179) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-04-02	MINUTES FOR APR-02-2025 9:30 AM	View	
2025-04-01	JURY TRIAL SET FOR APR-01-2025 CONTINUED TO APR-02-2025 AT 9:30 AM IN 504 FOR MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: D. SOUZA CSR#3893 209-629-1921; DMSOUZA@GMAIL.COM, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARRASING EMAILS AND MESSAGES" IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	TRIAL MOTION CALENDAR ON APR-01-2025 IN DEPT. 504, MOTION FOR RECONSIDERATION AND REMINDER TO THE COURT REGARDING THE MANDATORY PROVISIONS OF CCP 170.6 IS OFF CALENDAR. MOTION UNTIMELY FILED. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, (504).		
2025-04-01	MINUTES FOR APR-01-2025 9:30 AM	View	
2025-04-01	JUROR QUESTIONNAIRE VOIR DIRE QUESTIONS (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-01	MOTION IN LIMINE #87 (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-04-01	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75964849) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	DECLARATION AND MEMORANDUM OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP 170.1 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	PLAINTIFF FRANCISCUS DYLAN ROSARIO VERIFIED DECLARATION OF DISQUALIFICATION UNDER CCP 170.1(A)(6)(A)(III) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARRASING EMAILS AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	MOTION FOR RECONSIDERATION AND REMINDER TO THE COURT REGARDING THE MANDATORY PROVISIONS OF CCP 170.6 *FILED AT INSISTENCE* FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR APR-01-2025 AT 09:30 AM IN DEPT 504	View	IFP
2025-03-28	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-03-28	OPPOSITION TO GARRET WONG DENIAL OF MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE UNDER CCP 170.1 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-28	PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE GARRETT L. WONG PURSUANT TO CCP 170.1(A)(6)(A)(III) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-26	ORDER RE: TRIAL SCHEDULING [TRANSACTION# 75944567]	View	
2025-03-26	ORDER : (1) DENYING PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET [SIC] WONG AND JUDICIAL REVIWE DUE TO CCP 170.6;" (2) STRIKING "PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS;" AND (3) STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG [TRANSACTION# 75944247]	View	
2025-03-26	EXHIBITS A TO Q FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	PROOF OF SERVICE BY ELECTRONIC MAIL **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75919739) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	NOTICE OF MOTION TO COMPEL DEFENDANT TO PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS AND MESSAGES" **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75919739) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-24	PROOF OF SERVICE BY ELECTRONIC MAIL **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-24	MOTION FOR ADVERSE INFERENCE INSTRUCTION AND/OR EVIDENTIARY SANCTIONS **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-24	NOTICE OF MOTION AND MOTION TO STRIKE DEFENDANT'S AFFIRMATIVE DEFENSES **FILED AT INSISTENCE OF LITIGANT** (TRANSACTION ID # 75914857) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-03-18	JURY TRIAL SET FOR MAR-24-2025 CONTINUED TO APR-01-2025 AT 9:30 AM IN 504, JUDGE: GARRETT L.WONG, CLERK: K.SEPTIEN, NOT REPORTED, (504).	View	
2025-03-17	JURY TRIAL SET FOR MAR-17-2025 CONTINUED TO MAR-24-2025 AT 9:30 AM IN 504. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: J. MATTEO CSR#12139, JMATTEOCSR@GMAIL.COM, (504).		
2025-03-17	REQUEST FOR JUDICIAL NOTICE INDISPUTABLE FACTS (TRANSACTION ID # 75868304) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-17	MOTION IN LIMINE NO. 84 MASTER (TRANSACTION ID # 75868232) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-17	MOTION IN LIMINE #88 (TRANSACTION ID # 75868232) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	NOTICE OF MOTION FOR JUDICIAL DISQUALIFICATION. DECLARATION OF PLAINTIFF IN SUPPORT OF DISQUALIFICATION. REQUEST FOR STAY OF PROCEEDINGS. MEMORANDUM FROM PLAINTIFF IN SUPPORT OF REASSIGNMENT. [PROPOSED] ORDER GRANTING MOTION FOR REASSIGNMENT. (TRANSACTION ID # 75858531) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75858531) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET WONG AND JUDICIAL REVIEW DUE TO CCP 170.6 (TRANSACTION ID # 75858441) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75858441) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.6 PEREMPTORY CHALLENGE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	170.1/170.3 CHALLENGE FOR CAUSE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	PRAYER TO JUDGE HON. ROCHELLE EAST (TRANSACTION ID # 75848944) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-13	MOTION IN LIMINE 1-84 (TRANSACTION ID # 75848942) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-12	WITNESS LIST **AMENDED** (TRANSACTION ID # 75829917) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-12	EXHIBIT LIST **AMENDED** (TRANSACTION ID # 75829917) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-11	MOTION IN LIMINE NO. 20 TO EXCLUDE WITNESS DR. RENE GONZALEZ INCLUDING ANY AND ALL TESTIMONY, RECORDS AND OR OPINIONS FROM DR. RENE GONZALEZ (TRANSACTION ID # 75815974) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-03-10	REQUEST FOR JUDICIAL NOTICE JUDICIAL NOTICE (TRANSACTION ID # 75810833) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	170.1/170.3 CHALLENGE FOR CAUSE PENDING AS TO JUDGE GARRETT L. WONG (TRANSACTION ID # 75810833) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	PROOF OF SERVICE BY ELECTRONIC MAIL OF SUBPOENA FOR OFFICER MYKAEL THOMPSON, ETC. (TRANSACTION ID # 75800815) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	SUPPLEMENTAL EVIDENCE AND EXHIBIT LIST + INDEX (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-10	SUPPLEMENTAL WITNESS DESIGNATION (TRANSACTION ID # 75800767) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-03-03	ORDER AFTER HEARING RE: DEPOSITIONS OF PLAINTIFF'S TREATING PHYSICIANS (TRANSACTION#75757147]	View	
2025-02-28	JURY TRIAL SET FOR MAR-10-2025 CONTINUED TO MAR-17-2025 AT 9:30 AM IN DEPT. 504, PER THE COURT'S ORDER FROM FEB-28-2025 HEARING. JUDGE: HONORABLE GARRETT L. WONG; CLERK: C. CHENG; REPORTER: NOT REPORTED; BAILIFF: NOT ASSIGNED. (504)		
2025-02-28	TRIAL MOTION IN DEPT. 504, PLAINTIFF'S [PROPOSED] MOTION PROTECTIVE ORDER AND ENFORCEMENT OF COURT ORDER REGARDING TREATING PHYSICIAN'S DEPOSITIONS HELD AND DENIED WITHOUT PREJUDICE. DEFENSE COUNSEL TO SUBMIT PROPOSED ORDER. JUDGE: HONORABLE GARRETT L. WONG; CLERK: C. CHENG; REPORTER: JAIME PLY, CSR #13323, T:714-316-3757, E:JPLYCSR@AOL.COM; BAILIFF: NOT ASSIGNED. (504)		
2025-02-28	MINUTES FOR FEB-28-2025 9:30 AM	View	
2025-02-25	ADDED TO CALENDAR FOR PLAINTIFF'S [PROPOSED] MOTION PROTECTIVE ORDER AND ENFORCEMENT OF COURT ORDER REGARDING TREATING PHYSICIAN'S DEPOSITIONS HEARING SET FOR FEB-28-2025 AT 09:30 AM IN DEPT 504		
2025-02-21	PROOF OF SERVICE (TRANSACTION ID # 75694070) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-02-21	PLAINTIFFS COMPLIANCE WITH COURT ORDER REGARDING TREATING PHYSICIANS DISCLOSURE (TRANSACTION ID # 75694070) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-02-18	JURY TRIAL SET FOR FEB-18-2025 CONTINUED TO MAR-10-2025 AT 9:30 AM IN 504 FOR MOTIONS IN LIMINE. JUDGE: GARRETT L. WONG, CLERK: A. MOK & K. SEPTIEN, REPORTER: S. CARRANZA, SANDYCARRANZA@COMCAST.NET, 415-328-5728, (504).		
2025-02-18	MINUTES FOR FEB-18-2025 9:30 AM	View	
2025-02-10	OPPOSITION TO PLAINTIFF'S MOTION FOR CONTINUANCE OF TRIAL DUE TO ADA PROTECTED MEDICAL REASONS AND TO REOPEN DISCOVERY (TRANSACTION ID # 75613308) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-02-04	JURY TRIAL SET FOR FEB-03-2025 FOR STATUS IS HELD AND CONTINUED TO FEB-18-2025 AT 9:30 AM IN 504 FOR FUTHER STATUS AND FILING OF MOTION TO CONTINUE. JUDGE: GARRETT L. WONG; CLERK: R. SAHATJIAN; REPORTER: LAURA AXELSEN CSR #6173 (707) 373-0613; DEPOS@L-DAK.COM (D504)		
2025-02-03	MINUTES FOR FEB-03-2025 9:30 AM	View	
2025-01-31	PROOF OF PERSONAL SERVICE OF SUBP-001, SUBP-002, MC-025 (2 PAGES) ***FILED PURSUANT TO LITIGANT'S REQUEST*** FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-28	JURY TRIAL SET FOR JAN-28-2025 CONTINUED TO FEB-03-2025 AT 9:30 AM IN 504 FOR STATUS CONFERENCE. JUDGE: GARRETT L. WONG, CLERK: K. SEPTIEN, REPORTER: ANGIE DINER CSR#8591, (504).		
2025-01-28	MINUTES FOR JAN-28-2025 8:00 AM	View	
2025-01-27	JURY TRIAL SET FOR JAN-27-2025 CONTINUED TO JAN-28-2025 AT 8:00 AM IN 504 FOR CONTINUED MOTIONS IN LIMINE. JUDGE GARRETT L. WONG, CLERK DENNIS D. VEGAS, CSR ALESIA L. COLLINS #7751, 504.		
2025-01-27	MINUTES FOR JAN-27-2025 1:30 PM	View	
2025-01-27	MASTER JURY TRIAL CALENDAR OF JAN-27-2025 -- APPEARANCES BY FRANCISCUS DYLAN ROSARIO, PLAINTIFF IN PRO PER; PRIYA NAVARATNASHINGHAM, ESQ. AND ALBERTO REYNA, ESQ. FOR DEFENDANT SUBHI ABDELHALIM -- ASSIGNED TO JURY TRIAL CALENDAR ON JAN-27-2025 AT 1:30 PM IN DEPT. 504, JUDGE GARRETT L. WONG. TRIAL TIME ESTIMATE: 5 DAYS. JUDGE: ROCHELLE EAST; CLERK: JIROQUE; COURT REPORTER: MATTER NOT REPORTED. (206)		
2025-01-27	OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75515259) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	REBUTTAL TO DEFENDANT'S GLOBAL DECLARATION SUPPORTING MOTIONS IN LIMINE NOS. 1-19 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OBJECTION TO DEFENSE DECLARATIONS IN SUPPORT OF MOTION IN LIMINE (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	OPPOSITION TO DEFENDANT'S MOTIONS IN LIMINE NOS. 1-19 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	PRAYER TO THE COURT (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	DECLARATION OF UNDISPUTED MATERIAL FACTS PURSUANT TO CRC RULE 3.1350 (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-27	DECLARATION AND PRAYER TO THE COURT, AND MOTION FOR RELIEF UNDER CCP 473 (TRANSACTION ID # 75515168) (TRANSACTION ID # 75515168) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2025-01-23	PROOF OF PERSONAL SERVICE (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-23	EX PARTE APPLICATION FOR ORDER TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) AND REQUEST FOR EVIDENCE SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO ; WITH EXHIBIT A , B, C, AND D (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-23	NOTICE OF EX PARTE APPLICATION AND EX PARTE APPLICATION FOR RELIEF UNDER CCP 473 ; AND MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF RELIEF REQUEST; EXHIBIT A (TRANSACTION ID # 75500143) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-22	NOTICE OF APPLICATION ; EX PARTE APPLICATION FOR RELIEF UNDER CCP 473 (TRANSACTION ID # 75496885) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-22	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75496585) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-22	EX PARTE APPLICATION FOR ORDER TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) REQUEST FOR EVIDENCE SANCTIONS ROSARIO (TRANSACTION ID # 75496585) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-21	PROOF OF ELECTRONIC SERVICE (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	PROPOSED MOTION IN LIMINE NO. 1 TO EXCLUDE DEFENDANTS EXPERT WITNESSES FOR FAILURE TO COMPLY WITH CCP 2034 AND REQUEST FOR EVIDENCE SANCTIONS (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	EX PARTE APPLICATION TO EXCLUDE DEFENDANT'S EXPERT WITNESSES FOR FAILURE TO COMPLY WITH TITLE 4 (CCP 2034) AND REQUEST FOR EVIDENCE SANCTIONS (TRANSACTION ID # 75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-21	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75472927) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-21	SEPARATE STATEMENT OF FACTS IN SUPPORT OF MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75472927) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-21	EX PARTE MOTION FOR RELIEF UNDER CCP 473 DUE TO EXCUSABLE NEGLIGENCE, MISTAKE, INADVERTENCE, OR SURPRISE (TRANSACTION ID # 75472927) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-17	PROOF OF SERVICE FOR GLOBAL STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 1 - 19, ETC. (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	GLOBAL DECLARATION IN SUPPPORT OF SUBHI ABDELHALIM'S MOTIONS IN LIMINE NOS. 1 -19 (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 19 TO EXCLUDE TESTIMONY OR ARGUMENT RELATING TO THE ERRONEOUS AND DEFAMATORY ALLEGATIONS OF ALLEGED DRUG ACTIVITY AT DEFENDANT'S PLACE OF BUSINESS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 18 TO PRECLUDE PLAINTIFF, OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT RELATING TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 17 TO PRECLUDE PLAINTIFF FROM USING OR REFERENCING AN ALLEGED 911 TRANSCRIPT LOG AND AUDIO RECORDING AS IT WAS NOT DISCLOSED IN DISCOVERY, LACKS FOUNDATION AND IS	View	

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	INADMISSIBLE HEARSAY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI		
2025-01-17	MOTION IN LIMINE NO. 16 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S WITNESSES NOT IDENTIFIED IN DISCOVERY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 15 TO LIMIT EVIDENCE OF MEDICAL EXPENSES TO ACTUAL AMOUNTS PAID (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 14 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 13 TO EXCLUDE EVIDENCE AND TESTIMONY OF SPECIAL DAMAGES NOT IDENTIFIED IN DISCOVERY AND EXPERT OPINIONS BASED ON UNDISCLOSED DAMAGES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 12 TO EXCLUDE ANY TESTIMONY BY PLAINTIFF, OR ANY PERSON ON BEHALF OF PLAINTIFF, OF ANY ALLEGED STATEMENT MADE BY AN UNIDENTIFIED WITNESSES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 11 TO PRECLUDE PLAINTIFF'S USE OF HIS INTERROGATORY RESPONSES IN HIS FAVOR AT TRIAL (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 10 TO EXCLUDE DEMONSTRATIVE EVIDENCE NOT INSPECTED BY DEFENSE COUNSEL (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 9 TO EXCLUDE ALL EVIDENCE AND STATEMENTS OF DEFENDANT'S FINANCIAL CONDITION (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN EMOTIONAL DISTRESS (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED TRAUMATIC BRAIN INJURY, AND THAT HE HAS RESULTING COGNITIVE DEFICITS AS A RESULT OF THE INCIDENT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL SPECIALS EXPENSES (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSED BY DEFENDANT (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	GLOBAL STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	

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2025-01-17	MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL REFERENCE OR TESTIMONY RELATING TO LIABILITY INSURANCE AND PREJUDICIAL STATEMENTS WHICH ARE IRRELEVANT TO THE ISSUES IN THIS CASE (TRANSACTION ID # 75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	DECLARATION OF PRIYA NAVARATNASINGHAM IN SUPPORT OF MOTIONS IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 18 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 17 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 16 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 15 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 14 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 13 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 12 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 11 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 10 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 9 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	STATEMENT OF FACTS IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NOS. 1 - 19 (TRANSACTION ID # 75471090) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	PROOF OF SERVICE FOR MOTIONS IN LIMINES, ETC. (TRANSACTION ID # 75471070) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN EMOTIONAL DISTRESS (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED TRAUMATIC BRAIN INJURY, AND THAT HE HAS RESULTING COGNITIVE (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY ARGUMENT AS TO FUTURE MEDICAL SPECIALS/EXPENSES (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	

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2025-01-17	MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE CAUSED BY DEFENDANT (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-17	MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY (MOTIONS) (TRANSACTION ID # 75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN UNDER CCP FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. WILLIAM K. HODDICK UNDER FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV UNDER FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EX PARTE APPLICATION FOR AN ORDER EXCLUDING DEFENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EX PARTE APPLICATION FOR AN ORDER EXCLUDING DEFENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-15	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-15	DECLARATION IN SUPPORT OF EX-PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	EXHIBIT A. DISCOVERY TIMELINE IN SUPPORT OF EX PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 75449344) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	REMARK: RE: EX PARTE APPLICATIONS. COURTESY COPIES OF PLAINTIFF'S EX PARTE APPLICATIONS WERE NOT PROVIDED TO DEPT. 302. NO HEARING IS HELD. EX PARTE APPLICATIONS ARE TO BE RENOTICED FOR THURSDAY 1/16/25. JUDGE: HAROLD E. KAHN; CLERK: W. TRUPEK; NOT REPORTED (302/HEK)		
2025-01-15	EXHIBIT A. DISCOVERY TIMELINE (TRANSACTION ID # 75440745) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-15	DECLARATION IN SUPPORT OF EX-PARTE APPLICATION TO EXCLUDE DEFENSE EXPERT TESTIMONY (TRANSACTION ID # 75438910) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTI- MONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTI- CLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. CHITRA VENKATASUBRAMANIAN FROM PRESENTING TESTI- MONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. WILLIAM HODDICK FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. WILLIAM K. HODDICK FROM PRESENT- ING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VANESSA J. HILL FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. HOWARD FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT DR. HOWARD J. FRIEDMAN FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DE- FENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COM- PLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT VLADIMIR FILKOV FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.610 (CHAPTER 15, ARTICLE 6) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-13	EX PARTE APPLICATION FOR ORDER EXCLUDING DEFENSE EXPERT DR. TERENCE DELANEY FROM PRESENTING TESTIMONY AT TRIAL FOR FAILURE TO DISCLOSE COMPLETE MANDATORY EXPERT DECLARATIONS UNDER CCP TITLE 4, 2034.300 (CHAPTER 18, ARTICLE 2) (TRANSACTION ID # 75426091) (TRANSACTION ID # 75426091) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-10	ORDER RE: PLAINTIFF'S EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING	View	
2025-01-08	EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING (TRANSACTION ID # 75396108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-08	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE AP- PPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMME- DIATE FUNDS FOR NECESSARY MEDICAL TESTING (TRANSACTION ID # 75396108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-08	REMARK: HEARING HELD RE: EX PARTE APPLICATION FOR OST. COURT DETERMINES THAT THE EX PARTE APPLICATION WAS NOT PROPERLY SERVED. APPLICATION IS TO BE NOTICED AND SERVED ON OPPOSING COUNSEL FOR EX PARTE HEARING ON 1/9/25. ALBERTO REYNA, COUNSEL FOR DEFENDANT(S) IS PRESENT. FRANCISCO DYLAN ROSAROI, PRO SE PLAINTIFF IS PRESENT.		
2025-01-07	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-07	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2025-01-03	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME ON HEARING FOR MOTION TO AMEND COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-03	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION TO AMEND COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP

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2025-01-03	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-01-03	EX PARTE APPLICATION FOR ORDER TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2024-12-20	REMOVED FROM SETTLEMENT CONFERENCE CALENDAR SET FOR DEC-19-2024 - HELD AND NOT SETTLED (3.5)		
2024-12-16	REMARK: AS TO THE DEC-16-2024 PLAINTIFF'S EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT, THE COURT DENIES THE APPLICATION WITHOUT PREJUDICE TO FILE A REGULARLY NOTICED MOTION. JUDGE: RICHARD B. ULMER JR.; CLERK: V. DA FONSECA; NOT REPORTED. (302/RBU)		
2024-12-13	NOTICE OF EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-12-13	EX PARTE APPLICATION FOR LEAVE TO FILE AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTORITIES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2024-12-13	ORDER GRANTING WAIVER OF COURT FEES AND COSTS PURSUANT TO G.C. 68634 (E), CRC 3.52 AS TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-12-13	REQUEST PENDING TO WAIVE COURT FEES AND COSTS PURSUANT TO G.C. 68633, CRC 3.51, 8.26, AND 8.818 (CONFIDENTIAL) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		
2024-12-10	EX PARTE APPLICATION FOR ORDER TO ADDRESS MALFEASANCE AND MISFEASANCE OF FORMER COUNSEL AND TO GRANT LEAVE TO FILE AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	\$60.00
2024-12-09	NOTICE OF SETTLEMENT CONFERENCE; SETTLEMENT CONFERENCE SET FOR DEC-19-2024 AT 8:30 AM WITH SETTLEMENT CONFERENCE OFFICER: DAVID COMMINS	View	
2024-09-17	MASTER JURY TRIAL CALENDAR SET FOR SEP-23-2024 CONTINUED TO MASTER CALENDAR JURY ON JAN-27-2025 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 09/17/24. ALL FURTHER REQUESTS TO CONTINUE THE TRIAL DATE MUST BE BY NOTICED MOTION. THIS SHALL BE THE FINAL CONTINUANCE ABSENT EXCEPTIONAL CAUSE. (206)		
2024-09-17	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S, INDIVIDUALLY AND DBA SONOMA LIQUORS, EX PARTE REQUEST FOR AN ORDER TO CONTINUE THE TRIAL DATE	View	
2024-09-16	STIPULATION FOR ORDER TO CONTINUE TRIAL DATE (TRANSACTION ID # 74336890) FILED BY ABDELHALIM, SUBHI	View	
2024-09-13	DECLARATION OF ALBERTO REYNA IN SUPPORT OF ORDER GRANTING TRIAL CONTINUANCE PER COURT'S DIRECTIVE (TRANSACTION ID # 74324886) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-09-06	PROOF OF SERVICE BY MAIL OF EXPARTE APPLICATION; [PROPOSED] ORDER (TRANSACTION ID # 74257098) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-09-05	NOTICE OF EX PARTE APPLICATION; EX PARTE APPLICATION AN ORDER TO CONTINUE THE TRIAL DATE OR IN THE ALTERNATIVE, AN ORDER SHORTENING TIME TO HEAR DEFENDANT'S MOTION TO CONTINUE THE TRIAL DATE; MEMORANDUM; DECLARATION OF ALBERTO REYNA (TRANSACTION ID # 74247530) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$60.00
2024-09-04	POS RE WITNESS LIST # W-003 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-09-04	POS RE WITNESS LIST # W-002 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-09-04	POS RE WITNESS LIST #W-001 BY SERVING KEVIN FLORES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

Date	Proceedings	Document	Fee
2024-08-26	NOTICE OF ENTRY OF SUBSTITUTION OF ATTORNEYS (TRANSACTION ID # 74155817) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2024-08-23	SUBSTITUTION OF ATTORNEY, (TRANSACTION ID # 74138108): PRO PER SUBSTITUTED FOR DOLAN, CHRISTOPHER B. AS ATTORNEY FOR ROSARIO, FRANCISCUS DYLAN	View	
2024-02-22	FEE PAID FOR VOIDED CHECK \$60 IN REGARDING TO THE MOTION TO CONTINUE TRIAL FILED BY DEFENDANT ABDELHALIM, SUBHI		\$60.00
2024-02-16	FEE PAID FOR MOTION TO CONTINUE TRIAL FILED BY DEFENDANT ABDELHALIM, SUBHI		\$60.00*
2024-02-06	MASTER JURY TRIAL CALENDAR SET FOR APR-29-2024 CONTINUED TO MASTER CALENDAR JURY ON SEP-23-2024 AT 9:30 AM IN DEPT. 206. (206)		
2024-02-06	MASTER MOTION CALENDAR ON FEB-06-2024 IN 206, DEFENDANT SUBHI ABDELHALIM'S MOTION FOR AN ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION WAS HEARD. APPEARANCES VIA COURTCALL BY ALISON BAIRD, ESQ. FOR PLAINTIFF FRANCISCUS DYLAN ROSARIO; ALBERTO REYNA, ESQ. FOR DEFENDANT SUBHI ABDELHALIM. THE COURT DID NOT RECEIVE COURTESY COPIES OF DEFENDANT'S MOVING PAPERS PER LOCAL RULE 2.7(B) AND REQUIRED DEFENDANT'S COUNSEL TO PAY A \$60 MOTION FILING FEE BY 2/16/24 IN LIEU OF FILING A NEW MOTION. THE \$60 FEE MAY BE PAID VIA E-FILE. THE COURT GRANTED THE MOTION. THE TRIAL DATE OF 04/29/24 WILL BE CONTINUED TO 09/23/24 IN DEPT. 206 AT 9:30 AM PER STIPULATION. NO FURTHER CONTINUANCES OF THE TRIAL DATE. DISCOVERY TO TRACK THE NEW TRIAL DATE. MOVING PARTY TO PREPARE AND SUBMIT A PROPOSED FORM OF ORDER, APPROVED AS TO FORM. JUDGE: ANNE-CHRISTINE MASSULLO; MATTER NOT REPORTED (206)		
2024-01-11	DECLARATION OF ALBERTO REYNA IN SUPPORT OF DEFENDANT SUBHI ABDELHALIM'S MOTION TO CONTINUE TRIAL DATE (TRANSACTION ID # 7179613) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2024-01-11	NOTICE OF MOTION AND MOTION FOR AN ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION (TRANSACTION ID # 71796139) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR FEB-06-2024 AT 09:30 AM IN DEPT 206	View	\$60.00
2023-09-28	NOTICE OF ENTRY OF ORDER/NOTICE OF RULING FILED (TRANSACTION ID # 70984990) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2023-09-21	MASTER JURY TRIAL CALENDAR SET FOR JAN-22-2024 CONTINUED TO MASTER CALENDAR JURY ON APR-29-2024 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 09/21/23. ALL FURTHER REQUESTS FOR CONTINUANCE MUST BE BROUGHT BY NOTICED MOTION. (206)		
2023-09-21	ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S MOTION TO CONTINUE TRIAL DATE	View	
2023-09-20	DECLARATION OF ALBERTO REYNA IN SUPPORT OF EX PARTE APPLICATION TO CONTINUE TRIAL DATE (TRANSACTION ID # 210048499) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	
2023-09-20	EX PARTE APPLICATION FOR ORDER TO CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION, OR IN THE ALTERNATIVE, AN ORDER SHORTENING TIME TO HEAR DEFENDANTS MOTION TO CONTINUE TRIAL DATE (TRANSACTION ID # 210048499) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$60.00
2023-05-04	SUBSTITUTION OF ATTORNEY, (TRANSACTION ID # 69953800): NAVARATNASINGHAM, PRIYA D. SUBSTITUTED FOR CHAMBERS, MICHAEL RAY AS ATTORNEY FOR ABDELHALIM, SUBHI	View	
2023-04-19	ASSOCIATION OF ATTORNEYS, (TRANSACTION ID # 69857484): PHILLIPS, ROBERT KIRK ADDED AS ATTORNEY FOR ABDELHALIM, SUBHI	View	
2023-03-23	MASTER JURY TRIAL CALENDAR SET FOR MAY-15-2023 CONTINUED TO MASTER CALENDAR JURY ON JAN-22-2024 AT 9:30 AM IN DEPT. 206 PER EX PARTE ORDER FILED 03/23/23. (206)		
2023-03-23	ORDER CONTINUING THE TRIAL DATE	View	

Date	Proceedings	Document	Fee
2023-03-22	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	DECLARATION OF ALEXANDRA COTRONEO IN SUPPORT OF STIPULATED EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE; (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE; (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2023-03-22	STIPULATED EX PARTE APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE (TRANSACTION ID # 69609484) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	\$60.00
2022-10-07	NOTICE OF CHANGE OF ADDRESS (TRANSACTION ID # 100178509) FILED BY ATTORNEY CHAMBERS, MICHAEL RAY	View	
2022-05-24	MEDICAL REIMBURSEMENT LIEN SAN FRANCISCO HEALTH CODE SEC 124 (TRANSACTION ID # 67656318) FILED BY CLAIMANT CITY AND COUNTY OF SAN FRANCISCO (ZSFGH), A MUNICIPAL CORPORATION	View	EXEMPT
2022-04-20	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR MAY-15-2023 AT 9:30 AM IN DEPT. 206.	View	
2022-04-20	OBJECTION HEARING HELD ON APR-20-2022. JUDGE SAMUEL K. FENG; CLERK J.LEE NOT REPORTED (610)		
2022-04-13	PLAINTIFFS NOTICE OF OBJECTION TO TRIAL DATE (TRANSACTION ID # 100161277) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2022-04-13	DEFENDANTS TRIAL OBJECTION (TRANSACTION ID # 100161247) FILED BY DEFENDANT ABDELHALIM, SUBHI HEARING SET FOR APR-20-2022 AT 10:30 AM IN DEPT 610	View	
2022-04-08	NOTICE OF TIME AND PLACE OF TRIAL, JURY TRIAL SET FOR DEC-19-2022 AT 9:30 AM IN DEPT. 206. CASE MANAGEMENT CONFERENCE ON APR-20-2022 IS OFF CALENDAR. NOTICE SENT BY COURT.	View	
2022-04-07	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100160729) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 7.0 DAYS	View	
2021-12-29	REMOVED FROM ARBITRATION. CASE MANAGEMENT CONFERENCE SET FOR APR-20-2022 AT 10:30 AM IN DEPARTMENT 610. ARBITRATION DATE OF FEBRUARY 28, 2022 IS VACATED. NOTICE SENT BY COURT.	View	
2021-12-29	OBJECTION HEARING HELD ON DEC-29-2021. JUDGE SAMUEL K. FENG; CLERK JULIE RUMSEY. NOT REPORTED (610)		
2021-12-20	NOTICE OF OBJECTION TO ORDER TO ARBITRATION (TRANSACTION ID # 100150215) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR DEC-29-2021 AT 10:30 AM IN DEPT 610	View	
2021-12-16	ASSIGNED TO ARBITRATION FOR FEB-28-2022. THE DEC-29-2021 CASE MANAGEMENT CONFERENCE IS OFF CALENDAR. NOTICE SENT BY COURT.	View	
2021-12-15	JURY FEES (TRANSACTION ID # 100149869) DEPOSITED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		\$150.00
2021-11-11	REFUND FROM THE ELIMINATION OF LOCAL SURCHARGES (GC 70625) OF \$15.00		
2021-09-16	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 100141850) FILED BY DEFENDANT ABDELHALIM, SUBHI JURY DEMANDED, ESTIMATED TIME FOR TRIAL: 5.0 DAYS	View	
2021-09-14	JURY FEES (TRANSACTION ID # 100141588) DEPOSITED BY DEFENDANT ABDELHALIM, SUBHI		\$150.00
2021-09-14	ANSWER TO COMPLAINT (TRANSACTION ID # 100141588) FILED BY DEFENDANT ABDELHALIM, SUBHI	View	\$435.00

Date	Proceedings	Document	Fee
2021-08-24	SUMMONS ISSUED (TRANSACTION ID # 66801024) TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2021-07-27	NOTICE TO PLAINTIFF	View	
2021-07-27	CIVIL CASE COVER SHEET (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2021-07-27	PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE RELATED, COMPLAINT (TRANSACTION ID # 66801024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 NO SUMMONS ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET NOT FILED CASE MANAGEMENT CONFERENCE SCHEDULED FOR DEC-29-2021 PROOF OF SERVICE DUE ON SEP-27-2021 CASE MANAGEMENT STATEMENT DUE ON DEC-06-2021	View	\$450.00

Showing 1 to 350 of 350 entries

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1

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EXHIBIT D

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Robert K. Phillips (SBN135088) Priya Navaratnasingham (SBN252686) PHILLIPS, SPALLAS & ANGSTADT LLP 560 Mission Street Suite 1010 San Francisco, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO. (Optional): 415-278-9411 E-MAIL ADDRESS (Optional): pnavaratnasingham@psalaw.net ATTORNEY FOR (Name): Defendant SUBHI ABDELHALIM		FOR COURT USE ONLY ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 05/04/2023 Clerk of the Court BY: CAROL BALISTRERI Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: 400 McAllister Street CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME: Civic Center Courthouse		
CASE NAME: Franciscus Rosario vs. Subhi Abdelhalim, et al.		
SUBSTITUTION OF ATTORNEY—CIVIL (Without Court Order)		CASE NUMBER: CGC-21-594102

THE COURT AND ALL PARTIES ARE NOTIFIED THAT (name): **DEF Subhi Abdelhalim** makes the following substitution:

- Former legal representative** ☐ Party represented self ☒ Attorney (name): **Michael R. Chambers**
- New legal representative** ☐ Party is representing self* ☒ Attorney
 - Name: **Priya Navaratnasingham**
 - State Bar No. (if applicable): **252686**
 - Address (number, street, city, ZIP, and law firm name, if applicable):
PHILLIPS, SPALLAS & ANGSTADT LLP 560 Mission Street Suite 1010 San Francisco, CA 94105
 - Telephone No. (include area code): **415-278-9400**
- The party making this substitution is a ☐ plaintiff ☒ defendant ☐ petitioner ☐ respondent ☐ other (specify):

***NOTICE TO PARTIES APPLYING TO REPRESENT THEMSELVES**

- | | | |
|---------------|---------------------------|------------------------------|
| • Guardian | • Personal Representative | • Guardian ad litem |
| • Conservator | • Probate fiduciary | • Unincorporated association |
| • Trustee | • Corporation | |

If you are applying as one of the parties on this list, you may NOT act as your own attorney in most cases. Use this form to substitute one attorney for another attorney. SEEK LEGAL ADVICE BEFORE APPLYING TO REPRESENT YOURSELF.

NOTICE TO PARTIES WITHOUT ATTORNEYS

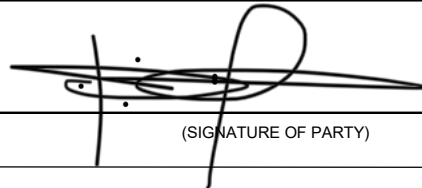
A party representing himself or herself may wish to seek legal assistance. Failure to take timely and appropriate action in this case may result in serious legal consequences.

4. I consent to this substitution.

Date: **May 3, 2023**

Subhi Abdelhalim

(TYPE OR PRINT NAME)


(SIGNATURE OF PARTY)

5. ☒ I consent to this substitution.

Date: **April 17, 2023**

Michael R. Chambers

(TYPE OR PRINT NAME)


(SIGNATURE OF FORMER ATTORNEY)

6. ☒ I consent to this substitution.

Date: **April 17, 2023**

Priya Navaratnasingham

(TYPE OR PRINT NAME)


(SIGNATURE OF NEW ATTORNEY)

(See reverse for proof of service by mail)

CASE NAME: — Franciscus Rosario vs. Subhi Abdelhalim, et al.	CASE NUMBER: CGC-21-594102
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**PROOF OF SERVICE BY MAIL
Substitution of Attorney—Civil**

Instructions: After having all parties served by mail with the Substitution of Attorney—Civil, have the person who mailed the document complete this Proof of Service by Mail. An unsigned copy of the Proof of Service by Mail should be completed and served with the document. Give the Substitution of Attorney—Civil and the completed Proof of Service by Mail to the clerk for filing. If you are representing yourself, someone else must mail these papers and sign the Proof of Service by Mail.

- I am over the age of 18 and **not a party to this cause**. I am a resident of or employed in the county where the mailing occurred. My residence or business address is (specify):
PHILLIPS, SPALLAS & ANGSTADT LLP 560 Mission Street Suite 1010, San Francisco, CA 94105
- I served the Substitution of Attorney—Civil by enclosing a true copy in a sealed envelope addressed to each person whose name and address is shown below and depositing the envelope in the United States mail with the postage fully prepaid.

(1) Date of mailing: May 4, 2023 (2) Place of mailing (city and state): San Francisco, CA 94105

- I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: May 4, 2023

Rachel-Lynne Canero

(TYPE OR PRINT NAME)



(SIGNATURE)

NAME AND ADDRESS OF EACH PERSON TO WHOM NOTICE WAS MAILED

- Name of person served: Kimberly E. Levy, Esq.
 - Address (number, street, city, and ZIP): **DOLAN LAW FIRM, PC**
1438 Market Street, San Francisco, CA 94102
 - Name of person served:
 - Address (number, street, city, and ZIP):
 - Name of person served:
 - Address (number, street, city, and ZIP):
 - Name of person served:
 - Address (number, street, city, and ZIP):
 - Name of person served:
 - Address (number, street, city, and ZIP):

☐ List of names and addresses continued in attachment.

EXHIBIT E

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 6 TO EXCLUDE
RECORDED MATERIALS,
PHOTOGRAPHS, OR DOCUMENTS
OFFERED BY PLAINTIFF THAT WERE
NOT PRODUCED IN DISCOVERY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California
statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See

1 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
2 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
3 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
4 presence of a jury. See Cal. Evid. Code § 402.

5 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

6 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
7 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
8 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
9 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
10 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
11 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
12 discussed below.

13 **A. Recorded Material, Photographs, Videos, Or Documents Offered by Plaintiff That**
14 **Were Not Produced In Discovery Should Be Excluded**

15 Defendant seeks an order that Plaintiff will not be allowed to utilize at trial any document or
16 other evidence he has failed to produce in discovery. This Order applies to every stage of trial.
17 Violations of this Order shall be grounds for such relief as the Court, in its discretion, deems proper, up
18 to and including the granting of a mistrial. This Order shall be made pursuant to the court’s holding in
19 *Deeter v. Angus* (1986) 179 Cal.App.3d 241.

20 If Plaintiff failed to produce documents in his possession which were requested, this clearly
21 would constitute a misuse of the discovery process. Code of Civil Procedure § 2023. Courts have found
22 that withheld evidence, including documents, is appropriately excluded because, among other reasons, it
23 “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal. App. 3d at 255. Further, this Court
24 has the authority to exclude at trial any and all evidence that Plaintiff has withheld from discovery.
25 *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

26 This motion is made pursuant to the aforementioned authorities cited above. Any attempt by
27 Plaintiff to introduce evidence not previously disclosed in discovery would be improper, highly
28 prejudicial, and fundamentally unjust. Such failure to produce documents and other evidence should

1 result in the exclusion of such evidence. Therefore, Defendant respectfully requests that the Court
2 exclude all documents and evidence, including but not limited to videos, photographs, recorded
3 materials, tangible items, or documents including audio of a 911 call purported to be related to the
4 incident. Plaintiff's documents showing past and future wage loss or other evidence that Plaintiff has
5 failed to produce in discovery.

6 **III. CONCLUSION**

7 For all the foregoing reasons, Defendant respectfully requests and moves to exclude the
8 aforementioned evidence.

9
10 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

11
12 

13 Robert K. Phillips
14 Priya Navaratnasingham
15 Alberto Reyna
16 Attorneys for Defendant
17 SUBHI ABDELHALIM
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EXHIBIT F

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 8 TO EXCLUDE
ANY AND ALL REFERENCE OR
TESTIMONY RELATING TO LIABILITY
INSURANCE AND PREJUDICIAL
STATEMENTS WHICH ARE
IRRELEVANT TO THE ISSUES IN THIS
CASE**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded
from the jury’s hearing. Although a Motion *in Limine* is not specifically mentioned by any California

1 statute, it has long been accepted as part of the Court’s power to conduct trial in an orderly manner. (See
2 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
3 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
4 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
5 presence of a jury. See Cal. Evid. Code § 402.

6 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

7 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
8 DYLAN ROSARIO *in pro per* (“Plaintiff”), Plaintiff’s witnesses, and any other parties and their agents,
9 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
10 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
11 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff’s witnesses of the
12 Court’s Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
13 discussed below.

14 **A. EXCLUDE ANY AND ALL REFERENCE OR TESTIMONY RELATING TO**
15 **LIABILITY INSURANCE**

16 California *Evidence Code* § 350 provides that no evidence is admissible except relevant
17 evidence. California *Evidence Code* § 1155 provides that: “[e]vidence that a person was, at the time a
18 harm was suffered by another, insured wholly or partially against loss arising from liability for that harm
19 is inadmissible to prove negligence or other wrongdoing.”

20 “Evidence that a person was insured against liability for another person's injury is inadmissible
21 to prove negligence or other wrongdoing. (Evid.Code, § 1155.) Such evidence is irrelevant to both the
22 question of liability and the amount of damages.” (*Bell v. Bayerische Motoren Werke Aktiengesellschaft*
23 (2010) 181 Cal. App. 4th 1108, 1122)

24 Defendant anticipates that Plaintiff will attempt to argument and mention that Defendant had
25 automobile insurance at the time of the incident and that Defendant was insured by AAA. It is
26 blackletter law that the matter of insurance is inadmissible and should not be mentioned to the jury.

27 Importantly, in the weeks leading up to trial, defense counsel has received multiple aggressive
28 emails from Plaintiff wherein Plaintiff uses threatening language and makes prejudicial statements

1 which are completely irrelevant to the issues in this case. Defendant anticipates that Plaintiff will
2 attempt to make statements to the jury which are focused more on punishment rather than the merits of
3 this case.

4 Attached hereto as **Exhibit A** are just two of the emails that counsel has received from Plaintiff
5 dated December 11, 2024 and January 8, 2025. As shown in the attached emails, Plaintiff repeatedly
6 makes the statement “deny, delay, and depose”; he accuses Defendant’s insurer of bad faith and treating
7 him unfairly; he accuses defense counsel of being unethical “since you make a living screwing people
8 out of their rightful settlements for insurance companies. Trust us, we’ve got your number”; he states
9 that the people of the community are coming after defense counsel’s firm; that they will target
10 Defendant’s insurance carrier; that everyone has destroyed Plaintiff’s life; and that insurance companies
11 are ruining people’s lives. As the Court will see from reviewing the attached communications, the above
12 is just a brief summary of the inappropriate and defamatory statements made by Plaintiff.

13 Statements like the above are completely irrelevant to the issues at hand and Defendant will
14 suffer gross prejudice if such statements are heard by a jury. Plaintiff’s statements above are focused on
15 hatred, anger, and punishment rather than the merits of the case.

16 This is a simple negligence case – the only issues that are relevant is whether Plaintiff can prove
17 that he was injured and whether he can prove that he is entitled to damages.

18 Defendant respectfully requests an Order that Plaintiff, or anyone on Plaintiff’s behalf, be
19 prohibited from making inappropriate, defamatory and prejudicial statements, including:

- 20 • Any and all statements that Defendant was insured;
- 21 • Any and all statements relating to Defendant’s insurance company, including but not
22 limited to any interactions with Defendant’s insurance company representatives;
- 23 • Any and all statements that any offers were made to Plaintiff by Defendant’s insurance
24 carrier;
- 25 • Any and all statements relating to how Plaintiff feels he has been treated by Defendant,
26 his insurance company or his lawyers;
- 27 • Statements such as “Defend, Deny, Depose”;
- 28 • Any and all statements relating to punishment of Defendant, his insurance company or

his lawyers; and

- Any and all statements relating to alleged bad faith or conduct by insurance companies or Defendant's lawyers.

III. CONCLUSION

For all the foregoing reasons, Defendant respectfully requests an Order that Plaintiff be prohibited from make inappropriate, defamatory and prejudicial statements, including:

- Any and all statements that Defendant was insured;
- Any and all statements relating to Defendant's insurance company, including but not limited to any interactions with Defendant's insurance company representatives;
- Any and all statements that any offers were made to Plaintiff by Defendant's insurance carrier;
- Any and all statements relating to how Plaintiff feels he has been treated by Defendant, his insurance company or his lawyers;
- Statements such as "Defend, Deny, Depose";
- Any and all statements relating to punishment of Defendant, his insurance company or his lawyers; and
- Any and all statements relating to alleged bad faith or conduct by insurance companies or Defendant's lawyers.

Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP



Robert K. Phillips
Priya Navaratnasingham
Alberto Reyna
Attorneys for Defendant
SUBHI ABDELHALIM

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EXHIBIT A

From: [Dylan Rosario](#)
To: [Dylan Rosario](#); [Ebelline Mercia](#); [Alberto Reyna](#); [Priya Navaratnasingham](#); [Victoria Rosario](#); [Dylan Rosario](#)
Subject: Fwd: LEGAL MSC - STRATEGY
Date: Wednesday, December 11, 2024 8:19:55 PM
Attachments: [PROOF OF SERVICE.002.pdf](#)
[PROPOSED ORDER.pdf](#)
[MOTION LEAVE AMEND COMPLAINT.pdf](#)
[PROPOSED AMENDED COMPLAINT.pdf](#)
[NOTICE MOTION AMEND.pdf](#)
[EXHIBIT F - OFFICIAL TRANSCRIPT OF 911 CALL.pdf](#)
[EXHIBIT A - 21-7-27 END Complaint.pdf](#)
[EXHIBIT B - POLICE REPORTS.pdf](#)
[EXHIBIT E - COUNSEL DOLAN 002.pdf](#)
[EXHIBIT D - BRAIN HIGH RESOLUTION MRI ANALYSIS.pdf](#)
[EXHIBIT E - COUNSEL DOLAN 003.pdf](#)
[EXHIBIT H - PROBABILITY BRAIN TBI.pdf](#)
[EXHIBIT E - COUNSEL DOLAN 001.pdf](#)
[EXHIBIT C - Lime COLLISION AND POST INCIDENT TIMELINE.pdf](#)
[EXHIBIT G - TOTAL ECONOMIC LOSS.pdf](#)

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PSALAW,

Attached are the details of the newly filed complaint. I expect you to thoroughly review the enclosed information and appreciate the gravity of what awaits you. Should you wish to propose a genuine settlement before the Mandatory Settlement Conference, you are welcome to do so; once you read the complaint, I trust you will grasp the catastrophic liabilities you now face.

If no legitimate settlement offer materializes at the MSC, we will proceed directly to trial. The evidence amassed against you, your client, and AAA is now irrefutable—a force no reasonable jury would dare find in your favor.

Consider this your ex parte notice. The content of this communication will be posted publicly on the Superior Court website. I would be entirely indifferent were it also presented to the San Francisco Chronicle, as I have nothing to hide and no reason to shield your client's unlawful activities from public scrutiny.

Your client presides over what can only be described as one of California's most brazen open-air drug markets, right at his doorstep. Hundreds have perished from overdoses in close proximity to his place of business, and no other establishment in the area fosters such a lawless, deadly scene. His conduct—and by extension, yours—is deplorable.

I will present a formidable witness list, making abundantly clear how AAA has consciously and repeatedly extended my suffering, robbing me of the chance to recover from the horrific injuries and trauma inflicted by your client, Abdul Hamas, or whoever he truly is. You may attempt to object to my evidence—evidence thoroughly supported by the attached documentation—but you should know that every one of your actions will be met with relentless scrutiny, including your attempts to conceal your client's identity and his operation as a wholesale purveyor of illegal narcotics in the heart of San Francisco.

If you have any intention of mitigating the impending catastrophe, then muster a settlement offer that reflects a sincere effort. You have already extracted nearly everything from me. I stand with nothing left to lose, and the evidence is undeniable. Your so-called “expert” witnesses are reduced to nothing but hollow, subjective attempts at deflection. Do not mistake this for weakness; consider it a final courtesy in giving you this chance before your collaboration with a known drug kingpin is broadcast for all to see.

Mark this well: AAA’s refusal to acknowledge the gravity of the situation or engage in good faith settlement discussions is forcing my hand. Four years have passed while you shirked your responsibilities and allowed me to endure unimaginable hardship. If you do not now present a meaningful offer of restitution, I will ensure that the next phase of this ordeal proceeds without the slightest concession on my part. Thus far, I have sought to handle this personally. If necessary, I can—and will—secure an attorney at any time, further escalating the pressure against you. Expect a declaration exposing your organization’s blatant disregard for both civil and criminal law. Your collusion with a notorious drug market facilitator will be public knowledge.

The injuries I have suffered at your client’s hands are profound, and I have no patience left for games. This is your last chance to restore some measure of balance. Reject it, and the next round of negotiations will strike you with full, unrelenting force. It is time to make a serious, substantial offer, measured against the damage and suffering you have caused. I have over 50 witnesses—professionals, community leaders, and ordinary citizens—willing to testify to your client’s vile impact on our community. They stand ready to ensure that the malignant presence your client embodies will be brought to justice.

You know how to reach me. I urge you to deliver an acceptable offer before next week. Otherwise, I will see you in court on Friday at 11:00 AM, ex parte, and you will face the unfiltered consequences of your clients actions.

I trust that you have my number and you're fully capable of reading the documents that are attached. The next step, will be for you to reach out to me and make a significant offer that's commensurate with my losses, because if you think that I'm playing games or I have no capacity to deliver something to a courtroom full of my peers in the city of San Francisco, then you're making a grave mistake. Again I implore to consider the gravity of the case that I have built against your organization at AAA and your client that you have protected behind the shield of your vast resources. And I guarantee you that a jury of my peers in the city of San Francisco will not think kindly of the type of operation that Mr. Abdel Hamas runs downtown. Good day.

Regards,

F. Dylan Rosario
650.488.7510

ATTACHED : SEE ALL THE REQUIRED FILES FOR NEW AMENDED COMPLAINT

- The Plaintiff, Franciscus Dylan Rosario, sustained severe injuries from a collision

- with a van operated by the Defendant, Subhi Abdelhalim, on February 4, 2021:
- **Rosario rented a LIME electric scooter but it malfunctioned shortly after he rented it.** The motor ceased functioning after approximately 115 feet, and he had to push the scooter manually for the rest of his trip:
- **The collision occurred at the intersection of 5th Street and Tehama Street in San Francisco, CA while Rosario was crossing the intersection.** The defendant made a right turn onto Tehama Street without yielding to Rosario.
- **Rosario suffered multiple serious injuries including traumatic brain damage, multiple fractured ribs, a collapsed lung, and spinal injuries:**
- **Rosario's injuries caused him to experience memory loss, cognitive impairment, diminished problem-solving abilities, and reduced brain volume:**
- **The plaintiff's former counsel, the Dolan Law Firm, filed a complaint on July 27, 2021, but it failed to include key evidence, such as medical documentation of the TBI:**
- **The Dolan Law Firm refused to amend the complaint, and Rosario was forced into pro per status as his own counsel: as per the attached evidence.**
- **Rosario is seeking compensatory damages between \$18,280,342 and \$22,280,342 and punitive damages exceeding \$3,000,000:**
- **The plaintiff is arguing that the police report is inaccurate and biased** because the police interrogated him while he was suffering from a TBI. He also claims that the police coerced him into making statements admitting fault, although he maintains that he was a pedestrian at the time of the collision.
- **Rosario will file a motion to suppress the police testimony.**

Settlement Considerations

The following are some key considerations that could be discussed during the mandatory settlement conference:

- **Liability:** The defense may argue that Rosario was at fault because the police report indicates that he was riding the scooter at the time of the collision. However, Rosario claims he was a pedestrian due to the malfunctioning scooter and argues that the police report should be suppressed. The LIME scooter data could be crucial evidence to support Rosario's claim.
- **Damages:** Rosario is seeking substantial damages due to the severity of his injuries and their long-term impact on his life. The medical evidence, particularly regarding the TBI and its potential long-term consequences, will be important in supporting his claim for damages. Expert testimony may be necessary to establish the full extent and future impact of Rosario's injuries.
- **Defendant's Conduct:** Rosario alleges that the defendant failed to render aid immediately following the collision and offered him a small sum of money instead of calling for help. This conduct, if proven, could support Rosario's claim for punitive damages.
- **Police Conduct:** The alleged police misconduct, including the unlawful interrogation and potentially fabricated narrative in the police report, could be a significant factor in settlement negotiations. The outcome of Rosario's motion to suppress the police report will likely influence the defense's willingness to settle.

Settlement Strategy

- **Focus on the strength of the physical evidence, particularly the LIME scooter data, witness testimony, and medical records:** This evidence supports Rosario's claim that he was a pedestrian and highlights the severity of his injuries, strongly suggesting a favorable settlement.
- **Highlight the defendant's conduct, emphasizing their alleged negligence and failure to render aid as validated by 911 call:** This will support a claim for a higher settlement amount, particularly for punitive damages.
- **Address the issue of the police report strategically.** If the motion to suppress is successful, the plaintiff's position strengthens significantly.

From: [Dylan Rosario](#)
To: [Alberto Reyna](#); [Priya Navaratnasingham](#); [Ebelline Mercia](#); [Victoria Rosario](#)
Cc: [Dylan Rosario](#); jamevankeegan@gmail.com
Subject: Re: Proof Of Service
Date: Wednesday, January 8, 2025 3:39:16 PM
Attachments: [AAA_STEVE_DERENZO.pdf](#)
[PROOF OF SERVICE.004.pdf](#)
[ALT-CAUSE-CHITRA.pdf](#)
[ALT-CAUSE-HODDICK.pdf](#)
[Interrogatories_Set_No2.pdf](#)
[Request-For-Admission.pdf](#)

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PSA Team (and alberto),

We wanted to let you know we've successfully set up digital delivery. Attached is our first delivery copy and the File & ServeXpress transaction receipt. It'll be much easier now to ensure these documents land squarely in your hands—on time.

We're sure this isn't a big deal for you. After all, you attorneys seem to think you're the only ones who know how to navigate these processes. But maybe you haven't dealt with pro per litigants who actually figure things out. Admittedly, it took us a little time to master the forms, but we think we've got it down now. We're sure you'll be just thrilled to see the attached images.

And no, you won't be wiggling out of this one tomorrow. Expect follow-ups with several more motions as promised, along with a series of ex parte hearings to compel you—again. Our advice? Get your act together and start responding. We're too close to trial (scheduled for the 27th, in case you've forgotten), and we won't be asking for any continuances.

We need to see your experts, alternate causation theories, and the basis for their assessment and diagnosis of our damages before the trial. If we don't get that information immediately, we will move to exclude them with a motion in limine. We're entitled to this under both federal and state law. If you don't deliver the data promptly, we'll file an ex parte motion to have them barred from the trial, and we guarantee the judge will enforce the law.

We need to see how your buddy Steve Dizenzo calculated the liability. If he doesn't respond, we will strike your attempt to challenge the liability because your pals at AAA lack grounds under California insurance laws to deny it. Their failure to provide an adequate assessment and insurance adjustment, despite having the proper information and conducting a thorough investigation, means the court will find their denial unlawful. This will only reinforce your client's bad faith practices.

We already know you've stumbled a few times at PSA in court during these hearings. It's obvious you're losing your edge. This hardball game of deny, delay, and depose is going to backfire on you with the court and the City of San Francisco. Our community is done with

your BS.

Ensure these questions are answered thoroughly—the law is unequivocally on our side. We will expose not only your law firm for ongoing misconduct, as seen in the Farmers Insurance failure, but also firms like AAA engaging in these practices. Word around town is that you love your triple D tactics—delay, deny, depose—and guess what? They’ve run their course. Every move you make will be scrutinized. We advise your firm to start acting ethically and principled or continue losing cases. Just some advice—we doubt you’ll heed it since you make a living screwing people out of their rightful settlements for insurance companies. Trust us, we’ve got your number.

Make no mistake, the people of San Francisco and the community are coming for you. As for your client, his attempts to clean up the sidewalk in front of his store over the past weeks don’t prove anything except that he knows he’s under scrutiny. These last-minute cleanup tactics aren’t fooling anyone.

Are you the firm the police should contact for forwarding criminal charges? Are you also handling his criminal defense? We’re very interested to see if you’ll defend him. He hit us in a hit-and-run, and the evidence—including 911 calls—will be used against him. We have the timing: he was on a call at 2:40 PM when he struck us and didn’t call 911 until 2:53 PM. What happened during those 13 minutes? Under federal and state law, he should have called immediately to help. Witnesses saw him flee the scene, and we have video footage of witnesses that saw hitting us with his truck (it was literally recorded in the body cams). We actually hope you try to exclude this evidence because if you hide the police record and videos, you’re removing your only defense. Your entire case is based on that police record, which in fact was collected in violation of our constitutional Miranda rights. Maybe you forgot about the Constitution of the United States, but we haven’t, and neither will the jury or the judges.

We gave you an opportunity to settle before trial. This is your chance to meet us somewhere past the 50 yard line, refer to the numbers on our MSA damages demand. If left to the jury, they might award more FAR MNORE than we’re asking for, just out of principle. You seem to think your technical monkey wrenches will stop a San Francisco jury from finding a massive judgement against you—well you’re wrong.

If you don’t provide the alternate causations with the data they used to determine their diagnosis that we’ve requested from your experts, not a one of them will see the courtroom in this trial. We will ask the judge to exclude them immediately based on their failure to provide the REQUIRED CAUSATION DIAGNOSIS and METHODOLOGY and MEDICAL DATA they used to come to their conclusions, as mandated by California law passed in January 2024.

Respond promptly, or we will have the court enforce or rights under the law to compel and then exclude your experts. We expect an answer by the end of the week. If we don’t hear from you by the end of the day tomorrow, we’ll move for a compel motion and exclude your experts in limine.

Maybe you think that I don’t know how to read the law, or how to ensure that my legal rights are upheld by the court, but if you’re going to bank on that, you’re going to be sadly mistaken. Maybe you didn’t know this my ex ex-wife was an attorney and trust me, she was a wretched person, I know how you attorneys operate I’m not impressed by a single one of you. For some

reason, most of you have this overinflated sense of self-worth and righteousness. I find it sad and disgusting the type of behavior that you attorneys seem to think that you can get away with with peoples lives. She was a scumbag, and the majority of you fit the same bill. There are a few of those attorneys that I actually do respect, I wouldn't say that any of those in your law firm would fall under that classification.

Make no mistake, the people of San Francisco are watching and will seek to liquidate everything your client owns if he can't pay the damages. When he assigns the remaining damages to us, we'll target AAA as well. Tell Steve to keep laughing—it'll soon turn to crying. You've pissed us off, and your client has destroyed our lives. We won't stop until we're made whole.

This is what happens when firms like yours enable insurance companies to destroy people's lives rather than honor their obligations. Your firm's collusion in the systemic denial of legitimate claims treats everyone as if they're trying to defraud insurance—until they meet someone like us who is actually not a fraud. This is why you're going to be in a world of hurt when the judgment comes down on you, your client Abdel-Hamas, and AAA. Are you going to represent him criminally as well? Just curious.

The city prosecutor has already advised us on exactly how to ensure the criminal charges against your client are filed in a manner that guarantees he will be arrested, booked, and charged. This will not only assist us in court but will also ensure that the damages almost certainly exceed what you have offered. We strongly suggest you consider making a legitimate offer before this trial begins because your client is destined for handcuffs and will be booked and jailed in county.

The fact that you're still denying liability when we have video evidence is just absurd. Watch the video here : <https://www.youtube.com/watch?v=G4en-DhfESE&t=61s>

You're denying liability despite having video evidence of his actions and an eyewitness to not only the collision but also his evasion and flight from the scene. Additionally, we have timestamps of my call for help that occurred over 10 minutes before he called 911 while trying to offer me five dollars on the street.

The woman from the 911 call, has a very strong recollection of what she saw, and what happened and exactly how long after she saw me laying on the ground that she called, did you know that she drove by almost 7 to 8 minutes before your client called the 911, make no mistake her statements will be used as grounds in the criminal prosecution of your client, additionally, we are going to bring her 911 call into the civil case, in order to ensure that the jury gets to hear, firsthand from completely uninvolved individual how your client was missing from the scene of the collision after he hit a pedestrian in a crosswalk and then fled the scene.

The line scooter data shows that the scooter was not operating, and if you try to block that the question is, why are you trying to block data other than the fact that it proves your story to be false. You see you're screwed when you start lying, the truth comes out and if you try to block the information, what happens is that the jury asks for it, and when they learn that you blocked it because it actually showed that your claims that I was at fault for the collision contradicts your statement about the operation of the scooter in the first place. You see having that data not only destroys your defense that the scooter was operating, but also by excluding it, you're showing the defense that you're scared of having it presented. Mean do you really think that I'm stupid because I'm not blocking that data means that you're scared of it because it

contradicts your statement and adding it in shows that I'm correct and that my insistence that the scooter was not operating was in fact, true.

I don't know how to speak to a group of individuals who have compromised moral and ethical principles like you attorneys, but the way I've spoken to attorneys like you in the past as I make sure that I'm extremely explicit and clear and what I'm saying. Try to block any more information and data and the only thing that you're going to show is that you're scared of what the data says because it refuses and proves that your claims of no damage to me and claims of no liability are in fact, false, and based on lies.

Watch the videos yourself. The guy on the ground literally says that your client the driver hit me with his truck, but he does not say that I was driving a scooter. The only person that claims I was driving a scooter was your client. Because you better pay really good attention to what's being said in those videos because there's not a single one of them that has me giving a testimony that I broke the law yet the police officer said that I did and if they claim I broke the law then why did they not read me my Miranda rights? You can't have it both ways. You can't say that I broke the law without having my Miranda read to me, but then if I'm not breaking the law, then your case falls apart because the statement from the police is not based upon me breaking the law. The logic here is absolute and I think that you underestimate my ability to express logic.

If you try to omit the videos and the police report which was filed in violation of my constitutional rights, then I don't know what you'll defend with. The fact of the matter is that the police will not testify that they violated the constitutional Miranda rights. You're pretty much screwed. The only people that you have to blame yourselves.. your client put himself in this situation by lying to the police, and now your firm is quite literally defending a criminal who was seen performing a felony hit-and-run.

We've been in contact with NPR radio, and as soon as we hear back from them, I'm sure they'll love to hear how your law firm is literally defending a criminal who committed a hit-and-run on a pedestrian.

Here's the thing: I don't even have to prove anything about the five dollars because when the jury sees what he did in the video—literally denying hitting me to the police—and hears the eyewitness account confirming the collision and his flight, your entire defense crumbles. I'd be really interested to see what happens when we put him on a lie detector test. Do you know that I can demand a lie detector test for your client regarding his call to 911 and his attempt to offer me five dollars? You better really talk to him because now that I have a criminal lawsuit moving against him, you stand to lose so big that it's going to make the news.

I hope the rest of the attorneys at your firm are reading these emails because you guys better get your act together and make us whole, or the people of San Francisco will force you to take accountability. Think about it: if you have a single ethical bone or moral compass among you, you will do what's right or prepare for yet another landmark loss, just like the one you just took while defending Farmers Insurance.

I hope that you find your moral compass, and you start to act ethically in this case because every single time you object or deny or try to block data and information going to the jury you will be shown to be afraid of what is in the information. And trust me people are not stupid and I will make sure that they know that you're afraid of what is in the data and in the video

and in the 911 calls.

Be prepared for the rest of the motions this week. Expect them to be delivered digitally and I need to see the responses from your experts or you will be blocked. Tell me when you're gonna get that to me and I need to know by tomorrow. You see I'm not an attorney because I can't be one, I'm not an attorney because I don't want to be one. I have all the intelligence to do your job equally if not better, and you're messing with the wrong person and your client hit the wrong man.

Get it done, or pay the consequences in court.

Rosario

On Wed, Jan 8, 2025 at 12:11 PM Dylan Rosario <soltrinox@gmail.com> wrote:

PSA Law Team and Alberto,

Let's ensure there's no *confusion* this time—Alberto seems to struggle with that a lot lately. Same bat time, same bat channel. There will be no more deny, delay, depose, or objections to this motion. Let me know when you plan to address the new interrogatories and requests for admissions. Do I need to resend them to prevent any further “misunderstanding”?

For your convenience (and to eliminate your standard excuse), I've attached the interrogatories and requests for admissions again. Let's cut the tired act of pretending you didn't receive documents—it's old. If this nonsense continues, I'll make sure the judge audits every delivery time. Just a heads-up: the Bar Association doesn't take kindly to attorneys falsely claiming non-service of documents. I have the receipts to prove it.

Take a careful look at the documents. If you have any legitimate concerns or need clarification (because comprehension might be a challenge), let me know immediately. I'm happy to ensure the questions are crystal clear—though rest assured, their substance will not change. If you're “having trouble,” I'll simplify them even further, just for you.

This will be your second, possibly third, proof of service. Expect a motion to compel answers from your client and their doctors. Don't test me on this again. If you try to pull another stunt, the judge will impose sanctions and compel compliance. Fail to respond appropriately, and your expert witnesses will be excluded from testimony. Read the documents carefully, and stop wasting my time—or the court's.

Don't try this foolishness again, or I will report you to the Bar Association. Trust me, I will. I'm done playing games.

Rosario

PROOF OF SERVICE

San Francisco County Superior Court : Case No. CGC-21-594102

I VICTORIA ROSARIO the undersigned, declare: I am resident of and employed in the State of California. I am over the age of 18 and am not a party to the within action. My address is **7624 Melody Dr. Rohnert Park, CA 94928**. On **January 8th 2025**, I served the foregoing document(s) described as:

1.

PLAINTIFF'S EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING FUNDS FOR NECESSARY MEDICAL TESTING

2.

PLAINTIFF'S MEMORANDUM IN SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING

3.

[PROPOSED] ORDER SHORTENING TIME FOR HEARING ON MOTION FOR COMPELLING DEFENSE TO PROVIDE IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING

4.

PROOF OF SERVICE (THIS FORM)

on all other parties and/or their attorney(s) of record to this action as follows:

	BY MAIL SERVICE: by placing such envelopes for collection and to be mailed on this date following ordinary business practices.
	By FACSIMILE: By faxing a copy of the above-referenced document(s) to the addressee at the number set forth beneath their above-listed address. At the completion of the transmission, a Transmission Report was generated, confirming transmission and receipt by the address(es).
X	By E-MAIL: based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the document to be sent to the persons at the e-mail addresses listed below. I did not receive, within a reasonable time after the transmission, an electronic message or other indication that the transmission was unsuccessful. Ebelline Mercia < emercia@psalaw.net > Alberto Reyna < alreyna@psalaw.net > Priya Navaratnasingham < pnavaratnasingham@psalaw.net > ,
	By PERSONAL DELIVERY: By personally delivering a true copy thereof to the person(s) and at the address(es) set forth below.
	By OVERNIGHT DELIVERY (FedEx): At the address(es) listed herein below by placing a true copy thereof enclosed in a sealed envelope with a label (billed to our account) affixed to the envelope. I am readily familiar with my office business practice for collection and processing of correspondence for FedEx and the within correspondence will be deposited with FedEx on this date in the ordinary course of business.
AAA AUTO INSURANCE, SUBHI ABDELHALIM, DOES NO.1.50, SONOMA LIQUOR, et al. Robert K. Phillips [SBN 135088] - Priya D. Navaratnasingham [SBN 252686] - Alberto Reyna [SBN 347323] PHILLIPS, SPALLAS & ANGSTADT LLP 560 Mission Street, Suite 1010, San Francisco, California 94105	

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on

Jan 8, 2025, at 11:45 AM PST in San Francisco, California.

VICTORIA ROSARIO

7624 Melody Dr.
Rohnert Park, CA 94928
soltrinox@gmail.com

EXHIBIT G

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
PRECLUDE PLAINTIFF FROM USING
OR REFERENCING AN ALLEGED 911
TRANSCRIPT LOG AND AUDIO
RECORDING AS IT WAS NOT
DISCLOSED IN DISCOVERY, LACKS
FOUNDATION AND IS INADMISSIBLE
HEARSAY**

Complaint Filed: July 27, 2021

Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 from the jury's hearing. Although a Motion *in Limine* is not specifically mentioned by any California
2 statute, it has long been accepted as part of the Court's power to conduct trial in an orderly manner. (See
3 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
4 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
5 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
6 presence of a jury. See Cal. Evid. Code § 402.

7 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

8 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
9 DYLAN ROSARIO *in pro per* ("Plaintiff"), Plaintiff's witnesses, and any other parties and their agents,
10 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
11 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
12 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff's witnesses of the
13 Court's Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
14 discussed below.

15 **A. Purported 911 Log and Recording Should be Excluded as it Was Not Disclosed in** 16 **Discovery; Lacks Foundation and is Inadmissible Hearsay**

17 Defendant anticipates that Plaintiff will try to introduce an unauthenticated document entitled
18 "Official Transcript of 911 Call" and an unauthenticated audio recording which Plaintiff purports to be a
19 911 call log and an audio recording of a 911 call relating to the incident. First, this alleged log and
20 recording were not produced during discovery, rather produced at the eleventh hour prior to trial.
21 Second, both the alleged log and recording completely lack foundation, are not authenticated and is
22 inadmissible hearsay. Defendant has no idea where this 911 call log or audio recording came from and
23 who created it.

24 Defendant seeks an order precluding Plaintiff from offering the alleged 911 call log and the
25 recording into evidence as Plaintiff. This Order applies to every stage of trial. Violations of this Order
26 shall be grounds for such relief as the Court, in its discretion, deems proper, up to and including the
27 granting of a mistrial. This Order shall be made pursuant to the court's holding in *Deeter v. Angus*
28 (1986) 179 Cal.App.3d 241.

1 If Plaintiff failed to produce documents or audio recordings in his possession which were
2 requested, this clearly would constitute a misuse of the discovery process. Code of Civil Procedure §
3 2023. Courts have found that withheld evidence, including documents, is appropriately excluded
4 because, among other reasons, it “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal.
5 App. 3d at 255. Further, this Court has the authority to exclude at trial any and all evidence that Plaintiff
6 has withheld from discovery. *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

7 Further, California *Evidence Code* § 1401 provides: “(a) Authentication of a writing is required
8 before it may be received in evidence. (b) Authentication of a writing is required before secondary
9 evidence of its content may be received in evidence.”

10 California *Evidence Code* § 403 provides: “(a) The proponent of the proffered evidence has the
11 burden of producing evidence as to the existence of the preliminary fact, and the proffered evidence is
12 inadmissible unless the court finds that there is evidence sufficient to sustain a finding of the existence
13 of the preliminary fact, when: (1) The relevance of the proffered evidence depends on the existence of
14 the preliminary fact; (2) The preliminary fact is the personal knowledge of a witness concerning the
15 subject matter of his testimony; (3) The preliminary fact is the authenticity of a writing; or (4) The
16 proffered evidence is of a statement or other conduct of a particular person and the preliminary fact is
17 whether that person made the statement or so conducted himself.”

18 California *Evidence Code* § 1200 states that “(a) “Hearsay evidence” is evidence of a statement
19 that was made other than by a witness while testifying at the hearing and that is offered to prove the
20 truth of the matter stated. (b) Except as provided by law, hearsay evidence is inadmissible.”

21 “Hearsay may be briefly understood as an out-of-court statement offered for the truth of its
22 content. Evidence Code section 1200, subdivision (a) formally defines hearsay as “evidence of a
23 statement that was made other than by a witness while testifying at the hearing and that is offered to
24 prove the truth of the matter stated.” A “statement” is “oral or written verbal expression” or the
25 “nonverbal conduct of a person intended by him as a substitute for oral or written verbal expression.”
26 (Evid.Code, § 225.) Senate committee comments to Evidence Code section 1200 explain that a
27 statement “offered for some purpose other than to prove the fact stated therein is not hearsay.” [Internal
28 Citation Omitted] Thus, a hearsay statement is one in which a person makes a factual assertion out of

1 court and the proponent seeks to rely on the statement to prove that assertion is true. Hearsay is
2 generally inadmissible unless it falls under an exception. (Evid.Code, § 1200, subd. (b).)” (*People v.*
3 *Sanchez* (2016) 63 Cal. 4th 665, 674)

4 Plaintiff has not provided any information as to the source of this audio file and transcript log nor
5 provided any documentation that would certify or authenticate said transcript log and audio file. Plaintiff
6 has not laid any foundation to establish the authenticity of the purported 911 call log and the audio
7 recording. Plaintiff has not established the chain of custody for either the log or the recording. Defendant
8 has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the
9 identity of the custodian of the log and recording. It does not appear that either the log or the recording
10 were obtained via proper subpoena process.

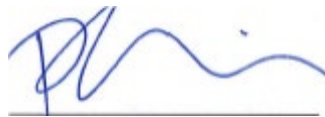
11 The document which Plaintiff purports is an alleged 911 call log and the alleged audio recording
12 lack foundation and is inadmissible hearsay.

13 **III. CONCLUSION**

14 For all the foregoing reasons, Defendant respectfully requests and moves to preclude Plaintiff
15 from using or referencing a 911 audio recording and transcript log at trial.

16
17 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

18
19 

20 Robert K. Phillips
21 Priya Navaratnasingham
22 Alberto Reyna
23 Attorneys for Defendant
24 SUBHI ABDELHALIM
25
26
27
28

EXHIBIT H

MAR 26 2025

CLERK OF THE COURT
BY: KIMBERLY SEPTEN Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,

Defendants.

Case No. CGC-21-594102

TRIAL SCHEDULING ORDER

Complaint Filed: July 27, 2021
Trial Date: April 1, 2025

TO PLAINTIFF AND DEFENSE COUNSEL:

This matter has been set for Jury Trial on Tuesday, April 1, 2025, at 9:30 a.m. in Department 504. To ensure the prompt disposition of this case, the date assigned for a trial is firm. All parties and their counsel must regard the date set for trial as certain. Cal. Rules of Court, rule 3.1332(a).

The court will order a panel of jurors for Wednesday, April 2nd to appear in Department 504 at 1:30 p.m. Please have available a time estimate for completion of the jury trial on April 1st. In calculating your estimate, the courtroom is available for trial, Monday through Thursday for trial from 9:30 a.m. until 12:00 p.m., and from 1:30 p.m. until 4:30 p.m. Trial will not be held on Fridays. Prospective jurors will be informed of the court's schedule and will be told that the trial will be submitted by your anticipated completion date. The parties are reminded that the trial time estimate

1 should include allowances for physical accommodation, various trial motions, discussions of law, and
2 instruction to the jury.

3 I. Motions in Limine

4 Plaintiff has reportedly filed eighty-four (84) MILs, but courtesy copies have not been provided
5 to the trial judge, a violation of San Francisco Superior Court Local Rule ("SFSCCLR") 6.1. Defendant
6 has filed nineteen (19) MILs and has provided courtesy copies to the trial judge. The court has granted
7 defendant's MIL Nos. 1 and 4,¹ and denied without prejudice defendant's MIL No. 17. These rulings
8 remain firm for trial.

9 A court's inherent powers to control litigation and conserve judicial resources authorize it to
10 conduct hearings and formulate rules of procedure as justice may require. Under SFSCCLR 6.1, "the
11 court may preclude the bringing of motions in limine at the time of trial, subject to the [its] discretion."
12 Both parties seek to have evidence admitted or precluded, but the court is unwilling to rule upon either
13 party's MILs in a vacuum. *Kelly v. New West Federal Savings* (1996) 49 Cal.App.4th 659, 669-71. The
14 court denies each party's MILs without prejudice but will allow the parties to raise their objections at
15 trial when the court can focus on the evidence, understand its context, consider its probative value,
16 review its potential for prejudice, and then intelligently rule on its admissibility. *Id.* at 671.

17 II. Trial Submissions

18 An updated witness list, proposed voir dire questions, designated testimony, proposed jury
19 instructions, and general and special verdict forms must be submitted to the court on the morning of
20 April 1st. Jury instructions should be based on the 2025 edition of CACI instructions with all bracketed
21 information completed. Closing instructions should begin at 5000. The submission of any special or
22 pinpoint instruction should have factual and legal authority to support its use. Please meet and confer
23 regarding a joint set of instructions and verdict forms. Please do not submit a list of incomplete
24 instructions. The court recognizes the fluid nature of a trial and will meet with the parties to modify or
25 amend the submitted instructions in conformity with the evidence.

26 III. Voir Dire and Jury Selection

27 The court will address any questions about the voir dire procedure on April 1st. At or about 1:30
28 p.m. on April 2nd each party will receive an alphabetical list and a random list of prospective jurors.
Code of Civil Procedure section 222.5, subd. (g). The court will conduct the initial voir dire
examination. The court will consider any suggested voir dire questions.

¹ Both rulings are subject to the Order After Hearing re Depositions of Plaintiff's Treating Physicians (Rene Gonzalez and Brian Balbon) filed March 3, 2025.

1 Plaintiff conducts voir dire examination first, followed by the defendant's attorney. CCP section
2 226, subd. (d) provides that the defendant has the right to make challenges for cause first. Plaintiff will
3 be asked to exercise a peremptory challenge first and then defendant's attorney.

4 The court does not impose unreasonable or arbitrary time limits, but the parties' questions may
5 not duplicate the court's questions, may not inquire into hardship issues, may not solicit agreements
6 from jurors, may not argue facts or law, may not comment on the personal lives of parties or attorneys,
7 may not impart information to the jurors, may not precondition jurors or ask to place themselves in the
8 position of a party, and whether they would want themselves as a juror in this case.

9 The court seats 24 jurors from the random list of prospective jurors for voir dire. Once voir dire
10 has been completed, the court will adjourn and ask whether the parties have any challenges for cause to
11 the 24 seated jurors. Any juror excused for cause will be replaced sequentially, starting with the
12 thirteenth juror. Preemptory challenges will be then directed to the first twelve and replaced
13 sequentially until there are eleven jurors in the jury box. Another set of prospective jurors for seats 12
14 through 24 will be called and questioned through the voir dire process. The number of alternate jurors
15 will be determined by the court.

16 **IT IS SO ORDERED.**

17 Dated: March 26, 2025


HON. GARRETT L. WONG
JUDGE OF THE SUPERIOR COURT

1
2
3 **SUPERIOR COURT OF CALIFORNIA**
4 **County of San Francisco**

5 FRANCISCUS DYLAN ROSARIO

6 Plaintiff,

7 v.

8 SUBHI ABDELHALIM, INDIVIDUALLY, AND
9 DBA SONOMA LIQUOR, DOES 1 TO 50,

10 Defendants.

Case No.: CGC-21-594102

**CERTIFICATE OF ELECTRONIC
SERVICE & CERTIFICATE OF
SERVICE BY MAIL**
(CCP §1010.6 & CRC 2.251 &
CCP§ 1013a(4))

11 I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San
12 Francisco, certify that I am not a party to the within action.

13 **CERTIFICATE OF ELECTRONIC SERVICE**
14

15 On March 26, 2025, I electronically served the attached **TRIAL SCHEDULING**
16 **ORDER** via File & ServeXpress on the recipients designated on the Transaction Receipt located
17 on the File & ServeXpress website.

18 **CERTIFICATE OF SERVICE BY MAIL**
19

20 On March 26, 2025, I served the attached **TRIAL SCHEDULING ORDER** by placing
21 a copy thereof in a sealed envelope addressed to each of the following:

22 Franciscus Dylan Rosario
23 7624 Melody Dr.,
24 Rohnert Park, CA 94928

Priya D. Navaratnasingham
Phillips Spallas & Angstadt LLP
560 Mission Street, Suite 1010
San Francisco, CA 94105

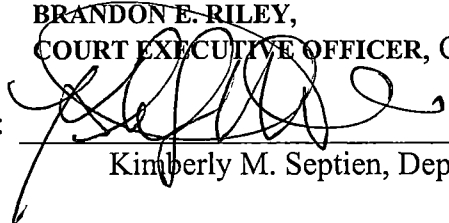
1 Debra D. Lew
2 Office of The Treasurer and Tax Collector
3 P.O. Box 7426
4 San Francisco, CA 94120

Robert K. Phillips
Phillips Spallas & Angstadt LLP
560 Mission Street, Ste.1010
San Francisco, CA 94105

5 and, I then placed the sealed envelope(s) in the outgoing mail at 400 McAllister Street, San
6 Francisco, CA 94102, on the date indicated above for collection with the postage thereon fully
7 prepaid, and mailed on that date following standard court practices.

8 Dated: March 26, 2025
9

10 **BRANDON E. RILEY,**
11 **COURT EXECUTIVE OFFICER, Clerk**

12 By: 

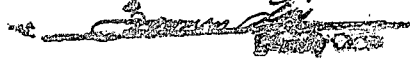
13 _____
14 Kimberly M. Septien, Deputy Clerk
15
16
17
18
19
20
21
22
23
24

EXHIBIT I

1 **Franciscus Dylan Rosario,**
2 7624 Melody Dr.
3 Rohnert Park, CA 94928
4 E: soltrinox@gmail.com
5 Plaintiff Counsel Pro Per
6

FILED
Superior Court of California
County of San Francisco

MAY 05 2025

CLERK OF THE COURT


7 **SUPERIOR COURT OF CALIFORNIA**
8 **IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED**
9 **JURISDICTION**

10 **Franciscus Dylan Rosario,**

Case No.: CGC-21-594102

PLAINTIFF,

1 **Dept.: 504**
1

v.

1 **Judge: Garrett Wong**
1

Subhi Abdelhalim;

1

Does No.1-No.50;

1

SonomaLiquor (et al.)

1

DEFENSE

1

NOTICE OF MOTION AND

1

MOTION FOR JUDGMENT

1

NOTWITHSTANDING THE VER-

1

DICTION

1

(Code of Civil Procedure § 629)

Complaint Filed: July 27, 2021

Hearing Date: May 28th , 2025

Hearing Time: 9:30AM

11 **TO THE HONORABLE SUPERIOR COURT, TO ALL PARTIES AND TO**
12 **THEIR ATTORNEYS OF RECORD:**

13 PLEASE TAKE NOTICE that Plaintiff FRANCISCUS DYLAN ROSARIO, in propria
14 persona, hereby moves this Court pursuant to Code of Civil Procedure § 629 for an or-
15 der granting Judgment Notwithstanding the Verdict (JNOV) on the grounds that there

1 is no substantial evidence to support the jury's defense verdict rendered on April 24,
2 2025, and that Plaintiff is entitled to judgment as a matter of law.

3
4 This motion is based upon the following grounds:

- 5
- 6 1. **Uncontradicted evidence of liability and causation** by Defendant;
- 7 2. **Defendant's express admission of fault** via 911 call;
- 8 3. **Eyewitness and medical evidence** establishing impact and injury;
- 9 4. **Improper reliance on inadmissible hearsay** to defeat Plaintiff's claims;
- 10 5. **No reasonable jury** could find no liability based on the trial record.

11 The motion is supported by the attached Memorandum of Points and Authorities, Dec-
12 larations, Trial Transcript and Exhibits, and all matters of which judicial notice is re-
13 quested.

14

15 **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MO-**
16 **TION FOR JUDGMENT NOTWITHSTANDING THE VERDICT**

17 (CCP § 629)

18 **I. INTRODUCTION**

19 Plaintiff respectfully moves for judgment notwithstanding the verdict (JNOV) because
20 the jury's defense verdict is legally unsupported by any substantial evidence. Where
21 no reasonable jury could reach the verdict rendered, the Court has a duty to correct the
22 judgment under CCP § 629.

1 II. LEGAL STANDARD

2 Under CCP § 629, a trial court must grant JNOV when, viewed in the light most favor-
3 able to the verdict, no substantial evidence supports it. (Sweatman v. Dept. of Veterans
4 Affairs (2001) 25 Cal.4th 62, 68; Hauter v. Zogarts (1975) 14 Cal.3d 104, 110.)
5 Substantial evidence means "evidence of ponderable legal significance, reasonable in
6 nature, credible, and of solid value." (Roddenberry v. Roddenberry (1996) 44 Cal.App.4th
7 634, 651.)

8 III. ARGUMENT

9 A. Defendant Admitted Striking Plaintiff in the Crosswalk

10
11 The 911 transcript (CAD #210352080) includes Defendant's spontaneous admission:
12 "I hit a pedestrian." This was uncoerced, contemporaneous, and corroborated by wit-
13 ness Dustin Rosemund.

15 B. Medical Records Establish Causation

16
17 Plaintiff's emergency CT scan from San Francisco General Hospital showed multiple
18 posterior rib fractures and a pneumothorax, consistent with a vehicular strike. No evi-
19 dence was offered disputing causation.

21 C. Defendant's Contradictory Trial Testimony Was Legally Irrelevant

22
23 Defendant claimed for the first time at trial that his 911 admission was "a lie told under
24 duress" — four years after the collision. The jury improperly credited this self-serving
25 revisionism, unsupported by any physical or testimonial evidence.
26

1 **D. Defense Relied Solely on Inadmissible Hearsay**

2
3 Officer Fernandez testified that Plaintiff was “riding the wrong way” in a bike lane —
4 based on third-party hearsay. He admitted under oath he had no personal knowledge.
5 The Court refused to issue a limiting instruction under CACI No. 219 or Evidence
6 Code § 355, allowing the jury to misuse this statement to absolve Defendant.

7
8 **E. No Reasonable Jury Could Find No Liability**

9
10 Where liability is clear and uncontradicted, and defense relies exclusively on hearsay
11 and speculative testimony, JNOV is required. (Estate of Wallace (1971) 17 Cal.App.3d
12 771, 778–779.)

13
14 **IV. CONCLUSION**

15 The jury verdict in this case lacks legal support and contradicts binding evidence. This
16 Court must enter judgment in favor of Plaintiff.

17
18 **RESERVATION OF RIGHTS**

19
20 Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions,
21 and judicial or disciplinary complaints against any party or judicial officer whose con-
22 duct has resulted in structural error, due process violations, or ethical breaches in these
23 proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election
24 of remedies.

25
26 Respectfully Submitted,

1 Signed By :
2 DIGITAL SIGNATURE
3 of Franciscus Dylan Rosario
4 u7934598720-3459745-454
5
6
7
8
9
10
11
12

Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

A handwritten signature in black ink, appearing to be 'F. Rosario', written in a cursive style.

EXHIBIT J

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff Counsel Pro Per

FILED
Superior Court of California
County of San Francisco

MAY 05 2025

CLERK OF THE COURT

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED
JURISDICTION

Franciscus Dylan Rosario,

Case No.: CGC-21-594102

PLAINTIFF,

Dept.: 504

v.

Judge: Garrett Wong

Subhi Abdelhalim;

Does No.1-No.50;

SonomaLiquor (et al.)

DEFENSE

DECLARATION OF FRAN-
CISCUS DYLAN ROSARIO IN
SUPPORT OF JNOV MOTION

Complaint Filed: July 27, 2021

Hearing Date: May 28th , 2025

Hearing Time: 9:30AM

I, FRANCISCUS DYLAN ROSARIO, declare:

1. I am the Plaintiff in this case and have personal knowledge of the facts stated herein.
2. I was struck by Defendant Subhi Abdelhalim while lawfully crossing the street at Fifth and Tehama in San Francisco on February 4, 2021.
3. Defendant stated on a 911 call that he "hit a pedestrian."
4. I suffered multiple rib fractures and a pneumothorax, documented at San Francisco

1 General Hospital immediately after the incident.

2 5. At trial, Defendant contradicted his prior admission, claiming under oath that he
3 lied during the 911 call. This was the first time he made this claim in four years.

4 6. The defense relied on hearsay from Officer Fernandez, who admitted having no
5 personal knowledge of my location at the time of the collision.

6 7. No independent witness refuted the fact that I was hit in the crosswalk.

7
8 I declare under penalty of perjury under the laws of the State of California that the
9 foregoing is true and correct.

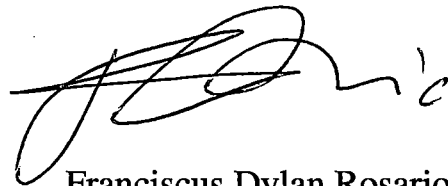
10
11 Executed on 29th day of April 2025, at Rohnert Park, California.

12
13 Signed By :

14 DIGITAL SIGNATURE

15 of Franciscus Dylan Rosario

16 u7934598720-3459745-454



Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

EXHIBIT K

Robert K. Phillips [SBN 135088]
Priya D. Navaratnasingham [SBN 252686]
Alberto Reyna [SBN 347323]
PHILLIPS, SPALLAS & ANGSTADT LLP
560 Mission Street, Suite 1010
San Francisco, California 94105
Telephone: (415) 278-9400
Facsimile: (415) 278-9411

Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/12/2025
Clerk of the Court
BY: BOWMAN LIU
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
OPPOSITION TO PLAINTIFF'S MOTION
FOR JUDGMENT NOTWITHSTANDING
THE VERDICT & MOTION TO VACATE
JUDGMENT**

Hearing: May 28, 2025

Time: 9:30 a.m.

Dept: 504

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys, PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following Opposition to Plaintiff FRANCISCUS DYLAN ROSARIO’S (“Plaintiff”) Motion for Judgment Notwithstanding the Verdict and Plaintiff’s Motion to Vacate Judgment on the grounds that the Motions are without merit and the verdict is supported by substantial evidence.

This Opposition is based on the accompanying Memorandum of Points and Authorities, the file and records of this action, and on such other oral and/or documentary evidence as may be presented at

1 the hearing of the motions.

2 **I. INTRODUCTION**

3 This matter arises out an alleged motor vehicle versus an electric scooter collision which took
4 place on February 4, 2021, in San Francisco County, California. Plaintiff alleges that Defendant was
5 driving a 2018 Ford Transit and collided into Plaintiff as Plaintiff rode on a rented Lime Scooter near the
6 intersection of 5th Street and Tehama Street in San Francisco. Defendant called the San Francisco Police
7 Department who arrived on scene. San Francisco Police Department prepared a report. Neither Plaintiff
8 nor Defendant were cited at the scene of the incident as it was determined by responding police officers
9 that Plaintiff caused the incident for riding against the flow of traffic in a marked bike lane. Plaintiff did
10 not seek medical treatment until the following day February 5, 2021.

11 As a result of the incident, Plaintiff alleges that he has suffered physical and emotional injuries.
12 Plaintiff alleges that due to his injuries, he was unable to work following the incident. Plaintiff alleges
13 that at the time of the incident, he was working on an artificial intelligence powered financial advisor
14 software project and was unable to continue working on this project due to his injuries. Plaintiff alleges
15 that he has lost past and future wages, and suffered loss of earning capacity.

16 Pursuant to a stipulated ex parte application for trial continuance, the Court set a trial date of
17 January 17, 2025, with all trial deadlines, discovery related deadlines, including both expert and
18 percipient witness discovery deadlines, to be based upon the new trial date.

19 The parties appeared in Department 206 for trial call and each party affirmatively represented
20 that they were ready to proceed with trial. On January 28, 2025, the second date of trial, Plaintiff failed
21 to personally appear and instead his friend Karim Sobati appeared stating that Plaintiff had a sudden
22 medical emergency which required that he attend an emergency room located in the South Bay. The
23 Court set a hearing date for February 3, 2025, for a status conference.

24 On February 3, 2025, Plaintiff again failed to appear in person and his friend Evan Keegan
25 appeared presenting an application for ADA accommodations, and that Plaintiff had been ordered to rest
26 by doctors. The Court set a hearing for February 18, 2025.

27 On February 18, 2025, Plaintiff personally appeared at the hearing and had subpoenaed previous
28 counsel from the Dolan Law Firm to state that they had provided prior defense counsel with copies of a

1 911 CAD log and audio files. Plaintiff's motion for a continuance was denied. Plaintiff claimed that he
2 had developed new injuries stemming from the subject incident and the Court ordered Plaintiff to
3 provide defense counsel by February 21, 2025, with a list of medical treaters who had treated Plaintiff
4 since January 28, 2025, along with their availability for deposition, and summary of each doctor's
5 expected testimony.

6 A hearing was held on February 28, 2025, to consider Plaintiff's filed Motion for Protective
7 Order and Enforcement of Court Order Regarding Treating Physician's Testimony. Plaintiff's motions
8 were denied with out prejudice. The Court ordered Plaintiff to produce a list of the treating physician's
9 for deposition along with their records by March 3, 2025. Trial was continued to March 17, 2025.
10 Defense counsel prepared a proposed order for the Court which was signed on March 3, 2025.

11 On March 3, 2025, Plaintiff produced a list of his doctors for deposition: Dr. Rene Gonzalez and
12 Dr. Brian Balbon. Dr. Gonzalez's records of Plaintiff's treatment were not produced as ordered by the
13 Court. As for Dr. Balbon, only an intake form and a sheet noting three chiropractic visits but no
14 substantive medical treatment information was provided.

15 On March 17, 2025, the parties appeared for trial as ordered. The Court stated it had to consider
16 Plaintiff's motion for judicial disqualification, and thus continued trial to March 24, 2025. The trial was
17 subsequently rescheduled for April 1, 2025, due to the Court's schedule.

18 On April 1, 2025, the parties appeared for trial. The Court denied Plaintiff's motion for judicial
19 disqualification. The Court granted Defendant's Motion in Limine No. 20 to disqualify Dr. Rene
20 Gonzalez as a testifying witness.

21 On April 7, 2025, the Court informed the parties that it had reconsidered its prior ruling on
22 Defendant's Motion in Limine No. 20. The Court ordered an Evidence Code 402 hearing to determine
23 whether Dr. Rene Gonzalez is able to provide pertinent testimony.

24 On April 10, 2025, Dr. Rene Gonzalez appeared for the 402 hearing. Dr. Gonzalez was duly
25 sworn and the parties presented questions regarding his treatment and knowledge of Plaintiff's
26 condition. It was determined that Dr. Gonzalez did not have any relevant nor helpful testimony to
27 provide to a jury regarding Plaintiff's condition, treatment, or mode of injury. Dr. Rene Gonzalez was
28 excluded as a witness by the Court. Defendant's Motion in Limine Nos. 3 and 14 to preclude Plaintiff

1 from offering any testimony as to future medical expenses and future medical treatment, respectively,
2 were granted. In addition, Defendant's Motion in Limine No. 18 to preclude Plaintiff or anyone from
3 testifying as to future loss of earning capacity and past/future loss earnings was granted.

4 On April 14, 2025, Plaintiff filed a motion to bifurcate the jury trial for an initial liability and
5 causation phase and then a damages phase. Defendant stipulated to Plaintiff's proposed trial bifurcation
6 and the Court granted the motion.

7 On April 15, 2025, the parties conducted voir dire and a jury was sworn and empaneled.

8 On April 16, 2025, Plaintiff presented its case and evidence and rested on April 21, 2025.

9 On April 21, 2025, Defendant presented its case and evidence and rested its case.

10 On April 22, 2025, Plaintiff and Defendant gave closing statements to the jury. The jury was
11 then instructed by the Court and the matter was turned over the jury for deliberations.

12 On April 23, 2025, the jury returned its verdict as follows:

13 (1) Was Subhi Abdelhalim negligent?

14 Yes

X No

15 Based on the jury's verdict, there was no need for the second phase of trial regarding damages.

16 Plaintiff's arguments are based on grounds of (1) uncontradicted evidence of liability and
17 causation; (2) Defendant's [alleged] expression of admission of fault via a 911 call; (3) eyewitness and
18 medical evidence establishing impact and injury; (4) improper reliance on inadmissible hearsay; and (5)
19 that no reasonable jury could find no liability based on the trial record. (Plaintiff's JNOV p. 2:6-10)

20 Plaintiff's grounds are baseless, and Plaintiff does not show that the verdict was not supported by
21 substantial evidence. Plaintiff was provided with various concessions throughout this trial which first
22 began on January 27, 2025, and ended on April 23, 2025. During those almost three months, Plaintiff's
23 various motions, demands, and statements were given more than proper consideration by this Court and
24 Plaintiff was ultimately afforded a fair trial.

25 Defendant disputed liability in connection with this incident from the beginning and presented
26 evidence in support of his position. Plaintiff did not present a rebuttal case against Defendant's
27 evidence.

28 In addition, the jury was allowed to hear and give weight to Officer David Fernandez's testimony

1 based on his firsthand knowledge of the investigation conducted at the scene of the incident; were
2 presented with two 911 calls including one made by Defendant; and as a result of this substantial
3 evidence, the jury reached its no negligence verdict in favor of Defendant.

4 Plaintiff cites no case law, legal authority, or evidence to support his position that there was
5 uncontradicted evidence of Defendant's liability. Plaintiff attempts to challenge the verdict for no reason
6 other than he disputes the jury's findings. Plaintiff's motion is simply an attempt to improperly invade
7 the jury's fact-finding duties by making baseless claims implying that the jury was unreasonable in
8 reaching its verdict. Plaintiff's motions should be denied.

9 **II. LEGAL ARGUMENT**

10 **A. Legal Standard for Judgment Notwithstanding the Verdict**

11 A motion for judgment notwithstanding the verdict (hereinafter referred to as "JNOV") "may be
12 granted only if it appears from the evidence, viewed in the light most favorable to the party securing the
13 verdict, that there is no substantial evidence in support." *Sweatman v. Department of Veterans*
14 *Affairs* (2001) 25 Cal.4th 62, 68; *Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th
15 1107, 1137-1138. Such motions are essentially "demurrer[s] to the evidence." *Brassinga v. City of*
16 *Mountain View* (1998) 66 Cal.App.4th 195, 210 (1998). The Court should not disturb the jury's verdict if
17 there is "any substantial evidence-contradicted or uncontradicted [that] supports the jury's conclusion."
18 (*emphasis added.*) *Begnai v. Canfield & Assocs.* (2000) 78 Cal.App.4th 66, 72; *Moore v. City & County*
19 *of San Francisco* (1970) 5 Cal.App.3d 728, 733.

20 A trial court is not permitted to weigh the evidence or assess credibility. "The trial court's
21 discretion in granting a motion for judgment notwithstanding the verdict is severely limited." *Hansen v.*
22 *Sunnyside Products, Inc.* (1997) 55 Cal.App.4th 1497, 1510. "The trial judge cannot reweigh the
23 evidence [], or judge the credibility of witnesses." (*Id.*) Rather, the court must determine "[i]f there is
24 any substantial evidence, or reasonable inferences to be drawn therefrom, in support of the verdict." (*Id.*)

25 "A motion for judgment notwithstanding the verdict may be granted only if it appears from the
26 evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial
27 evidence in support." *Burch v. Certainteed Corp.* (2019) 34 Cal.App.5th 341, 348. "Substantial evidence
28 is that of a 'ponderable legal significance, reasonable, credible, and of solid value.'" (*Id.*) "If there is any

substantial evidence, contradicted or uncontradicted, to support the verdict, we affirm the verdict.” (*Id.*)

Conflicting evidence is resolved against the moving party. “If evidence is conflicting or if several reasonable inferences may be drawn, the motion for judgment notwithstanding the verdict should be denied.” *Wright v. City of Los Angeles* (1990) 219 Cal.App.3d 318, 343; *Castro v. State of California* (1981) 114 Cal.App.3d 503, 507.

Here, Plaintiff has failed to demonstrate that the jury’s verdict is devoid of supporting substantial evidence. Therefore, Plaintiff’s motions should be denied.

B. Plaintiff’s Motion for Judgment Notwithstanding the Verdict Should Be Denied as the Verdict is Support by Substantial Evidence

The jury, over the course of three and a half days, was presented with San Francisco Police Department Officer David Fernandez’ testimony regarding his investigation and findings; audio of 911 calls; and Defendant’s own testimony, all of which presented substantial evidence that Plaintiff was at fault for causing the subject incident and thereby causing injury to himself.

i. Testimony of Officer David Fernandez

Officer David Fernandez of the San Francisco Police Department (“Officer Fernandez”) provided extensive and pertinent trial testimony regarding his firsthand investigation and that of his colleagues while at the scene of the incident. While Plaintiff attempted to illicit insignificant and irrelevant testimony about whether scooters are allowed on sidewalks and police misconduct, Officer Fernandez testified that it was determined that Plaintiff had been riding a scooter in a bike lane against the flow of traffic in violation of California Vehicle Code; Plaintiff was found to be the party at fault; and per San Francisco Police Department’s policy regarding vehicle collisions, an at fault party is not cited if they are the only party injured.

Transcript Pin Cite	Officer Fernandez’s Trial Testimony; Trial Date: April 16, 2025
Examination by Plaintiff	
73:10-13	A: I mean, we take statements from witnesses who claim things and then based on damages, based on the totality of the circumstances, we determine who is at fault.”
80:21 – 81:3	Q: Did you determine the fault based upon both of our statements or based upon one statement, sir?

1		A: I believe based on both statement. I know an officer spoke to you. I don't know which officer on the scene spoke to you and then based on the information that was relayed to me, that is how I determined how to write the police report.
2		
3	83:22 – 84:6	Q: The multiple officers – was it you alone or multiple officers that determined the fault in the report itself?
4		A: I determined
5		Q: Okay. And what mechanism do you do to do that? Do you take all the evidence or do you just make a judgment call at the time?
6		A: I take all of the statements and evidence and I make the decision.
7		
8	105:19 – 106:12	Q: A traffic infraction. Which traffic infraction do you believe had been – okay. Was anybody actually ticketed or cited?
9		A: No.
10		Q: So you said there is a traffic infraction. Is it typical not to cite somebody if a infraction had happened?
11		A: In a vehicle collision if the party at fault causes injury to someone else then they would be cited. That is just our rules from my department.
12		If that person at fault does not cause any injury other than to themselves or they are the only party that is injured, then they don't receive a citation.
13		Q: So the party at fault. So we are talking about the party at fault. What does party at fault mean?
14		A: It is just the party that I placed at fault during the investigation.
15		
16	107:20-22	Q: So a person in a vehicle, what constitutes a vehicle, sir?
17		A: It could be a bicycle, a scooter, a car.
18		
19	135:20-22	Q: How were you able to tell that the scooter belonged to, say, me?
20		A: Based on whatever statement you provided.
21		
22	Examination by Defendant	
23	162:9 – 163:16	Q: Great. If you can turn to the page that is, I guess it is this page, excuse me. A different page. So I guess the first page you noted here, Officer, that Mr. Rosario was operating a green Lime scooter, correct?
24		A: Correct.
25		Q: And if you go to page 5 of 7, Sir, Officer. My client was at the scene of the incident when you arrived there, correct, it says P2 who is my client he was located on the scene?
26		A: Correct.
27		
28		

1		Q: Okay. And on that same page, Officer, it says that the Lime scooter that Mr. Rosarios was operating, it did not sustain any damage, correct?
2		A: Correct.
3		Q: And the vehicle that my client was operating also did not sustain any damage, correct?
4		A: Correct.
5		Q: And if you can turn to the next page Officer, page 6 of 7.
6		The statement, and I want to have a clean record here, the statement that you noted here as to Mr. Rosario, it says here that Mr. Rosario stated he was riding the lime scooter northbound on 5th Street approaching Tehama Street. He was riding in the bicycle lane against the flow of traffic. He observed my client vehicle approaching and attempted to turn westbound, excuse me, he observed my client's vehicle approaching.
7		He attempted to slow down to avoid the collision and he collided with my client's vehicle.
8		Do you see that?
9		A: Yes.
10		
11		
12		
13		
14	164:4-8	Q: Officer Fernandez, it says the statement you received as to Mr. Rosario was that he was traveling approximately five miles per hour prior to the collision, correct?
15		A: Correct.
16		
17	165:8 – 167:5	Q: And with reference to – in your experience, because Mr. Rosario brought this up, in your experience, Officer, a person traveling on a scooter should be traveling with the flow of traffic, correct?
18		A: Correct.
19		Q: You did not cite Mr. Rosario for traveling against the flow of traffic, correct?
20		A: Correct.
21		Q: That was your conclusion, that Mr. Rosario caused the collision in violation of California Vehicle Code - -
22		Mr. Rosario: Objection. Speculation.
23		The Court: Response?
24		Ms. Navaratnasingham: Your Honor, Mr. Rosario opened the door to the causation as to Mr. Fernandez's conclusion based upon his investigation we just walked through.
25		The Court: It is a lay opinion, very well.
26		
27		
28		

1 Q: Mr. Fernandez, based upon your investigation you determined that Mr.
2 Rosario caused the collusion by driving on the opposite side of the road
3 against the normal flow of traffic in violation of California Vehicle Code
4 21651(b), correct?

5 A: Correct.

6 Q: I just asked this, you did not cite Mr. Rosario for traveling against the flow
7 of traffic, correct?

8 A: Correct.

9 Q: Why is that?

10 A: Our department policy is that for vehicle collisions if a party causes injury
11 to someone else and they are at fault we cite them.

12 If the person is at fault and they only cause injury to them self we don't cite
13 them.

14 Q: You didn't cite Mr. Rosario because it was your determination based upon
15 the investigation he caused injuries to himself?

16 A: Correct.

17 Mr. Rosario: Objection, he didn't run the investigation, he collected the
18 information to report that.

19 The Court: It is overruled.

20 Q: And my client was not cited, correct?

21 A: Correct.

22 Q: Why is that?

23 A: I didn't find any vehicle code violation.

24 **ii. Testimony of Defendant Subhi Abdelhalim**

25 Defendant's testimony affirmed that he had made a right turn onto Tehama Street from 5th
26 Street; that he had checked for any obstructions including pedestrians, bicyclists, and scooter riders
27 before making the right turn; he had not felt any impact; stopped when heard Plaintiff scream for help;
28 called 911; and contrary to what Plaintiff refers to as an "admission of fault," testified that he told the
911 operator what Plaintiff claimed had occurred. Based on the Defendant's testimony, in conjunction
with Officer Fernandez's testimony, the jury was able to determine that Defendant was not negligent in

operating his vehicle.

Transcript Pin Cite	Defendant's Trial Testimony; Trial Date: April 17, 2025
Examination by Plaintiff	
99:23 – 100:1	Q: Mr. Abdelhalim, your vehicle made contact with me, the victim, correct, yes or no? A: No.
101:14-16	Q: Mr. Abdelhalim, did you call 911 at all at the scene? A: Yes, I did call 911.
114:20 – 115:12	(Whereupon, the audio file was played) Q: For the sake of Your Honor, do any of the jury need to hear it a second time to clarify the audio that was spoken? The Court: I don't believe so. Ask your next question, sir. Q: Mr. Abdelhalim, before we listened to this audio clip you stated that you did not make a 911 call, is that correct? Or did you make a 911 call, but then also stated that you never hit me with your vehicle. You know there was no contact with me with your vehicle. The Court: Which question do you wish to put in? One question at a time. Q: Mr. Abdelhalim, was that you on that phone call? A: Yes.
125:22 - 126:23	Q: Where we picked up from before, Mr. Abdelhalim, I asked you why, if you could explain to us why you would have said that you had hit a pedestrian. You didn't know who I was. You did not know my name. Mr. Abdelhalim you said you don't know why you told 911 that. And Mr. Abdelhalim, is that – are you – did you tell the police that you had hit the pedestrian? Mr. Abdelhalim, yes or no? A: You were telling me, you were yelling at me, and you was making me confused and – what I say to the police, you scared me. I was trying to help you. And you was yelling at me: You hit me, you hit me, you hit me and I get confused. I get scared. I get – I back up. That is my explanation for this. I was confused. I was scared.

1		When I call up, I didn't even know what is left and right, and I say left and I told you right.
2		I was confused and I tried to help you and you say you hit me.
3		When I make the phone call, when I make the phone call and they asked me. Did you hit him?
4		I say what he say he to me he hit me; what he say, what he said to me I explained to the police.
5		He say I hit him.
6		
7		
8		
9	Examination by Defendant	
10	143:3 – 144:21	Q: Okay. Sir, prior to making your right turn, did you check your rearview mirror before making your right turn onto Tehama?
11		A: It was clear when I turn left or right, it was clear in front of me.
12		Q: So you checked your rearview mirror and did you not see any pedestrians or scooters or bicycles, correct?
13		A: No.
14		Q: Okay. Did you –
15		The Court: Wait, that is a double negative. Ask the question correctly, please.
16		Q: Listen to my question, okay. I know you are nervous. You are doing great. Just listen to my questions, okay?
17		Did you, when you looked in your rearview mirror, or excuse me, side view mirror did you see any pedestrians, scooters or bicyclists prior to making your turn?
18		A: No.
19		Q: Prior to making your right-hand turn did you look in front of you?
20		A: Yes.
21		Q: And when you looked in front of you did you see any bicyclists, pedestrians, or scooters in front of you prior to making your turn?
22		A: No.
23		Q: After you made your right-hand turn on to Tehama, did you feel any sort of impact to your vehicle?
24		A: No.
25		
26		
27		
28		

1		Q: Is the reason that you stopped and pulled your vehicle over as because you had heard somebody yelling for help?
2		A: That is correct.
3		Q: And you testified that you got out of your vehicle and you went up to Mr. Rosario, is that correct?
4		A: Yes.
5		Q: And he was yelling at you; is that right?
6		A: Yes.
7		Q: And after he started yelling at you, what did you do?
8		A: I back up and I call 911. I was confused --
9		
10	145:5-20	Q: Okay. Sir, you waited for the police to arrive, correct?
11		A: Yes.
12		Q: You provided them with your information, correct?
13		A: Yes.
14		Q: They did not cite you at the scene, correct?
15		A: What was that question again?
16		Q: Sorry, they did not cite you for anything, correct?
17		A: No.
18		Q: And they told you that you were free to leave, correct?
19		A: Yes.
20		Q: And you left the scene?
21		A: Yes.

iii. San Francisco Police Department Bodycam Footage

In addition to the above testimony, the jury was presented with bodycam footage of the responding police officers at the scene of the incident. From this footage, jurors were able to give weight to the supposed eyewitness statement by Mr. Dustin Rosemont; heard directly from both the Plaintiff and Defendant while still at the scene including Plaintiff saying that he had been riding a scooter in the wrong direction; and heard from multiple police officers working together at the scene that Plaintiff was

1 found to have been riding his scooter against the flow of traffic in a demarcated bike lane and was thus
2 found to be the party at fault.

3 All of the above, even individually, qualify as substantial evidence in support of the jury's
4 verdict.

5 **C. Standard for Motion to Vacate Judgment Under Code of Civil Procedure**
6 **Section 663 (1)**

7 Plaintiff also seeks relief under Code of Civil Procedure Section 663(1), claiming that the Court's
8 judgment entered on April 25, 2025, was "not consistent with or not supported by the facts."

9 A Section 663 motion can be brought if "the trial judge ... renders an erroneous judgment upon
10 the facts found by it to exist." *Mac Inula v. Myers* (2019) 39 Cal.App.5th 779, 799. But "in ruling on a
11 motion to vacate the judgment [a] court cannot 'in any way change any finding of fact.'" *Glen Hill*
12 *Farm. LLC v. Cal. Horse Racing Bd.* (2010) 189 Cal.App.4th 1296, 1302. Thus, a Section 663 motion
13 must be based on "uncontroverted evidence." *Simac Design, Inc. v. Alciati* (1979) 92 Cal.App.3d 146,
14 153.

15 **D. Plaintiff's Motion to Vacate Judgment Should be Denied for Failure to Demonstrate**
16 **Grounds for Vacating Judgment**

17 In support of his motion to vacate the judgment, Plaintiff makes reference to various
18 insignificant grounds as outlined below.

19 **i. Omission of mandatory CACI Nos. 700-712**

20 Plaintiff argues that the judgment should be vacated for omission of CACI Nos. 700

- 21 - CACI No. 700: A person must use reasonable care in driving a vehicle. Drivers must keep a
22 lookout for pedestrians, obstacles, and other vehicles. They must also control the speed and
23 movement of their vehicles. The failure to use reasonable care in driving a vehicle is negligence.
- 24 - CACI 701: When the law requires a driver to "yield the right-of-way" to another vehicle this
25 means that the driver must let the other vehicle go first.

26 Even if someone has the right-of-way, that person must use reasonable care to avoid an accident.

- 27 - CACI 702: A driver who has the right-of-way may give up that right and let another person go
28 first. If the other person reasonably believes that a driver has given up the right-of-way, then the

1 other person may go first.

- 2 - CACI 703: The statute just read to you uses the words “immediate hazard.” An immediate
3 hazard exists if the approaching vehicle is so near or is approaching so fast that a reasonably
4 careful person would realize that there is a danger of collision or accident.
- 5 - CACI 704: The statute just read to you uses the word “hazard.” A “hazard” exists if any
6 approaching vehicle is so near or is approaching so fast that a reasonably careful person would
7 realize that there is a danger of a collision or accident.

8 A driver who is attempting to make a left turn must make sure that no oncoming vehicles
9 are close enough to be a hazard before the driver proceeds across each lane.

- 10 - CACI 705: A driver must use reasonable care when turning.
- 11 - CACI 706: A person must drive at a reasonable speed. Whether a particular speed is reasonable
12 depends on the circumstances such as traffic, weather, visibility, and road conditions. Drivers
13 must not drive so fast that they create a danger to people or property.

14 If Plaintiff has proved that Defendant was not driving at a reasonable speed at the time of
15 the accident, then Defendant was negligent.

- 16 - CACI 707: The speed limit where the accident occurred was 25 miles per hour.

17 The speed limit is a factor to consider when you decide whether or not Defendant was
18 negligent. A driver is not necessarily negligent just because the driver was driving faster than the
19 speed limit. However, a driver may be negligent even if the driver was driving at or below the
20 speed limit.

- 21 - CACI 708: The maximum speed limit where the accident occurred was 25 miles per hour.
- 22 - CACI 709: The statute just read to you uses the term “under the influence.” A driver is not
23 necessarily “under the influence” just because the driver has consumed some alcohol [or drugs].
24 A driver is “under the influence” when the driver has consumed an amount of alcohol [or drugs]
25 that impairs the driver’s ability to drive in a reasonably careful manner.
- 26 - CACI 710: A driver of a vehicle must yield the right-of-way to a pedestrian who is crossing the
27 roadway within any marked crosswalk or within any unmarked crosswalk at an intersection.

28 When approaching a pedestrian who is within any marked or unmarked crosswalk, a driver must

1 use reasonable care and must reduce the vehicle's speed or take any other action necessary to
2 ensure the safety of the pedestrian.

3 Pedestrians must also use reasonable care for their own safety. Pedestrians may not
4 suddenly leave a curb or other place of safety and walk or run into the path of a vehicle that is so
5 close as to constitute an immediate hazard. Pedestrians also must not unnecessarily stop or delay
6 traffic while in a marked or unmarked crosswalk.

7 The failure of a pedestrian to exercise reasonable care does not relieve a driver of a
8 vehicle from the duty of exercising reasonable care for the safety of any pedestrian within any
9 marked crosswalk or within any unmarked crosswalk at an intersection.

- 10 - CACI 711: A passenger is not required to be aware of the conditions on the highway and is
11 entitled to expect that a driver will use reasonable care. However, if a passenger becomes aware
12 of [a danger on the highway] [the driver's impairment or failure to use reasonable care], then the
13 passenger must take reasonable steps to protect the passenger's own safety.
14 - CACI 712: Affirmative Defense – Failure to Wear a Seat Belt.

15 Per the CACI sections noted above, CACI Nos. 702, 703, 704, 706, 707, 708, 709, 711, and 712
16 are simply inapplicable. There are no facts to support, nor allegations made by either party, that: any
17 party waived the right-of way (CACI 702); the jury was not presented nor instructed on any statute with
18 the language “immediate hazard” in it (CACI 703); no facts or evidence to support that any party made a
19 left turn during the incident (CACI 704); no facts or evidence that would necessitate the need for
20 instructions on speed of a driver (CACI 706, 707 & 708); no facts or evidence of driving under the
21 influence (CACI 709); no facts or evidence that there were any passengers in any vehicle (CACI 711);
22 and no facts or evidence that there was need for an affirmative defense for lack of a seat belt (CACI
23 712).

24 Of the remaining instructions, regarding CACI Nos. 700, and 701, the jury was provided with
25 CACI Nos. 400 (Negligence) and 401 (Basic Standard of care). These are essentially the equivalents of
26 CACI 700 and 701, and thus there is no prejudice to Plaintiff or his case from not having received CACI
27 700 and 701.

28 CACI No. 705 which states that “A driver must use reasonable care when turning,” would not

1 have provided the jury with any additional pertinent instruction that would have helped it in making an
2 informed decision based on the facts and evidence presented.

3
4 CACI 710 is inapplicable as all evidence, including Plaintiff's own operative complaint and responses to
5 written discovery requests, demonstrated that Plaintiff was not a pedestrian but rather was operating an
6 electrical scooter at all relevant times. Further, Plaintiff did not object to the jury instructions provided to
7 the jury during the pre-trial hearing to discuss same.

8 **ii. Judgment Rests on Inadmissible Hearsay and Judicial Error**

9 Officer Fernandez testified under oath that based on his investigation at the scene of the incident;
10 and based on that investigation, Plaintiff was found to be at fault for causing the accident. Plaintiff
11 claims it was judicial error to not instruct the jury on CACI No. 219 "Expert Witness Testimony."
12 However, Plaintiff fails to provide any sufficient basis for why CACI No. 219 was judicial error.

13 **iii. Verdict is Against Undisputed Evidence**

14 As discussed above, there was substantial evidence presented demonstrating that Defendant was
15 not negligent, and that Plaintiff was at fault for causing the subject incident. In addition, Plaintiff's claim
16 that a CT scan supported his alleged injuries is irrelevant as it was inadmissible hearsay and excluded.

17 **III. CONCLUSION**

18 Based on the foregoing, Plaintiff's Motion for JNOV and Vacating of Judgment should be
19 denied. Plaintiff has failed to show that the jury's defense verdict was not supported by substantial
20 evidence.

21
22 Date: May 12, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

23
24 

25 _____
26 Robert K. Phillips
27 Priya Navaratnasingham
28 Alberto Reyna
Attorneys for Defendant
SUBHI ABDELHALIM

EXHIBIT L

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5 Plaintiff Counsel Pro Per
6

FILED
Superior Court of California
County of San Francisco

MAY 05 2025

CLERK OF THE COURT
[Signature]

7 **SUPERIOR COURT OF CALIFORNIA**
8 **IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED**
9 **JURISDICTION**

10 **Franciscus Dylan Rosario,**

Case No.: CGC-21-594102

PLAINTIFF,

1 **Dept.: 504**
1

v.

1 **Judge: Garrett Wong**
1

Subhi Abdelhalim;

1

Does No.1-No.50;

1

SonomaLiquor (et al.)

1

DEFENSE

1

NOTICE OF MOTION AND

1

MOTION FOR NEW TRIAL

1

(Code of Civil Procedure § 657,

1

subds. (1), (6), (7))

1

Complaint Filed: July 27, 2021

Hearing Date: May 28th , 2025

Hearing Time: 9:30AM

11 **TO THE HONORABLE SUPERIOR COURT, TO ALL PARTIES AND TO**
12 **THEIR ATTORNEYS OF RECORD:**

13 PLEASE TAKE NOTICE that Plaintiff FRANCISCUS DYLAN ROSARIO, in propria
14 persona, hereby moves this Court for an order granting a New Trial pursuant to Cali-
15 fornia Code of Civil Procedure § 657, on the following grounds:
16

1. **Irregularity in the proceedings** (CCP § 657(1));
2. **Verdict is against the law** (CCP § 657(6));
3. **Error in law occurring at trial** (CCP § 657(7)).

This Motion is based on this Notice, the attached Memorandum of Points and Authorities, the Declaration of Plaintiff, the trial record, all documents on file, and any oral or documentary evidence presented at hearing.

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR NEW TRIAL (CCP § 657(1), (6), (7))

I. INTRODUCTION

Plaintiff respectfully requests a new trial due to multiple prejudicial and structural errors that occurred during trial. The proceedings were tainted by irregular judicial conduct, the omission of mandatory jury instructions, and the admission of inadmissible hearsay without limiting instruction, all of which undermined Plaintiff's right to a fair and lawful adjudication.

II. LEGAL STANDARD

A trial court may grant a new trial under CCP § 657 based on:

- **Irregularity in the proceedings by which a party was prevented from receiving a fair trial (subd. 1);**
- A verdict that is against law (subd. 6);
- Error in law occurring at trial, duly excepted to by the aggrieved party (subd. 7).

1 Structural or prejudicial instructional error does not require a harmless error analysis
2 where it involves the complete omission of a duty instruction. (Soule v. General Motors
3 Corp. (1994) 8 Cal.4th 548, 580; Logacz v. Limansky (1999) 71 Cal.App.4th 1149.)
4

5 **III. ARGUMENT**

6 **A. Irregularity in the Proceedings (CCP § 657(1))**

7

8 During jury deliberations, the Court communicated with the jury off the record, deliv-
9 ering written legal definitions of “vehicle” and “highway” at defense counsel’s request
10 without notifying Plaintiff or holding proceedings in open court, violating CCP § 611.
11 This constitutes an irregularity requiring reversal. (People v. Jennings (1991) 53 Cal.3d
12 334, 384–385.)
13

14 Additionally, Plaintiff later became aware of jurors conducting unauthorized online re-
15 search regarding California pedestrian laws, in violation of Penal Code § 1122(a)(1)
16 and CRC 2.1030.
17

18 **B. Verdict Against Law (CCP § 657(6))**

19

20 Despite overwhelming and un rebutted evidence of Defendant’s liability — including
21 Defendant’s own 911 call admission (“I hit a pedestrian”) and diagnostic imaging of
22 Plaintiff’s injuries — the jury returned a defense verdict. This result is contrary to the
23 legal standards governing negligence and liability and is against law.
24

25 **C. Error in Law (CCP § 657(7))**

26

27 The Court omitted mandatory CACI Nos. 700–711, which set forth the statutory du-

1 ties of care applicable to vehicle operators and pedestrians under the California Vehicle
2 Code. These instructions are required sua sponte in all motor vehicle negligence ac-
3 tions. (Pool v. City of Oakland (1986) 42 Cal.3d 1051, 1066–1068.)

4
5 Furthermore, the Court failed to issue a limiting instruction (CACI No. 219) after ad-
6 mitting inadmissible hearsay from Officer Fernandez, who attributed fault to Plaintiff
7 based on third-party statements despite having no personal knowledge.

8
9 These legal errors materially affected the jury's deliberation and mandate a new trial.

10 11 **IV. CONCLUSION**

12 Due to the multiple irregularities, omissions, and legal errors outlined above, Plaintiff
13 respectfully requests that the Court grant a New Trial on all issues.

14 15 **RESERVATION OF RIGHTS**

16 Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions,
17 and judicial or disciplinary complaints against any party or judicial officer whose con-
18 duct has resulted in structural error, due process violations, or ethical breaches in these
19 proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election
20 of remedies.

21
22 Respectfully submitted,

23 Executed on 29th day of April 2025, at Rohnert Park, California.

1
2
3
4
5

Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

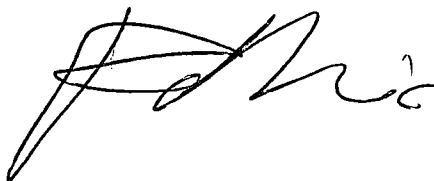
A handwritten signature in black ink, appearing to read 'F. Rosario', is positioned below the printed text.

EXHIBIT M

1 Robert K. Phillips [SBN 135088]
2 Priya D. Navaratnasingham [SBN 252686]
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9 Attorneys for Defendant
10 SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
05/12/2025
Clerk of the Court
BY: BOWMAN LIU
Deputy Clerk

7 SUPERIOR COURT OF CALIFORNIA

8 IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

9 **FRANCISCUS DYLAN ROSARIO**

10 **Plaintiff,**

11 **v.**

12 **SUBHI ABDELHALIM, INDIVIDUALLY,**
13 **AND DBA SONOMA LIQOUR, DOES 1 TO**
14 **50,**

15 **Defendants.**

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
OPPOSITION TO PLAINTIFF'S
MOTIONS FOR NEW TRIAL &
MISTRIAL**

Hearing: May 28, 2025
Time: 9:30 a.m.
Dept: 504

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19
20 **TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND**
21 **TO THEIR ATTORNEYS OF RECORD:**

22 Defendant SUBHI ABDELHALIM by and through his attorneys, PHILLIPS, SPALLAS &
23 ANGSTADT LLP, respectfully submits the following Opposition to Plaintiff FRANCISCUS DYLAN
24 ROSARIO'S Motions for New Trial & Mistrial and Points and Authorities in support thereof.

25 **I. INTRODUCTION**

26 Plaintiff FRANCISCUS DYLAN ROSARIO ("Plaintiff") received a fair trial in this case. The
27 jury was presented with various testimony and other pieces of demonstrative evidence which then the
28 jury rendered a verdict finding that Defendant SUBHI ABDELHALIM (hereinafter "Defendant") was

1 not negligent.

2 Plaintiff's requests to vacate the jury verdict runs counter to Defendant's "constitutional right to a
3 jury trial" and California's "policy of judicial economy against willy-nilly disregarding juries' hard
4 work." *Cooper v. Takeda Pharm. Am., Inc.* (2015) 239 Cal. App. 4th 555, 572; Cal. Const. art. I, § 16
5 ("Trial by jury is an inviolate right and shall be secured to all."). "There must be some point where
6 litigation in the lower courts terminates" because otherwise "the proceedings after judgment would be
7 interminable". *Coombs v. Hibberd* (1872) 43 Cal. 452, 453. After almost three months from the first
8 date of trial, it is time to end this litigation and respect the jury's judgment.

9 **II. LEGAL ARGUMENT**

10 **A. Authority for Granting New Trial**

11 The California Constitution only allows for a new trial to be granted if the verdict constitutes a
12 "miscarriage of justice." Cal. Const., Art. VI, §13. The authority for a court to grant a new trial is further
13 "circumscribed by statute" *Oakland Raiders v. Nat'l Football League* (2007) 41 Cal. 4th 624, 633.
14 Whatever issue raised by the moving party must be shown to be prejudicial—that it affected the
15 outcome of the trial. (Cal Const., Art. VI, §13).

16 "A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the
17 verdict or other decision ... unless after weighing the evidence the court is convinced from the entire
18 record, including reasonable inferences therefrom, that the court or jury clearly should have reached a
19 different verdict or decision." Code Civ. Proc., § 657. *See also David v. Hernandez* (Cal. Ct. App. 2014)
20 226 Cal.App.4th 578 ("We caution that not every legal mistake or unsound course of reasoning will
21 inexorably result in reversal of an order denying a motion for new trial.").

22 Plaintiff seeks a new trial pursuant to California Code of Civil Procedure section 657.
23 Specifically, Plaintiff's motion asserts that there was an irregularity in the proceedings due to
24 clarification provided to the jury based on their questions during deliberations (CCP Section 657(1));
25 that the jury's verdict was against the law (CCP Section 657(6)); and that error occurred during the trial
26 which was excepted to by Plaintiff (CCP Section 657(7)).

27 ///

28 ///

1 **B. Summary of Plaintiff's Arguments**

2 Plaintiff raised three grounds for a new trial:

3 1. Plaintiff argues, under Code of Civil Procedure section 657(1), that during jury
4 deliberations, “the Court communicated with the jury off record, delivering written legal definitions of
5 ‘vehicle’ and ‘highway’ at defense counsel’s requests without notifying Plaintiff or holding proceeding
6 in open court.” (Plaintiff’s Motion p. 3:8-10) The parties, including Plaintiff, was present before the
7 Court when the definitions were discussed and considered and the Plaintiff did not object to the
8 definitions being introduced to the jury for its consideration.

9 2. Plaintiff argues, under Code of Civil Procedure section 657 (6), that despite
10 “overwhelming and un rebutted evidence of Defendant’s liability – including Defendant’s own 911 call
11 admission (‘I hit pedestrian’) and diagnostic imaging of Plaintiff’s injuries – the jury returned a defense
12 verdict.” (Plaintiff’s Motion p. 3:20-22) All of Plaintiff’s evidence was rebutted by Defendant’s own
13 evidence; and no diagnostic imaging of any injuries were given to the jury.

14 3. Plaintiff argues, under Code of Civil Procedure section 657 (7), that due to this Court’s
15 failure to *sua sponte* provide the jury with CACI Nos. 700-711, and failure to provide limiting
16 instruction CACI No. 219 with regard to Officer David Fernandez’s testimony, materially affected the
17 jury’s deliberation. Most of the CACI Plaintiff’s cites are inapplicable to this matter including CACI No.
18 219, and even if some were necessary, there omission *would not have affected the outcome of this trial*.
19 Further, Plaintiff does not even attempt to show how it would have affected the outcome of this trial.

20 Plaintiff’s above outlined arguments are each discussed in turn.

21 **i. Irregularity in the Proceedings**

22 Plaintiff argues that the jury was inappropriately provided with external evidence which affected
23 their deliberations when they were provided with statutory definitions of “Vehicle” and “Highway.”

24 During deliberations, the jury posed three questions in total. Jury’s Question No. 2 inquired:
25 “Officer Fernandez testified that a scooter is a vehicle if it is being ridden (sic), but that one
26 pushing a scooter is considered to be a pedestrian. Is there a relevant legal definition of ‘vehicle’ that we
27 should consider in addressing this testimony?”

28 The parties convened before this Court to address the jury’s question No. 2. The Court and the

1 parties researched such definitions, and the Court proposed the following vehicle code section.

2 California Vehicle Code Section 670 provides: “A ‘Vehicle’ is a device by which any person or
3 property may be propelled, moved, or drawn upon a highway, excepting a device moved exclusively by
4 human power or used exclusively upon stationary rails or tracks.”

5 After each party had an opportunity to read the definition proposed by the Court, both sides
6 agreed to have the definition of vehicle introduced to the jury for its consideration. There was no
7 objection made by either party, including Plaintiff.

8 While the Court prepared the response to the jury’s question No. 2, Defendant’s counsel
9 requested that the definition for “highway” also be included as “highway” was a term used within the
10 definition of “Vehicle.”

11 California Vehicle Code Section 360 provides: “‘Highway’ is a way or place of whatever nature,
12 publicly maintained and open to the use of the public for purposes of vehicular travel. Highway includes
13 street.” The parties were given the opportunity to review the definition before the Court. Again, Plaintiff
14 did not object to its introduction. The definitions were then submitted to the jury.

15 Plaintiff makes an outright misstatement of the facts when he claims that he was not notified
16 about the definitions being given to the jury and that there was not a proceeding on the definitions in
17 open court. Plaintiff was present and was given the opportunity to make any objections, and did not do
18 so. Furthermore, Plaintiff fails to establish how, if at all, these simple definitions may have affected the
19 jury’s verdict.

20 **ii. Verdict Against the Law**

21 Only relevant evidence is admissible. (Evid. Code, § 350.) Evidence is relevant if it has “any
22 tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of
23 the action.” (Evid. Code, § 210.) The admission of irrelevant evidence can serve as a basis for a new
24 trial under Evidence Code § 657(1) if there is also a showing that the evidence had a prejudicial effect.
25 (*Hernandez v. County of Los Angeles* (2014) 226 Cal.App.4th 1599, 1616)

26 Prejudice from error is never presumed but must be affirmatively demonstrated by the appellant.
27 [Citations.]” *Brokopp v. Ford Motor Co.* (1977) 71 Cal.App.3d 841, 853–854. When reviewing a trial
28 court’s evidentiary rulings under an abuse of discretion standard, it is the moving party’s burden to

1 establish such an abuse, which we will find only if the trial court's order exceeds the bounds of reason.
2 (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 852 [172 Cal.Rptr.3d 732, 751]).

3 Here, Plaintiff's supposed "overwhelming and un rebutted" evidence of Defendant's liability
4 consists of Defendant's 911 call and diagnostic imaging of his injuries.

5 Defendant's 911 call was presented for the jury's consideration and Defendant provided
6 testimony thereto. The jury heard Defendant's 911 call and considered it at trial, the call was also
7 admitted into evidence. The jury gave the weight that it did and rendered its verdict within its purview as
8 a jury. The 911 call and Defendant's statements on its own without more is not a basis for a new trial.

9 With regard to Plaintiff's diagnostic imaging of his injuries, this evidence was not part of the
10 evidence.

11 For Plaintiff to argue that the jury's verdict is against law because of a piece of evidence they
12 never saw is nonsensical.

13 **iii. Error in Law Occurring at Trial**

14 Plaintiff argues that it was error when this Court failed to provide certain jury instructions to the
15 jury.

16 Plaintiff cites *Pool v. City of Oakland* (1986) 42 Cal.3d 1051 in support of his argument that the
17 Court was required to provide *sua sponte* certain jury instructions. The *Pool* court provided that
18 generally "'in a civil case, each of the parties must propose complete and comprehensive instructions in
19 accordance with his theory of the litigation; if the parties do not do so, the court has no duty to instruct
20 on its own motion.'" (*Downing v. Barrett Mobile Home Transport, Inc., supra*, 38 Cal.App.3d 519, 523,
21 113 Cal.Rptr. 277; accord, *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 950–951, 160 Cal.Rptr. 141, 603
22 P.2d 58; *Willden v. Washington Nat. Ins. Co., supra*, 18 Cal.3d 631, 636, 135 Cal.Rptr. 69, 557 P.2d
23 501; see also *Barrera v. De La Torre* (1957) 48 Cal.2d 166, 170, 308 P.2d 724; 7 Witkin, Cal. Procedure
24 (3d ed., 1985) Trial, § 242, p. 248 [failure to propose instructions at trial precludes the party's right to
25 raise the issue on appeal].) (*Id.* at 1067)

26 The *Pool* court did concede however that "*as to the measure of damages*, there is some authority
27 to the effect that a judge is required to give the proper instructions, *sua sponte*." [Emphasis added] (*Id.*)
28 Damages were never considered in this matter as it was a bifurcated trial first considering the issues of

1 liability and causation. Plaintiff's own authority shows that the Court had no affirmative duty to instruct
2 the jury of any specific law that the parties did not propose.

3 Further, CACI Nos. 700-711 are mostly inapplicable to this case. Specifically, There are no facts
4 to support, nor allegations made by either party, that: any party waived the right-of way (CACI 702);
5 the jury was not presented nor instructed on any statute with the language "immediate hazard" in it
6 (CACI 703); no facts or evidence to support that any party made a left turn during the incident (CACI
7 704); no facts or evidence that would necessitate the need for instructions on speed of a driver (CACI
8 706, 707 & 708); no facts or evidence of driving under the influence (CACI 709); and no facts or
9 evidence that there were any passengers in any vehicle (CACI 711). As such these are simply
10 inapplicable and thus unnecessary in this case. CACI 710 is also inapplicable as all evidence, including
11 Plaintiff's own operative complaint and responses to written discovery requests, demonstrated that
12 Plaintiff was not a pedestrian but rather was operating an electrical scooter at all relevant times.

13 In addition, of the remaining instructions, regarding CACI Nos. 700, and 701, the jury was
14 provided with CACI Nos. 400 (Negligence) and 401 (Basic Standard of care). These are essentially the
15 equivalents of CACI 700 and 701, and thus there is no prejudice to Plaintiff or his case from not having
16 received CACI 700 and 701.

17 CACI No. 705 which states that "A driver must use reasonable care when turning," would not
18 have provided the jury with any additional pertinent instruction that would have helped it in making an
19 informed decision based on the facts and evidence presented. Thus, it would not have affected their
20 verdict.

21 CACI 219 which provides instruction on how to consider expert witness testimony is also
22 inapplicable as there was no expert witness testimony in this case. Officer Fernandez was a lay witness
23 that testified as to his investigation of the scene and subsequent findings of Plaintiff's fault in causing
24 the incident.

25 Therefore, Plaintiff fails to demonstrate that the Court had a duty to provide any instructions *sua*
26 *sponte*. Further, even if the jury had been provided with the instructions, it would not have affected the
27 outcome of this matter. Lastly, Plaintiff raised no objection to the jury instructions that were provided to
28 the jury during the pre-trial hearing to review the instructions.

1 **III. CONCLUSION**

2 Based on the foregoing, Plaintiff's Motion for New Trial and Mistrial should be denied. Plaintiff
3 has failed to show that any of his cited grounds would have affected the jury's verdict.
4

5 Date: May 12, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

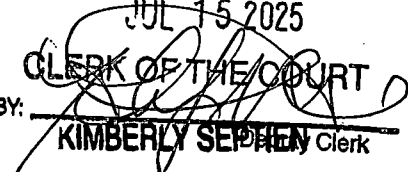
6
7 
8 _____
9 Robert K. Phillips
10 Priya Navaratnasingham
11 Alberto Reyna
12 Attorneys for Defendant
13 SUBHI ABDELHALIM
14
15
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28

EXHIBIT N

1 Robert K. Phillips [SBN 135088]
2 Priya D. Navaratnasingham [SBN 252686]
3 Alberto Reyna [SBN 347323]
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10 SUBHI ABDELHALIM

FILED
Superior Court of California
County of San Francisco

JUL 15 2025
CLERK OF THE COURT
BY:  Clerk
KIMBERLY S. [unclear]

11 **SUPERIOR COURT OF CALIFORNIA**

12 **IN AND FOR THE COUNTY OF SAN FRANCISCO - UNLIMITED JURISDICTION**

13 **FRANCISCUS DYLAN ROSARIO, an**
14 **individual**

15 **Plaintiff,**

16 **v.**

17 **SUBHI ABDELHALIM, an individual; and**
18 **DBA SONOMA LIQUOR; and DOES 1 – 20,**
19 **inclusive,**

20 **Defendant.**

Case No. CGC-21-594102

**[PROPOSED] ORDER ON PLAINTIFF'S
POST-TRIAL MOTIONS**

Hearing: May 28, 2025
Time: 10:00 a.m.
Dept: 504 (Via Zoom)

21
22 On May 28, 2025, at 10:00 a.m., in Department 504 of this Court, before the Honorable Judge
23 Garrett Wong, Plaintiff FRANCISCUS DYLAN ROSARIO'S ("Plaintiff") post-trial motions were
24 heard. Plaintiff and counsel for Defendant SUBHI ABDELHALIM ("Defendant") appeared. Having
25 read the motions and oppositions thereto, and having received and considered the parties' oral
26 arguments, **THE COURT ORDERS AS FOLLOWS:**

1
2 Plaintiff's Motion for Judgment Notwithstanding the Verdict is DENIED.

3 Plaintiff's Motion for Motion to Vacate is DENIED.

4 Plaintiff's Motion for Second Motion to Vacate for Fraud on the Court is DENIED.

5 Plaintiff's Motion for New Trial is DENIED.

6 Plaintiff's Motion for Mistrial is DENIED.

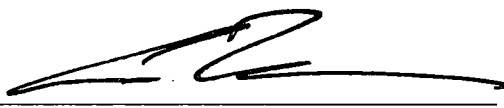
7 Plaintiff's Second Motion for Mistrial is DENIED.

8 Plaintiff's Ex Parte Request for Stay is DENIED.

9 Plaintiff's Request for Statement of Decision is DENIED.

10 IT IS ORDERED.

11
12 DATED: July 15, 2025


HON. JUDGE GARRETT L. WONG
Judge of the Superior Court

GARRETT L. WONG

EXHIBIT “A”

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

MINUTES

May 28, 2025

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Department: 504

Case Number: CGC-21-594102

Nature of Cause:

Post-Trial Motions

Present:

Judge: GARRETT L. WONG

Reporter: Not Reported

Clerk: KIMBERLY SEPTIEN

Bailiff: None Assigned

Appearing for Plaintiff (s):

FRANCISCUS DYLAN ROSARIO

7624 Melody Drive

Rohnert Park, CA 94928

T: 415-400-4879

E: soltrinox@gmail.com

Plaintiff in Pro Per

Appearing for Defendant(s):

PRIYA NAVARATNASINGHAM, Esq.

Phillips, Spallas & Angstadt LLP

560 Mission Street, Suite 1010

San Francisco, CA 94105

T: 415-278-9400

E: alreyna@psalaw.net

for Defendant,

SUBHI ABDELHALIM

The matter comes on calenda for Plaintiff's Post-Trial Motions. The Court, court staff, and counsel are present via Zoom. The matter is not reported.

10:04 AM The Court convenes. The Court outlines the motions on calendar.

10:06 AM Mr. Rosario makes arguments as to the motion for Judgment notwithstanding verdict.

10:12 AM Ms. Navaratnasingham responds.

10:13 AM **The Court DENIES Plaintiff's Motion for Judgment Notwithstanding the Verdict.**

Case Number: CGC-21-594102

Case Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL

10:13 AM Plaintiff makes arguments as to their Motion to Vacate.

10:19 AM Ms. Navaratnasingham responds stating jury instructions were agreed to.

10:20 AM Plaintiff replies.

10:24 AM **The Court DENIES the Motion to Vacate**

10:25 AM Plaintiff makes arguments as to their second Motion to Vacate RE: Fraud stating defendant was not present at trial, and the person testifying as defendant was their brother.

10:30 AM Ms. Navaratnasingham responds briefly.

10:30 AM **The Court DENIES Motion to Vacate RE: Fraud.**

10:31 AM The Court makes note of the Request for Judicial Notice. The Court finds the request unusual but takes judicial Notice. **The Motion to Vacate remains DENIED.**

10:32 AM Plaintiff makes arguments as to their Motion for New Trial and their Motion for Mistrial.

10:43 AM Ms. Navaratnasingham responds.

10:49 AM **The Court DENIES the Motion for New Trial. The Court also DENIES the motion for mistrial.**

10:50 AM Plaintiff makes arguments as to **second Motion for Mistrial.**

11:00 AM Ms. Navaratnasingham responds.

11:05 AM **The Court DENIES this motion.**

11:14 AM **Plaintiff's Ex Parte request for Stay is DENIED**

11:16 AM **Plaintiff's Request for Statement of Decision is DENIED.**

11:20 AM Court is adjourned.

EXHIBIT O

1 **Franciscus Dylan Rosario,**
2 7624 Melody Dr.
3 Rohnert Park, CA 94928
4 E: soltrinox@gmail.com
5 Plaintiff Counsel Pro Per
6

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

03/13/2025
Clerk of the Court
BY: ERNALYN BURA
Deputy Clerk

7 **SUPERIOR COURT OF CALIFORNIA**
8 **IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED**
9 **JURISDICTION**

10 **Franciscus Dylan Rosario,**

Case No.: CGC-21-594102

PLAINTIFF,

1 **Dept.: 206**
1

v.

1 **Judge: Hon. Rochelle C. East**
1

Subhi Abdelhalim;

Does No.1-No.50;

SonomaLiquor (et al.)

DEFENSE

1 **PLAINTIFF** **F.** **ROSARIO'S**
1

1 **PRAYER** **TO** **JUDGE** **HON.**
1

1 **ROCHELLE EAST**
1

Complaint Filed: July 27, 2021

11 **TO THE HONORABLE ROCHELLE EAST PRESIDING JUDGE OF THE**
12 **CALIFORNIA SUPERIOR COURT COUNTY OF SAN FRANCISCO:**

13 **Verbatim Biased Quotes of Judge Garret Wong in Department 504**

14 *"I've had to pass up multiple cases simply to address your problems. I don't appreci-*
15 *ate that."*

16 &

17 *"Your grievances about discovery abuses and so forth are not a concern for the*
18 *Court."*

1
2
3
4 **Case No.: CGC-21-59102**

5 **TO: Honorable Judge East, Presiding Judge, Department 206**

6 **FROM: F.D. Rosario, Plaintiff Pro Per**

7 **PLAINTIFF F. ROSARIO'S PRAYER TO JUDGE HON. ROCHELLE EAST**

8
9 Your Esteemed Honor,

10
11 My name is Franciscus Dylan Rosario, and I am the plaintiff in this matter. I am a sci-
12 entist, mathematician, architect, and intellectual lecturer by trade. A significant portion
13 of my career has been dedicated to artificial intelligence, where I have developed solu-
14 tions for trillion-dollar companies such as IBM and Samsung. I have worked closely
15 with neurologists and cognitive scientists to deepen our understanding of the funda-
16 mentals of the human mind. Despite my severe injuries, I remain hopeful that I will be
17 able to return to work, even if only part-time.

18
19 My passion lies in the exploration of human knowledge, and over the years, I have de-
20 voted significant time to studying human nature, psychology, and neuropathology—a
21 skill set not unlike that of a criminal justice professional or civil litigator. However,
22 my interest goes beyond the casual study of these subjects, delving deeply into how the
23 human mind functions.

24
25 People often tell me that I was blessed with a brilliant spark, and my capacity for cog-
26 nition and problem-solving has allowed me to take on leadership roles throughout my
27 career. I chose to leave the corporate world to pursue independent scientific work,
28 collaborating with Ph.D. scientists to build a San Francisco-based startup focused on

1 human cognitive computing systems.

2
3 I do not intend to give a long monologue about my curriculum vitae, but rather to provide context for the psychological analysis that you may observe in my writing as a
4 pro per litigant. I fully recognize that I am not an attorney, but that is not due to a
5 lack of ability—rather, it is simply not my calling. My interests lie in mathematics and
6 engineering, though if I were to enter the legal field, I could perhaps tolerate working
7 in intellectual property law. However, law is not my passion.
8

9
10 It may seem unorthodox to receive a letter of this nature from a pro per litigant presenting a case before your court. This is not a letter of choice but one of necessity, as I
11 find myself in the unfortunate position of having to bring these matters before you. It
12 is not something I do lightly or with ease, but rather out of a sad reality that I must now
13 confront.
14

15
16 I write to you to ensure that the facts of my case are clearly understood and that my
17 rights to seek justice is served in light of the severe injuries and lasting harm I have
18 endured due to the reckless and negligent actions of the defendant, Subhi Abdelhalim.
19 and now are being exacerbated, due to procedural abuse and weaponization of the court
20 process by the defendants council PSA Law.
21

22 On February 4, 2021, after leaving my place of work, I rented a scooter only to discover that its battery was dead. What should have been a simple 10- to 12-minute ride
23 quickly turned into nearly 20 minutes of manually kicking the scooter along, forcing
24 me to navigate the streets on foot.
25

26
27 By the time I arrived at the intersection of 5th Street and Tehama Street in San Francisco, I was already fatigued from the prolonged journey. While I was crossing the
28

1 street, I was suddenly struck from behind by defendant Abdelhalim. At the time, he
2 was driving his 6,500-pound commercial cargo van. Instead of following proper traffic
3 protocols, he had been using a bike lane and failed to yield as he approached the inter-
4 section. In an apparent attempt to return to his business, Sonoma Liquor, located at the
5 corner of 6th and Jesse Streets, he made a right-hand turn. His vehicle, traveling at a
6 speed between 12 and 20 miles per hour, collided with me with devastating force.

7
8 The impact of the collision nearly killed me and resulted in catastrophic injuries. I
9 sustained multiple fractured ribs, a collapsed lung that required emergency surgery, se-
10 vere spinal trauma, and a traumatic brain injury (TBI). These injuries have left me with
11 chronic pain, mobility impairments, and cognitive deficits, causing permanent disabil-
12 ities that have dramatically altered every aspect of my life.

13
14 Rather than rendering aid, Mr. Abdelhalim initially fled the scene, moving his vehicle
15 over 100 feet away before stopping. After the fact, he misrepresented the events to law
16 enforcement, claiming that I was unlawfully riding a scooter in traffic, despite eyewit-
17 ness testimony, police bodycam footage, and forensic evidence proving otherwise. His
18 actions not only inflicted permanent and life-altering damage upon me, but his subse-
19 quent deception and denial of responsibility have further exacerbated my suffering.

20
21 Because of this defendant's negligence and dishonesty, I have lost my ability to work,
22 suffered immense financial hardship, and face a lifetime of medical treatment and pain.
23 I am not seeking anything beyond fair and just compensation for the suffering I have
24 endured, the wages I have lost, and the future care I will require. Mr. Abdelhalim's
25 actions were reckless, his failure to stop and assist was inexcusable, and his attempt to
26 avoid liability is deeply unjust. The defendant has turned to AAA insurance to protect
27 him from liability, despite certified official 911 records where the defendant confessed
28 to striking me in the road, he did obstruct justice and flee the scene before returning

1 to offer me a five dollar bill as a bribe. Upon the arrival of the first responders the
2 defendant Abdul Halim, change to story, ah that he was just driving by and saw me lay-
3 ing on the ground screaming. When the police arrived at the scene the interviewed the
4 only eyewitness who informed officer Thompson formerly of the San Francisco police
5 department that the driver indeed did strike me in the crosswalk.

6
7 The defense has actively attempted to suppress not only the **911 records** but also the
8 **official police records**, falsely alleging in their response to my initial complaint that I
9 was intoxicated at the time of the collision, a claim for which they have no evidence
10 whatsoever. The defense and their counsel have **fabricated claims** that I have been
11 **charged with or convicted of a DUI in California**, which is **entirely untrue and un-**
12 **supported by any evidence**, I would know if I had ever been charged or arrested or
13 convicted of a DUI in California and I can assure you that I have not. Such allegations
14 by the defense or grounds for defamation and libel, I still am retaining the right to seek
15 out damages against them as they have attacked my credibility, and have laid false accu-
16 sations and claims against me in the public forum. Furthermore, the defense has relied
17 on **boilerplate affirmative defenses** while engaging in a prolonged campaign of **de-**
18 **lays and exhaustive depositions**, targeting not just myself but also my **wife, business**
19 **partners, doctors, and employees**. Upon finding no evidence to support their false
20 allegations, they have since moved to block **every piece of evidence I have gathered**
21 in support of my case.

22
23 Unfortunately, my **former attorneys at the Dolan Law Firm** withheld the **defen-**
24 **dant's confession** from me for nearly **four years**. As we approached trial last year,
25 they attempted to **coerce me into settling for an amount far below my actual dam-**
26 **ages**. Immediately after I **removed the Dolan Law Firm**, the defendant's counsel,
27 **PSA Law**, suddenly offered the **full amount of their alleged policy limit**. How-
28 ever, due to an **estoppel issue**, **I had already demanded the full policy limit from**

1 **both the defense and AAA in 2022. Now, nearly three years after my initial policy**
2 **limit demand, AAA has resurfaced with the same offer.** These tactics—deliberate de-
3 lays, misrepresentations, and withholding of crucial evidence—are **well-documented**
4 **bad-faith practices** by billion-dollar insurance companies like AAA. They left me fi-
5 **nancially stranded** and are now **attempting to deny liability altogether**, despite the
6 overwhelming evidence, including **eyewitness testimony and the defendant's own**
7 **confession recorded in official transcripts.**

8
9 **The fundamental facts of this case, combined with the defendant's outright decep-**
10 **tion and AAA's reprehensible behavior,** have **devastated my life.** I have lost my
11 **business, my health, and my trust in the institutions meant to protect victims of**
12 **serious accidents.** One would expect that when someone is nearly **killed in a cross-**
13 **walk,** the responsible parties and their insurers would act in good faith. Instead, I have
14 been left to **fight for my survival.** The defendant **lied from the moment he spoke to**
15 **first responders, denying fault,** and his **insurance company followed suit, denying**
16 **liability,** leaving me with **no means of supporting myself** after a life-threatening in-
17 jury.

18
19 **What I do know is that I will seek justice. Whether I find it in your courthouse or**
20 **not is up to you, Your Honor.**

21 I was raised, by my mother Pamela, to believe that the foundation of our judicial sys-
22 tem relies on a steadfast commitment to fairness, transparency, and impartiality. Yet,
23 in my case, that I'm seeking to adjudicate in your courthouse, these guiding principles
24 have been compromised. Not only did the defendant's conduct cause me grave harm in
25 the original collision, but I now find myself facing a troubling misuse of sealed filings,
26 ex parte communications, and courtroom bias that compound the devastation I have
27 already endured. Instead of receiving a fair chance to present my evidence and seek
28 justice, I must contend with tactics designed to deny, delay, and undermine my case,

1 tactics that are seemingly enabled by a judge who appears to align with a multi-billion-
2 dollar insurance entity intent on crushing my claims.

3
4 In an act of desperation days before the trial started, the defense initiated a frivolous
5 and unfounded counter-lawsuit built on baseless, sealed accusations—deliberately con-
6 cealed from me through the court’s digital system. These unchallenged allegations have
7 skewed the court’s perspective, enabling the defense to construct a narrative that por-
8 trays me as a harasser and a threat, all without any substantiating evidence or adherence
9 to due process.

10
11 Moreover, the use of ex parte materials—of which I was neither informed nor afforded
12 an opportunity to respond—has placed me at a perpetual disadvantage, falsely charac-
13 terizing me as the aggressor. In truth, I have remained steadfast in defending my rights
14 as a victim of the defendant’s criminal negligence. The defendant struck me from be-
15 hind while I was lawfully crossing a crosswalk and then fled the scene, leaving me
16 to die alone on the ground (**I sustained multiple punctures to my lung of which I**
17 **would have died from , broken spine, shattered ribs, and Brain damage as a result**
18 **of his crimes**), as if my life were insignificant. This callous disregard for human life
19 has facilitated his ongoing operations at Sonoma Liquor, located at the corner of 5th
20 and Jesse—a site near which numerous overdoses and fatalities have occurred, as doc-
21 umented in public records.

22
23 Furthermore, after being cited by the City of San Francisco for selling fentanyl pipes
24 in a business frequented by minors, Mr. Abdelhalim and his family have long engaged
25 in illicit activities and now resort to fabricating criminal allegations as retaliation for
26 my pursuit of felony hit-and-run charges. **His recent claims of threats and harass-**
27 **ment emerged only after I insisted on accountability for his criminal hit-and-run**
28 **offense against me.** With the financial backing of AAA (CSAA Insurance), the de-

1 defendant has secured premier legal representation, effectively impeding the course of
2 justice. Official 911 emergency records contain multiple admissions by the defendant,
3 and eyewitness testimony confirms that he forcefully ran me over as I was crossing near
4 5th and Tehama, only a block from the Abdelhalim Brothers' Liquor Store.

5
6 Beyond the legal injustice, this ordeal exacts an immense personal toll. I have already
7 lost considerable financial resources, not only because of injuries and medical bills
8 related to the initial collision but also due to the ongoing legal battles, procedural de-
9 lays, and forced depositions. My capacity to earn a living has been drastically reduced,
10 leaving both my family and my business associates in a precarious position. The psy-
11 chological and emotional strain is even more staggering. Fear, uncertainty, and a sense
12 of powerlessness now permeate my everyday life. While I attempt to hold the defendant
13 accountable for the original incident, I simultaneously struggle against an entrenched
14 bias I perceive within the court itself, an overwhelming and relentless challenge that
15 feels designed to wear me down until I have neither the resources nor the will to con-
16 tinue.

17
18 **This cumulative effect of biased rulings, concealed evidence, and seemingly pref-**
19 **erential treatment for a billion-dollar insurance company has created an environ-**
20 **ment where justice feels beyond reach.** Every day under these compromised condi-
21 tions deepens my despair, not only as an individual plaintiff, but also as a grandfather, a
22 business owner, and a spiritual and compassionate human being. My relatives and col-
23 leagues witness my distress, sharing in the suffocating pressure these legal proceedings
24 have imposed. The fact that I must now plead for a basic level of impartiality, and beg
25 for the fair treatment owed to every litigant, underscores how profoundly the system
26 has failed me in Judge Garret Wong's department.

27
28 Much of Judge Wong's statements, throughout the course of the proceedings in this case

1 have illuminated on his inability to proceed in this case with impartiality. his statements
2 and verbatim quotes from his dialogue with myself and my legal team, raises serious
3 doubts to his professional capacity, and qualification to preside in your honors court-
4 rooms. While I cannot presume to determine how you will address his conduct, if I
5 were in your position, I would harbor deep concerns regarding his capacity to remain
6 a fair adjudicator in public civil hearings. Out of respect for this court, I would prefer
7 not to seek higher appellate intervention, but if I cannot obtain a fair adjudication here,
8 I am prepared to advance the matter to the California Supreme Court if necessary.

9
10 The defense has prolonged this case for nearly five years, apparently aiming to run
11 out the statute of limitations through a calculated “deny, delay, and depose” strategy.
12 Although I am not a formally trained attorney, I am far from unaware of the tactics
13 employed by large organizations. I have heard from multiple sources that PSA Law has
14 a reputation for these hardball measures, and my experiences only confirm that impres-
15 sion. Their representation of well-funded clients like Walmart enables them to deploy a
16 formidable arsenal of strategies designed to deny injured parties the relief they deserve.
17 To me, these tactics are parasitic upon the legal system and undermine the fundamental
18 ideals of genuine legal representation. Whether Judge Wong is complicit or an active
19 member of a conspiracy to deny me my due process, what I do know is the primary
20 culprit of these actions has originated from PSA Law, who has been known to use such
21 tactics against other litigants.

22
23 It is unfortunate that Judge Wong appears to have been compromised by PSA Law’s
24 methods. My motion to disqualify Judge Wong is not a option that I ever thought
25 we would need to use, least of all in a public forum, but his behavior and the de-
26 fense’s manipulations have forced this decision. I have done my utmost to furnish the
27 court with all relevant facts and certified transcripts, demonstrating how Judge Wong
28 has failed to fulfill his duty as an impartial adjudicator and how PSA Law has exploited

1 the court's infrastructure to distort the legal process.

2
3 In these proceedings, it is apparent that Judge Wong's devotion to procedural technical-
4 ities has eclipsed his commitment to due process. His meticulous focus on formality,
5 while important in its own right, has overshadowed the essential purpose of a fair tri-
6 bunal: to seek truth and uphold justice. By rigidly prioritizing procedural minutiae, he
7 has, in effect, lost sight of the broader spirit that underlies the court's role in ensuring
8 impartiality, equity, and the proper administration of the law.

9
10 I believe after closer examination of Judge Wong's courtroom behavior that his
11 indiscretions may be rooted out of his blind obsession with procedural minutiae,
12 a character flaw that has compromised his duty to the tribunal and apparently
13 has superseded his oath to ensure fair and impartial judgment as litigants embark
14 upon their own genuine pursuits of truth, it may very well be that his track record
15 historically as a judge shows his tendency towards procedural exactitude, unfortu-
16 nately this one sided narrow thought process effectively renders him disturbingly
17 susceptible to the manipulations of defense counsel manipulation such as what we
18 have seen at the hands of PSA Law. Garret Wong's gullibility in the face of PSA
19 Law's illegal ex-parte tactics has poisoned the very essence of these proceedings in De-
20 partment 504, tainting the administration of justice in one of your Honors courtrooms
21 and undermining the fundamental principles of fairness and due process that our ju-
22 diciary is sworn to uphold. I am sure that this type of behavior is not something that
23 you would condone in your courthouse. from what I understand you happen to be a
24 fair and honest arbiter of the law. and I still hold the upmost respect for the San Fran-
25 cisco Superior Court, it is unfortunate that PSA Law and their agents namely Phillips,
26 Reyna, Navarat, have conscripted your prestigious tribunal as a theater for their games,
27 culminating in blatant disrespect for the law and for the spirit of the trial process, this
28 has been done deliberately as a means to avoid accountability on behalf of their client

1 Abdelhalim.

2
3 Your Honor, the essence of due process lies in open and balanced proceedings, free
4 from concealed or unfair influences. I graciously implore you to please review the
5 following records thoroughly, the sealed submissions, the court transcripts, and the
6 broader context of how these ex parte allegations were introduced and handled. My
7 hope is that you will see how these actions have inflicted severe prejudice upon me in
8 every area of my life: my finances, my mental health, and my family's well-being. I
9 beseech you to take decisive steps to rectify this injustice, whether through an inquiry
10 into these improper filings, a re-examination of the evidence, or, if warranted, measures
11 to ensure that the presiding judge's partiality does not thwart a fair resolution.

12
13 **I have placed my trust in the integrity of the court, believing that it would protect**
14 **the innocent and hold the liable party accountable.** I humbly request your interven-
15 tion to restore integrity, transparency, and fairness in a case that has deviated far too
16 long from the core tenets of our justice system. The law should shield litigants from
17 fraudulent, hidden unfounded fabricated assaults on their character, as a means to dis-
18 tract the fair adjudication of honest and good people seeking justice in your courtrooms,
19 and from a judicial process that favors corporate interests over truth. By confronting
20 these improprieties, Your Honor can reaffirm the promise of justice for all, reinforce the
21 public's faith in our courts, and offer a lifeline to a plaintiff who can no longer shoulder
22 this burden alone.

23
24 Your Honor, I sincerely appreciate the time, care, and attention you have devoted to
25 this matter. The very principles of justice and due process undergirding our Constitu-
26 tion hold special meaning for my family. Most of my family have proudly served in
27 the military, including my grandfather Lt. Commander Phillip Miller (Mother's Father)
28 as a career officer in the U.S.Navy, my own father a NCO Marine, sacrificed his life,

1 through his service in Vietnam, to safeguard the freedoms and Constitutional rights
2 that we, as Americans, cherish today. I am deeply grateful that this Court, guided by
3 those same principles, ethics, and values, is willing to hear my concerns and protect the
4 rights for which my family has given so much. Thank you for your unwavering ded-
5 ication to fairness and impartiality in upholding the highest ideals of our justice system.

6
7 Respectfully,

8
9 F. Dylan Rosario

10 650.488.7510

11 soltrinox@gmail.com

12 Plaintiff In This Case

13 Pro Per Litigant

**SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED
JURISDICTION**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

Does No.1-No.50;

SonomaLiquor (et al.)

DEFENSE

Case No.: CGC-21-594102

Dept.: 206

Judge: Hon. Rochelle C. East

**MEMORANDUM OF PLAINTIFF
SUPPORTING DISQUALIFI-
CATION OF GARRET WONG
AND SANCTIONS AGAINST
DEFENSE COUNSEL PSA LAW
PRIYA NAVARATNASINGHAM
, ALBERT REYNA, RICHARD
PHILLIPS AND ALL PARTIES
OPERATING DEFENSE OF
SUBHI ABDELHALIM ET.AL.**

Complaint Filed: July 27, 2021

Trial Date: March 17th, 2025

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I. Introduction: Judicial Bias, Ex-Parte Allegations, and Due Process Violations

This case illustrates a profound breakdown of judicial impartiality and due process. The defense employed secret, ex-parte allegations and sealed filings, which Judge Wong entertained without proper scrutiny or disclosure to the plaintiff. As a result, the plaintiff never had an opportunity to review or refute these undisclosed claims. Not only did this undermine the plaintiff's constitutional right to due process, but it also revealed apparent judicial bias favoring the defense. Such conduct violates Canon 3B(7) of the California Code of Judicial Ethics, prohibiting judges from considering ex parte communications that may compromise impartiality.

The defense strategically introduced unverified claims of harassment and threats, not to address legitimate legal concerns, but rather to manipulate perceptions and distract from their client's liability. Although these accusations lacked evidentiary support, they were repeatedly referenced in open court and treated by the judge as if credible. Rather than dismissing irrelevant allegations regarding a vehicle-pedestrian collision, the court allowed them to overshadow the central legal issue. This approach contradicts CCP § 128(a)(4), which empowers courts to control proceedings and prevent procedural abuses, and raises concerns under Rule 3.3 of the California Rules of Professional Conduct, which forbids attorneys from presenting knowingly false or misleading information. How Judge Wong became aware of the allegations in the current proceedings is unknown to the myself and my team, but none the less , he has used knowledge of the allegations against me , he has discussed the allegations in open court, and has already made a decision that the Defense secret allegations hold water. The means by which the defense counsel PSA law made these allegations available to Garret Wong is still to be determined, but I can say at the least, the use and presentation of these secret ex-parte allegations and claims has already prejudiced this trial proceedings in a manner that I am unsure we can find fair adjudication in the San Francisco Superior Court, which is a disturbing notion in itself. Sadly we may have to seek a mistrial as

1 a result. This would compel us to either have the insurance that a new and unbiased
2 California Superior Court Judge be assigned or we will have to seek justice in a higher
3 court as a result of the violations of my Constitutional Rights to a fair and impartial trial.

4
5 Moreover, the judge's inattention to the sealed, ex-parte nature of the defense's filings
6 disregarded the California Rules of Court, Rule 2.551(b)(1), requiring justification for
7 sealing court records. No such justification appears to have been sought or provided,
8 effectively enabling the defense to paint the plaintiff in a negative light while denying
9 him any chance to confront the accusations. This reliance on undisclosed allegations,
10 absent an evidentiary foundation, violates CCP § 128.7(b)(2), which demands factual
11 contentions have, or be likely to have, evidentiary support.

12
13 These coordinated tactics, ex parte influence, judicial partiality, and the suppression
14 of the plaintiff's ability to respond, violate CCP § 170.1(a)(6)(A)(iii), which mandates
15 judicial disqualification if a reasonable observer might doubt the judge's impartiality.
16 They further warrant sanctions against the defense under CCP § 128.7, along with a
17 thorough review of the court's conduct to prevent further abuses of power.

18 19 **II. Denial of Plaintiff's Right to Defend Against Allegations**

20 The plaintiff was never notified of or granted access to the sealed materials underpin-
21 ning the defense's claims. As transcripts show, the court accepted statements about
22 alleged "threats" and "harassment" that the plaintiff neither knew about nor could chal-
23 lenge, creating a narrative of guilt without any adversarial scrutiny. These undisclosed
24 materials remained central to court discussions, leaving the plaintiff unable to verify,
25 rebut, or contextualize the accusations.

26
27 This resulted in the judge relying on subjective interpretations of the plaintiff's emails

1 and other unverified assertions, culminating in threats of contempt based on an untested
2 story. Even more concerning, contempt proceedings were impliedly left at the defense's
3 discretion, thereby relinquishing judicial neutrality. Such actions undermine fundamen-
4 tal due process principles and contradict the obligation of courts to maintain an even
5 playing field. They also represent a serious ethical breach by both the judge and de-
6 fense counsel, experienced legal professionals aware of their duty to ensure fairness.

7
8 The severe impact of these actions is heightened by the plaintiff's pro per status, which
9 already places him at a procedural disadvantage. By exploiting sealed submissions and
10 undisclosed allegations, the defense effectively controlled the case narrative, depriving
11 the plaintiff of a chance to respond and eroding public confidence in the judiciary.

13 **III. Judicial Bias and Dismissal of Due Process**

14 A troubling pattern emerged throughout these proceedings. From the start, the plain-
15 tiff, a self-represented litigant with documented medical limitations, encountered im-
16 patience and frustration from the bench. Rather than clarifying rules or addressing
17 concerns about discovery fairness, the judge repeatedly dismissed the plaintiff's objec-
18 tions, creating an atmosphere of confusion. Faced with unverified allegations, the judge
19 issued warnings of sanctions and contempt without verifying the authenticity or intent
20 behind the plaintiff's communications.

21
22 When the plaintiff raised his medical needs, the judge brushed them aside as mere pro-
23 cedural shortcomings, failing to consider potential accommodations under the Ameri-
24 cans with Disabilities Act (ADA). Dismissing legitimate questions about privilege or
25 discovery fairness with comments like "You misunderstood, clearly," further marginal-
26 ized the plaintiff's voice in court. These repeated actions fostered an appearance of bias
27 and a sense that the plaintiff's rights were secondary to expedience.

1
2 In sum, judicial impatience and one-sided credibility determinations deprived the plain-
3 tiff of a fair hearing. The defense's allegations, never formally introduced or subjected
4 to proof, were nonetheless given weight. Meanwhile, the plaintiff's opposing argu-
5 ments or clarifications were summarily rejected. This disparity signals a breakdown in
6 the fundamental principles of impartial adjudication and underscores the urgent need
7 for corrective measures, including possible disqualification of the judge and sanctions
8 against defense counsel.
9

10 [A] THE PROOF : EX-PARTE ALLEGATIONS AGAINST PLAINTIFF

11 Statements by the Defense and Judge Regarding Allegations of Harassment and Threats

12 1. Defense Counsel Navaratnasingham on Alleged Threats Against Defendant 13 and Counsel

14 January 28th, 2025

15 PAGE/LINE: Page 15, Lines 10-25

- 16 • *"Your Honor, my defendant, has been extremely stressed about the case, and*
17 *it's been ongoing for four years. Both my client and our office have received*
18 *continued threats almost weekly from the plaintiff, extremely threatening. We*
19 *actually have our building security on alert for him."*
- 20 • *"So we oppose the continuance because we want this over. We need Mr.*
21 *Rosario's conduct to end, and that is explained in my Motion in Limine Num-*
22 *ber 8."*

23 2. Defense Counsel Navaratnasingham on Additional Alleged Threats

24 DATE: January 28th, 2025

25 PAGE/LINE: Page 16, Lines 1-12

- 26 • *"We will be supplementing with another very threatening e-mail that we re-*

1 *ceived on Saturday.”*

- 2 • *”I do intend to move for costs for preparation and fees for my client and our*
- 3 *office for having to deal with this, and now a potential continuance.”*
- 4 • *”Would that be a motion, Your Honor, that I should file?”*
- 5 • *Judge Wong responds: ”Yes.”*

6 **3. Judge Wong’s Discussion on Remedies for Threats**

7 DATE: January 28th, 2025:

8 PAGE/LINE: Page 16, Lines 17-25

- 9 • *”I don’t know if there’s any other alternatives with regard to threats, but if*
- 10 *your client feels that it’s important enough, there are other remedies that he*
- 11 *may seek to enjoin Mr. Rosario from his threats.”*
- 12 • *”We have those daily kinds of matters in this courthouse. So, again, I can’t*
- 13 *practice law and tell you what they are, but there are restraining orders that*
- 14 *can be issued against him.”*

15 **4. Judge Wong’s Acknowledgment of Threats to Defendant Abdelhalim**

16 DATE: February 3rd, 2025:

17 PAGE/LINE: Page 8, Lines 14-19

- 18 • *”While my clerk is copying the document, I understand that there have been*
- 19 *threats to Mr. Abdelhalim, but I’m not aware of when they took place. I’m*
- 20 *aware that there have been, but I’m not aware whether there have been cur-*
- 21 *rently threats made to Mr. Abdelhalim, defendant in this case.”*

22 **5. Defense Counsel Navaratnasingham References ‘Masked Men’ Incident**

23 DATE: February 3rd, 2025

24 PAGE/LINE: Page 8, Lines 21

- 25 • *Navaratnasingham : ”Do you know around – the masked men, when that*
- 26 *occurred?”*
- 27 • *Mr. Reyna (co-counsel) responds: ”I believe it was January 7th, your Honor.”*
- 28 • *Judge Wong acknowledges these allegations, notably failing to inform the de-*

1 fense that such discussions are irrelevant to a hearing focused on the vehicle-
2 pedestrian collision. Moreover, he does not advise the defense that raising
3 these issues outside the plaintiff's presence violates the plaintiff's right to due
4 process, thereby permitting bias and prejudice from secret allegations to con-
5 tinue in open court.

6 **6. Defense Counsel Navaratnasingham on Emails from Plaintiff and Coincidence**
7 **of Threats**

8 DATE: February 3rd, 2025

9 PAGE/LINE: Page 8, Lines 24- Page 9, Line 12

- 10 • **Navaratnasingham***: "Again, we don't know that that's related to this case.
11 It's just given the emails that we've received from Mr. Rosario, it just seems
12 very coincidental."
- 13 • **Navaratnasingham:** *""The emails that we received up until the Saturday be-
14 fore trial started, which would have been January 25th."
- 15 • **Navaratnasingham:** *""And after we submitted those emails to the Court via
16 a motion in limine, for reasons – because there are comments in those emails
17 that we think if a jury hears will be prejudicial, since we've submitted those
18 emails to the court, we have not received any emails from Mr. Rosario."

19 **7. Judge Wong's Inquiry About the Timing of Alleged Threats**

20 DATE: February 3rd, 2025:

21 PAGE/LINE: Page 9, Lines 13 - Page 10, Line 2

- 22 • **Wong:** *"Okay. Well, the trial was set on the 21st or the first appearance was*
23 *the 21st of January?"*
- 24 • **Mr. Reyna responds:** "27th, your Honor."
- 25 • **Judge Wong acknowledges:** **"Today is February 3rd. My mistake. Okay.**
26 **So it's the 27th of January, and you're saying there were emails right up**
27 **to the 27th?"**
- 28 • **Defense responds:** "The 25th, the Saturday before trial started."

1 • Judge Wong: **"Okay. And there hasn't been anything since then?"**

2 • Defense confirms: "Correct, because we submitted them as part of the exhibits
3 to this court."

4 • Judge Wong acknowledges without requiring further evidence: **"Okay."**

5 **8. Defense and Judge Discuss Whether the Alleged Threats are Speculative**

6 **February 3rd, 2025: Page 10, Line 10-16, then Page 10, Line 6-9**

7 • Mr. Keegan (defense counsel) argues: "Your Honor, this seems highly specu-
8 lative. Email threat versus masked men coming into the defendant's – I don't
9 see a connection here."

10 • Judge Wong: **"Well, they've said that this is highly coincidental, but I'm**
11 **not drawing any connection between the two yet short of further evidence,**
12 **and I think Mr. Reyna or Ms. Navaratnasingham would agree."**

13 **[B] EVIDENCE BIAS BY GARRET WONG AS RESULT OF OF EX-PARTE**

14 **INFLUENCE BY DEFENSE**

15 **1. Adoption of the Defense's Unverified Narrative**

16 Evidence: Judge Wong's phrasing of the incident aligns with the defense's unchal-
17 lenged version rather than the plaintiff's account.

18 Wong Quote:

19 **"Where the defendant in this case is alleged to have struck Mr. Rosario when**
20 **he was using a scooter of some sort."**

21 ***Date: February 3, 2025***

22 ***Page & Line Number: Page 10, Lines 17-19***

23 This language suggests that rather than relying on the plaintiff's testimony (which
24 stated he was walking a malfunctioning scooter), Judge Wong adopted a defense
25 narrative that casts the plaintiff as actively operating a vehicle, without requiring
26 any evidentiary proof.

1
2 **2. Dismissive and Hostile Response to Plaintiff's Counsel**

3 Evidence: In addressing counterarguments from a plaintiff's representative, Judge
4 Wong's remark is both derogatory and dismissive, which the plaintiff contends
5 reflects bias and a refusal to consider their perspective.

6 Wong Quote:

7 *"Well, Mr. Keegan, you're not a lawyer, and if you were a lawyer, you'd be*
8 *laughed out of the courthouse because that's not pertinent to the hit-and-run.*
9 *That is a personal injury suit."*

10 *Date: February 3, 2025*

11 *Page & Line Number: Page 10, Lines 10-13*

12 This statement is offered as direct evidence of the judge's demeaning attitude and
13 unwillingness to engage with arguments that might challenge the defense's asser-
14 tions.

15
16 **3. Uncritical Acceptance of Allegations Presented on a Sealed Basis**

17 Evidence: During the proceedings, Judge Wong discusses allegations originating
18 from sealed materials, which the plaintiff was never allowed to review, and ac-
19 cepts them without demanding supporting evidence or affording the plaintiff an
20 opportunity to contest.

21 Wong Quote:

22 *"While my clerk is copying the document, I understand that there have been*
23 *threats to Mr. Abdelhalim, but I'm not aware of when they took place. I'm*
24 *aware that there have been, but I'm not aware whether there have been currently*
25 *threats made to Mr. Abdelhalim, defendant in this case."*

26 *Date: February 3, 2025*

27 *Page & Line Number: Page 10, Lines 14-19*

28 This remark demonstrates that the judge not only acknowledged these unchal-

1 lenged, undisclosed allegations but also treated them as if they were established
2 facts without subjecting them to the normal adversarial process.

3 4 **4. Flat Rejection of Counterevidence or Alternative Explanations**

5 Evidence: When the plaintiff's side attempted to introduce contextual evidence,
6 Judge Wong curtly dismissed the alternative explanation without review.

7 Wong Quote:

8 ***"I won't even consider that."***

9 Date: February 3, 2025

10 Page - Line Number: Page 11, Line 6

11 Although brief, this refusal to even consider contrary evidence underscores the
12 claim that Judge Wong precluded a fair and open contest of the issues, an action
13 that the plaintiff argues violates the due process right to be heard.

14 15 **5. Inadequate Scrutiny of Sealed Allegations**

16 Evidence: During discussion of the timeline for the sealed evidence, Judge Wong
17 accepts details from the defense without demanding independent disclosure or ver-
18 ification, despite the plaintiff's exclusion from these communications.

19 Wong Quote:

20 **"Okay. And there hasn't been anything since then?"**

21 Date: February 3, 2025

22 Page - Line Number: Page 10, Line 24

23 This brief acknowledgment shows that the judge uncritically accepted the defense's
24 account of sealed submissions, which the plaintiff contends is indicative of ex parte
25 influence.

26 27 **6. Reliance on Sealed Communications Without Adversarial Challenge**

28 Evidence: Judge Wong's remarks while referring to undisclosed threats illustrate

1 that he incorporated ex parte submissions into the record without requiring them
2 to be presented openly for cross-examination.

3 Wong Quote:

4 ***”While my clerk is copying the document, I understand that there have been***
5 ***threats to Mr. Abdelhalim”***

6 *Date: February 3, 2025*

7 *Page & Line Number: Page 10, Lines 14-15*

8 By discussing these sealed allegations as if they were established facts, the judge is
9 seen as relying on ex parte communication rather than adhering to the adversarial
10 process.

11 12 **7. Failure to Treat Ex Parte Evidence as Unverified**

13 Evidence: In addressing alternatives regarding the alleged threats, Judge Wong
14 did not treat the sealed, undisclosed evidence with the necessary skepticism, even
15 though it had not been subjected to open scrutiny.

16 Wong Quote:

17 ***”I don’t know if there’s any other alternatives with regard to threats, but if***
18 ***your client feels that it’s important enough, there are other remedies that he***
19 ***may seek to enjoin Mr. Rosario from his threats.”***

20 *Date: February 3, 2025*

21 *Page & Line Number: Page 11, Lines 22-25*

22 This statement, made in the context of sealed and unchallenged allegations, sup-
23 ports the claim that the judge unreasonably accepted ex parte communications as
24 if they were undisputed facts.

25 26 27 **8. Repeated References to Unverified Allegations in Open Court** *Evidence:* Judge

28 Wong repeatedly acknowledged and entertained defense counsel’s claims regard-

ing harassment and threats, without requiring formal evidentiary support or affording the plaintiff an opportunity to review or contest these claims.

Wong Quote:

"I understand that there have been threats to Mr. Abdelhalim."

9. Judicial Approval of Defense Counsel's Requests Without Requiring Proper

Motion Practice *Evidence:* The judge allowed the defense to advance their claims based on sealed materials without requiring them to be introduced through proper procedural channels.

Quote:

Defense Counsel: "Would that be a motion, Your Honor, that I should file?"

Judge Wong: "Yes."

Date: January 28, 2025

Page - Line Numbers: Page 16, Line 6

This exchange illustrates the judge's willingness to let defense counsel dictate procedural actions related to unverified allegations, rather than ensuring that they followed standard motion requirements.

10. Implicit Endorsement of the Defense's Narrative Without Subjecting It to

Scrutiny *Evidence:* Judge Wong actively engaged in discussions about the alleged threats as if they were accepted matters of fact, even though they were never formally presented in court or subjected to adversarial testing.

Wong Quote:

"We have those daily kinds of matters in this courthouse. So, again, I can't practice law and tell you what they are, but there are restraining orders that can be

1 *issued against him.”*

2 *Date: February 3, 2025*

3 *Page & Line Number: Page 11, Lines 22-25*

4 This statement suggests the judge assumed the allegations to be credible rather
5 than questioning their validity, a strong indication of bias.

6
7
8 **Failure to Demand Justification for Sealing Records in Violation of Califor-**
9 **nia Rules of Court**

10 *Evidence:* The judge permitted the defense to file ex parte allegations under seal
11 without requiring a justification, as mandated by California Rules of Court, Rule
12 2.551(b)(1).

13 *Quote:*

14 No specific quote available, but the failure to require justification for sealing itself
15 is a procedural violation.

16 The absence of any on-record discussion about whether sealing was justified strongly
17 suggests an improper judicial allowance of secret filings that disadvantaged the
18 plaintiff.

19
20
21 **11. Directing the Court’s Attention to Ex Parte Allegations Without Plaintiff’s**

22 **Knowledge** *Evidence:* The defense strategically referenced sealed materials in
23 open court, directing the judge to review them, thereby introducing allegations
24 into the record without giving the plaintiff an opportunity to refute them.

25 *Quote:*

26 *”The emails that we received up until the Saturday before trial started, which*

1 *would have been January 25th. And after we submitted those emails to the Court*
2 *via a motion in limine... we have not received any emails from Mr. Rosario."*

3 *Date: February 3, 2025*

4 *Page & Line Number: Page 10, Lines 3-6*

5 The reference to the motion in limine shows how the defense subtly used ex parte
6 submissions to influence the judge's perception, and the judge's failure to demand
7 disclosure further supports the claim of bias.

8 **12. Failure to Strike or Disregard Unverified Accusations in Favor of the Defense**

9 *Evidence:* The judge never moved to strike or discount speculative claims of ha-
10 rassment and threats, even though they lacked evidentiary support and were never
11 properly admitted into the record.

12 *Dialog:*

13 **Defense Counsel:** "Again, we don't know that that's related to this case. It's
14 just given the emails that we've received from Mr. Rosario, it just seems very
15 coincidental."

16 **Judge Wong: "Okay."**

17 *Date: February 3, 2025*

18 *Page & Line Number: Page 10, Lines 1-2*

19 By accepting this statement without requiring further substantiation, the judge tac-
20 itly endorsed a damaging narrative against the plaintiff.

21 **13. Failure to Disclose Ex Parte Communications or Provide the Plaintiff an Op-
22 portunity to Respond**

23 *Evidence:* The judge appears to have been aware of sealed
24 allegations before they were ever discussed in open court, raising concerns about
25 undisclosed ex parte influence.

26 *Wong Quote:*

27 *"Today is February 3rd. My mistake. Okay. So it's the 27th of January, and
28 you're saying there were emails right up to the 27th?"*

Date: February 3, 2025

Page & Line Number: Page 10, Lines 19-20

This exchange suggests the judge had prior knowledge of the sealed filings before formally hearing arguments in open court, which is indicative of improper ex parte influence.

14. **Ex Parte Communications Impacting Judicial Threats Against the Plaintiff**

Evidence: Judge Wong used unverified allegations from the sealed filings as a basis to threaten the plaintiff with contempt.

Wong Quote:

"I don't know if there's any other alternatives with regard to threats, but if your client feels that it's important enough, there are other remedies that he may seek to enjoin Mr. Rosario from his threats."

Date: February 3, 2025

Page & Line Number: Page 11, Lines 22-25

By engaging in a discussion about legal remedies against the plaintiff based on untested accusations, the judge indicated that he had already accepted the defense's claims without requiring due process.

15. **Granting the Defense an Unfair Litigation Advantage** *Evidence:* The judge allowed the defense to shape judicial perception without requiring evidentiary support, creating an imbalance in how each party's claims were treated.

Wong Quote:

"So tell me what is important about my understanding that it is where it was? I have no idea where it was. What's the address of his grocery store or business?"
(Later dismisses plaintiff's attempt to provide alternative context.)

Date: February 3, 2025

Page & Line Number: Page 10, Lines 21-22

This contrast in judicial engagement, entertaining the defense's claims while dismissing the plaintiff's counterarguments, demonstrates a clear partiality.

16. **Prejudicial Dismissal of Plaintiff's Evidence While Entertaining Defense's Al-**

1 **legations** *Evidence:* The judge dismissed the plaintiff's representative's attempt to
2 present alternative explanations but entertained the defense's speculative claims
3 without requiring proof.

4 *Dialog:*

5 Keegan: "Your Honor, we would be happy to show video documentation of the
6 types of clients that are around the market, uhm, and the types of activities that are
7 going on, illicit activities."

8 **Judge Wong: "I won't even consider that."** Date: February 3, 2025

9 Page & Line Number: Page 11, Lines 7-9

10 This evidences judicial favoritism, as the defense's allegations were repeatedly
11 entertained while the plaintiff's rebuttals were summarily dismissed.

12 **17. Encouragement of Defense to Take Further Actions Based on Ex Parte Al-**

13 **legations** *Evidence:* The judge suggested possible legal remedies for the defense
14 based on allegations that were never properly introduced or challenged.

15 Wong Quote:

16 ***"There are restraining orders that can be issued against him."*** Date: February
17 3, 2025

18 *Page & Line Number: Page 11, Line 22*

19 This is a clear instance of a judge providing guidance based on secret allegations,
20 further compromising impartiality.

21 **18. Failure to Provide Plaintiff with an Equal Opportunity to Address Claims**

22 **Impacting the Case** *Evidence:* The plaintiff was never given access to the sealed
23 materials that Judge Wong allowed to be referenced in court.

24 Quote:

25 (No specific quote; instead, it is the systematic pattern of accepting sealed materi-
26 als that were not disclosed to the plaintiff.)

27 The failure to ensure equal access to evidence constitutes a clear due process vio-
28 lation.

1 **Statements by Judge Wong Towards Plaintiff**

2 **19. Misunderstanding Legal Privilege**

3 Wong Quote:

4 **”You misunderstood, clearly.”**

5 Feb 28th 2025,

6 Page 28, Lines 21–22

7
8 **Context:**

9 The plaintiff argued that the judge previously ruled certain medical records as priv-
10 ileged. Judge Wong dismisses the plaintiff’s assertion outright without further clar-
11 ification.

12 **Violation:**

13 **20. Expressing Impatience Over Plaintiff’s Lack of Legal Knowledge** Wong Quote:

14 **”Mr. Rosario, I have been extremely patient with regard to your inability to**
15 **follow the Code of Civil Procedure.”**

16 • Feb 28th 2025,

17 • Page 37, Lines 16–17

18 **Context:**

19 Judge Wong openly expresses frustration with the plaintiff’s procedural missteps.
20 While judicial efficiency is necessary, condescending remarks toward a pro per
21 litigant undermine judicial impartiality.

22 **21. Threatening a Contempt Hearing for Plaintiff’s Communications** Wong Quote:

23 **”If I find out that you are still issuing these E-mails or these messages to Mr. Reyna**
24 **and his colleagues, I will order a hearing to cite you for contempt. And I am warn-**
25 **ing you, it’s up to \$1,000 fine for such misjudgements.”**

26 • Feb 28th 2025,

27 • Page 57, Lines 19–23

28 **Context:**

Judge Wong threatens the plaintiff with contempt without verifying the intent or nature of the emails. Threats of sanctions should follow a neutral hearing process.

22. Expressing Frustration Over Court Time Spent on Plaintiff's Case Wong Quote:

"Sir, this is an aside, but I've had to pass up multiple cases simply to address your problems. I don't appreciate that."

Feb 28th 2025,

Page 47, Lines 19–21

Context:

Judge Wong explicitly states that the plaintiff's case is consuming too much of the court's time, implying resentment. This could create an appearance of bias against the plaintiff.

23. Dismissing Plaintiff's Concerns About Discovery Fairness Wong Quote:

"Your grievances about discovery abuses and so forth are not a concern for the Court."

Feb 28th 2025

Page 57, Lines 12–17

Context:

Plaintiff raises concerns about discovery fairness, which the judge dismisses outright. Given that discovery fairness is crucial to litigation, this could signal bias against the plaintiff's claims.

24. Threatening to Sanction Plaintiff for Defense Counsel's Complaints Wong Quote:

"Mr. Rosario, Mr. Sobati, you're going to have to monitor because it doesn't

1 seem as if Mr. Rosario can exercise any self-control, at least according to de-
2 fense counsel.”

3 ”If you fail to do so, Mr. Rosario, there are other remedies, and there are
4 consequences to your correspondence, which will not be something you want
5 to have in front of a jury.”

6 Feb 28th 2025

7 Page 52, Lines 10–12

8
9 **Context:**

10 Defense counsel accused the plaintiff of disrespect in email correspondence. With-
11 out reviewing the emails, Judge Wong sided with defense counsel’s characteriza-
12 tion, warning Rosario of sanctions and public embarrassment.

13
14 **25. Stating That the Plaintiff’s Complaints About Discovery Fairness Are Not an**
15 **Issue for the Court Wong Quote:**

16 ”I don’t really want to hear about your complaints about the other side.”

17 Feb 28th 2025,

18 Page 36, Lines 15–22

19
20 **Context:**

21 Plaintiff raised concerns about discovery misconduct and transparency from the
22 defense. Judge Wong dismissed these concerns outright, rather than addressing
23 procedural violations.

24
25 **26. Dismissing Plaintiff’s Need for Medical Accommodations Wong Quote:**

26 ”Mr. Rosario, I have been extremely patient with regard to your inability to
27 follow the Code of Civil Procedure.”

28 Feb 28th 2025,

Page 57, Lines 1–5

Context:

Plaintiff attempted to explain that his medical condition (including a damaged thalamus affecting cognition and vision) caused difficulty in reading and writing. Instead of addressing the accommodation request, Judge Wong dismissed it as an "inability to follow" the procedure.

27. Threatening Embarrassment as a Sanction Wong Quote:

"There are monetary sanctions, and there are other sanctions which may make it very well embarrassing for you."

Feb 28th 2025

Page 36, Lines 21–28

Context:

Instead of focusing on legal consequences, Judge Wong explicitly mentioned "embarrassment" as a form of punishment, which could be seen as an improper exercise of judicial authority.

28. Misrepresenting Plaintiff's Waiver of Medical Privilege Wong Quote:

"You misunderstood, clearly."

Feb 28th 2025

Page 35, Line 21

Context:

Plaintiff believed that some of his medical records were ruled privileged. Judge Wong, instead of clarifying the issue or allowing argument, summarily told Rosario that he "misunderstood" and dismissed his concerns.

[C] WHY DID PSA LAW DO THIS: BECAUSE THE DEFENSE IS DESPERATE TO COVER UP THE DEFENDANTS CRIME

The Fabricated Allegations of Threats and Harassment: A Defense Strategy to Manipulate the Court and Avoid Accountability

Throughout the proceedings, the defense systematically constructed and weaponized false allegations of threats and harassment against the plaintiff, not as a genuine legal concern, but as a deliberate strategy to manipulate the court, mislead the judge, and obstruct justice. This coordinated effort, which Judge Wong actively played along with, constitutes a serious violation of judicial impartiality and the fundamental principles of due process. The defense's fabricated claims served several strategic purposes, all aimed at shifting the focus away from their own client's wrongdoing and instead vilifying the plaintiff.

1. Distracting the Court From the Defendant's Fault and Violations of the Law

The primary and most glaring purpose of the fabricated harassment and threat allegations was to distract from the defendant's own legal violations, including his liability for the vehicle vs. pedestrian collision and his failure to comply with the law. The defense knew that the official 911 records contained a confession by the defendant that he hit the plaintiff, which made their legal position weak. Rather than addressing their client's clear responsibility, the defense instead fabricated an entirely new narrative, that the plaintiff was a dangerous individual engaged in harassment and making threats. This shifted the focus away from the central issue of the case and forced the court to entertain a completely separate, unverified set of accusations that had nothing to do with the actual litigation.

2. Disparaging the Plaintiff and Destroying His Credibility

Beyond mere distraction, the fabricated allegations also served the crucial goal of character assassination. If the defense could successfully paint the plaintiff as violent, unstable, or dangerous, they could undermine his credibility in court. This would mean that any legitimate claims made by the plaintiff, including his testimony regarding the hit-and-run, would be viewed with skepticism. By constantly raising unproven allegations of threats and harassment, the defense was building a case to tarnish the plaintiff's reputation before the court, ensuring that even if he presented factual evidence, it would be received with suspicion.

3. Influencing and Manipulating the Judge

Rather than remaining neutral, Judge Wong became an active participant in this scheme, willingly entertaining the defense's allegations and allowing them to be discussed and referenced repeatedly in court without requiring evidence or cross-examination. This provided the defense with the perfect avenue to inject their accusations into the record as if they were fact, without ever subjecting them to the scrutiny of due process. Instead of immediately demanding evidence or dismissing the unfounded claims, Judge Wong actively engaged with the defense's allegations, signaling his willingness to accept their narrative. This undermined the plaintiff's standing before the court, as the judge was already predisposed to see him as an aggressor rather than a victim of the defendant's negligence.

4. Disparaging the Plaintiff in Court to Secure Favorable Rulings

By building a narrative that the plaintiff was engaged in harassment and threats, the defense positioned itself to secure favorable rulings from Judge Wong. If the plaintiff was perceived as a menace, the judge would be more inclined to rule against him, deny him procedural accommodations, or dismiss his legitimate motions. The defense knew that the judge, if influenced properly, would be less willing to grant the plaintiff any

1 favorable rulings, even when justified under the law. The defense played to this bias,
2 ensuring that Judge Wong absorbed their version of events and treated the plaintiff as
3 the antagonist, without the plaintiff ever being allowed to challenge the allegations.

4 **5. Retaliation for Plaintiff's Intention to Pursue Criminal Charges Against the** 5 **Defendant**

6 The fabricated claims also served as an act of retaliation when the plaintiff made it
7 clear that he intended to have the defendant criminally charged for hit-and-run. The
8 moment the plaintiff asserted his legal rights and sought to hold the defendant account-
9 able beyond the civil case, the defense instantiated its attacks, by fabricating harassment
10 allegations. This was not a coincidence, it was a clear attempt to intimidate the plaintiff
11 and discourage him from pursuing criminal liability against their client. This retali-
12 ation, sanctioned by Judge Wong's willingness to entertain it, represents a grave misuse
13 of judicial authority and legal ethics.

14 **6. Staging or Fabricating the Alleged Harassment to Manipulate the Court**

15 Given the complete lack of evidence supporting the defense's claims, a strong prob-
16 ability exists that the alleged harassment was entirely fabricated or even staged. The
17 defense never provided any police reports, surveillance footage, and forensic evidence
18 to confirm the existence of any actual threats. Instead, the claims were entirely self-
19 reported by the defendant and his legal team, conveniently surfacing only after the
20 plaintiff made it clear that he would pursue justice for the hit-and-run offense. The tim-
21 ing alone suggests that these allegations were manufactured as a strategic ploy, rather
22 than being based on any real incidents.

23 **7. Lack of Evidence Proves Fabrication**

24 Despite having multiple hearings to substantiate their claims, the defense failed to
25 present a single shred of evidence to verify the allegations, even after 5 hearings in

1 the Court. No sworn affidavits, no forensic proof, no law enforcement involvement,
2 nothing. The absence of any supporting documentation makes it highly likely that the
3 entire claim was contrived for strategic gain. In contrast, the plaintiff's claims regarding
4 the hit-and-run were supported by a 911 confession from the defendant himself, yet the
5 court chose to minimize that verifiable evidence while entertaining baseless allegations
6 from the defense. This further proves that Judge Wong was actively biased in favor of
7 the defense and complicit in the suppression of due process.

8 **8. Hiding Behind a “Boogeyman” Claim**

9 A common legal tactic, when no real defense exists, is to create a “boogeyman” to shift
10 attention away from the true issues. The defense crafted the harassment allegations
11 as a faceless, vague, and emotionally charged accusation, making it impossible to dis-
12 prove, since no actual evidence was provided in the first place. This allowed them to
13 dodge legitimate legal questions about their client's negligence and the hit-and-run by
14 constantly steering the conversation back to these fabricated allegations.

15 **9. Using False Allegations to Reduce Damages**

16 One of the most insidious purposes behind the defense's fabricated claims was to ma-
17 nipulate the court into diminishing the damages their client would have to pay. If the
18 plaintiff was perceived as aggressive, dangerous, or guilty of misconduct, the court or a
19 jury might be more inclined to reduce the compensation awarded in the case. This was
20 a calculated effort to manufacture a counter-narrative that would financially benefit the
21 defendant by shifting partial blame onto the plaintiff, despite there being no evidence
22 to support such a conclusion.

Probable Origin: Defense Fabricated the Harassment Allegations

- **To exhaust the plaintiff financially and emotionally:** Forcing the plaintiff to defend against baseless claims prolonged the litigation, increased costs, and psychologically drained the plaintiff.
- **To pressure the plaintiff into settling for a lower amount:** By portraying the plaintiff as an aggressor, in front of the court and in the public eye, the defense aimed to make settlement negotiations less favorable for him.
- **To intimidate witnesses or supporters:** If the plaintiff's credibility was successfully damaged, any supporting testimony or evidence in his favor could also be dismissed as unreliable.
- **To justify judicial sanctions against the plaintiff:** If the allegations were repeated enough times, Judge Wong could use them as a pretext to hold the plaintiff in contempt or impose unfair penalties.
- **To create a pretext for disqualifying the plaintiff's legal representatives or allies:** If Plaintiff's team attempted to counter the allegations, they could be painted as complicit in the "threats," leading to sanctions against them as well.

The fabrication of threats and harassment by the defense, and Judge Wong's willingness to entertain them without evidence, represents a severe breach of judicial ethics and due process. This manipulation was not hit-and-run, nor was it based on good-faith legal arguments, it was a coordinated manufactured attack designed to divert attention, discredit the plaintiff, and manipulate court rulings in favor of the defense. This warrants immediate judicial disqualification and disciplinary action against both the defense counsel PSA Law and Judge Wong for their egregious misconduct.

1 —

2 **[D] Overview of the Interaction Between Judge Wong and Keegan Regarding**
3 **Defense’s Baseless Allegations**

4 During a critical exchange in court, Keegan sought to challenge the defense’s unver-
5 ified allegations of harassment by introducing contextual information about the envi-
6 ronment around the defendant’s store. The scene from where the alleged harassment
7 occurred. This effort aimed to demonstrate that any perceived threats or harassment
8 could have originated from unrelated sources rather than the plaintiff. However, Judge
9 Wong swiftly dismissed this argument as irrelevant, reinforcing his stance that it had
10 no bearing on the central personal injury claim. While superficially maintaining ju-
11 dicial neutrality, his actions revealed a deeper issue of bias, as Wong had repeatedly
12 entertained the defense’s harassment claims despite their lack of evidentiary support.

13 What made this interaction particularly revealing was Judge Wong’s reaction to Kee-
14 gan’s insistence on countering the defense’s narrative. Rather than simply rejecting the
15 allegation made by the Defense Counsel on legal grounds, the judge publicly ridiculed
16 Keegan, stating that he would be “laughed out of the courthouse” for attempting to in-
17 troduce an alternative explanation. This disproportionate and condescending response
18 exposed a clear double standard, while the defense was repeatedly allowed to assert
19 baseless claims about the alleged harassment, any attempt to counteract or contextual-
20 ize these accusations was met with outright hostility from the bench. This reinforced
21 the defense’s ability to manipulate the proceedings without meaningful scrutiny.

22 Moreover, the defense’s allegations had never been formally presented to the plaintiff,
23 nor had the plaintiff been allowed to review, verify, or challenge the evidence suppos-
24 edly supporting them. Yet, the judge continued to engage with and entertain these accu-
25 sations, demonstrating that he had already absorbed the defense’s damaging narrative
26 about the plaintiff, despite the absence of verifiable proof. Keegan’s attempt to intro-
27 duce an probable alternate explanation, one that might have discredited the defense’s

1 claims, was immediately dismissed and met with open derision, further illustrating that
2 Judge Wong had already been influenced by the ex parte allegations. This one-sided
3 judicial treatment created an improper imbalance, where the defense was granted free
4 rein to disparage the plaintiff, while any effort to defend against these attacks was shut
5 down with hostility and ridicule.

6 **Feb 03 2025 Discussion Leading to the "Laughed Out of the Courthouse" Comment:**

7 **1. Keegan Attempts to Rebut Allegations of Defense**

8 Feb 03 2025

9 *Page 10 , Line 10*

- 10 • *Keegan: "Your Honor, I would like to remind the Court that the circumstances*
11 *and the location of which the defendant is running his – his store and the*
12 *activities surrounding that store, which are part of – part of the material case*
13 *here, and the types of activities that are going on, and the types of clients that*
14 *are going in and out of the defendant's location."*

15 •

16 **2. Judge Wong Questions the Relevance**

- 17 • *Wong: "What about them? You said you're reminding me that this – that*
18 *some of these events took place in his grocery store. So tell me what is im-*
19 *portant about my understanding that it is where it was? I have no idea where*
20 *it was. What's the address of his grocery store or business?"*

- 21 • *Reyna (Defense Counsel) responds: "I'm not sure of the exact address. I know*
22 *the business name. Sonoma Liquors here in San Francisco."*

- 23 • *Keegan: "Fifth Street and Jessie."*

- 24 • *Judge Wong: "Okay. 8th street and Jessie?"*

- 25 • *Keegan: "Fifth street."*

26 **3. Keegan Attempts to Show Store's Environment as Evidence**

- 27 • *Keegan : "Your Honor, we would be happy to show video documentation of*

1 *the types of clients that are around the market, uhm, and the types of activities*
2 *that are going on – illicit activities.”*

3 **4. Judge Wong Responds with “Laughed Out of the Courthouse” Comment**

- 4 • *”Well, Mr. Keegan, you’re not a lawyer; and if you were a lawyer, you’d be*
5 *laughed out of the courthouse because that’s not pertinent to the hit-and-run.*
6 *That is a personal injury suit.”*
- 7 • *Keegan concedes: ”Absolutely.”*

8 **5. Judge Wong Emphasizes the Case is About the hit-and-run**

- 9 • *Wong: ”Where the defendant in this case is alleged to have struck Mr. Rosario*
10 *when he was using a scooter of some sort. So why would the individuals who*
11 *frequent Mr. Abdelhalim’s place of business have any relevance to an acci-*
12 *dent? Tell me.”*

13 **6. Keegan Tries to Reframe the Argument**

- 14 • *Keegan: ”Absolutely, your Honor. So my response is more in terms of Mr.*
15 *Abdelhalim’s clientele and any notion that Mr. Rosario would somehow be*
16 *connected to the types of activities that go on as a result of some sort of ha-*
17 *rassment that’s alleged here. Simply an explanation.”*

18 **7. Judge Wong Dismisses the Argument**

- 19 • *Wong: ”There’s no logical relevance as to why that would be pertinent evi-*
20 *dence in this case.”*
- 21 • *Keegan clarifies: ”Not evidence. Not evidence.”*
- 22 • *Judge Wong: ”I won’t even consider that.”*
- 23 • *Keegan: ”Not evidence, your Honor, just an explanation of response, if you*
24 *will.”*

[E] Judicial Bias and Ex-Parte Influence: How the Court Adopted the Defense Distraction Narrative While Disregarding Evidentiary Facts

Judge Wong’s statement, “Where the defendant in this case is alleged to have struck Mr. Rosario when he was using a scooter of some sort”, demonstrates a clear adoption of the defense’s narrative rather than the plaintiff’s account of the incident. This language reflects a judicial bias that aligns with the defense’s characterization of the plaintiff as an active operator of a scooter, rather than accepting the plaintiff’s position that he was walking a malfunctioning scooter when he was struck by the defendant in a hit-and-run accident, which the defendant later confessed to in a 911 call.

By stating that the plaintiff was “using a scooter,” Judge Wong subtly but significantly reframed the facts in favor of the defense. The term “using” implies active operation, suggesting that the plaintiff had control over the vehicle, which aligns with the defense’s unsubstantiated claim that the plaintiff was operating a motorized vehicle at the time of the incident. This mischaracterization contradicts the plaintiff’s actual position—that he was walking his malfunctioning scooter across the crossing when the defendant struck him from behind, fled the scene, and later returned only after a 911 caller reported the incident as a potential hit-and-run. An eyewitness, upon observing that no vehicle or assistance was offered to the injured plaintiff, explicitly stated, “I think it is a hit-and-run,” reinforcing the fact that the defendant initially fled and only returned to offer a bribe once he realized he had been seen.

Judge Wong’s phrasing completely disregards these critical facts, instead reinforcing a defense narrative that seeks to shift blame onto the plaintiff by falsely implying that I was in control of a moving vehicle. This is particularly concerning given that no evidence has ever been presented to support the claim that I, the plaintiff, was operating a motorized scooter in its motorized mode at the exact time of the collision. The defense contends that because I had an electric scooter with me, I was using it in electrified

1 mode during the incident. However, the defense has provided no evidence or witnesses
2 to substantiate this claim. On the contrary, I have evidence showing that the scooter
3 had malfunctioned—the battery was no longer operational—which forced me to use it
4 in manual kick mode, thereby qualifying me as a pedestrian.

5
6 It is concerning that the defense argues a person walking with a bicycle or scooter—regardless
7 of whether it has an electric motor—is effectively operating a motorized vehicle. Their
8 claim suggests that if you possess an electric scooter or bike, a driver could strike you
9 with their car and then avoid liability by asserting that you were operating a motorized
10 vehicle at the time of the collision. However, common sense tells us that merely having
11 an electric motor does not mean it was active when the accident occurred. You could
12 be simply walking the scooter or riding a bicycle slowly at a corner, and that does not
13 make you a motorized operator. This is the narrative the defense is trying to establish.

14
15 Fortunately, such a justification for evading liability when a driver commits serious
16 negligence is both absurd and unfounded. I believe the merits of this case are solid.
17 Eyewitnesses saw the driver strike me in the crosswalk, as recorded on the official cer-
18 tified police body cam video. Mr. Dustin Rosemond reported that he witnessed the
19 driver commit the crime. Additionally, another 911 caller, who was passing the scene,
20 saw me lying on the ground, screaming in pain. Out of the kindness of her heart, she
21 stopped to call 911, reporting that she saw me alone with no one providing aid and that
22 no vehicle was present in the immediate vicinity.

23
24 The anomaly the defense must now overcome is explaining how I was left on the ground
25 without assistance while the driver's vehicle seemingly disappeared. I know the reason:
26 the defendant moved his vehicle about 150 feet down the road to conceal it from view,
27 thereby attempting to avoid being named or held liable. Unfortunately, the witness who
28 saw him hit me was sitting right across the crosswalk. Realizing he could not escape

1 the situation, the defendant returned and attempted to bribe me with a five-dollar bill.

2
3 This is how the 911 caller came to witness the hit-and-run committed by the defen-
4 dant. He made a grave mistake—committing a felony by leaving me to suffer on the
5 street and standing over me for approximately 10 minutes before finally calling 911.
6 I endured immense pain, nearly dying from a collapsed lung and a shattered rib cage.
7 While these vivid, gruesome details of a near-fatal accident are not common conversa-
8 tion, they must be explained so that the full extent of the negligence is understood.

9
10 My former legal counsel at Dolan Law Firm felt that this complex narrative would be
11 too difficult to present to a jury and pushed for a settlement instead. As a result of
12 that decision, I now find myself facing one of the world's largest insurance companies,
13 capable of mounting a million-dollar defense, as PSA Law is doing right now.

14 Unfortunately for PSA Law, I have already lost everything. I have nothing left to lose
15 except my determination to ensure that my career, my health, and my suffering are
16 addressed as a result of the defendant's negligence. If he continues to deny fault and
17 liability, I will persist in pursuing criminal charges against him. He must either accept
18 responsibility or hide behind AAA—the truth will inevitably emerge during a trial in
19 front of a jury. The defense clearly aims to keep everything out of the jury's view, as
20 denial is a core part of AAA PSA Law's modus operandi.

21
22 Moreover, the defense appears intent on establishing its own narrative to mitigate their
23 damages without any evidence to support their claims of electrified operation and in-
24 toxication, as asserted in their affirmative defense response to my complaint. What is
25 particularly disturbing is how Judge Wong seems to have been conscripted by the de-
26 fense and their counsel. This is evident in his approach to the case and his demeanor
27 toward me and my legal team. It is obvious to others in the courtroom who have ob-
28 served this matter that Judge Wong is showing bias—most apparent in his dialogue

1 with me and his treatment overall. By adopting the defense's language, Judge Wong
2 not only minimizes the defendant's liability but also fails to acknowledge the substan-
3 tial evidence demonstrating the defendant's culpability.

4
5 This selective framing of facts illustrates clear judicial bias, as the judge chose to en-
6 tertain and incorporate the defense's version of events without scrutiny while simulta-
7 neously dismissing the plaintiff's sworn testimony and verified evidence. By failing to
8 objectively acknowledge the sequence of events as supported by the 911 records and
9 eyewitness accounts, Judge Wong reinforced a false and prejudicial narrative that di-
10 rectly contradicts the documented facts of the case.

11
12 Additionally, Judge Wong's phrasing minimizes the certainty of the defendant's respon-
13 sibility by stating that the defendant "is alleged to have struck" the plaintiff. This
14 directly contradicts the 911 records, in which the defendant explicitly admitted to hit-
15 ting the plaintiff. While the judge hesitates to definitively acknowledge the defendant's
16 involvement despite documented evidence, he simultaneously adopts the defense's ver-
17 sion of the plaintiff's actions without requiring any proof. This selective acceptance
18 of unverified defense claims, while dismissing or downplaying verifiable evidence sup-
19 porting the plaintiff, is a clear indication of judicial bias.

20
21 By the third hearing of this procedure held on February 3, 2025, in Department 504,
22 Judge Garret Wong's bias in favor of the defense was firmly established, demonstrated
23 through his selective adoption of unverified defense allegations while dismissing or
24 downplaying evidence supporting the plaintiff. A key example of this bias is found in
25 Judge Wong's characterization of the plaintiff's actions at the time of the hit-and-
26 run. The judge expressly adopted the defense's version of events, stating that the
27 plaintiff was "using a scooter" rather than acknowledging the plaintiff's position
28 that he was "walking the scooter" at the time of the collision. This distinction is

critical, as the defense's entire strategy was to frame the plaintiff as an operator of a moving vehicle, implying that he may have contributed to the hit-and-run or been in violation of traffic laws as grounds of affirmative defense. By adopting the defense's language, Judge Wong effectively reinforced their argument without requiring them to provide any supporting evidence.

What makes this even more egregious is that the defense never provided a single piece of verifiable evidence proving that the scooter was in motorized operation at the time of the collision. **No forensic analysis, no surveillance footage, and no eyewitness testimony substantiated the Defense Counsel's allegations and claims have been provided to the court or the Plaintiff.** Instead, the defense merely asserted it as fact, and the judge uncritically accepted it, effectively shifting the burden onto the plaintiff to disprove an allegation that had never been evidenced in the first place. This is a direct violation of judicial neutrality, as the court is obligated to assess facts based on evidence, not adopt one party's narrative unchecked.

Simultaneously, Judge Wong displayed a stark contrast in his treatment of the defendant, presuming innocence while disregarding critical evidence of fault. When describing the hit-and-run, **Judge Wong stated that the defendant was merely "alleged" to have struck the plaintiff, despite the existence of 911 records in which the defendant explicitly confessed to the collision.** This presents a glaring contradiction, while the defense was permitted to introduce baseless and unverified allegations against the plaintiff without scrutiny, the plaintiff's submission of official, certified 911 records, concrete evidence proving the defendant's liability, was downplayed, dismissed, and minimized by the court.

By framing the defendant's involvement as merely "alleged", Judge Wong actively entertained the possibility that the defendant bore no responsibility whatsoever,

1 **despite the defendant's own emergency call confirming the collision.** This selective
2 skepticism highlights a clear judicial bias, where the plaintiff's documented evidence
3 was disregarded, yet the defense's unfounded accusations were given undue weight.
4 Such a disparity in evidentiary consideration not only compromises the integrity of the
5 proceedings but also violates fundamental due process principles by applying inconsis-
6 tent standards of proof.

7
8 **The contrast is undeniable, on one hand, Judge Wong entertained and seemingly**
9 **endorsed the defense's speculative narrative against the plaintiff, despite a total**
10 **lack of supporting evidence.** On the other hand, Wong extended an extreme level of
11 deference to the defendant, even when undisputed certified 911 records confirmed and
12 cemented the defendant's fault in the hit-and-run. This clear imbalance in treatment
13 exposes the extent of judicial bias and the improper influence that ex parte defense al-
14 legations had already exerted on the proceedings. By the time of the third hearing, the
15 judge's impartiality had been fundamentally compromised, and his continued handling
16 of the case became untenable under principles of due process and fair adjudication.

17
18 **[F] Judicial Bias and Ex-Parte Allegations: The Unwarranted Targeting of the**
19 **Plaintiff**

20 The court record provides clear and compelling evidence that Judge Garret Wong en-
21 tertained ex parte allegations and speculative accusations against the plaintiff, despite
22 their clear irrelevance to the central case, a vehicle vs. pedestrian collision. Instead
23 of immediately recognizing the discussion of alleged "masked men" at the defendant's
24 store as wholly unrelated to the personal injury claim, Judge Wong permitted the de-
25 fense to introduce and discuss these allegations outside the presence of the plaintiff.
26 This created a procedural imbalance, allowing the defense to shape an unchallenged

1 narrative against the plaintiff without requiring them to substantiate their claims with
2 actual evidence.

3
4 When Mr. Keegan, a legal-aid representative present during the hearing in support of
5 the plaintiff who was under medical release by treating doctors, was finally given the
6 opportunity to address the issue, he correctly pointed out that the defense's assertions
7 about harassment and threats were based on extreme speculation and lacked any direct
8 connection to the plaintiff. Rather than recognizing the weakness of the defense's ar-
9 gument and dismissing the discussion outright, Judge Wong instead entertained the de-
10 fense's claims, allowing them to remain a part of the discourse. This action implicitly
11 validated the defense's accusations and permitted an unfounded association between
12 the plaintiff and alleged misconduct to persist.

13
14 As Keegan stood up to both the judge and the defense, challenging the speculative
15 nature of the allegations and refusing to let the plaintiff be wrongfully convicted in
16 the court of perception, Judge Wong immediately shifted to a posture of hostility, not
17 toward the baseless allegations but toward Keegan himself. In what can only be de-
18 scribed as a retaliatory move, Judge Wong insulted and admonished Keegan in open
19 court, telling him he would be "laughed out of the courthouse" for attempting to pro-
20 vide an alternative or factual counterstatement that did not align with the defense's
21 damaging narrative. The fact that the judge only chose to dismiss an argument when it
22 was in favor of the plaintiff, while previously entertaining and engaging in the defense's
23 accusations, is a glaring example of judicial bias. The illegal ex parte nature of these
24 allegations, combined with the judge's clear favoritism toward the defense, resulted in
25 an environment where the plaintiff was being convicted of misconduct without ever
26 being presented with the accusations or the opportunity to respond.

27
28 This exchange exemplifies how Judge Wong facilitated a one-sided process in which

the defense was given free rein to introduce speculative and prejudicial claims, while any attempt to refute those claims was immediately dismissed and met with hostility and ridicule. Such conduct not only violates fundamental principles of due process but also demonstrates an undeniable lack of judicial impartiality, further warranting severe sanctions and immediate disqualification of Judge Wong from this case.

FINDINGS OF EVIDENCE : RECORDED OPEN COURT STATEMENTS

- The court transcripts provide clear evidence that Judge Wong became aware of the sealed allegations of threats and harassment through repeated references by the defense in open court.
- While there is no direct evidence that Judge Wong accessed the sealed documents himself, his statements confirm that he was aware of their contents and discussed them with defense counsel.
- The judge never provided the plaintiff an opportunity to challenge these allegations, nor did he demand substantive evidence beyond defense counsel's claims.
- **Defense counsel strategically leveraged the sealed allegations** to shape judicial perception, effectively prejudicing the judge against the plaintiff.
- This pattern of behavior supports the claim that Judge Wong and PSA Law engaged in improper conduct, warranting severe sanctions and disqualification.

These findings strengthen the argument that procedural due process was severely compromised and that the defense successfully introduced an uncontested narrative against the plaintiff through improper means.

[G] Gross Violation of Plaintiff's Rights

1. Defense's Strategic Lawsuit

The defense employed a deliberate tactic to undermine the integrity of the proceedings by filing a counter-lawsuit against the plaintiff. This lawsuit was based on un-

1 substantiated allegations that lacked credibility and supporting evidence, serving
2 primarily to distract from the original claims and create unnecessary procedural
3 hurdles.

4 **2. Sealed Filing Preventing Plaintiff's Access**

5 The defense strategically filed its accusations through the court's digital filing sys-
6 tem in a manner that ensured the document remained sealed. This prevented the
7 plaintiff from accessing or reviewing the contents, effectively obstructing their
8 ability to respond or refute the claims.

9 **3. Direct Digital Submission to the Judge**

10 By utilizing the digital platform, the defense ensured that the judge had access to
11 the sealed document, thereby circumventing the standard procedural requirement
12 of presenting documents in open court or through proper service to the opposing
13 party.

14 **4. Frequent Citing of the Sealed Document in Court**

15 During verbal discussions with the judge, the defense repeatedly referenced the
16 sealed document, creating an opportunity to introduce its contents indirectly with-
17 out allowing the plaintiff a fair chance to respond.

18 **5. Character Assassination Through Unverified Accusations**

19 The defense continuously attempted to prejudice the judge against the plaintiff by
20 making repeated claims of harassment and threats. These allegations were based
21 on subjective interpretations of emails and vague references to "unknown masked
22 men," implying violent threats without substantiated evidence.

23 **6. Manipulative Use of the Sealed Document**

24 By keeping the document hidden from the plaintiff while ensuring the judge had
25 access to it, the defense was able to shape a narrative against the plaintiff without
26 scrutiny, effectively engaging in one-sided advocacy.

27 **7. Judge's Consideration of Sealed Accusations**

28 Either through direct physical copies or digital access, the judge engaged with

1 the sealed document, possibly allowing it to influence judicial decisions without
2 providing the plaintiff an opportunity to contest its contents.

3 **8. Uncontested Narrative Against Plaintiff**

4 This strategy allowed the defense to establish an undisputed characterization of
5 the plaintiff, shaping judicial perception through concealed allegations rather than
6 verifiable evidence.

7 **9. Plaintiff's Inability to Object Due to Medical Condition**

8 At the time of these proceedings, the plaintiff was dealing with severe medical con-
9 ditions and had representatives present in court. However, the plaintiff's inability
10 to personally object or challenge the accusations allowed the defense's claims to
11 go unchallenged, further tilting the proceedings in their favor.

12 **10. Systematic Exploitation of Procedural Loopholes**

13 By utilizing secret submissions and directing the judge to sealed documents con-
14 taining unverified accusations, the defense manipulated court procedures to exert
15 undue influence over judicial perception. This not only deprived the plaintiff of
16 due process but also established an unfair advantage, effectively bypassing the
17 fundamental principles of transparency and adversarial justice.

18 **[H] Summary and Conclusion**

19 In this matter, the plaintiff alleges that defense counsel systematically exploited pro-
20 cedural mechanisms to file sealed accusations and engage in ex parte communications,
21 thereby prejudicing the adjudication process. It is a fact that unverified claims of harass-
22 ment and threats were submitted by defense PSA Law under seal through the court's
23 digital system, preventing the plaintiff from accessing or reviewing the contents. Yet
24 these same allegations were repeatedly referenced in open court by Garret Wong, cre-
25 ating a one-sided narrative that cast the plaintiff as a perpetrator of misconduct while
26 depriving him of any meaningful opportunity to respond or refute the claims. The plain-
27 tiff contends that this conduct not only violated fundamental principles of due process

1 but also undermined the requirement of judicial impartiality.

2
3 Central to the plaintiff's concerns is the role of the presiding judge, who allegedly
4 allowed the sealed accusations to influence the court's perception of the plaintiff with-
5 out demanding proper evidentiary support or mandating that the plaintiff be given the
6 chance to address them. By acknowledging, and in some instances repeating, the de-
7 fense's allegations, Garret Wong did lend credibility to unsubstantiated claims made by
8 PSA Law, exacerbating their prejudicial effect. The plaintiff further alleges that this oc-
9 curred while he was medically incapacitated, enhancing the imbalance and effectively
10 blocking his right to a fair hearing.

11
12 In addition, the defense's purported strategy to focus on claims of threats and ha-
13 rassment is presented as a diversion from the primary issue in the underlying law-
14 suit, namely a vehicle vs. pedestrian collision. According to the plaintiff, rather than
15 confronting the merits of that case, the defense filed a "counter-lawsuit" based on un-
16 substantiated allegations, simultaneously presenting sealed filings that the judge could
17 review yet the plaintiff could not. This alleged tactic, coupled with repeated in-court
18 references to the sealed material, is portrayed as a coordinated effort to discredit the
19 plaintiff and shift attention away from the defendant's own potential liability.

20
21 The plaintiff also highlights specific instances in which the judge entertained discus-
22 sions about alleged misconduct, despite there being no corroborating evidence. By
23 characterizing the plaintiff's actions in line with the defense's unproven version of
24 events, such as describing the plaintiff as "using a scooter" at the time of the colli-
25 sion and portraying him as someone prone to threatening behavior, the plaintiff con-
26 tends that the Garret Wong unequivocally has demonstrated clear and irrefutable bias.

27 Meanwhile, evidence in the plaintiff's favor, such as certified 911 records indicating
28 the defendant's admission of fault, was ostensibly downplayed, illustrating a stark im-

1 balance in how each side's claims were received.

2
3 These circumstances indicate a serious compromise of procedural fairness. The plain-
4 tiff maintains that the Judge Wong's flagrant willingness to consider sealed filings,
5 coupled with ex parte-like references to those filings in open court, did violate both the
6 letter and spirit of due process and judicial ethics. The plaintiff therefore seeks im-
7 mediate disqualification of the presiding judge and the imposition of sanctions against
8 defense counsel, arguing that such measures are necessary to restore integrity to the
9 proceedings and to reaffirm the judiciary's foundational commitment to impartial adju-
10 dication and transparency.

11
12 It is evident that Judge Garret Wong illustrated though on the record official transcripts,
13 that he had direct knowledge of unverified allegations and that the sealed allegations
14 were indeed used to improperly influence the adjudication process, especially without
15 providing the plaintiff access to review or challenge them, there is a compelling basis to
16 question the fairness of these proceedings. The plaintiff asserts that such actions con-
17 stitute a gross deviation from the principle of an impartial tribunal, as set forth in both
18 case law and the California Code of Judicial Ethics. Here it is evident that these tactics
19 not only warrant disqualification of Garret Wong but also invite sanctions against PSA
20 Law under provisions governing abuses of process and unethical advocacy. In the in-
21 terest of preserving the integrity of the judicial system, it is incumbent upon the court
22 to conduct a thorough review of all filings, transcripts, and procedural actions to deter-
23 mine whether ex parte communications or sealed submissions were indeed exploited to
24 prejudice the plaintiff and subvert the adversarial process.

Index

- **Accusations, Unchallenged** – See [B], [C], [X]
- **Back-Door Influences** – See [X] Conclusion, point 10
- **Bias, Judicial** – See Introduction; [B]; [F]; [G]
- **Counter-Lawsuit** – See [X] Conclusion, part I and Conclusion, point 1
- **Defendant’s Fault** – See [C] point 1
- **Defense Counsel / PSA Law** – See [A], [B], [C], [X]
- **Discovery Fairness** – See [B], [X]
- **Due Process Violations** – See Introduction; [H]; [X]
- **Ex Parte Allegations** – See [A]; [B]; [F]
- **Fabrication of Allegations** – See [C] points 6–9
- **Harassment and Threats** – See [A]; [C]
- **Judge Garret Wong** – See Title; [B]; [F]; [H]
- **Judicial Approval/Endorsement** – See [B] points 9–10
- **Judicial Disqualification** – See [X] part IV
- **Judicial Overview** – See Section 2
- **Judicial Prejudice** – See Introduction; [H]
- **Keegan** – See [D]
- **Legal Support** – See [X] Conclusion (multiple key points)
- **Medical Accommodations** – See [B] points 28; [H]
- **Plaintiff’s Rights** – See [G]; [H]; [X]
- **Procedural Loopholes** – See Judicial Overview; [X]
- **Sealed Documents / Filings** – See [B] points 11–14; [X] Conclusion, point 2 and 6
- **Threats and Harassment Allegations** – See [A]; [C]; [B] points 21–25

Below is a comprehensive index that organizes the major concepts, legal codes, specific case elements, people, and violations discussed throughout the document. You can further refine page numbers or section references based on your final layout.

Comprehensive Index

A

- **Adversarial Process**

- The principle that both parties must have full access to the evidence and the opportunity to challenge opposing claims. Referenced in the discussion of ex parte filings and sealed documents (see sections [A], [B], [H]).

- **Americans with Disabilities Act (ADA)**

- Cited in relation to the plaintiff's requests for reasonable accommodations given his medical condition (see section [B], point 28).

C

- **California Code of Civil Procedure (CCP)**

- CCP § 128(a)(4): Requirement that factual contentions have evidentiary support.

- CCP § 128.5: Authority for monetary sanctions for bad-faith litigation.

- CCP § 128.7: Provision sanctioning frivolous or abusive litigation tactics.

- CCP § 170.1: Criteria for judicial disqualification when a judge's impartiality is in question.

- CCP § 2023.010: Emphasizes fair and cooperative discovery procedures.

- **California Code of Judicial Ethics**

- Canon 3(B)(7): Prohibition against a judge's consideration of ex parte communications.

- Canon 3(B)(8): Requirement for judicial decorum and ensuring fairness toward all litigants.

- Canon 3(B)(4): Mandate for patience and courtesy, especially toward self-represented parties.

- Canon 2(A): Obligation to uphold public confidence in judicial impartiality.

- **California Evidence Code § 994**

- Concerns the preservation of medical privilege unless a party expressly waives it.

1 • **California Rules of Court, Rule 2.551(b)(1)**

2 – Sets the standard and justification required for filing documents under seal.

3 **D**

4 • **Due Process Violations**

5 – The plaintiff is denied access to sealed evidence, proper notice, and an equal
6 opportunity to respond (see Introduction, [H], and [X]).

7 **E**

8 • **Ex Parte Allegations**

9 – Central to the document’s argument; refers to secret or one-sided communica-
10 tions submitted to the court without notice to the opposing party (see sections [A],
11 [B], [F]).

12 • **Evidence Bias**

13 – The judge’s selective acceptance of defense submissions without proper scrutiny;
14 contributes to the unfair portrayal of the plaintiff (see section [B]).

15 **F**

16 • **Fabrication of Allegations**

17 – Claims that the defense intentionally constructed false allegations (harassment,
18 threats, etc.) to manipulate judicial perception. (See section [C]).

19 • **F.D. Rosario (Plaintiff Pro Per)**

20 – The self-represented plaintiff alleging violations of due process and judicial bias.

21 **H**

22 • **Harassment and Threats Allegations**

23 – Claims advanced by defense counsel without supporting evidence; repeatedly
24 referenced in sealed filings and open court discussions (see sections [A] and [C]).

25 • **Hidden Narrative**

26 – The one-sided story created by the defense through undisclosed evidence, influ-
27 encing the judge’s perception (see [X] Conclusion).

28 **J**

1 • **Judicial Bias**

2 – A core theme; includes both actual and apparent bias as evidenced by the judge’s
3 interactions and acceptance of unchallenged allegations (refer to Introduction, [B],
4 [F], [G]).

5 • **Judge Garret Wong**

6 – The presiding judge accused of bias and improper reliance on ex parte commu-
7 nications; his conduct is examined throughout the document.

8 • **Judicial Overview**

9 – The section that introduces the discussion on procedural loopholes and the com-
10 promise of impartial adjudication.

11 **K**

12 • **Keegan**

13 – The legal-aid representative who challenges the defense’s narrative; his interac-
14 tions are detailed in section [D].

15 **L**

16 • **Litigation Tactics**

17 – Refers to the strategic use of procedural loopholes, such as sealed filings and ex
18 parte submissions by defense counsel to gain an unfair advantage (see sections [C]
19 and [X]).

20 **M**

21 • **Medical Accommodations**

22 – Requests made by the plaintiff due to his documented medical condition; dis-
23 missed by the judge, raising additional concerns about fairness (see [B], point 28).

24 • **Monetary Sanctions**

25 – Proposed penalties against the defense for engaging in bad-faith litigation tactics
26 (see section [X], part I).

27 **P**

28 • **Plaintiff’s Rights**

– Encompasses the right to a fair trial, full access to evidence, and the opportunity to rebut allegations. Violations are noted throughout the document (see [G], [H], [X]).

- **Procedural Violations**

– Broad term covering abuses such as secret filings, failure to disclose ex parte communications, and denial of discovery rights (discussed in multiple sections including [A], [B], and [X]).

- **PSA Law (Defense Counsel)**

– The law firm and counsel representing the defense; accused of employing unethical and abusive litigation practices (see [A], [B], [C], [X]).

R

- **Retaliation**

– The response by the defense in reaction to the plaintiff’s pursuit of criminal charges, aimed at discrediting him (see section [C], point 5).

- **Relief and Sanctions**

– The remedial measures sought by the plaintiff, including monetary, non-monetary, ethical, and judicial disqualification sanctions (see section [X]).

- **Rules for Sealed Filings**

– Guidelines under the California Rules of Court and related CCP provisions that require justification and disclosure for sealed documents (see sections [B] and [X]).

S

- **Sanctions**

– Measures proposed to penalize the defense for bad-faith litigation, ranging from monetary fines to referral for ethical discipline (see section [X], parts I–V).

- **Sealed Filings/Documents**

– Documents submitted under seal that the plaintiff was not allowed to review; a primary focus of the alleged due process violations (see sections [B] and [X]).

- **Self-Representation (Pro Per)**

1 – The status of F.D. Rosario as he represents himself in the litigation, which factors
2 into discussions of fairness and judicial accommodations.

3 • **Strategic Litigation**

4 – The use of procedural and tactical measures by the defense to delay proceedings
5 and manipulate judicial outcomes.

6 **T**

7 • **Threats and Harassment Allegations**

8 – Specific claims made by the defense regarding the plaintiff’s behavior; these are
9 used to build a negative narrative without proper evidentiary support (see sections
10 [A] and [C]).

11 • **Table of Contents**

12 – The outline of major sections and headings as provided at the beginning of the
13 document.

14 **V**

15 • **Violations of Judicial Ethics**

16 – Includes breaches of established ethical standards, such as considering ex parte
17 communications and displaying bias (see California Code of Judicial Ethics refer-
18 ences in sections [C] and [B]).

19 • **Violations of Due Process**

20 – Encompasses the denial of notice, the right to rebut hidden allegations, and over-
21 all fairness in the judicial process (see Introduction, [H], and [X]).

22 • **Wrongful Conduct**

23 – Broad term for all the alleged improper actions by the defense and the judge.

24 **W**

25 • **Wong, Judge Garret**

26 – The judge at the center of the controversy, whose actions regarding ex parte
27 filings and sealed evidence are scrutinized throughout the document.

28 • **Wrongful Judicial Conduct**

1 – References the judge’s acceptance of concealed evidence and his dismissive treat-
2 ment of the plaintiff’s challenges, contributing to an appearance of bias.

1 **[X] RELIEF AND SANCTIONS REQUESTED**

2 Given the deliberate bad-faith tactics employed by the defense, including the submis-
3 sion of sealed, ex-parte materials to improperly influence judicial perception, the re-
4 peated introduction of frivolous and unverified harassment allegations, and the manip-
5 ulation of court proceedings to unfairly prejudice the plaintiff, multiple legal, financial,
6 and professional sanctions should be imposed. The severity of these violations war-
7 rants both monetary and non-monetary penalties, as well as disciplinary referrals and
8 potential disbarment for defense counsel.

9 **I. Monetary Sanctions: Punishing Bad-Faith Litigation and Covering Plaintiff's**
10 **Costs**

11 **Sanctions Under CCP § 128.5 or CCP § 128.7**

12 Under California Code of Civil Procedure (CCP) § 128.5 and § 128.7, monetary sanc-
13 tions may be imposed when a party engages in bad-faith litigation tactics, including
14 the filing of frivolous motions, misleading the court, or engaging in conduct meant to
15 harass or delay proceedings.

16 **Application to Defense Counsel's Misconduct:**

- 17 1. Repeated submission of ex parte sealed materials to circumvent due process and
18 improperly influence the judge's perception of the plaintiff.
- 19 2. Introduction of baseless harassment and threat allegations without any evidentiary
20 support.
- 21 3. Unreasonable and frivolous litigation tactics designed to distract from the defen-
22 dant's liability and exhaust the plaintiff's resources.
- 23 4. Misuse of sealed documents to engage in trial by ambush, depriving the plaintiff
24 of the ability to defend against hidden accusations.

Relief Sought:

- **Monetary fines against defense counsel and their law firm** to punish litigation abuse and deter future misconduct.
- **Full compensation of plaintiff's attorney's fees, litigation costs, and expenses** caused by defense counsel's frivolous tactics and bad-faith conduct.
- **Sanctions payable directly to the court for abuse of procedure** under CCP § 128.5(a).

II. Non-Monetary Sanctions: Striking Evidence and Precluding False Allegations

Issue Preclusion and Evidence Exclusion

The court has broad authority to impose evidentiary sanctions against a party that introduces improper, concealed, or fabricated claims that prejudice the opposing party.

Application to Defense Counsel's Misconduct:

1. The defense improperly injected false harassment and threat allegations into the record, even though these allegations were never disclosed to the plaintiff for review or rebuttal.
2. The judge allowed the defense to refer to hidden materials during hearings, creating judicial bias without affording the plaintiff an opportunity to respond.
3. The defense's misconduct directly prejudiced the plaintiff by influencing judicial rulings and obstructing due process.

Relief Sought:

- **Exclusion of all motions, pleading, exhibits, and evidence introduced via sealed ex parte submissions** to prevent the defense from gaining an unfair advantage

1 through improper channels.

- 2 • **Preclusion of any arguments related to harassment or threats** as a sanction for
- 3 introducing frivolous claims without evidentiary support.
- 4 • **A formal finding of misconduct against defense counsel**, which may be used in
- 5 future proceedings, including State Bar disciplinary actions.

6 **III. Ethical Sanctions: Referral to the State Bar for Professional Misconduct**

7 **Referral to the California State Bar (Bus. & Prof. Code § 6068)**

8 Under California Business and Professions Code § 6068, attorneys are bound by a duty
9 to act with honesty, integrity, and good faith in all court proceedings. Attorneys who
10 engage in bad-faith conduct, knowingly introduce false or misleading claims, or violate
11 ethical rules governing ex parte communications are subject to discipline by the State
12 Bar of California.

13 **Application to Defense Counsel's Misconduct:**

- 14 1. Defense counsel knowingly engaged in ex parte communications with the judge,
15 influencing judicial perception without proper disclosure to the plaintiff.
- 16 2. The defense repeatedly made false claims and engaged in prejudicial conduct to
17 improperly shift focus away from the defendant's liability.
- 18 3. Defense counsel failed to adhere to Rule 3.3 of the California Rules of Professional
19 Conduct, which prohibits attorneys from presenting false evidence or misleading
20 the court.

21 **Relief Sought:**

- 22 • **Referral of defense counsel to the California State Bar for disciplinary review**,
23 including possible license suspension or disbarment.

- **Judicial order requiring defense counsel to formally retract false allegations** made against the plaintiff.
- **Public censure of defense counsel** for engaging in conduct prejudicial to the administration of justice.

IV. Judicial Disqualification and Review of Court Conduct

Disqualification of Judge Wong Under CCP § 170.1

Under CCP § 170.1(a)(6)(A)(iii), a judge must be disqualified if “a person aware of the facts might reasonably entertain a doubt as to the judge’s impartiality.” Judge Wong’s repeated willingness to entertain ex parte allegations, adopt the defense’s narrative, and dismiss plaintiff’s evidence demonstrates a clear and disqualifying bias.

Application to Judicial Misconduct:

1. Judge Wong allowed defense counsel to introduce ex parte sealed documents without providing the plaintiff an opportunity to review or respond.
2. The judge actively engaged with the defense’s harassment allegations, despite no evidentiary basis or formal presentation of these claims.
3. The judge dismissed the plaintiff’s certified evidence (911 records confirming the defendant’s admission of fault), while reinforcing the defense’s speculative and unfounded claims.

Relief Sought:

- **Immediate disqualification of Judge Wong from the case**, as his impartiality has been irreparably compromised.
- **Referral to the Commission on Judicial Performance (CJP) for investigation into judicial misconduct**, particularly for considering ex parte communications and demonstrating bias in favor of the defense.

- **Issuance of a formal order vacating any judicial rulings influenced by the improper ex parte allegations**, ensuring all decisions are reviewed under a fair and impartial judge.

V. Financial Compensation and Punitive Damages Against the Defense

Civil Action for Malicious Prosecution or Abuse of Process

The plaintiff may seek additional legal relief against the defense counsel and their client through a separate civil action for malicious prosecution or abuse of process.

Application to Defense's Misconduct:

1. The defense engaged in a calculated scheme to fabricate harassment claims, which were knowingly false and intended to mislead the court.
2. The defense acted with malice, with the specific intent to destroy the plaintiff's credibility, influence the judge, and reduce potential damages against their client.
3. The defense's misconduct caused direct harm to the plaintiff, including financial losses, emotional distress, and reputational damage.

Relief Sought:

- **Compensatory damages** for financial harm suffered by the plaintiff due to litigation delays and increased legal costs.
- **Punitive damages** against the defense counsel and their client for engaging in fraudulent and malicious litigation tactics.
- **Court sanctions** prohibiting the defense law firm from representing parties in future cases involving similar misconduct.

1 **Conclusion: A Call for Strong Judicial Action**

2 The defense's calculated use of secret ex parte allegations, judicial manipulation, and
3 repeated bad-faith litigation tactics warrants the most severe sanctions available under
4 the law. Monetary penalties, evidentiary sanctions, disqualification of the judge, and
5 disciplinary action against defense counsel must be pursued to preserve the integrity of
6 the court and uphold due process.

7 Without swift and decisive judicial intervention, the pattern of misconduct demon-
8 strated in this case could set a dangerous precedent, allowing parties to weaponize
9 secret allegations to influence judicial rulings and deny opposing litigants their funda-
10 mental rights. Strong sanctions are necessary to reaffirm the core principles of fairness,
11 transparency, and accountability in the justice system.

12 Respectfully Submitted,
13
14

15 Dated: March 11th 2025
16

17 Signed By :

18 DIGITAL SIGNATURE

19 of Franciscus Dylan Rosario

20 u7934598720-3459745-454
21
22

23 Franciscus Dylan Rosario
24 Plaintiff, in Pro Per
25 E: soltrinox@gmail.com
26 P: 650.488.7510
27
28

1 This series of actions represents a gross violation of the plaintiff's rights, as it sub-
2 verts fundamental due process principles by depriving them of access to evidence, the
3 opportunity to confront allegations, and the ability to participate fully in their defense.

4 **1. Filing of a Counter-Lawsuit as a Distraction**

5 • **Description of Violation:** Defense filed a counter-complaint containing spurious
6 or baseless claims, apparently with no factual underpinnings. Such a lawsuit dis-
7 tracts from the central issues, artificially increases the cost and duration of the
8 litigation, and unfairly forces the plaintiff to defend against unsubstantiated alle-
9 gations.

10 • **Why Sanctions Are Justified:**

- 11 – Filing frivolous or bad-faith claims violates CCP § 128.7(b), which requires
12 that all claims be warranted by existing law or by a non-frivolous argument to
13 extend or modify existing law.
- 14 – Using litigation for an improper purpose (e.g., to harass, delay, or needlessly
15 increase the cost of litigation) is itself sanctionable conduct (see *Peake v. Un-*
16 *derwood* (2014) 227 Cal.App.4th 428, 441–42).

17 • **Why Judge Disqualification May Be Sought:**

- 18 – If the judge was privy to or influenced by these unsubstantiated allegations,
19 especially sealed or hidden documents, and gave them undue weight, a motion
20 to disqualify could be considered if it appears the judge tacitly endorsed a
21 frivolous cross-claim.
- 22 – Under CCP § 170.1(a)(6)(A), the judge's conduct and statements illustrate ac-
23 ceptance of the baseless allegations without affording Plaintiff an opportunity
24 to refute them, "a person aware of the facts might reasonably entertain a doubt
25 as to the judge's impartiality."

Key Legal Support

- **Bockrath v. Aldrich Chemical Co.** (1999) 21 Cal.4th 71, 82: A complaint must at least allege facts showing entitlement to relief.
- **In re Marriage of Flaherty** (1982) 31 Cal.3d 637, 650: Frivolous appeals or pleadings used merely for delay are sanctionable.

2. Sealed Filing Without the Plaintiff's Knowledge

- **Description of Violation:** The defense used a digital service to file an accusation under seal, preventing Plaintiff from accessing or reviewing the allegations.
- **Why Sanctions Are Justified:**
 - Due process requires each litigant be given notice and a meaningful opportunity to be heard. (U.S. Const. amend. XIV; *Vermont v. Brillon*, 556 U.S. 81 (2009)).
 - By withholding the content of the pleading, Defense Counsel did actively undermine the adversarial process. California Rules of Court, Rule 2.551 stipulates procedures for sealed documents, which generally require notice and a showing of overriding interests that overcome the right to public access. Violating these standards calls for sanctions against the defense counsel.
- **Why Judge Disqualification May Be Sought:**
 - If the court accepted or reviewed sealed materials without proper justification or procedures, the judge may have compromised the transparency required for a fair hearing. This could rise to an appearance-of-impropriety scenario under CCP § 170.1(a)(6)(A)(iii).

Key Legal Support

- **Associated Press v. U.S. Dist. Court** (9th Cir. 1983) 705 F.2d 1143, 1147: Emphasizes the importance of open proceedings and the limited scenarios in which

1 sealed filings are justified.

- 2 • **People v. Jackson** (2005) 128 Cal.App.4th 1009, 1018–19: Sealing is permissible
3 only under strict compliance with confidentiality rules.

4 **3. Private Electronic Submission Accessible to the Judge**

- 5 • **Description of Violation:** Materials were filed in such a manner that the judge
6 could privately view them without physically serving or disclosing them in open
7 court.
- 8 • **Why Sanctions Are Justified:**
 - 9 – Ex parte communications are broadly prohibited under Canon 3B(7) of the
10 California Code of Judicial Ethics. If Defense Counsel intentionally orches-
11 trated a one-sided submission to the judge, that alone may warrant sanctions
12 for unethical conduct.
- 13 • **Why Judge Disqualification May Be Sought:**
 - 14 – The judge’s acceptance of one-sided, undisclosed materials can create a strong
15 inference of bias or at least the appearance thereof. (See CCP § 170.1(a)(6)(A)).

16 **Key Legal Support**

- 17 • **In re Kensington Int’l Ltd.** (3d Cir. 2003) 353 F.3d 211: Judges must avoid even
18 the appearance of partiality arising from ex parte communications.
- 19 • **Baluyut v. Superior Court** (1996) 12 Cal.4th 826, 832: Affirming the judiciary’s
20 duty to preserve the fairness and impartiality of proceedings.

21 **4. Repeated References to the Unseen Document**

- 22 • **Description of Violation:** Defense counsel repeatedly cited sealed information,
23 effectively using it as if it were part of the open record, while the Plaintiff had no
24 access to it.

1 • **Why Sanctions Are Justified:**

- 2 – Under CCP § 128(a)(4), courts have the power to control their proceedings
3 and punish abuses of process. Referencing “secret evidence” in open court, to
4 the detriment of an opposing party, can be deemed an abuse of process and is
5 subject to sanction.

6 • **Why Judge Disqualification May Be Sought:**

- 7 – If the judge allowed these references without ensuring the Plaintiff received
8 corresponding disclosures, the judge’s impartiality can be questioned (CCP §
9 170.1(a)(6)(A)(iii)).

10 **Key Legal Support**

- 11 • **Gatto v. County of Sonoma** (2002) 98 Cal.App.4th 744, 763: Emphasizes that
12 hidden evidence or reliance on undisclosed materials violates fairness.
13 • **Karnazes v. Hartford** (2015) 237 Cal.App.4th 368, 382–83: A litigant has the
14 right to confront and cross-examine all witnesses and evidence.

15 **5. Allegations of Threats and Harassment**

- 16 • **Description of Violation:** Defense alleged that the plaintiff engaged in harassment
17 or made threats, including reference to unidentified “masked men,” yet did not
18 provide Plaintiff an opportunity to refute or examine the basis for those claims.

19 • **Why Sanctions Are Justified:**

- 20 – Baseless or unsupported claims of harassment, if made knowingly, constitute
21 “bad faith” under CCP § 128.7(c). Counsel can be sanctioned for making
22 allegations without evidentiary support (see *Bockrath v. Aldrich Chemical*, 21
23 Cal.4th 71).

24 • **Why Judge Disqualification May Be Sought:**

- 25 – When the judge credited or entertained these claims without affording Plain-
26 tiff the procedural due process to rebut them, it created to an environment of

perceived partiality.

Key Legal Support

- **People v. Bryant, Smith and Wheeler** (2014) 60 Cal.4th 335, 440–41: Courts must guard against allegations that distort the truth-seeking function and prejudice one side.
- **Craig v. Brown & Root, Inc.** (2000) 84 Cal.App.4th 416, 421: Sanctions are appropriate when allegations are advanced in bad faith to harass or multiply proceedings.

6. Use of a “Sealed Allegation” Mechanism

- **Description of Violation:** Defense exploited sealing rules to present harmful and unproven allegations behind the scenes.
- **Why Sanctions Are Justified:**
 - Under CRC Rule 2.551(b)(1), any sealing must be justified by an overriding interest. Here, Defense’s use seems purely tactical, not legitimate. Tactics designed to thwart transparency contravene CCP § 128.7(b)(1)–(2).
- **Why Judge Disqualification May Be Sought:**
 - By allowing or enabling this mechanism without ensuring disclosure to Plaintiff, the judge became complicit in “secret evidence” or ex parte communications.

Key Legal Support

- **NBC Subsidiary (KNBC-TV), Inc. v. Superior Court** (1999) 20 Cal.4th 1178: The standard for sealing requires an overriding interest that cannot be served by less restrictive means.
- **Johansen v. California State Automobile Assn. Inter-Ins. Bureau** (1975) 15

Cal.3d 9, 21: Reaffirming the principle that concealment of evidence is incompatible with due process.

7. Directing the Judge to Sealed Material

- **Description of Violation:** The judge appears to have reviewed or been prompted to review sealed content that Plaintiff never saw.
- **Why Sanctions Are Justified:**
 - Defense counsel’s direct invitation for the court to consider undisclosed allegations are an intentional violation of both the letter and spirit of open-court proceedings, contravening the ethical rules requiring fairness to the opposing party (CRPC Rule 3.4).
- **Why Judge Disqualification May Be Sought:**
 - The judge, by actually viewing the material and possibly relying on it, created a scenario where the “reasonable observer” standard under CCP § 170.1 could see partiality.

Key Legal Support

- **In re Kensington Int’l Ltd.** (3d Cir. 2003) 353 F.3d 211, 218: Judges must refrain from reviewing ex parte communications that would affect their neutrality.
- **Catchpole v. Brannon** (1995) 36 Cal.App.4th 237, 246: Encouraging or accepting improper communications about the case undermines due process and can mandate recusal.

8. Creation of a Hidden Narrative

- **Description of Violation:** Defense counsel cultivated a storyline portraying Plaintiff in a negative light, not subject to formal adversarial testing, because it was sealed or otherwise withheld.

1 • **Why Sanctions Are Justified:**

- 2 – Willfully painting a party as culpable through concealed information contra-
- 3 venes the principle that all evidence used in court must be subject to cross-
- 4 examination. Estate of Casserley (1941) 42 Cal.App.2d 794, 797.

5 • **Why Judge Disqualification May Be Sought:**

- 6 – The court’s acceptance (or at least non-rejection) of this “hidden narrative”
- 7 fosters the actual partiality. A judge is obligated to ensure each side sees,
- 8 reviews, and addresses all relevant evidence.

9 **Key Legal Support**

- 10 • **Greene v. Lindsey** (1982) 456 U.S. 444, 449: The Supreme Court has long held
- 11 that open access to allegations is essential to due process.
- 12 • **Parratt v. Taylor** (1981) 451 U.S. 527, 541: The “meaningful opportunity” to be
- 13 heard requires transparency in allegations and evidence.

14 **9. Accusations Without the Plaintiff’s Presence or Knowledge**

- 15 • **Description of Violation:** Defense capitalized on Plaintiff’s medical condition to
- 16 introduce claims while Plaintiff was absent or otherwise incapacitated.

17 • **Why Sanctions Are Justified:**

- 18 – Presenting serious accusations in a litigant’s absence, knowing they cannot
- 19 respond, violates fundamental fairness. Brady v. Maryland (1963) 373 U.S. 83,
- 20 though a criminal case, underscores the principle that withholding exculpatory
- 21 or critical evidence from an opposing party is a due process violation.

22 • **Why Judge Disqualification May Be Sought:**

- 23 – The judge’s acceptance or tolerance of unchallenged allegations with knowl-
- 24 edge that the Plaintiff was not present or physically able to respond could be
- 25 perceived as a denial of due process and an “appearance of bias.”

Key Legal Support

- **Moore v. California Minerals etc. Co.** (1953) 115 Cal.App.2d 834, 838: Reinforcing that each party must have a fair opportunity to address the court, especially in critical procedural moments.
- **Muller v. Muller** (1956) 141 Cal.App.2d 722, 732: Procedural fairness is paramount, even if one party temporarily cannot appear.

10. Ongoing “Back-Door” Influences

- **Description of Violation:** The defense continued to use the sealed submission mechanism to feed the judge untested allegations, effectively bypassing standard evidentiary protocols.
- **Why Sanctions Are Justified:**
 - This amounts to a repeated pattern of ex parte communications, directly contradictory to Canon 3B(7) of the California Code of Judicial Ethics and subject to sanction under CCP § 128.7 for repeated bad-faith litigation conduct.
- **Why Judge Disqualification May Be Sought:**
 - The judge’s repeated receipt of such hidden or sealed materials, and potential reliance on them, forms a strong basis for disqualification under CCP § 170.1(a)(6)(A)(iii), as it undermines public confidence in judicial neutrality.

Key Legal Support

- **In re Murchison** (1955) 349 U.S. 133, 136: The due process requirement that a judge be neutral is eviscerated by consistent “back-door” communications.
- **Tate v. Superior Court** (1975) 45 Cal.App.3d 925, 930: Mandates the necessity of open and equal access to the judicial process without clandestine dealings.

SUMMARY

The Defense Counsel's Tactics

By employing sealed filings containing unsubstantiated allegations, repeatedly invoking these hidden materials during court proceedings, and leveraging the plaintiff's vulnerability (e.g., medical limitations), Defense Counsel has subverted the very safeguards that ensure a fair trial. Such conduct not only contravenes key rights such as due process and the right to be heard (U.S. Const. amend. XIV; Cal. Const. art. I, § 7) but also violates ethical and procedural rules governing attorneys (California Rules of Professional Conduct, Rule 3.3, "Candor Toward the Tribunal," and Rule 3.4, "Fairness to Opposing Party and Counsel").

Basis for Judicial Disqualification

The judge's apparent willingness to review materials not disclosed to Plaintiff, and to allow repeated references to sealed allegations, raises serious questions of partiality or the appearance thereof. California Code of Civil Procedure (CCP) § 170.1(a)(6)(A)(iii) provides that a judge must be disqualified if a person aware of the facts might reasonably entertain a doubt as to the judge's impartiality. By giving credence to sealed documents and references unknown to Plaintiff, the judge arguably compromised the requirement of neutrality.

Grounds for Severe Sanctions Against Defense Counsel

Under CCP § 128.5 or § 128.7, courts may impose sanctions against parties or counsel who engage in bad-faith, frivolous tactics or who violate their professional duty to ensure fairness in the judicial process. The described misconduct, such as sealed allegations, ex parte influence, and repeated citing of undisclosed materials, constitutes significant evidence of a willful attempt to gain unfair advantage and hamper the Plaintiff's rights.

SUMMARY

The Defense Counsel's (PSA Law) tactics deprive the plaintiff of the constitutional and procedural safeguards that ensure fairness in civil proceedings. By submitting

1 sealed documents containing serious allegations, repeatedly referencing them in court
2 without allowing review, and capitalizing on the plaintiff's vulnerability, the defense
3 not only undermines the integrity of the judicial process but also severely compromises
4 the plaintiff's ability to mount a proper defense.

5 **1. Filing of a Distracting Counter-Lawsuit**

6 The defense filed a counter-lawsuit against the plaintiff that was based on unsub-
7stantiated allegations and lacked any credible evidence. This tactic appears in-
8tended to distract from the main proceeding and to introduce confusion into the
9litigation.

10 Using baseless claims to divert attention from the original case undermines the
11 plaintiff's ability to have a fair and focused adjudication on the merits of their
12 lawsuit. It effectively prolongs the proceedings and forces the plaintiff to defend
13 against accusations not supported by fact or law.

14 **2. Sealed Filing Without the Plaintiff's Knowledge**

15 The defense filed an accusation and claim through a digital file-and-serve service
16 and maintained it under seal. As a result, the plaintiff was prevented from viewing
17 the specific materials contained within the document.

18 A fundamental tenet of due process is a party's right to see and respond to evidence
19 or claims filed against them. Keeping the document sealed and out of the plaintiff's
20 reach deprives the plaintiff of any meaningful opportunity to challenge or rebut the
21 allegations therein.

22 **3. Private Electronic Submission Accessible to the Judge**

23 The defense then placed the sealed document on the digital platform in a way that
24 made it accessible for the judge to view, without physically handing it to the court
25 in open proceedings.

26 By sharing sealed materials directly with the judge, the defense may have influ-
27 enced the court ex parte (i.e., outside the plaintiff's knowledge), compromising
28 transparency and potentially skewing the judge's impartial viewpoint.

4. **Repeated References to the Unseen Document**

During verbal exchanges with the judge, the defense kept citing this sealed document. Court transcripts show the defense placing emphasis on those hidden allegations.

Continually citing an unseen or unchallengeable document precludes the plaintiff from defending effectively. The judge's perception of the case might be influenced by material to which only the defense, and not the plaintiff, has access.

5. **Allegations of Threats and Harassment**

The defense made claims of harassment and threats by the plaintiff, referencing subjective interpretations of emails and even suggesting the involvement of unidentified "masked men," thereby implying a physical danger to the defendant and defense counsel.

Advancing serious accusations without giving the plaintiff an opportunity to contest them in open court paints the plaintiff in a prejudicial light. It also shifts the court's focus away from the evidence or merits of the original case toward unverified claims of misconduct.

6. **Use of a "Sealed Allegation" Mechanism**

By submitting the allegations as sealed, the defense utilized a procedural loophole to present damaging content behind the scenes.

Sealed or hidden communications circumvent a party's right to know and address charges made against them. Excluding the plaintiff from the process directly contravenes the principles of an adversarial system, where each side is entitled to examine and refute the other side's evidence.

7. **Directing the Judge to Sealed Material**

The judge apparently gained access to these allegations either by physical copy or by reviewing the digital version under seal, materials that were never visible to the plaintiff.

Having the court rely on evidence or allegations that the plaintiff cannot see or

1 contest undermines the fairness of the proceeding. It denies the plaintiff the right
2 to cross-examine or present counterevidence.

3 **8. Creation of a Hidden Narrative**

4 This allowed the defense to build and sustain a hidden narrative around the plain-
5 tiff, casting doubt on the plaintiff's credibility or actions without formal examina-
6 tion of the allegations.

7 The bedrock of due process is an open, fair presentation of facts. Allowing secret
8 or sealed narratives to influence a judge's perspective contravenes the plaintiff's
9 right to a fair hearing, free from undisclosed negative claims.

10 **9. Accusations Without the Plaintiff's Presence or Knowledge**

11 The defense took advantage of the plaintiff's severe medical conditions, while the
12 plaintiff had representatives in court, and made accusations at a time when the
13 plaintiff could not object, challenge, or even know the full scope of what was
14 alleged.

15 A party's temporary unavailability due to health issues does not justify unilateral
16 submissions. Procedural fairness demands that every litigant have an opportunity
17 to confront and rebut accusations, regardless of medical impediments.

18 **10. Ongoing "Back-Door" Influences**

19 Lastly, the defense continued to exploit this sealed submission process, effectively
20 bypassing the plaintiff. The unsubstantiated accusations were never formally in-
21 troduced or tested but nonetheless influenced the proceedings.

22 A back-door flow of information to the judge contravenes fundamental fairness and
23 transparency. It grants the defense undue influence while hampering the plaintiff's
24 constitutionally protected right to notice, opportunity to respond, and a neutral,
25 properly informed adjudicator.

26 Respectfully submitted,
27
28

1 Dated: March 11th 2025

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3 Signed By :

4 DIGITAL SIGNATURE

5 of Franciscus Dylan Rosario

6 u7934598720-3459745-454

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Plaintiff Counsel Pro Per

**SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED
JURISDICTION**

Franciscus Dylan Rosario,

Case No.: CGC-21-594102

PLAINTIFF,

Dept.: 206

v.

Judge: Hon. Rochelle C. East

Subhi Abdelhalim;

Does No.1-No.50;

SonomaLiquor (et al.)

DEFENSE

DECLARATION OF PLAINTIFF

FRANCISCUS DYLAN ROSARIO

IN SUPPORT OF MOTION FOR

JUDICIAL DISQUALIFICATION

AND SANCTIONS ON DEFENSE

COUNSEL

Complaint Filed: July 27, 2021

Trial Date: March 17th, 2025

I, Franciscus Dylan Rosario, declare as follows:

1. Introduction and Background

I am the Plaintiff in the above-captioned matter. I submit this affidavit in support of my Motion for Judicial Disqualification of Judge Garrett Wong pursuant to California Code of Civil Procedure (CCP) § 170.1. This affidavit sets forth the factual basis for my claim that Judge Wong's conduct has demonstrated bias and improper reliance on ex parte communications, specifically his unchallenged acceptance of

1 sealed allegations introduced by defense counsel.

2 **2. Reliance on Sealed, Ex Parte Evidence**

3 a. I have personal knowledge of the procedural irregularities in this case. The de-
4 fense, represented by PSA Law, submitted allegations against me under seal via
5 the court's digital filing system.

6 b. I was never provided access to these sealed documents, which the defense re-
7 peatedly cited in open court. For example, during a hearing, Judge Wong stated:

8 "While my clerk is copying the document, I understand that there have been threats
9 to Mr. Abdelhalim, but I'm not aware of when they took place. I'm aware that there
10 have been, but I'm not aware whether there have been currently threats made to Mr.
11 Abdelhalim, defendant in this case."

12 (See Exhibit A for a transcript excerpt)

13 c. This statement demonstrates that Judge Wong uncritically accepted and incor-
14 porated undisclosed, ex parte allegations into the record, thus prejudicing the pro-
15 ceedings without affording me the opportunity to review or challenge them.

16 **3. Judicial Bias and Prejudicial Narrative**

17 a. Judge Wong's language during the hearings consistently adopted the defense's
18 narrative over my testimony. Instead of acknowledging that I was walking with a
19 malfunctioning scooter, Judge Wong repeatedly described the incident as though I
20 were "using a scooter."

21 b. I contend that this mischaracterization shifts the burden of proof onto me and
22 reinforces an adverse, unchallenged narrative that casts me in a negative light. (See
23 Exhibit B for additional transcript excerpts.)

24 **4. Dismissive Treatment of Counterevidence and Counsel**

25 a. During the proceedings, when my representative, Mr. Keegan, attempted to offer
26 contextual evidence or alternative explanations regarding the defendant's conduct,
27 Judge Wong summarily dismissed his arguments by stating:

28 "I won't even consider that."

1 (Refer to Exhibit C for the complete dialogue.)

2 b. This dismissive remark not only deprived me of a fair opportunity to present
3 my evidence but also underscores a pattern of judicial bias favoring the defense's
4 unverified claims.

5 **5. Ex Parte Influence and Procedural Irregularities**

6 a. Throughout the hearings, Judge Wong repeatedly allowed defense counsel to re-
7 fer to sealed evidence without requiring any supporting justification for the sealed
8 status.

9 b. His casual inquiry regarding the timeline of the sealed evidence, for example
10 asking,

11 "Okay. And there hasn't been anything since then?"

12 further demonstrates that he relied on the defense's representations without inde-
13 pendent verification.

14 c. I have attached, as Exhibit D, additional excerpts from the transcripts that illus-
15 trate this pattern of behavior.

16 **6. Conclusion**

17 Based on the foregoing, I respectfully assert that Judge Garrett Wong's repeated re-
18 liance on sealed, ex parte communications and his failure to subject such evidence
19 to the adversarial process have created a reasonable doubt as to his impartiality. I
20 believe that a reasonable person, upon reviewing these facts, would also question
21 Judge Wong's neutrality in this case. For these reasons, I request that this Court
22 disqualify Judge Wong from presiding over this matter pursuant to CCP § 170.1.

23 I declare under penalty of perjury under the laws of the State of California that the
24 foregoing is true and correct.

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28 Dated: March 11th 2025

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Signed By :
DIGITAL SIGNATURE
of Franciscus Dylan Rosario
u7934598720-3459745-454

Franciscus Dylan Rosario
Plaintiff, in Pro Per
E: soltrinox@gmail.com
P: 650.488.7510

EXHIBIT P

FILED
Superior Court of California
County of San Francisco

MAR 26 2025
CLERK OF THE COURT
BY: KIMBERLY SEPTIEN Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM,

Defendant.

Case No.: CGC-21-594102

ORDER:

- 1) **DENYING PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET [SIC] WONG AND JUDICIAL REVIVE DUE TO CCP 170.6;"**
- 2) **STRIKING "PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS;" AND**
- 3) **STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;"**

**IN THE ALTERNATIVE, VERIFIED
ANSWER OF JUDGE GARRETT L. WONG**

On July 27, 2021, plaintiff Franciscus Dylan Rosario filed the instant action for personal injury and property damage. After a number of trial continuances, on September 17, 2024, the Presiding Judge, who presides over the civil master calendar, granted defendant's ex parte

1 application for a continuance of the trial and continued the trial to January 27, 2025. The Presiding
2 Judge informed the parties that it was the final continuance.

3 Prior to the January 27, 2025, trial date, on January 17, 2025, defendant filed nineteen
4 motions in limine. On January 21, 2025, plaintiff filed one motion in limine. On January 27,
5 2025, plaintiff filed an opposition to defendant's motions in limine one through nineteen.
6 Additionally, plaintiff filed a separate opposition to defendant's motion in limine number
7 seventeen.

8 On January 27, 2025, plaintiff in propria persona and the attorneys for defendant Subhi
9 Abdelhalim appeared in Department 206, the civil master calendar court, and announced they were
10 ready for trial. The trial of this case was then assigned to the undersigned judicial officer for the
11 immediate start of trial. Thereafter, the parties appeared in Department 504 before the undersigned
12 judicial officer for the start of trial beginning with the hearing on pretrial motions. During the
13 hearing, plaintiff requested an accommodation, pursuant to the Americans with Disabilities Act
14 ("ADA"), to allow his legal assistants/advocates to sit with him at counsel table, which the Court
15 granted over the objection of the defendant. Plaintiff then requested a continuance of the trial.
16 After hearing the parties' arguments, for and against a trial continuance, the Court denied the
17 request.

18 The Court then heard argument on certain of the parties' motions in limine. As to plaintiff's
19 motion in limine number one regarding a 911 tape, and defendant's motion in limine number
20 seventeen to exclude evidence, the Court denied plaintiff's motion and granted defendant's motion
21 without prejudice to plaintiff demonstrating foundation for the evidence. As to defendant's
22 motions in limine one and four, to exclude plaintiff's expert witnesses and certain evidence
23 requiring an expert opinion, for failing to comply with Code of Civil Procedure section 2034.610,
24 the Court granted the motions. Plaintiff then renewed his motion for a trial continuance. The
25 parties were instructed to return to the master calendar department for plaintiff to make his motion,
26 and then return to Department 206 if the motion was not granted. The parties were directed to
27 return to this courtroom on January 28, 2025, for the second day of trial, if the Presiding Judge did
28

1 not grant plaintiff's request for a trial continuance. (*See* Reporter's Transcript of Proceedings filed
2 by plaintiff ("RT"), dated 1/27/25.)

3 On January 28, 2025, because the Presiding Judge denied plaintiff's request for a
4 continuance, defendant's attorneys appeared for the second day of trial. Plaintiff did not appear.
5 Instead, one of plaintiff's assistants appeared for plaintiff and stated that plaintiff was unable to
6 attend the trial because he was in the hospital. No other information was provided. Defendant
7 moved for a dismissal of the trial due to plaintiff's absence, which the Court denied. Plaintiff's
8 assistant requested a continuance of the trial. Defendant's counsel objected to the continuance
9 because she alleged that plaintiff was making threats to defendant and defendant's counsel. (RT,
10 dated 1/28/25, pp. 15:4-16:7.) Defendant's counsel referred to defendant's motion in limine
11 number eight, which she stated concerned plaintiff's threatening emails. (*Ibid.*) Defendant's
12 counsel indicated that defendant would be supplementing motion in limine number eight with
13 recent threatening emails from plaintiff. (*Ibid.*) The Court indicated that if defendant believed the
14 threats were "important enough," defendant could pursue remedies outside of the proceedings. (*Id.*
15 at pp. 16:8-17:9.) The Court then granted plaintiff's request for a continuance and continued the
16 trial to February 3, 2025.

17 On February 3, 2025, plaintiff was not present. Plaintiff's assistant was present and
18 requested a continuance of the trial on plaintiff's behalf. Plaintiff's assistant indicated that plaintiff
19 sent an email to the Court, but not to defendant's counsel, regarding his medical condition and
20 request for a trial continuance. The Court ordered a copy of the email to be given to defendant's
21 counsel and to the Court. Plaintiff's assistant requested the trial be continued based on the ADA.
22 Defendant's counsel objected to the continuance because she claimed the defendant was suffering
23 extreme prejudice. Defendant's counsel indicated that masked men had entered defendant's store
24 and left a threatening note. (RT, dated 2/3/25, pp. 4:6-5:23.) Defendant's counsel expressed
25 concern that it could be related to the threatening emails from plaintiff. (*Ibid.*) Defendant's
26 counsel admitted that she did not know if the incident was related to this case. (*Id.* at p. 8:22-24.)
27 The Court stated that it was not drawing any connection between the emails and the purported
28 incident. (*Id.* at p. 10:6-9.) Plaintiff's assistant then indicated that plaintiff intended to produce as

1 evidence a video of defendant's store to demonstrate the type of people who frequented it, and to
2 show that purported elicit activity occurred in that area. (*Id.* at pp. 10-11.) The Court stated that
3 the video tape evidence was not relevant to the issues in the case. (*Id.* at p. 10.) The Court granted
4 a continuance of the case to February 18, 2025, to hear plaintiff's motion to continue based on the
5 ADA. The plaintiff was ordered to be present at the hearing or to provide substantiation of
6 plaintiff's diagnosis and prognosis. (*Id.* at p. 12.)

7 On February 18, 2025, plaintiff appeared with his two assistants. Defendant's attorneys
8 also appeared. At the hearing, the Court granted certain of plaintiff's ADA requests but denied
9 plaintiff's request for a trial continuance based on the ADA. (RT, dated 2/18/25, pp. 13:11-14:19.)
10 Additionally, plaintiff sought to reopen discovery. After hearing argument, the Court granted
11 plaintiff the right to designate current treating physicians as non-retained medical experts and have
12 those experts testify at trial regarding plaintiff's current medical condition and causation for same.
13 (*Id.* at pp. 65-68.) The Court placed restrictions regarding the timing of the disclosure, and the
14 timing and costs of the production of the doctor's records and the doctor's depositions. (*Ibid.*)
15 The Court then continued the trial to March 10, 2025.

16 On February 28, 2025, the Court held a hearing regarding plaintiff's motion for a protective
17 order and enforcement of court order regarding the treating physicians' depositions. Plaintiff's
18 motion was denied without prejudice to plaintiff raising the issues during the trial. Defendant's
19 attorney Alberto Reyna then raised an issue regarding defendant's motion in limine number eight,
20 and an additional email that plaintiff sent to defendant's attorneys and the Court in which plaintiff
21 referred to Mr. Alberto Reyna as "Miss" and referred to him as "Ms. Alberta Reyna." (RT, dated
22 2/28/25, pp. 55-56.) Defendant's attorney also complained that in the email, plaintiff addressed
23 defendant's attorney Priya Navaratnasingham with the "rat" in her name capitalized. (*Ibid.*)

24 The Court admonished plaintiff to show good judgment and to address the attorneys in an
25 appropriate manner. The Court asked plaintiff's assistants to review plaintiff's emails. The Court
26 admonished plaintiff that he could be subject to sanctions if the conduct continued. (*Id.* at pp.
27 56:9-57:5.) Plaintiff apologized for the conduct, stating "You're right, I shouldn't send E-mails
28 late at night, I apologize." (*Id.* at 58:1-9.) Plaintiff stated that he suffered brain damage from the

1 accident and that it caused “these emotional type of things.” (*Id.* at 57:16-21.) The Court warned
2 plaintiff that future incidents could be cause for a contempt hearing. (*Id.* at 58:10-26.) The Court
3 continued the trial to March 17, 2025.

4 On March 3, 2025, the Court issued an order after hearing. A true and correct copy of the
5 order is attached hereto as exhibit 1.

6 On March 10, 2025, plaintiff filed “Plaintiff’s Motion for Recusal or Disqualification of
7 Judge Garret [sic] Wong and Demand for Relief from Constitutional Violations” (hereinafter, “first
8 statement of disqualification”). Plaintiff did not personally serve the first statement of
9 disqualification on the undersigned judicial officer or on the judge’s clerk. In the first statement
10 of disqualification, plaintiff alleges that the undersigned judicial officer is biased against him and
11 in favor of defendant. Plaintiff contends that the undersigned judicial officer must be disqualified
12 from presiding over this case because of what plaintiff contends were secret ex parte
13 communications between the undersigned judicial officer and the defendant and/or his counsel
14 which pertain to unspecified “secret, unverified allegations.” Plaintiff further contends that the
15 undersigned must be disqualified because, purportedly, 1) the Court acknowledged defendant’s
16 claims regarding plaintiff’s threatening or harassing conduct toward defendant without compelling
17 defendant to substantiate the claims with formal evidence; 2) the Court threatened plaintiff with
18 sanctions even though plaintiff purportedly did not receive defendant’s proposed orders,
19 supplemental motion in limine, and email evidence in time to meaningfully respond; 3) the Court
20 required plaintiff to adhere to stringent, short-notice discovery and pay associated costs; 4) the
21 Court accepted defendant’s counsel’s representations that they did not receive the 911 tape without
22 requiring defendant to corroborate counsel’s representation; and 5) the Court purportedly
23 threatened to dismiss plaintiff’s case, refused to accommodate plaintiff, and required plaintiff to
24 be responsible for certain costs, while at the same time ignoring defendant’s “procedural
25 shortcomings.” In addition to seeking the disqualification of the undersigned judicial officer,
26 plaintiff requests a public reprimand of the undersigned and a hearing regarding the purported ex
27 parte communications. Plaintiff also requests that the Court’s prior rulings be set aside,
28

1 defendant's counsel be sanctioned, defendant's answer to be stricken, and a default judgment
2 entered in plaintiff's favor.

3 On March 13, 2025, plaintiff filed "Notice of Motion and Motion for Judicial
4 Disqualification Due to CCP 170.1" (hereinafter, "second statement of disqualification"). Plaintiff
5 did not personally serve the second statement of disqualification on this judicial officer or on the
6 judge's clerk. In the second statement of disqualification, plaintiff claims that the undersigned
7 judicial officer demonstrated bias and was influenced by ex parte material. Plaintiff contends that
8 the defendant filed documents regarding serious allegations of harassment by plaintiff "under seal"
9 so that plaintiff could not see them. Plaintiff claims that the Court repeatedly referred to the sealed
10 material. Additionally, plaintiff contends that during the pretrial motion hearings, the undersigned
11 stated that the incident occurred when plaintiff was riding his scooter. Plaintiff states that he was
12 walking his scooter. Plaintiff contends that the Court shifted the burden to plaintiff to disprove
13 that he was riding his scooter. Finally, plaintiff contends that the undersigned demonstrated a bias
14 by not accepting plaintiff's evidence regarding the videotape of defendant's business.

15 Also on March 13, 2025, plaintiff filed five separate "Notice of Motion for Disqualification
16 of Judge Garret [sic] Wong and Judicial Review Due to CCP 170.6" (hereinafter, "170.6
17 challenges"). The 170.6 challenges make similar claims as made in the first and second statements
18 of disqualification, but the 170.6 challenges seek disqualification pursuant to Code of Civil
19 Procedure section 170.6.

20 Plaintiff's 170.6 challenges do not comply with the requirements set forth in Code of Civil
21 Procedure section 170.6(a)(2). Code of Civil Procedure section 170.6(a)(1) gives a party the right
22 to file an affidavit of prejudice against a judge assigned to hear any matter that involves the
23 determination of a contested issue of law or fact. Although a party has the right to file a section
24 170.6 challenge, the challenge must be timely made. (Code Civ. Proc. § 170.6 (a)(2); *Maas v.*
25 *Superior Court* (2016) 1 Cal.5th 962, 973.) "On timeliness requirements, section 170.6 states that
26 a challenge is permitted any time before the trial or hearing begins, but then sets forth three
27 exceptions, each of which mandates an earlier filing. (Citations.)" (*Sunrise Financial, LLC v.*
28 *Superior Court* (2019) 32 Cal.App.5th 114, 123.) The exceptions to the "general" rule include the

1 “master calendar” rule, the “all-purpose assignment” rule, and the “10-day/5-day” rule. (*People*
2 *v. Superior Court (Lavi)* (1993) 4 Cal.4th 1164, 1171; *Hemingway v. Superior Court* (2004) 122
3 Cal.App.4th 1148, 1154.) Regarding the master calendar rule, Code of Civil Procedure section
4 170.6(a)(2) states that “[i]f directed to the trial of a cause with a master calendar, the motion shall
5 be made to the judge supervising the master calendar not later than the time the cause is assigned
6 for trial.”

7 In this case, the master calendar rule applies. Pursuant to Uniform Local Rules of Court,
8 rule 6.0, the trial calendar for all civil cases is maintained by the Presiding Judge, who assigns civil
9 cases on the trial calendar to open courtrooms. This case was on the trial calendar on January 27,
10 2025. Both sides announced ready, and the Presiding Judge assigned the trial of this case to the
11 undersigned judicial officer. Plaintiff did not make the 170.6 challenges at that time. Instead, the
12 trial of this matter proceeded before the undersigned judicial officer with the submission of, and
13 ruling on, pretrial motions. Accordingly, plaintiff’s section 170.6 challenges are untimely, and
14 they are Denied.

15 Regarding plaintiff’s first and second statements of disqualification, Code of Civil
16 Procedure section 170.3(c)(1) requires that a statement of disqualification be personally served on
17 the judicial officer who is the subject of the disqualification or personally served on the judge’s
18 clerk when the judge is in the courthouse. Pursuant to Code of Civil Procedure section 170.3(c)(3),
19 the time for filing a response to a statement of disqualification does not start to run until the *later*
20 of the filing of the statement of disqualification or the personal service of the statement of
21 disqualification on the judicial officer who is the subject of the disqualification. The reason for
22 the personal service requirement is clear, to ensure that the judicial officer who is the subject of
23 the challenge has actual notice of it.

24 In this case, on March 10, 2025, plaintiff filed the first statement of disqualification, but he
25 did not personally serve it on this judicial officer or the judge’s clerk. On March 13, 2025, plaintiff
26 filed his second statement of disqualification, but did not personally serve it on this judicial officer
27 or the judge’s clerk. Plaintiff therefore did not comply with section 170.3(c)(1) because he did not
28 personally serve the statements of disqualification on the judicial officer who is the subject of the

1 challenge or on the judge's clerk. Consequently, the ten-day period for responding to the first and
2 second statements of disqualification has not run.

3 Plaintiff's first and second statements of disqualification do not state *facts* which constitute
4 grounds for disqualification of the undersigned judicial officer pursuant to Code of Civil Procedure
5 section 170.1. Where, as here, the disqualification statement does not reveal any grounds for
6 disqualification on its face, the Court can strike the statement of disqualification. (Code Civ. Proc.
7 §170.4(b); *Neblett v. Pacific Mutual Life Ins. Co.* (1943) 22 Cal.2d 393, 401.)

8 Code of Civil Procedure section 170.3(c)(1) requires that the statement of disqualification
9 set forth "the facts constituting the grounds" for the disqualification of the judge. Mere allegations
10 setting forth the conclusions of the declarant do not constitute such facts. (*Ephraim v. Superior*
11 *Court* (1941) 42 Cal.App.2d 578, 578-579; *Urias v. Harris Farms, Inc.* (1991) 234 Cal.App.3d
12 415, 426.) As the party seeking the disqualification of the undersigned judicial officer, plaintiff
13 has the burden of demonstrating that the undersigned judicial officer is biased or prejudiced; and,
14 in the absence of proof, the presumption is that no bias or prejudice exists. (*Betz v. Pankow* (1993)
15 16 Cal.App.4th 919, 926; *see also, Estate of Buchman* (1955) 132 Cal.App.2d 81, 104.) The party
16 raising the issue of bias "has a heavy burden and must 'clearly' establish the appearance of bias."
17 (*Wechsler v. Superior Court* (2014) 224 Cal.App.4th 384, 391.)

18 Plaintiff did not meet his burden. Plaintiff's claims regarding purported ex parte
19 communications, "secret allegations" against plaintiff, secret sealed filings, and judicial bias and
20 favoritism are not based on *facts*, but on hearsay, speculation, personal opinion, and conclusory
21 assertions. Yet, the declaration or verified statement filed in support of the disqualification is held
22 to the same standard of admissibility as is oral testimony. (*Mayo v. Beber* (1960) 177 Cal.App.2d
23 544, 551.) "[B]ias and prejudice are never implied and must be established by clear averments."
24 (*Woolley v. Superior Court* (1937) 19 Cal.App.2d 611, 626.) Verified statements which are based
25 upon hearsay or upon information and belief are insufficient to support a judicial disqualification.
26 (*See, N. Beverly Park Homeowners Ass'n v. Bisno* (2007) 147 Cal. App. 4th 762, 778; *United*
27 *Farm Workers of America, AFL-CIO v. Superior Court* (1985) 170 Cal.App.3d 97, 106, n. 6;
28 *Higgins v. City of San Diego* (1899) 126 Cal. 303, 313-314.) A party's unsubstantiated claims are

1 insufficient to support judicial disqualification. (*Bassett Unified School Dist. v. Superior Court*
2 (2023) 89 Cal.App.5th 273, 286.) Further, a party's conclusory assertions are insufficient to
3 support judicial disqualification. (*Urias v. Harris Farms, Inc.* (1991) 234 Cal.App.3d 415, 426;
4 *Ephraim v. Superior Court* (1941) 42 Cal.App.2d 578.)

5 The court in *In re Morelli* (1970) 11 Cal.App.3d 819, 843-44, held that a statement of
6 disqualification may be stricken where, as here, it is based upon "conclusions; references to
7 copious transcripts without citation to specific excerpts; allegations of facts not pertinent or
8 appropriate to the issues to be determined in the hearing; material not legally indicative of bias or
9 prejudice, such as judicial opinions expressed in the discharge of litigation and legal rulings;
10 judicial reactions based on actual observance in participation in legal proceedings; and references
11 to circumstances so inconsequential as to be no indication whatsoever of hostility and nonprobative
12 of any bias or prejudice. (Citations.)"

13 Plaintiff's subjective belief regarding bias is irrelevant and not controlling when
14 adjudicating a motion to disqualify for cause, as the test applied is an objective one. (*United Farm*
15 *Workers of America v. Superior Court* (1985) 170 Cal.App.3d 97, 104; *Stanford University v.*
16 *Superior Court* (1985) 173 Cal.App.3d 403, 408 ("the litigant's necessarily partisan views do not
17 provide the applicable frame of reference.")) "In the context of judicial recusal, '[p]otential bias
18 and prejudice must clearly be established by an objective standard.'" (*Haworth v. Superior Court*
19 (2010) 50 Cal.4th 372, 389; *Roitz v. Coldwell Banker Residential Brokerage Co.* (1998) 62
20 Cal.App.4th 716, 724 ("Potential bias and prejudice must clearly be established.")) "[T]he
21 partisan litigant emotionally involved in the controversy underlying the lawsuit is not the
22 disinterested objective observer whose doubts concerning the judge's impartiality provide the
23 governing standard." (*Haworth*, at p. 389.)

24 Bias or prejudice consists of a 'mental attitude or disposition of the judge towards
25 a party to the litigation . . .' (Citation.) In order for the judge to be disqualified, the
26 prejudice must be against a particular party ... and sufficient to impair the judge's
27 impartiality so that it appears probable that a fair trial cannot be held. (Citations.)
28 (*Ensher, Alexander & Barsoom, Inc. v. Ensher* (1964) 225 Cal.App.2d 318, 322-323; *see also*
Flier v. Superior Court (1994) 23 Cal.App.4th 165, 171.)

1 “To show bias or prejudice...there must be declarations showing indications of personal
2 bias or the existence of some fixed anticipatory prejudgment.” (*In re the Marriage of Fenton*
3 (1982) 134 Cal.App.3d 451, 457.) In this case, plaintiff has not demonstrated that the undersigned
4 judicial officer has a personal bias or a fixed anticipatory prejudgment of the issues in this case.

5 As stated in *People v. Ford* (1914) 25 Cal.App. 388, 395:

6 It is not sufficient in a case of this kind, to allege in the affidavit simply that the
7 defendant believes that he cannot have a fair and impartial trial, etc., but it must be
8 made to appear by the affidavit or affidavits on file that a fair and impartial trial
9 cannot be had before the judge about to try the case, by reason of the bias and
10 prejudice of such judge. (Citation.) The affidavit or affidavits must not only state
11 facts, but the facts stated must establish to the satisfaction of a reasonable mind that
12 the judge has a bias or prejudice that will in all probability prevent him from dealing
13 fairly with the defendant.

14 Here, plaintiff did not clearly establish that the Court is biased against him, nor did plaintiff
15 clearly establish that a person aware of the facts might reasonably entertain a doubt that the Court
16 would be fair and impartial in this matter. The test for such a determination is an objective one,
17 which asks “whether a reasonable member of the public at large, aware of all the facts, would
18 fairly entertain doubts concerning the judge’s impartiality.” (*Briggs v. Superior Court* (2001) 87
19 Cal.App.4th 312, 319.)

20 The ‘reasonable person’ is not someone who is ‘hypersensitive or unduly
21 suspicious,’ but rather is a ‘well-informed, thoughtful observer.’ (Citation.) ‘[T]he
22 partisan litigant emotionally involved in the controversy underlying the lawsuit is
23 not the *disinterested objective observer* whose doubts concerning the judge’s
24 impartiality provide the governing standard.’ (Citations.)

25 (*Wechsler v. Superior Court* (2014) 224 Cal.App.4th 384, 391.)

26 The disinterested objective observer would not have doubts as to whether the undersigned
27 judicial officer would be fair and impartial in this case because the present challenge is based
28 entirely upon the Court’s statements and rulings made during the proceedings.

 Like in the present case, in *Haldane v. Haldane* (1965) 232 Cal.App.2d 393, 395, one of
the parties claimed that the judge was biased against him. The court stated that even if the court

1 makes comments which are “critical or disparaging,” if they are made in furtherance of the court’s
2 duties, they are not grounds for disqualification. (*Ibid.*)

3 [O]pinions formed by the judge on the basis of facts introduced or events occurring
4 in the course of the current proceedings, or of prior proceedings, do not constitute
5 a basis for a bias or partiality motion unless they display a deep-seated favoritism
or antagonism that would make fair judgment impossible.

6 (*Liteky v. United States* (1994) 510 U.S. 540, 555; *see also, Marr v. Southern California Gas Co.*
7 (1925) 195 Cal. 352, 354.)

8 Additionally, plaintiff’s disagreement with the orders of the Court is wholly insufficient to
9 support a challenge for cause. Code of Civil Procedure section 170.2, subdivision (b), makes clear
10 that it is *not* grounds for disqualification that a judge “[h]as in any capacity expressed a view on a
11 legal or factual issue presented in the proceeding....”

12 “A trial court’s numerous rulings against a party—even when erroneous—do not establish
13 a charge of judicial bias, especially when they are subject to review.” (*People v. Farley* (2009) 46
14 Cal.4th 1053, 1110.) A party’s remedy for an erroneous ruling is not a motion to disqualify, but
15 rather review by appeal or writ. (172 Cal. 6 at p. 11; *see also, Ryan v. Welte* (1948) 87 Cal.App.2d
16 888, 893, “[A] wrong opinion on the law of a case does not disqualify a judge, nor is it evidence
17 of bias or prejudice.”) Otherwise, “no judge who is reversed by a higher court on any ruling or
18 decision would ever be qualified to proceed further in the particular case.” *Ryan v. Welte*, at p.
19 893.) As stated in *Liteky v. United States* (1994) 510 U.S. 540, 555:

20 [J]udicial rulings alone almost never constitute valid basis for a bias or partiality
21 motion. (Citation.) In and of themselves ... they cannot possibly show reliance
22 upon an extrajudicial source; and can only in the rarest circumstances evidence the
23 degree of favoritism or antagonism required ... when no extrajudicial source is
involved. Almost invariably, they are proper grounds for appeal, not for recusal.

24 In this case, if plaintiff believed that the court’s statements and rulings were erroneous, his
25 remedy was by way of an appeal or writ petition.

26 Code of Civil Procedure section 170 states that it is the duty of the judge to hear matters
27 assigned to him or her. Indeed, the Court of Appeal has stated that it is the court’s *obligation* not
28 to recuse itself where there are no grounds for disqualification.

1 Judicial responsibility does not require shrinking every time an advocate asserts the
2 objective and fair judge appears to be biased. The duty of a judge to sit where not
3 disqualified is equally as strong as the duty not to sit when disqualified. (Citation.)

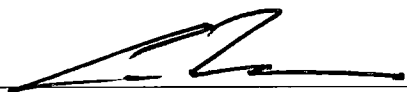
4 (*Briggs v. Superior Court* (2001) 87 Cal.App.4th 312, 319.)

5 Accordingly, because plaintiff's statement of disqualification discloses no legal grounds
6 for disqualification on its face, it is ordered stricken pursuant to Code of Civil Procedure section
7 170.4, subdivision (b).

8 The parties are reminded that this determination of the question of disqualification is not
9 an appealable order and may be reviewed only by a writ of mandate from the Court of Appeal
10 sought within 10 days of notice to the parties of the decision. (Code of Civ. Proc., § 170.3(d).) In
11 the event that a timely writ is sought and an appellate court determines that an answer should have
12 been timely filed, such an answer is filed herewith.

13 GOOD CAUSE APPEARING THEREFORE, It is so ordered.

14 Date: March 25, 2025

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16 
17 _____
18 Garrett L. Wong,
19 Judge of the Superior Court
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1 **VERIFIED ANSWER OF JUDGE GARRETT L. WONG**

2
3 I, Garrett L. Wong, do declare as follows:

4 1. I am a Judge of the Superior Court of California, County of San Francisco. If called
5 as a witness, I would competently testify to the matters stated herein.

6 2. On January 27, 2025, the trial of this case was assigned to me. Thereafter, I presided
7 over, and issued rulings on pretrial motions at, the hearings on January 27, 2025, January 28, 2025,
8 February 3, 2025, February 18, 2025, and February 28, 2025.

9 3. On March 10, 2025, plaintiff filed "Plaintiff's Motion for Recusal or
10 Disqualification of Judge Garret [sic] Wong and Demand for Relief from Constitutional
11 Violations" (hereinafter, "first statement of disqualification"). Plaintiff did not personally serve
12 the first statement of disqualification on me or on my clerk. In the first statement of
13 disqualification, plaintiff alleges that I am biased in favor of defendant and have violated plaintiff's
14 constitutional rights. Plaintiff claims that I must be disqualified because of what plaintiff contends
15 were secret ex parte communications between me and the defendant and/or his counsel which
16 pertained to unspecified "secret, unverified allegations."

17 4. Plaintiff also contends in the first statement of disqualification that I must be
18 disqualified because purportedly 1) I acknowledged defendant's claims regarding plaintiff's
19 threatening or harassing conduct toward defendant without compelling defendant to substantiate
20 the claims with formal evidence; 2) I threatened plaintiff with sanctions even though plaintiff
21 purportedly did not receive defendant's proposed orders, supplemental motion in limine, and email
22 evidence in time to meaningfully respond; 3) I required plaintiff to adhere to stringent, short-notice
23 discovery and pay associated costs; 4) I accepted defendant's counsel's representations that they
24 did not receive the 911 tape without requiring defendant to corroborate his counsel's representation
25 with evidence; and 5) I threatened to dismiss plaintiff's case, refused to accommodate plaintiff,
26 and required plaintiff to be responsible for certain costs, while at the same time ignoring
27 defendant's "procedural shortcomings." In addition to my disqualification, plaintiff requests a
28 public reprimand and a hearing regarding the purported ex parte communications. Additionally,

1 plaintiff requests that the Court's prior rulings be set aside, defendant's counsel be sanctioned,
2 defendant's answer to be stricken, and a default judgment entered in plaintiff's favor.

3 5. On March 13, 2025, plaintiff filed ""Notice of Motion and Motion for Judicial
4 Disqualification Due to CCP 170.1" (hereinafter, "second statement of disqualification"). Plaintiff
5 did not personally serve the second statement of disqualification on me or on my clerk. In the
6 second statement of disqualification, plaintiff claims that I demonstrated bias and was influenced
7 by ex parte material. Plaintiff contends that the defendant filed documents regarding serious
8 allegations of harassment by plaintiff "under seal" so that plaintiff could not see them. Plaintiff
9 claims that I repeatedly referred to the "sealed" material. Additionally, plaintiff contends that
10 during the pretrial motion hearings, I stated that the incident occurred when plaintiff was riding
11 his scooter, but plaintiff states that he was walking his scooter. Plaintiff contends that I shifted the
12 burden to plaintiff to disprove that he was riding his scooter. Finally, plaintiff contends that I
13 demonstrated bias by not accepting plaintiff's evidence regarding the videotape of defendant's
14 business.

15 6. I deny plaintiff's claims. I deny that I engaged in ex parte communications with
16 defendant or defendant's counsel. I deny that I engaged in ex parte communications with any party
17 or attorney. I deny that defendant filed his motion in limine number eight or any supplement to
18 that motion "under seal." I did not order any defense document filed under seal. I did not refer to
19 defendant's purportedly sealed material during the hearings.

20 7. I deny plaintiff's claims that I am biased against plaintiff and in favor of defendant.
21 I deny that any ground for my disqualification exists in this case. I am not biased or prejudiced
22 against or in favor of the plaintiff Franciscus Dylan Rosario. I am not biased or prejudiced against
23 or in favor of defendant Subhi Abdelhalim. I am not biased or prejudiced against or in favor of
24 defendant's attorneys. I am not biased or prejudiced against or in favor of any party or attorney in
25 this action. I know of no reason why I cannot be fair and impartial.

26 8. I deny plaintiff's claims that my statements, decisions, and rulings during the
27 hearings were the product of bias. It is my practice during the hearings in my courtroom to treat
28 all attorneys, litigants, witnesses, and court patrons with respect. At the same time, I must, and

1 do, comply with California Code of Judicial Ethics, Canon 3(B)(3), which states that “a judge
2 *shall* require order and decorum in proceedings before the judge.” (Emphasis added.)
3 Additionally, I must, and do, comply with California Code of Judicial Ethics, Canon 3(B)(6)
4 which states that “[a] judge shall require lawyers in proceedings before the judge to refrain from
5 (a) manifesting, by words or conduct, bias, prejudice, or harassment based upon race, sex, gender,
6 gender identity, gender expression, religion, national origin, ethnicity, disability, age, sexual
7 orientation, marital status, socioeconomic status, or political affiliation.” Although Canon
8 3(B)(6) refers to the judge’s obligation to require lawyers to refrain from manifesting bias,
9 prejudice, and harassment, I hold all litigants and persons appearing before me to this same
10 standard.

11 9. I am not now, nor have I ever been, predisposed to rule in any particular manner
12 in the instant action. In every case over which I preside, including the present case, all rulings
13 made by me are based upon the facts and arguments presented to me, upon my understanding of
14 the law, and my experience in handling similar cases.

15 10. All statements made by me, and all actions taken by me in this proceeding, and in
16 every proceeding over which I have presided, were done in furtherance of what I believe were my
17 judicial duties. My statements and rulings are set forth in the records and in the files herein, which
18 are the best evidence hereof. To that end, I refer to the reporter’s transcript of proceedings on
19 January 27, 2025, January 28, 2025, February 3, 2025, February 18, 2025, and February 28, 2025,
20 which plaintiff filed in support of his statements of disqualification. I additionally refer to the Court’s
21 order after hearing issued on March 3, 2025. A true and correct copy of the order is attached hereto
22 as exhibit 1. To the extent plaintiff’s statement of my statements and rulings are inconsistent
23 therewith, they are denied.

24 11. I know of no facts or circumstances which would require my disqualification or
25 recusal in this case.

26 ///

27 ///

28 ///

12. I do not believe that my recusal would serve the interests of justice.

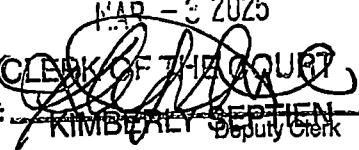
I declare under penalty of perjury that the foregoing is true and correct.

Executed March 25, 2025, at San Francisco County, California.

Garrett L. Wong,
Judge of the Superior Court

EXHIBIT 1

FILED
Superior Court of California
County of San Francisco

MAR - 3 2025
CLERK OF THE COURT
BY:  KIMBERLY SEFTIEN
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,

Defendants.

Case No. CGC-21-594102

ORDER AFTER HEARING RE:
DEPOSITIONS OF PLAINTIFF'S TREATING
PHYSICIANS

Complaint Filed: July 27, 2021
Trial Date: March 17, 2025

Plaintiff's Motion for Protective Order came on for hearing on February 28, 2025, at 9:30 a.m., in Department 504 of this Court, the Honorable Garrett L. Wong presiding. Franciscus Dylan Rosario ("Plaintiff") appeared *in propria persona* with Plaintiff's assistant Karim Sobati ("Mr. Sobati"), and Alberto Reyna, Esq., Phillips, Spallas & Angstadt LLP, appeared on behalf of Defendant Subhi Abdelhalim ("Defendant's") via remote video conference.

I. Background

On January 27, 2025, Plaintiff and Defendant announced their readiness for trial and the matter was assigned to Department 504 for jury trial. Plaintiff, acting in propria persona, and appearing with

1 Mr. Sobati, a non-lawyer, had no motions in limine. The Court then considered two defense motions in
2 limine, one pertinent to this order, and which sought to exclude Plaintiff from offering any expert or
3 non-retained expert testimony. On September 17, 2024, the Presiding Judge of this court approved an
4 order granting the continuance of the trial date to January 27, 2025. The order contained a stipulation
5 that all trial deadlines, discovery related deadlines, including both expert and percipient witness
6 discovery deadlines would be based upon the new trial date.

7 Under Code of Civil Procedure section 2034.260 et seq., the date for exchange of expert witness
8 designations was December 9, 2024. Defendant served his demand for exchange of expert witness
9 information on October 22, 2024. On December 9, 2024, fifty days before trial as required by Code,
10 Defendant served his expert witness disclosures. As of January 27, 2025, Plaintiff had yet to serve a
11 designation of either retained or non-retained expert witnesses. The court granted Defendant's Motion
12 in Limine No. 1 to exclude evidence of any witness offering expert opinion testimony based upon the
13 failure comply with Code of Civil Procedure section 2034.260 et seq

14 Plaintiff then requested a continuance to seek additional discovery. Defendant noted that the
15 Presiding Judge's order stated that the last continuance "shall be the final continuance absent
16 exceptional cause." This court told Plaintiff that only the Presiding Judge of the court could consider
17 such a request (San Francisco Local Rule 6.O.B. Continuances) and that he should appear with defense
18 counsel in the Presiding Judge's department to seek immediate relief the following morning. The parties
19 were instructed to return to Department 504 immediately after the Presiding Judge's decision.
20 Plaintiff's continuance request was denied by the Presiding Judge, but he did not return that morning to
21 Department 504. Instead, Mr. Sobati appeared to tell the court and defense counsel that Plaintiff had
22 fallen ill and was unavailable. The court scheduled a status hearing on February 3, 2025, to obtain an
23 update on Plaintiff's medical condition. On February 3, 2025, Mr. Evan Keegan appeared for Plaintiff,
24 who advised that Plaintiff had been told to remain "reclined" until February 11, 2025. This court reset
25 the matter for February 18, 2025.

26 Plaintiff appeared on February 18, 2025, and requested additional time to submit the names of
27

1 physicians who treated him on and after January 27, 2025, as witnesses. Defense objected to any
2 additional witnesses based on the court's earlier ruling excluding all expert witnesses. Although
3 Plaintiff submitted no formal motion to submit tardy expert witness information, the court determined
4 that his oral request for relief was sufficient under Code of Civil Procedure section 2034.720, subd.
5 (c)(2) to establish a reason for the failure to submit information about treating physicians responding to
6 his recent medical crisis. The court ordered disclosure of the treating physicians by February 21, 2025,
7 and to meet and confer regarding deposition dates. If the parties could not agree on a witness schedule,
8 depositions were ordered for March 5, 6, or 7, 2025. Under Code of Civil Procedure section 2034.720,
9 subd. (d), the court found that Defendant would be awarded costs and litigation expenses connected with
10 the treating physician depositions.

11 In conformity with the court's disclosure ruling, Plaintiff disclosed the names of Dr. Rene
12 Gonzalez and Dr. Brian Balbon ("treating physicians") to Defendant on Friday, Friday February 21,
13 2025. The identification of these two expert witnesses included a proposed protective order regarding
14 the depositions of his witnesses. Two days later, Plaintiff sent an email to defense counsel regarding the
15 scope of the depositions that can be summarized as a lengthy missive regarding "precise parameters and
16 appropriate procedures." Defendant forwarded the email to the court and requested a hearing to clarify
17 the court's February 18, 2025, rulings. In another email, Plaintiff opposed the hearing. The court set a
18 hearing to consider the scope of the depositions on February 28, 2025.

19 II. Discussion

20 A treating physician is not limited to opinion testimony based solely on the observations and the
21 treatment of the patient/plaintiff. "[H]e may testify as to any opinions formed on the basis of facts
22 independently acquired and informed by his training, skill, and experience. This may well include
23 opinions regarding causation and standard of care because such issues are inherent in a physician's
24 work." *Schreiber v. Estate of Kiser* (1999) Cal.4th 31, 39.

25 Plaintiff has alleged that his recent absence from court is related to the personal injury he
26 suffered because of a motor vehicle collision with an electric scooter on February 4, 2021. Plaintiff
27

1 seeks to limit the deposition of his two treating physicians to "factual observations." By contrast,
2 Plaintiff aims to allow his treating physicians to utilize and testify about all relevant medical
3 documentation and findings from other treating physicians as part of their own analysis." He also asks
4 the court to prohibit Defendant from challenging the integrity of "these materials" during the deposition
5 of his treating physicians. Plaintiff proposes, among other things, the "pre-submission" of questions
6 confined to factual observations, attempts to explore hypothetical scenarios, unrelated medical theories
7 or alternative theories and a forty-five-minute limitation for each deposition.

8 Personal injury litigation relies on expert testimony. To prepare for trial, Defendant knows
9 which expert will be called but does not know what either doctor will say. Defendant is entitled to
10 examine each treating physician and to review any materials that either doctor considered to formulate
11 their opinion regarding the cause of Plaintiff's medical difficulties as of January 27, 2025. Defendant
12 may ask questions reasonably calculated to lead to admissible discovery. The court is unwilling to
13 require Defendant to submit written questions to the treating physicians.

14 The court has liberally allowed Plaintiff's tardy disclosure under Code of Civil Procedure section
15 2034.720, subd. (c)(2) as a form of "surprise" in the interest of having the matter resolved on the merits.
16 In that regard, Plaintiff stated at the hearing that he had not yet acquired either expert's file for
17 production to Defendant. Plaintiff offered some dates for depositions, but too soon for Defendant to
18 review an expert's file and to prepare for the examination of each treating physician. At some point the
19 matter must go to trial without further delay.

20 Using its discretion to find terms and conditions as may be just under Code of Civil Procedure
21 section 2034.720, subd. (d), the court reset the dates for Plaintiff to obtain and produce the treating
22 physicians' files to Defendant, scheduled a deadline for the depositions, awarded costs and litigation
23 expenses to Defendant, and set a firm trial date.

24 III. Disposition

25 After consideration of the pleadings, the court record, and argument by plaintiff, Mr. Sobati, and
26 counsel:

- 1 1. Plaintiff's Motion for Protective Order and Enforcement of Court Order Regarding Treating
2 Physicians' Depositions asks the court to rule in a vacuum and seeks relief inconsistent with
3 Code of Civil Procedure. The motion is improper and is **Denied without prejudice** for that
4 reason. Plaintiff may make specific objections at the deposition or at trial.
- 5 2. Defense counsel shall take the depositions of Plaintiff's treating physicians Dr. Rene
6 Gonzalez and Dr. Brian Balbon.
- 7 3. The scope of Dr. Rene Gonzalez's and Dr. Brian Balbon's depositions shall concern
8 Plaintiff's medical condition as of January 27, 2025, through present. Defendant is entitled to
9 examine each treating physician as to any opinions formed on the basis of facts
10 independently acquired and informed by his training, skill and experience. *Schreiber v.*
11 *Estate of Kiser* (1999) 22 Cal. 4th 31, 39.
- 12 4. Plaintiff must produce all medical records relating to the treatment on or after January 27,
13 2025 of Plaintiff by Dr. Rene Gonzalez and Dr. Brian Balbon to defense counsel before the
14 end of business day Monday, March 3, 2025.
- 15 5. Plaintiff's failure to produce either Dr. Rene Gonzalez's or Dr. Brian Balbon's medical
16 records before the end of business day, March 3, 2025, shall result in witness exclusion.
- 17 6. The depositions of Dr. Rene Gonzalez and R. Brian Balbon shall be noticed by defense
18 counsel to take place on a date and time during March 10 through 14, 2025.
- 19 7. Dr. Rene Gonzalez and Dr. Brian Balbon shall make themselves available for their respective
20 depositions on a date and time during March 10, 2025 through March 14, 2025. Plaintiff is
21 responsible for coordinating the doctors' appearances at the depositions on the dates as
22 noticed by defense counsel.
- 23 8. Plaintiff has represented that Dr. Rene Gonzalez and Dr. Brian Balbon have both agreed to
24 attend the depositions free of charge.
- 25 9. Dr. Rene Gonzalez or Dr. Brian Balbon's failure to make themselves available for deposition
26 on a date and time during March 10 through 14, 2025 will result in their exclusion as
27

witnesses,

10. Plaintiff is responsible to pay costs associated with the depositions of Dr. Rene Gonzalez and Dr. Brian Balbon except for costs associated with deposition transcripts. Civil Procedure section 2034.720, subd. (d). Each party shall be responsible for paying their own deposition transcript costs.

11. Defense counsel, after reviewing the medical records to be produced by Plaintiff by or before end of business day March 3, 2025, shall provide Plaintiff with invoices outlining the costs associated with the depositions of Dr. Rene Gonzalez and Dr. Brian Balbon.

12. Plaintiff shall provide defense counsel with payment of all deposition costs at least 24 hours in advance of the commencement of the depositions of Dr. Rene Gonzalez and Dr. Brian Balbon.

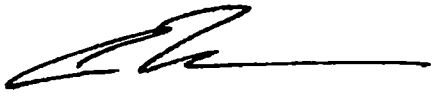
13. Should Plaintiff fail to provide defense counsel with payment of all the disposition costs at least 24 hours in advance of the commencement of the depositions of Dr. Rene Gonzalez and Dr. Brian Balbon, the depositions shall not proceed as scheduled and they shall be excluded as witnesses.

14. Trial shall proceed on March 17, 2025, at 9:30 a.m. in Department 504 of this Court.

15. Mr. Sobati shall review all of Plaintiff's communications addressed to defense counsel prior to sending to ensure that all communications are free of any disparaging comments to any defense counsel or their firm. Plaintiff has been warned that the failure to conduct himself with respect in all further communications with defense counsel may result in a contempt citation and be subject to a fine of up to \$1,000.

IT IS SO ORDERED.

Dated: March 3, 2025


HON. GARRETT L. WONG
JUDGE OF THE SUPERIOR COURT

- 6 -

ORDER AFTER HEARING RE: DEPOSITIONS OF
PLAINTIFF'S TREATING PHYSICIANS

Rosario v. Abdelhalim, et al.

San Francisco Superior Court Case No. CGC-21-594102

1
2
3 **SUPERIOR COURT OF CALIFORNIA**
4 **County of San Francisco**

5 FRANCISCUS DYLAN ROSARIO

6 Plaintiff,

7 v.

8 SUBHI ABDELHALIM, INDIVIDUALLY, AND
9 DBA SONOMA LIQUOR, DOES 1 TO 50,

10 Defendants.

Case No.: CGC-21-594102

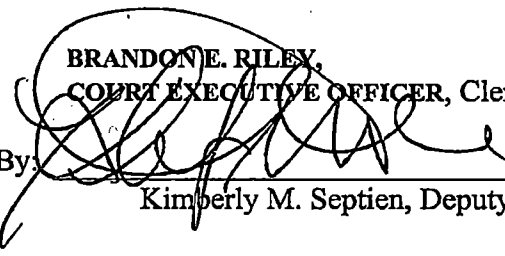
**CERTIFICATE OF ELECTRONIC
SERVICE**
(CCP §1010.6 & CRC 2.251)

11
12 I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San
13 Francisco, certify that I am not a party to the within action.

14
15 On March 3, 2025, I electronically served the attached **ORDER AFTER HEARING**
16 **RE: DEPOSITIONS OF PLAINTIFF'S TREATING PHYSICIANS** via File & ServeXpress
17 on the recipients designated on the Transaction Receipt located on the File & ServeXpress
18 website.

19 Dated: March 3, 2025

20 **BRANDON E. RILEY,**
21 **COURT EXECUTIVE OFFICER, Clerk**

22 By: 

23 Kimberly M. Septien, Deputy Clerk
24
25

1
2
3 **SUPERIOR COURT OF CALIFORNIA**
4 **County of San Francisco**

5 FRANCISCUS DYLAN ROSARIO

6 Plaintiff,

7 v.

8 SUBHI ABDELHALIM, INDIVIDUALLY, AND
9 DBA SONOMA LIQUOR, DOES 1 TO 50,

10 Defendants.

Case No.: CGC-21-594102

**CERTIFICATE OF ELECTRONIC
SERVICE & CERTIFICATE OF
SERVICE BY MAIL**
(CCP §1010.6 & CRC 2.251 &
CCP§ 1013a(4))

11
12 I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San
13 Francisco, certify that I am not a party to the within action.

14 **CERTIFICATE OF ELECTRONIC SERVICE**

15 On March 26, 2025, I electronically served the attached **ORDER: (1) DENYING**
16 **PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE**
17 **GARRET [SIC] WONG AND JUDICIAL REVIWE DUE TO CCP 170.6;" (2) STRIKING**
18 **"PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE**
19 **GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL**
20 **VIOLATIONS;" AND (3) STRIKING "NOTICE OF MOTION AND MOTION FOR**
21 **JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;" IN THE ALTERNATIVE,**
22 **VERIFIED ANSWER OF JUDGE GARRETT L. WONG** via File & ServeXpress on the
23 recipients designated on the Transaction Receipt located on the File & ServeXpress website.
24

CERTIFICATE OF SERVICE BY MAIL

On March 26, 2025, I served the attached **ORDER: (1) DENYING PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET [SIC] WONG AND JUDICIAL REVIWE DUE TO CCP 170.6;" (2) STRIKING "PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS;" AND (3) STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;" IN THE ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG** by placing a copy thereof in a sealed envelope addressed to each of the following:

Franciscus Dylan Rosario
7624 Melody Dr.,
Rohnert Park, CA 94928

Priya D. Navaratnasingham
Phillips Spallas & Angstadt LLP
560 Mission Street, Suite 1010
San Francisco, CA 94105

Debra D. Lew
Office Of The Treasurer And Tax Collector
P.O. Box 7426
San Francisco, CA 94120

Robert K. Phillips
Phillips Spallas & Angstadt LLP
560 Mission Street, Ste.1010
San Francisco, CA 94105

and, I then placed the sealed envelope(s) in the outgoing mail at 400 McAllister Street, San Francisco, CA 94102, on the date indicated above for collection with the postage thereon fully prepaid, and mailed on that date following standard court practices.

Dated: March 26, 2025

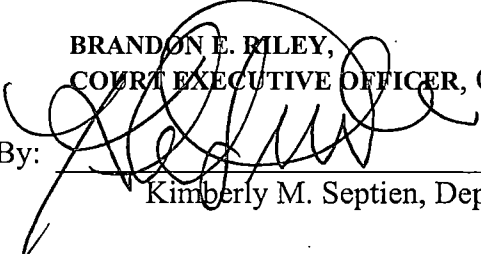
By: 
BRANDON E. RILEY,
COURT EXECUTIVE OFFICER, Clerk
Kimberly M. Septien, Deputy Clerk

EXHIBIT Q

ATTORNEY OR PARTY WITHOUT ATTORNEY: FRANCISCUS ROSARIO NAME: FRANCISCUS ROSARIO FIRM NAME: PRO PERSONA STREET ADDRESS: 7624 MELODY DR CITY: PHONER PARK STATE: CA ZIP CODE: 94928 TELEPHONE NO.: 650-488-7510 FAX NO.: EMAIL ADDRESS: soltrinox@gmail.com ATTORNEY FOR (name): —	FOR COURT USE ONLY FILED San Francisco County Superior Court JUN 27 2025 CLERK OF THE COURT BY: <u></u> Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 400 McALLISTER ST SAN FRANCISCO CA 94102 MAILING ADDRESS: 400 McAllister ST SAN FRANCISCO CA 94102 CITY AND ZIP CODE: SAN FRANCISCO, CA 94102 BRANCH NAME: CIVIC CENTER COURT HOUSE	CASE NUMBER: CGC-21-594102
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT:	
☒ NOTICE OF APPEAL ☐ CROSS-APPEAL (UNLIMITED CIVIL CASE)	

Notice: Please read *Information on Appeal Procedures for Unlimited Civil Cases* (Judicial Council form APP-001-INFO) before completing this form. This form must be filed in the superior court, not in the Court of Appeal. A copy of this form must also be served on the other party or parties to this appeal. You may use an applicable Judicial Council form (such as APP-009 or APP-009E) for the proof of service. When this document has been completed and a copy served, the original may then be filed with the court with proof of service.

1. NOTICE IS HEREBY GIVEN that:

- a. (Name): **FRANCISCUS ROSARIO** appeals from a judgment or order in this case.
- b. The judgment or order was entered on (list the date or dates the judgment and each order being appealed were entered):
APRIL 25th 2025
- c. The appeal is from the following order or judgment (check all that apply):
- ☒ Judgment after jury trial
 - ☐ Judgment after court trial
 - ☐ Default judgment
 - ☐ Judgment after an order granting a summary judgment motion
 - ☐ Judgment of dismissal under Code of Civil Procedure, §§ 581d, 583.250, 583.360, or 583.430
 - ☐ Judgment of dismissal after an order sustaining a demurrer
 - ☐ An order after judgment under Code of Civil Procedure, § 904.1(a)(2)
 - ☐ An order or judgment under Code of Civil Procedure, § 904.1(a)(3)–(13)
 - ☐ Other (describe and specify the code section or other authority that authorizes this appeal):
- d. ☐ The judgment or order being appealed directs payment of sanctions by an attorney for a party. The attorney (name): _____ appeals.

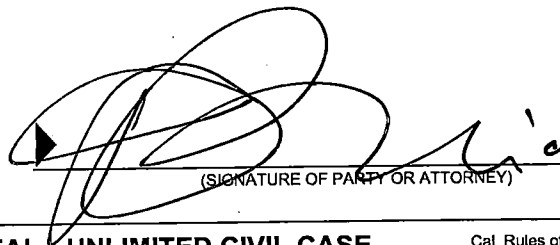
2. For cross-appeals only:

- a. Date notice of appeal was filed in original appeal:
- b. Date superior court clerk mailed notice of original appeal:
- c. Court of Appeal case number (if known):

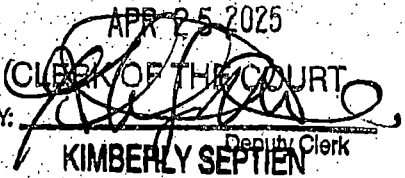
3. ☐ The judgment or order being appealed is attached (optional).

Date: **June 27th 2025**

FRANCISCUS ROSARIO
 (TYPE OR PRINT NAME)


 (SIGNATURE OF PARTY OR ATTORNEY)

FILED
Superior Court of California
County of San Francisco

APR 25 2025
CLERK OF THE COURT
BY: 
KIMBERLY SEPTIEN Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

HONORABLE GARRETT L. WONG
[DEPARTMENT 504]

~~PROPOSED~~ **JUDGMENT**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

On July 27, 2021, Franciscus Dylan Rosario brought suit against Subhi Abdelhalim, individually, and dba Sonoma Liquor, in the above-entitled action arising out of an alleged automobile versus electric scooter accident which occurred on February 4, 2021.

This action came on regularly for jury trial on January 27, 2025, in Department 504 of the San Francisco County Superior Court, the Honorable Garrett L. Wong Judge presiding; the Plaintiff Franciscus Dylan Rosario appearing *in propria persona*; and Defendant Subhi Abdelhalim appearing by attorneys Priya Navaratnasingham and Alberto Reyna.

On April 15, 2025, a jury of 12 persons was regularly impaneled and sworn. Witnesses were sworn and testified. After hearing the evidence and the parties' arguments, the jury was duly instructed

1 by the Court and the cause was submitted to the jury with directions to return a verdict solely on the
2 issues of liability and causation.

3 During trial Defendant Subhi Abdelhalim denied fault for the subject accident.

4 On April 23, 2025, the jury returned its verdict as follows:

5 (1) Was Subhi Abdelhalim negligent?

6 Yes

X No

7 The presiding juror signed and dated the verdict form. A true and correct copy of the Verdict
8 form was filed by the Court on April 23, 2025.

9 **NOW, THEREFORE, IT IS HEREBY ORDERED ADJUDGED, AND DECREED:**

10 1. Judgment is entered in favor of Defendant Subhi Abdelhalim individually and dba

11 Sonoma Liquor against Plaintiff Franciscus Dylan Rosario.

12 2. Costs shall be awarded to Defendant Subhi Abdelhalim individually and dba Sonoma
13 Liquor after post-trial motions for fees and costs have been filed by Defendant and heard by this Court.
14

15
16 Dated: APRIL 25, 2025

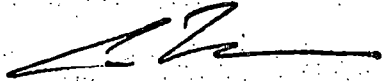
17 
HONORABLE GARRETT L. WONG
JUDGE OF THE SUPERIOR COURT
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EXHIBIT R

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: FRANCISCUS DYLAN ROSARIO FIRM NAME: IN PRO PERSONA STREET ADDRESS: 7624 Melody Dr CITY: Rohnert Park STATE: CA ZIP CODE: 94928 TELEPHONE NO.: 650.488.7510 FAX NO.: E-MAIL ADDRESS: soltrinox@gmail.com ATTORNEY FOR (name): SELF REPRESENTED LITIGANT	FOR COURT USE ONLY FILED Superior Court of California County of San Francisco JUL 29 2025 CLERK OF THE SUPERIOR COURT By <u><i>Nancy T. Marks</i></u> Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 400 MCALLISTER SAN FRANCISCO CA 94102 MAILING ADDRESS: 400 MCALLISTER SAN FRANCISCO CA 94102 CITY AND ZIP CODE: SAN FRANCISCO CA 94102 BRANCH NAME: CIVIC CENTER	
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM OTHER PARENT/PARTY: SONOMA LIQUOR	
APPELLANT'S NOTICE DESIGNATING RECORD ON APPEAL (UNLIMITED CIVIL CASE)	SUPERIOR COURT CASE NUMBER: CGC-21-594102
RE: Appeal filed on (date): 2025-06-27	COURT OF APPEAL CASE NUMBER (if known): A173827
Notice: Please read <i>Information on Appeal Procedures for Unlimited Civil Cases</i> (form APP-001-INFO) before completing this form. This form must be filed in the superior court, not in the Court of Appeal.	

1. RECORD OF THE DOCUMENTS FILED IN THE SUPERIOR COURT

I choose to use the following method of providing the Court of Appeal with a record of the documents filed in the superior court (check a, b, c, or d, and fill in any required information):

- a. ☒ A clerk's transcript under rule 8.122. (You must check (1) or (2) and fill out the clerk's transcript section (item 4) on pages 2 and 3 of this form.)
- (1) ☐ I will pay the superior court clerk for this transcript myself when I receive the clerk's estimate of the costs of this transcript. I understand that if I do not pay for this transcript, it will not be prepared and provided to the Court of Appeal.
- (2) ☒ I request that the clerk's transcript be provided to me at no cost because I cannot afford to pay this cost. I have submitted the following document with this notice designating the record (check (a) or (b)):
- (a) ☒ An order granting a waiver of court fees and costs under rules 3.50–3.58; or
- (b) ☐ An application for a waiver of court fees and costs under rules 3.50–3.58. (Use Request to Waive Court Fees (form FW-001) to prepare and file this application.)
- b. ☐ An appendix under rule 8.124.
- c. ☐ The original superior court file under rule 8.128. (NOTE: Local rules in the Court of Appeal, First, Third, and Fourth Appellate Districts, permit parties to stipulate (agree) to use the original superior court file instead of a clerk's transcript; you may select this option if your appeal is in one of these districts and all the parties have stipulated to use the original superior court file instead of a clerk's transcript in this case. Attach a copy of this stipulation.)
- d. ☐ An agreed statement under rule 8.134. (You must complete item 2b(2) below and attach to your agreed statement copies of all the documents that are required to be included in the clerk's transcript. These documents are listed in rule 8.134(a).)

2. RECORD OF ORAL PROCEEDINGS IN THE SUPERIOR COURT

I choose to proceed (you must check a or b below):

- a. ☐ WITHOUT a record of the oral proceedings (what was said at the hearing or trial) in the superior court. I understand that without a record of the oral proceedings in the superior court, the Court of Appeal will not be able to consider what was said during those proceedings in deciding whether an error was made in the superior court proceedings.

CASE NAME:	SUPERIOR COURT CASE NUMBER:
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2. b. ☒ WITH the following record of the oral proceedings in the superior court (you must check (1), (2), or (3) below):

(1) ☒ A reporter's transcript under rule 8.130. (You must fill out the reporter's transcript section (item 5) on pages 3 and 4 of this form.) I have (check all that apply):

- (a) ☐ Deposited with the superior court clerk the approximate cost of preparing the transcript by including the deposit with this notice as provided in rule 8.130(b)(1).
- (b) ☐ Attached a copy of a Transcript Reimbursement Fund application filed under rule 8.130(c)(1).
- (c) ☐ Attached the reporter's written waiver of a deposit under rule 8.130(b)(3)(A) for (check either (i) or (ii)):
- (i) ☐ all of the designated proceedings.
- (ii) ☐ part of the designated proceedings.
- (d) ☐ Attached a certified transcript under rule 8.130(b)(3)(C).

(2) ☐ An agreed statement. (Check and complete either (a) or (b) below.)

- (a) ☐ I have attached an agreed statement to this notice.
- (b) ☐ All the parties have stipulated (agreed) in writing to try to agree on a statement. (You must attach a copy of this stipulation to this notice.) I understand that, within 40 days after I file the notice of appeal, I must file either the agreed statement or a notice indicating the parties were unable to agree on a statement and a new notice designating the record on appeal.

(3) ☐ A settled statement under rule 8.137. (You must check (a), (b), or (c) below, and fill out the settled statement section (item 6) on page 4.)

- (a) ☐ The oral proceedings in the superior court were not reported by a court reporter.
- (b) ☐ The oral proceedings in the superior court were reported by a court reporter, but I have an order waiving fees and costs.
- (c) ☐ I am asking to use a settled statement for reasons other than those listed in (a) or (b). (You must serve and file the motion required under rule 8.137(b) at the same time that you file this form. You may use form APP-025 to prepare the motion.)

3. RECORD OF AN ADMINISTRATIVE PROCEEDING TO BE TRANSMITTED TO THE COURT OF APPEAL

☐ I request that the clerk transmit to the Court of Appeal under rule 8.123 the record of the following administrative proceeding that was admitted into evidence, refused, or lodged in the superior court (give the title and date or dates of the administrative proceeding):

Title of Administrative Proceeding	Date or Dates
------------------------------------	---------------

4. NOTICE DESIGNATING CLERK'S TRANSCRIPT

(You must complete this section if you checked item 1a above indicating that you choose to use a clerk's transcript as the record of the documents filed in the superior court.)

a. **Required documents.** The clerk will automatically include the following items in the clerk's transcript, but you must provide the date each document was filed, or if that is not available, the date the document was signed.

Document Title and Description	Date of Filing
(1) Notice of appeal	2025-06-27
(2) Notice designating record on appeal (this document)	2025-07-29
(3) Judgment or order appealed from	2025-04-25
(4) Notice of entry of judgment (if any)	2025-04-29
(5) Notice of intention to move for new trial or motion to vacate the judgment, for judgment notwithstanding the verdict, or for reconsideration of an appealed order (if any)	2025-05-05
(6) Ruling on one or more of the items listed in (5)	2025-07-15
(7) Register of actions or docket (if any)	?

CASE NAME: ROSARIO v ABDEL HALIM SONOMA LIQUOR	SUPERIOR COURT CASE NUMBER:
---	-----------------------------

4. NOTICE DESIGNATING CLERK'S TRANSCRIPT

b. **Additional documents.** (If you want any documents from the superior court proceeding in addition to the items listed in 4a. above to be included in the clerk's transcript, you must identify those documents here.)

- ☒ I request that the clerk include in the transcript the following documents that were filed in the superior court proceeding. (You must identify each document you want included by its title and provide the date it was filed or, if that is not available, the date the document was signed.)

Document Title and Description	Date of Filing
(8) APPLICATION FOR WAIVER OF COURT FEES	2024 - 12 - 13
(9) ORDER GRANTING WAIVER OF COURT FEES	2024 - 12 - 13
(10) ORDER ON PLAINTIFFS POST TRIAL MOTIONS	2025 - 07 - 15
(11) NOTICE OF APPEAL BY PLAINTIFF	2025 - 06 - 27

- ☒ See additional pages. (Check here if you need more space to list additional documents. List these documents on a separate page or pages labeled "Attachment 4b," and start with number (12).)

c. **Exhibits to be included in clerk's transcript**

- ☒ I request that the clerk include in the transcript the following exhibits that were admitted in evidence, refused, or lodged in the superior court. (For each exhibit, give the exhibit number, such as Plaintiff's #1 or Defendant's A, and a brief description of the exhibit. Indicate whether or not the court admitted the exhibit into evidence. If the superior court has returned a designated exhibit to a party, the party in possession of the exhibit must deliver it to the superior court clerk within 10 days after service of this notice designating the record. (Rule 8.122(a)(3).))

Exhibit Number	Description	Admitted (Yes/No)
(1) 7	DIGITAL FILE SECOND 911 CALL	YES
(2) 20	DIGITAL FILE DEFENDANT 911 CALL	YES
(3) 26	BODY CAM DIGITAL FILE OFFICER THOMPSON	YES
(4) 27	BODY CAM DIGITAL FILE OFFICER ORENCO	YES

- ☒ See additional pages. (Check here if you need more space to list additional exhibits. List these exhibits on a separate page or pages labeled "Attachment 4c," and start with number (5).)

5. NOTICE DESIGNATING REPORTER'S TRANSCRIPT

You must complete both a and b in this section if you checked item 2b(1) above indicating that you choose to use a reporter's transcript as the record of the oral proceedings in the superior court. Please remember that you must pay for the cost of preparing the reporter's transcript.

a. **Format of the reporter's transcript**

I request that the reporters provide (check one):

- FDR (1) ☒ My copy of the reporter's transcript in electronic format.
- (2) ☐ My copy of the reporter's transcript in paper format.
- (3) ☐ My copy of the reporter's transcript in electronic format and a second copy in paper format.

(Code Civ. Proc., § 271.)

CASE NAME: ROSARIO v. ABDELHALIM SONOMA LIQUOR	SUPERIOR COURT CASE NUMBER:
---	-----------------------------

5. b. Proceedings

I request that the following proceedings in the superior court be included in the reporter's transcript. (You must identify each proceeding you want included by its date, the department in which it took place, a description of the proceedings (for example, the examination of jurors, motions before trial, the taking of testimony, or the giving of jury instructions), the name of the court reporter who recorded the proceedings (if known), and whether a certified transcript of the designated proceeding was previously prepared.)

	Date	Department	Full/Partial Day	Description	Reporter's Name	Prev. prepared?
FDR (1)	2025-01-27	504	FULL	TRIAL READINESS	COLLINS #7751	☒ Yes ☐ No
(2)	2025-01-28	504	FULL	TRIAL MANAGE	DINER #8591	☒ Yes ☐ No
(3)	2025-02-03	504	FULL	PRETRIAL MOTIONS	AXELSEN #6173	☒ Yes ☐ No
(4)	2025-02-18	504	FULL	PRETRIAL MANAGE	CARRANZA	☒ Yes ☐ No

☒ WILL SUBMIT ALL REPORTER TRANSCRIPTS TO APPEALS TRANSCRIPTS @Sftcor
 See additional pages. (Check here if you need more space to list additional proceedings. List these exhibits on a separate page or pages labeled "Attachment 5b," and start with number (5).) W1

6. NOTICE DESIGNATING PROCEEDINGS TO BE INCLUDED IN SETTLED STATEMENT

(You must complete this section if you checked item 2b(3) above indicating you choose to use a settled statement.) I request that the following proceedings in the superior court be included in the settled statement. (You must identify each proceeding you want included by its date, the department in which it took place, a description of the proceedings (for example, the examination of jurors, motions before trial, the taking of testimony, or the giving of jury instructions), the name of the court reporter who recorded the proceedings (if known), and whether a certified transcript of the designated proceeding was previously prepared.)

	Date	Department	Full/Partial Day	Description	Reporter's Name	Prev. prepared?
(1)						☐ Yes ☐ No
(2)						☐ Yes ☐ No
(3)						☐ Yes ☐ No
(4)						☐ Yes ☐ No

☐ See additional pages. (Check here if you need more space to list additional proceedings. List these proceedings on a separate page or pages labeled "Attachment 6," and start with number (5).)

7. a. The proceedings designated in 5b or 6 ☒ include ☐ do not include all of the testimony in the superior court.
- b. If the designated proceedings DO NOT include all of the testimony, state the points that you intend to raise on appeal. (Rule 8.130(a)(2) and rule 8.137(d)(1) provide that your appeal will be limited to these points unless the Court of Appeal permits otherwise.) Points are set forth: ☐ Below ☐ On a separate page labeled "Attachment 7."

Date: 07-29-2025

FRANCISCUS ROSARIO
 (TYPE OR PRINT NAME)


 (SIGNATURE OF APPELLANT OR ATTORNEY)

ATTACHMENT 5B

PLAINTIFF DESIGNATION OF REPORTERS TRANSCRIPT

No.	Date	Proceeding / Description
() 1.A	Jan 27, 2025	Master Calendar Assignment / Trial Readiness: Judge assigned (triggered CCP §170.6 deadline); Rosario appeared.
1.B	Dept 504. Full Day	Prev. Prepared ALESIA L. COLLINS, CSR 7751
() 2.A	Jan 28, 2025	Trial Management / Case Status: Pretrial issue discussion; Rosario raised evidentiary surprise.
2.B	Dept 504. Full Day	YES: Prev. Prepared - ANGIE DINER CSR 8591
() 3.A	Feb 3, 2025	Discovery Reopening / Pretrial Motions: Plaintiff requested reopening discovery and relief for withheld records.
3.B	Dept 504. Full Day	YES: Prev. Prepared - LAURA AXELSEN CSR 6173
() 4.A	Feb 18, 2025	Motions in Limine: Court ruled on MILs including exclusion of medical records and expert limits.
4.B	Dept 504. Full Day	YES: Prev. Prepared - S. CARRANZA, MISSING?
() 5.A	Feb 28, 2025	Exhibit and Witness Disclosure / Pretrial Objections: Oral argument on objections and admission issues.
5.B	Dept 504. Full Day	YES: Prev. Prepared - JAIME PLY, CSR 13323
() 6.A	Apr 1, 2025	Day 1 of Trial (Preliminary objections): Rosario's CCP §170.6 challenge denied; voir dire and introductory proceedings.
6.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 7.A	April 2, 2025	Day 2 of TRIAL- Motions in Limine
7.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893

ATTACHMENT 5B (CONTINUED)

PLAINTIFF DESIGNATION OF REPORTERS TRANSCRIPT

No.	Date	Proceeding / Description
() 8.A	Apr 7, 2025	Day 5 (Motion to bifurcate; causation dispute): Court agreed to bifurcate liability/damages; Rosario laid out case.
8.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 9.A	Apr 10, 2025	Day 7 (Motion to bifurcate; causation dispute): Court agreed to bifurcate liability/damages; Rosario laid out case.
9.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 10.A	Apr 14, 2025	Day 8 (Objections to medical records, hearsay): Fire Dept. and medical business records challenged; impeachment discussed.
10.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 11.A	Apr 15, 2025	Day 9 (Objections to medical records, hearsay): Fire Dept. and medical business records challenged; impeachment discussed.
11.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 12.A	Apr 22, 2025	Day 10 (Evidentiary testimony; expert objection): Defendant testified; rulings on 911 audio and officer video.
12.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 13.A	Apr 23, 2025	Day 11 (Mistrial motion re: jury note + VC 21801): Rosario moved for mistrial after jury raised Vehicle Code not instructed.
13.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 14.A	Apr 25, 2025	Verdict Delivered / Judgment Entered: Defense verdict; post-trial motions may be orally raised or noted.
14.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893
() 15.A	May 28, 2025	TRIAL MOTION IN DEPT. 504, WAS HEARD AND DENIED.
15.B	Dept 504. Full Day	YES: Prev. Prepared - Dennis M. Souza CSR 3893

ATTACHMENT 4.B - Clerk's Transcript—Minutes

The appellant hereby designates for inclusion in the Clerk's Transcript the following clerk's minutes:

(12) Master Calendar Assignment / Trial Readiness

Date filed: January 27, 2025

(13) Trial Management / Case Status Conference

Date filed: January 29, 2025

(14) Discovery Reopening / Pretrial Motions Hearing

Date filed: February 2, 2025

(15) Motions in Limine Rulings

Date filed: February 16, 2025

(16) Exhibit and Witness Disclosure / Pretrial Objections

Date filed: February 23, 2025

(17) Trial Readiness Follow-up / Settlement Status

Date filed: March 7, 2025

(18) Trial Day 1 Minutes (Voir Dire Preliminary Objections)

Date filed: April 1, 2025

(19) Trial Day 7 Minutes (Bifurcation Motions in Limine Follow-up)

Date filed: April 16, 2025

1 (20) Trial Day 8 Minutes (Liability Phase Continued)

2 Date filed: April 17, 2025

3

4 (21) Trial Day 10 Minutes (Evidence Presentation Jury Setup)

5 Date filed: April 22, 2025

6

7 (22) Trial Day 11 Minutes (Juror Question Misconduct Motion)

8 Date filed: April 23, 2025

9

10 (23) Hearing on Post-Trial Motions (New Trial, JNOV, Mistrial)

11 Date filed: May 28, 2025

12

**ATTACHMENT 4.B. - CLERKS TRANSCRIPTS (ADDITIONAL
DOCUMENTS)**

[DATE] - [DESCRIPTION / TITLE]

(24) 2025-07-15 - ORDER ON PLAINTIFF'S POST TRIAL MOTIONS

**(25) 2025-05-27 - DECLARATION IN SUPPORT OF MOTION FILED BY
PLAINTIFF ROSARIO, FRANCISCUS DYLAN**

**(26) 2025-05-27 - PLAINTIFF'S MOTION TO DECLARE A MISTRIAL BASED
ON PREJUDICIAL JUDICIAL ERROR ARISING FROM IMPROPER
INSTRUCTION AND TAINTED JURY RESPONSE FILED BY PLAINTIFF
ROSARIO, FRANCISCUS DYLAN; HEARING SET FOR MAY 28, 2025 AT 09:00
AM IN DEPT 504**

**(27) 2025-05-27 - PLAINTIFF'S MOTION FOR MISTRIAL BASED ON
PREJUDICIAL LEGAL ERROR: MISAPPLICATION OF VS 21651 AND
ERRONEOUS NEGLIGENCE PER SE INSTRUCTION; IMPROPER
COMPARATIVE FAULT ARGUMENTS CONTRARY TO VC 21950 AND
"FUNCTIONAL PEDESTRIAN" DOCTRINE; DECLARATION FILED BY
PLAINTIFF ROSARIO, FRANCISCUS DYLAN; HEARING SET FOR MAY 28,
2025 AT 09:00 AM IN DEPT 504**

**(28) 2025-05-22 - DECLARATION (PLAINTIFFS) IN SUPPORT OF MOTIONS
FOR NEW TRIAL AND MISTRIAL FILED BY PLAINTIFF ROSARIO,
FRANCISCUS DYLAN**

1 (29) 2025-05-22 - REPLY (PLAINTIFF'S) – MEMORANDUM OF POINTS
2 AND AUTHORITIES IN SUPPORT OF MOTIONS FOR NEW TRIAL PURSUANT
3 TO CCP 657(1)–(7) AND MISTRIAL 1 FILED BY PLAINTIFF ROSARIO,
4 FRANCISCUS DYLAN

5
6 (30) 2025-05-22 - OPPOSITION (PLAINTIFFS) TO DEF. OBJECTION FOR
7 JNOV PURSUANT TO CCP 629 AND MOTION TO VACATE JUDGMENT
8 UNDER CCP 663 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

9
10 (31) 2025-05-22 - DECLARATION (PLAINTIFF'S) IN SUPPORT OF
11 PLAINTIFF'S MOTION FOR NEW TRIAL OR, IN THE ALTERNATIVE, FOR A
12 MISTRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

13
14 (32) 2025-05-22 - REPLY (PLAINTIFF'S) – MEMORANDUM OF POINTS
15 AND AUTHORITIES IN SUPPORT OF MOTIONS FOR NEW TRIAL FILED BY
16 PLAINTIFF ROSARIO, FRANCISCUS DYLAN

17
18 (33) 2025-05-05 - DECLARATION OF FRANCISCUS DYLAN ROSARIO IN
19 SUPPORT OF MOTION TO VACATE JUDGMENT FILED BY PLAINTIFF
20 ROSARIO, FRANCISCUS DYLAN

21
22 (34) 2025-05-05 - NOTICE OF MOTION AND MOTION TO VACATE
23 JUDGMENT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN;
24 HEARING SET FOR MAY 28, 2025 AT 09:30 AM IN DEPT 504

25
26 (35) 2025-05-05 - NOTICE OF MOTION AND MOTION TO VACATE

1 JUDGMENT FOR FRAUD ON THE COURT FILED BY PLAINTIFF ROSARIO,
2 FRANCISCUS DYLAN; HEARING SET FOR MAY 28, 2025 AT 09:30 AM IN
3 DEPT 504

4
5 (**36**) **2025-05-05** - NOTICE OF MOTION AND MOTION FOR MISTRIAL
6 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN; HEARING SET FOR
7 MAY 28, 2025 AT 09:30 AM IN DEPT 504

8
9 (**37**) **2025-05-05** - REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF
10 PLAINTIFF'S POST-TRIAL MOTIONS FILED BY PLAINTIFF ROSARIO,
11 FRANCISCUS DYLAN

12
13 (**38**) **2025-05-05** - DECLARATION OF PLAINTIFF IN SUPPORT OF
14 POST-TRIAL AND APPELLATE RIGHTS IN SUPPORT OF MOTION FOR NEW
15 TRIAL, MOTION TO VACATE, MISTRIAL, AND APPEAL FILED BY
16 PLAINTIFF ROSARIO, FRANCISCUS DYLAN

17
18 (**39**) **2025-05-05** - DECLARATION OF FRANCISCUS DYLAN ROSARIO IN
19 SUPPORT OF MOTION FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO,
20 FRANCISCUS DYLAN

21
22 (**40**) **2025-05-05** - NOTICE OF MOTION AND MOTION FOR NEW TRIAL
23 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN; HEARING SET FOR
24 MAY 28, 2025 AT 09:30 AM IN DEPT 504

25
26 (**41**) **2025-05-05** - DECLARATION OF FRANCISCUS DYLAN ROSARIO IN

1 SUPPORT OF JNOV MOTION FILED BY PLAINTIFF ROSARIO, FRANCISCUS
2 DYLAN

3
4 (~~42~~) 2025-05-05 - NOTICE OF MOTION AND MOTION FOR JUDGMENT
5 NOTWITHSTANDING THE VERDICT FILED BY PLAINTIFF ROSARIO,
6 FRANCISCUS DYLAN; HEARING SET FOR MAY 28, 2025 AT 09:30 AM IN
7 DEPT 504

8
9 (~~43~~) 2025-05-05 - DECLARATION OF PLAINTIFF IN SUPPORT OF MOTION
10 FOR NEW TRIAL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

11
12 (~~44~~) 2025-05-05 - NOTICE OF INTENT AND MOTION FOR NEW TRIAL
13 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN; HEARING SET FOR
14 MAY 28, 2025 AT 09:30 AM IN DEPT 504

15
16 (~~45~~) 2025-04-14 - MOTION TO BIFURCATE AND SUBMIT SPECIAL
17 VERDICT ON CAUSATION PRIOR TO DAMAGES PHASE; PROPOSED
18 SPECIAL VERDICT FORM (CAUSATION AND FAULT ONLY); 1-PAGE BENCH
19 BRIEF (TRANSACTION ID ::76067216) FILED BY PLAINTIFF ROSARIO,
20 FRANCISCUS DYLAN

21
22 (~~46~~) 2025-04-14 - MOTION TO ADMIT BUSINESS RECORDS UNDER EVID.
23 CODE 1271 (TRANSACTION ID ::76057980) FILED BY PLAINTIFF ROSARIO,
24 FRANCISCUS DYLAN

25
26 (~~47~~) 2025-04-14 - TRIAL MOTION TO ADMIT MEDICAL RECORDS AS

1 BUSINESS RECORDS (EVIDENCE CODE 1271, 1560, 1561) (TRANSACTION ID
2 ::76057980) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

3
4 (~~48~~) 2025-04-10 - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
5 MOTION IN LIMINE NO. 18 TO PRECLUDE PLAINTIFF, OR ANYONE ON
6 PLAINTIFF'S BEHALF, FROM TESTIFYING OR PRESENTING ARGUMENT
7 AS TO FUTURE LOSS OF EARNING CAPACITY, FUTURE LOSS OF
8 EARNINGS AND PAST LOSS OF EARNINGS

9
10 (~~49~~) 2025-04-10 - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
11 MOTION IN LIMINE NO. 14 TO PRECLUDE PLAINTIFF FROM OFFERING
12 ANY TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL TREATMENT

13
14 (~~50~~) 2025-04-10 - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
15 MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF FROM OFFERING ANY
16 TESTIMONY OR ARGUMENT AS TO FUTURE MEDICAL
17 SPECIALS/EXPENSES

18
19 (~~51~~) 2025-04-10 - ORDER DENYING DEFENDANT SUBHI ABDELHALIM'S
20 MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF FROM OFFERING ANY
21 TESTIMONY OR ARGUMENT THAT HIS ALLEGED INJURIES WERE
22 CAUSED BY DEFENDANT

23
24 (~~52~~) 2025-04-10 - JURY TRIAL SET FOR APR 10, 2025 CONTINUED TO APR
25 14, 2025 AT 09:30 AM IN DEPT 504 FOR PRETRIAL MOTIONS - JURY
26 HARDBSHIPS; JUDGE: GARRETT L. WONG; CLERK: K. SEPTIEN;

1 REPORTER: D. SOUZA CSR : 3893; DMSOUZA@GMAIL.COM

2
3 (**53**) **2025-04-10** - ORDER (1) DENYING "PLAINTIFF'S PEREMPTORY
4 CHALLENGE TO JUDICIAL ASSIGNMENT PURSUANT TO CCP 170.6"; (2)
5 DENYING "PLAINTIFF'S MOTION FOR RECONSIDERATION AND
6 REMINDER TO THE COURT REGARDING MANDATORY PROVISIONS OF
7 CCP 170.6"; (3) STRIKING "PLAINTIFF DECLARATION AND MEMORANDUM
8 OF JUDICIAL BIAS AND PROCEDURAL ABUSE SUPPORTING MISTRIAL
9 PURSUANT TO CCP 657 AND JUDICIAL DISQUALIFICATION UNDER CCP
10 170.1"; (4) STRIKING "OPPOSITION TO GARRET WONG DENIAL OF
11 MOTION AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL
12 UNDER CCP 170.1"; (5) STRIKING "PLAINTIFF FRANCISCUS DYLAN
13 ROSARIO VERIFIED DECLARATION IN SUPPORT OF STATEMENT OF
14 DISQUALIFICATION UNDER CCP 170.1(A)(6)(A)(III)"; (6) STRIKING
15 "PLAINTIFF'S VERIFIED STATEMENT OF DISQUALIFICATION OF JUDGE
16 GARRETT L. WONG PURSUANT TO CCP 170.1(A)(6)(A)(III)" IN THE
17 ALTERNATIVE, VERIFIED ANSWER OF JUDGE GARRETT L. WONG
18 (TRANSACTION ::76047901)

19
20 (**54**) **2025-04-09** - MOTION FOR RECONSIDERATION OF RULING ON
21 DEFENDANT'S MOTION IN LIMINE NO. 8 (TRANSACTION ID ::76039629)
22 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

23
24 (**55**) **2025-04-08** - MOTION FOR JUDGMENT ON THE PLEADINGS
25 (TRANSACTION ID ::76018066) FILED BY PLAINTIFF ROSARIO,
26 FRANCISCUS DYLAN

1 (**56**) **2025-04-08** - MOTION FOR COURT-APPOINTED EXPERT
2 (TRANSACTION ID ::76018043) FILED BY PLAINTIFF ROSARIO,
3 FRANCISCUS DYLAN
4

5 (**57**) **2025-04-07** - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
6 MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL REFERENCE OR
7 TESTIMONY RELATING TO LIABILITY INSURANCE AND PREJUDICIAL
8 STATEMENTS IRRELEVANT TO THE ISSUES IN THIS CASE
9

10 (**58**) **2025-04-07** - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
11 MOTION IN LIMINE NO. 19 TO EXCLUDE TESTIMONY OR ARGUMENT
12 RELATING TO ERRONEOUS AND DEFAMATORY ALLEGATIONS OF DRUG
13 ACTIVITY AT DEFENDANT'S PLACE OF BUSINESS
14

15 (**59**) **2025-04-01** - MOTION IN LIMINE : 87 (TRANSACTION ID ::75964849)
16 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN
17

18 (**60**) **2025-03-28** - NOTICE OF MOTION TO COMPEL DEFENDANT TO
19 PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING
20 EMAILS AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS
21 DYLAN; HEARING SET FOR APR 01, 2025 AT 09:30 AM IN DEPT 504
22

23 (**61**) **2025-03-28** - MOTION TO COMPEL DEFENDANT TO PRODUCE
24 EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING EMAILS
25 AND MESSAGES" FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN;
26 HEARING SET FOR APR 01, 2025 AT 09:30 AM IN DEPT 504
27

1 (**62**) **2025-03-28** - MOTION FOR RECONSIDERATION AND REMINDER TO
2 THE COURT REGARDING MANDATORY PROVISIONS OF CCP 170.6 (FILED
3 AT INSISTENCE) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN;
4 HEARING SET FOR APR 01, 2025 AT 09:30 AM IN DEPT 504
5

6 (**63**) **2025-03-28** - OPPOSITION TO GARRETT WONG DENIAL OF MOTION
7 AND MOTION FOR RECONSIDERATION TO DEMAND RECUSAL JUDGE
8 UNDER CCP 170.1 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN
9

10 (**64**) **2025-03-26** - ORDER (1) DENYING PLAINTIFF'S "NOTICE OF MOTION
11 FOR DISQUALIFICATION OF JUDGE GARRETT WONG AND JUDICIAL
12 REVIEW DUE TO CCP 170.6"; (2) STRIKING "PLAINTIFF'S MOTION FOR
13 RECUSAL OR DISQUALIFICATION OF JUDGE GARRETT WONG AND
14 DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS"; (3)
15 STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL
16 DISQUALIFICATION DUE TO CCP 170.1" IN THE ALTERNATIVE, VERIFIED
17 ANSWER OF JUDGE GARRETT L. WONG (TRANSACTION ::75944247)
18

19 (**65**) **2025-03-24** - NOTICE OF MOTION TO COMPEL DEFENDANT TO
20 PRODUCE EVIDENCE OF ALLEGED "WEEKLY THREATS AND HARASSING
21 EMAILS AND MESSAGES" (FILED AT INSISTENCE) (TRANSACTION ID
22 ::75919739) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN
23

24 (**66**) **2025-03-24** - MOTION FOR ADVERSE INFERENCE INSTRUCTION
25 AND/OR EVIDENTIARY SANCTIONS (FILED AT INSISTENCE)
26 (TRANSACTION ID ::75914857) FILED BY PLAINTIFF ROSARIO,
27 FRANCISCUS DYLAN

1
2 (~~67~~) 2025-03-24 - NOTICE OF MOTION AND MOTION TO STRIKE
3 DEFENDANT'S AFFIRMATIVE DEFENSES (FILED AT INSISTENCE)
4 (TRANSACTION ID ::75914857) FILED BY PLAINTIFF ROSARIO,
5 FRANCISCUS DYLAN

6
7 (~~68~~) 2025-03-17 - MOTION IN LIMINE NO. 84 MASTER (TRANSACTION ID
8 ::75868232) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

9
10 (~~69~~) 2025-03-17 - MOTION IN LIMINE : 88 (TRANSACTION ID ::75868232)
11 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

12
13 (~~70~~) 2025-03-13 - NOTICE OF MOTION FOR JUDICIAL DISQUALIFICATION;
14 DECLARATION OF PLAINTIFF IN SUPPORT; REQUEST FOR STAY OF
15 PROCEEDINGS; MEMORANDUM IN SUPPORT OF REASSIGNMENT;
16 [PROPOSED] ORDER GRANTING MOTION FOR REASSIGNMENT
17 (TRANSACTION ID ::75858531) FILED BY PLAINTIFF ROSARIO,
18 FRANCISCUS DYLAN

19
20 (~~71~~) 2025-03-13 - NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE
21 GARRETT WONG AND JUDICIAL REVIEW DUE TO CCP 170.6
22 (TRANSACTION ID ::75858441) FILED BY PLAINTIFF ROSARIO,
23 FRANCISCUS DYLAN

24
25 (~~72~~) 2025-03-13 - MOTION IN LIMINE 1-84 (TRANSACTION ID ::75848942)
26 FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

1
2 (~~73~~) 2025-03-11 - MOTION IN LIMINE NO. 20 TO EXCLUDE WITNESS DR.
3 RENE GONZALEZ INCLUDING ANY AND ALL TESTIMONY, RECORDS
4 AND/OR OPINIONS FROM DR. RENE GONZALEZ (TRANSACTION ID
5 ::75815974) FILED BY DEFENDANT ABDELHALIM, SUBHI
6

7 (~~74~~) 2025-02-10 - OPPOSITION TO PLAINTIFF'S MOTION FOR
8 CONTINUANCE OF TRIAL DUE TO ADA-PROTECTED MEDICAL REASONS
9 AND TO REOPEN DISCOVERY (TRANSACTION ID ::75613308) FILED BY
10 DEFENDANT ABDELHALIM, SUBHI
11

12 (~~75~~) 2025-01-27 - OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO.
13 17 (TRANSACTION ID ::75515259) FILED BY PLAINTIFF ROSARIO,
14 FRANCISCUS DYLAN
15

16 (~~76~~) 2025-01-27 - OPPOSITION TO DEFENDANT'S MOTION IN LIMINE NO.
17 17 (TRANSACTION ID ::75515168) FILED BY PLAINTIFF ROSARIO,
18 FRANCISCUS DYLAN
19

20 (~~77~~) 2025-01-27 - OBJECTION TO DEFENSE DECLARATIONS IN SUPPORT
21 OF MOTION IN LIMINE (TRANSACTION ID ::75515168) FILED BY PLAINTIFF
22 ROSARIO, FRANCISCUS DYLAN
23

24 (~~78~~) 2025-01-27 - OPPOSITION TO DEFENDANT'S MOTIONS IN LIMINE
25 NOS. 1-19 (TRANSACTION ID ::75515168) FILED BY PLAINTIFF ROSARIO,

1 FRANCISCUS DYLAN

2
3 (79) 2025-01-27 - DECLARATION AND PRAYER TO THE COURT, AND
4 MOTION FOR RELIEF UNDER CCP 473 (TRANSACTION ID ::75515168) FILED
5 BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN
6

7 (80) 2025-01-21 - PROPOSED MOTION IN LIMINE NO. 1 TO EXCLUDE
8 DEFENDANT'S EXPERT WITNESSES FOR FAILURE TO COMPLY WITH CCP
9 2034 AND REQUEST FOR EVIDENCE SANCTIONS (TRANSACTION ID
10 ::75474623) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN
11

12 (81) 2025-01-21 - EX PARTE MOTION FOR RELIEF UNDER CCP 473 DUE TO
13 EXCUSABLE NEGLECT, MISTAKE, INADVERTENCE, OR SURPRISE
14 (TRANSACTION ID ::75472927) FILED BY PLAINTIFF ROSARIO,
15 FRANCISCUS DYLAN
16

17 (82) 2025-01-17 - MOTION IN LIMINE NO. 18 TO PRECLUDE PLAINTIFF,
18 OR ANYONE ON PLAINTIFF'S BEHALF, FROM TESTIFYING OR
19 PRESENTING ARGUMENT RELATING TO FUTURE LOSS OF EARNING
20 CAPACITY, FUTURE LOSS OF EARNINGS AND PAST LOSS OF EARNINGS
21 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
22 SUBHI
23

24 (83) 2025-01-17 - MOTION IN LIMINE NO. 17 TO PRECLUDE PLAINTIFF
25 FROM USING OR REFERENCING AN ALLEGED 911 TRANSCRIPT LOG AND
26 AUDIO RECORDING AS IT WAS NOT DISCLOSED IN DISCOVERY, LACKS

1 FOUNDATION AND IS INADMISSIBLE HEARSAY (TRANSACTION ID
2 ::75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI

3
4 (**84**) 2025-01-17 - MOTION IN LIMINE NO. 16 TO EXCLUDE TESTIMONY
5 FROM PLAINTIFF'S WITNESSES NOT IDENTIFIED IN DISCOVERY
6 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
7 SUBHI

8
9 (**85**) 2025-01-17 - MOTION IN LIMINE NO. 15 TO LIMIT EVIDENCE OF
10 MEDICAL EXPENSES TO ACTUAL AMOUNTS PAID (TRANSACTION ID
11 ::75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI

12
13 (**86**) 2025-01-17 - MOTION IN LIMINE NO. 14 TO PRECLUDE PLAINTIFF
14 FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE
15 MEDICAL TREATMENT (TRANSACTION ID ::75471095) FILED BY
16 DEFENDANT ABDELHALIM, SUBHI

17
18 (**87**) 2025-01-17 - MOTION IN LIMINE NO. 13 TO EXCLUDE EVIDENCE
19 AND TESTIMONY OF SPECIAL DAMAGES NOT IDENTIFIED IN DISCOVERY
20 AND EXPERT OPINIONS BASED ON UNDISCLOSED DAMAGES
21 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
22 SUBHI

23
24 (**88**) 2025-01-17 - MOTION IN LIMINE NO. 12 TO EXCLUDE ANY
25 TESTIMONY BY PLAINTIFF, OR ANY PERSON ON PLAINTIFF'S BEHALF, OF
26 ANY ALLEGED STATEMENT MADE BY AN UNIDENTIFIED WITNESS

1 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
2 SUBHI

3
4 (89) 2025-01-17 - MOTION IN LIMINE NO. 11 TO PRECLUDE PLAINTIFF'S
5 USE OF HIS INTERROGATORY RESPONSES IN HIS FAVOR AT TRIAL

6 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
7 SUBHI

8
9 (90) 2025-01-17 - MOTION IN LIMINE NO. 10 TO EXCLUDE
10 DEMONSTRATIVE EVIDENCE NOT INSPECTED BY DEFENSE COUNSEL

11 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
12 SUBHI

13
14 (91) 2025-01-17 - MOTION IN LIMINE NO. 9 TO EXCLUDE ALL EVIDENCE
15 AND STATEMENTS OF DEFENDANT'S FINANCIAL CONDITION

16 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
17 SUBHI

18
19 (92) 2025-01-17 - MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY
20 FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN
21 EMOTIONAL DISTRESS (TRANSACTION ID ::75471095) FILED BY
22 DEFENDANT ABDELHALIM, SUBHI

23
24 (93) 2025-01-17 - MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED
25 MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF
26 THAT WERE NOT PRODUCED IN DISCOVERY (TRANSACTION ID

1 ::75471095) FILED BY DEFENDANT ABDELHALIM, SUBHI

2
3 (94) 2025-01-17 - MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL
4 WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED
5 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
6 SUBHI

7
8 (95) 2025-01-17 - MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF
9 FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED
10 ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED
11 TRAUMATIC BRAIN INJURY, AND THAT HE HAS RESULTING COGNITIVE
12 DEFICITS AS A RESULT OF THE INCIDENT (TRANSACTION ID ::75471095)
13 FILED BY DEFENDANT ABDELHALIM, SUBHI

14
15 (96) 2025-01-17 - MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF
16 FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE
17 MEDICAL SPECIALS/EXPENSES (TRANSACTION ID ::75471095) FILED BY
18 DEFENDANT ABDELHALIM, SUBHI

19
20 (97) 2025-01-17 - MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF
21 FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED
22 INJURIES WERE CAUSED BY DEFENDANT (TRANSACTION ID ::75471095)
23 FILED BY DEFENDANT ABDELHALIM, SUBHI

24
25 (98) 2025-01-17 - MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF
26 FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY

1 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
2 SUBHI

3
4 (99) 2025-01-17 - GLOBAL STATEMENT OF FACTS IN SUPPORT OF
5 DEFENDANT SUBHI ABDELHALIM'S MOTION IN LIMINE NOS. 1-19
6 (TRANSACTION ID ::75471095) FILED BY DEFENDANT ABDELHALIM,
7 SUBHI

8
9 (100) 2025-01-17 - MOTION IN LIMINE NO. 8 TO EXCLUDE ANY AND ALL
10 REFERENCE OR TESTIMONY RELATING TO LIABILITY INSURANCE AND
11 PREJUDICIAL STATEMENTS IRRELEVANT TO THE ISSUES IN THIS CASE
12 (TRANSACTION ID ::75471032) FILED BY DEFENDANT ABDELHALIM,
13 SUBHI

14
15 (101) 2025-01-17 - MOTION IN LIMINE NO. 7 TO EXCLUDE TESTIMONY
16 FROM PLAINTIFF'S FAMILY AND FRIENDS REGARDING THEIR OWN
17 EMOTIONAL DISTRESS (TRANSACTION ID ::75471032) FILED BY
18 DEFENDANT ABDELHALIM, SUBHI

19
20 (102) 2025-01-17 - MOTION IN LIMINE NO. 6 TO EXCLUDE RECORDED
21 MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED BY PLAINTIFF
22 THAT WERE NOT PRODUCED IN DISCOVERY (TRANSACTION ID
23 ::75471032) FILED BY DEFENDANT ABDELHALIM, SUBHI

24
25 (103) 2025-01-17 - MOTION IN LIMINE NO. 5 TO EXCLUDE TRIAL
26 WITNESSES FROM THE COURTROOM WHO HAVE NOT YET TESTIFIED

1 (TRANSACTION ID ::75471032) FILED BY DEFENDANT ABDELHALIM,
2 SUBHI
3

4 (~~104~~) 2025-01-17 - MOTION IN LIMINE NO. 4 TO PRECLUDE PLAINTIFF
5 FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HE SUSTAINED
6 ANY BRAIN INJURY INCLUDING BUT NOT LIMITED TO AN ALLEGED
7 TRAUMATIC BRAIN INJURY AND RESULTING COGNITIVE DEFICITS

8 (TRANSACTION ID ::75471032) FILED BY DEFENDANT ABDELHALIM,
9 SUBHI
10

11 (~~105~~) 2025-01-17 - MOTION IN LIMINE NO. 3 TO PRECLUDE PLAINTIFF
12 FROM OFFERING ANY TESTIMONY OR ARGUMENT AS TO FUTURE
13 MEDICAL SPECIALS/EXPENSES (TRANSACTION ID ::75471032) FILED BY
14 DEFENDANT ABDELHALIM, SUBHI
15

16 (~~106~~) 2025-01-17 - MOTION IN LIMINE NO. 2 TO PRECLUDE PLAINTIFF
17 FROM OFFERING ANY TESTIMONY OR ARGUMENT THAT HIS ALLEGED
18 INJURIES WERE CAUSED BY DEFENDANT (TRANSACTION ID ::75471032)
19 FILED BY DEFENDANT ABDELHALIM, SUBHI
20

21 (~~107~~) 2025-01-17 - MOTION IN LIMINE NO. 1 TO EXCLUDE PLAINTIFF
22 FROM OFFERING ANY EXPERT OR NON-RETAINED EXPERT TESTIMONY
23 (TRANSACTION ID ::75471032) FILED BY DEFENDANT ABDELHALIM,
24 SUBHI
25

26 (~~108~~) 2025-01-10 - ORDER RE: PLAINTIFF'S EX PARTE APPLICATION TO
27 SHORTEN TIME FOR HEARING ON MOTION FOR RELIEF COMPELLING

1 FUNDS FOR NECESSARY MEDICAL TESTING

2
3 (~~109~~) 2025-01-08 - MEMORANDUM OF POINTS AND AUTHORITIES IN
4 SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING
5 ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE
6 IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING (TRANSACTION
7 ID ::75396108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN

8
9 (~~110~~) 2025-01-07 - MEMORANDUM OF POINTS AND AUTHORITIES IN
10 SUPPORT OF EX PARTE APPLICATION TO SHORTEN TIME FOR HEARING
11 ON MOTION FOR RELIEF COMPELLING DEFENSE TO PROVIDE
12 IMMEDIATE FUNDS FOR NECESSARY MEDICAL TESTING FILED BY
13 PLAINTIFF ROSARIO, FRANCISCUS DYLAN

14
15 (~~111~~) 2024-09-05 - NOTICE OF EX PARTE APPLICATION; EX PARTE
16 APPLICATION FOR ORDER TO CONTINUE TRIAL DATE OR, IN THE
17 ALTERNATIVE, ORDER SHORTENING TIME TO HEAR DEFENDANT'S
18 MOTION TO CONTINUE TRIAL DATE; MEMORANDUM; DECLARATION OF
19 ALBERTO REYNA (TRANSACTION ID ::74247530) FILED BY DEFENDANT
20 ABDELHALIM, SUBHI

21
22 (~~112~~) 2024-01-11 - DECLARATION OF ALBERTO REYNA IN SUPPORT OF
23 DEFENDANT SUBHI ABDELHALIM'S MOTION TO CONTINUE TRIAL DATE
24 (TRANSACTION ID ::7179613) FILED BY DEFENDANT ABDELHALIM, SUBHI

25
26 (~~113~~) 2024-01-11 - NOTICE OF MOTION AND MOTION FOR ORDER TO
27 CONTINUE TRIAL DATE PURSUANT TO JOINT STIPULATION

1 (TRANSACTION ID ::71796139) FILED BY DEFENDANT ABDELHALIM,
2 SUBHI; HEARING SET FOR FEB 06, 2024 AT 09:30 AM IN DEPT 206
3

4 (~~114~~) 2023-09-21 - ORDER GRANTING DEFENDANT SUBHI ABDELHALIM'S
5 MOTION TO CONTINUE TRIAL DATE
6

7 (~~115~~) 2023-09-20 - EX PARTE APPLICATION FOR ORDER TO CONTINUE
8 TRIAL DATE PURSUANT TO JOINT STIPULATION, OR, IN THE
9 ALTERNATIVE, ORDER SHORTENING TIME TO HEAR DEFENDANT'S
10 MOTION TO CONTINUE TRIAL DATE (TRANSACTION ID ::210048499) FILED
11 BY DEFENDANT ABDELHALIM, SUBHI
12

13 (~~116~~) 2021-09-14 - ANSWER TO COMPLAINT (TRANSACTION ID 100141588)
14 FILED BY DEFENDANT ABDELHALIM, SUBHI
15

16 (~~117~~) 2021-07-27 - PERSONAL INJURY/PROPERTY DAMAGE - VEHICLE
17 RELATED, COMPLAINT (TRANSACTION ID 66801024) FILED BY PLAINTIFF
18 ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI
19 INDIVIDUALLY, AND DBA SONOMA LIQUOR DOES 1 TO 20 NO SUMMONS
20 ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET NOT FILED CASE
21 MANAGEMENT CONFERENCE SCHEDULED FOR DEC-29-2021 PROOF OF
22 SERVICE DUE ON SEP-27-2021 CASE MANAGEMENT STATEMENT DUE ON
23 DEC-06-2021
24

ATTACHEMENT 4.C - Additional Exhibits

- (1) [Exhibit No. 7 (4/21/2025)] Digital file of second 911 call made by unnamed passerby
- (2) [Exhibit No. 20 (4/17/2025)] Digital audio file of 911 call made by defendant
- (3) [Exhibit No. 26 (4/21/2025)] Digital file of sections of Body Worn camera footage from Officer Thompson's discussion with a transient person.
- (4) [Exhibit No. 27 (4/21/2025)] Digital file of sections of Body Worn camera footage from Officer Orengo
- (5) [Exhibit No. 28 (4/21/2025)] Digital file of sections of Body Worn camera footage from Officer Fernandez
- (6) [Exhibit No. 30 (4/21/2025)] One Medical Group report (2/5/2021)
[Excluded by the Court]
- (7) [Exhibit No. 31 (4/21/2025)] SFFD Report (2/4/2021)
[Excluded by the Court]
- (8) [Exhibit No. 32 (4/21/2025)] Deposition subpoenas prepared by Alberto Reyna (9 pages)
- (9) [Exhibit No. 33 (4/21/2025)] Record Request Form #CA1147102 (dated 11/21/2023; 11 pages)
- (10) [Exhibit No. 35 (4/21/2025)] CT chest scan
[Excluded by the Court]
- (11) [Exhibit No. 38 (4/21/2025)] Sutter Health discharge papers
[Excluded by the Court]
- (12) [Exhibit No. 39 (4/21/2025)] Still image of BWC footage belonging to SFPD Officer Orengo
- (13) [Exhibit No. 40 (4/21/2025)] Still image of BWC footage with text
- (14) [Exhibit No. 41 (4/21/2025)] Still image of BWC footage belonging to SFPD Officer Thompson
- (15) [Exhibit No. 42 (4/21/2025)] Still image of BWC footage with text

1 (16) **[Exhibit No. 43 (4/21/2025)]** Plaintiff's leather jacket
2 Previously used as a demonstrative exhibit.

EXHIBIT S

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: NAME: Priya D. Navaratnasingham [SBN 252686] Alberto Reyna [SBN 347323] FIRM NAME: PHILLIPS, SPALLAS & ANGSTADT LLP STREET ADDRESS: 560 Mission Street, Suite 1010 CITY: San Francisco STATE: CA ZIP CODE: 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: EMAIL ADDRESS: alreyna@psalaw.net pnavaratnasingham@psalaw.net ATTORNEY FOR (name): Defendant SUBHI ABDELHALIM SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister St. MAILING ADDRESS: 400 McAllister St. CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME: Civil	FOR COURT USE ONLY ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 04/29/2025 Clerk of the Court BY: MADONNA CARANTO Deputy Clerk
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM	
NOTICE OF ENTRY OF JUDGMENT OR ORDER (Check one): ☒ UNLIMITED CASE (Amount demanded exceeded \$35,000) ☐ LIMITED CASE (Amount demanded was \$35,000 or less)	CASE NUMBER: CGC-21-594102

TO ALL PARTIES :

1. A judgment, decree, or order was entered in this action on (date): April 25, 2025
2. A copy of the judgment, decree, or order is attached to this notice.

Date: April 29, 2025

Alberto Reyna, Esq.

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)


(SIGNATURE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO
 DEFENDANT/RESPONDENT: SUBHI ABDELHALIM

CASE NUMBER:
 CGC-21-594102

**PROOF OF SERVICE BY FIRST-CLASS MAIL
 NOTICE OF ENTRY OF JUDGMENT OR ORDER**

(NOTE: You cannot serve the Notice of Entry of Judgment or Order if you are a party in the action. The person who served the notice must complete this proof of service.)

1. I am at least 18 years old and **not a party to this action**. I am a resident of or employed in the county where the mailing took place, and my residence or business address is (*specify*):

2. I served a copy of the *Notice of Entry of Judgment or Order* by enclosing it in a sealed envelope with postage fully prepaid and (*check one*):

- a. ☐ deposited the sealed envelope with the United States Postal Service.
 b. ☐ placed the sealed envelope for collection and processing for mailing, following this business's usual practices, with which I am readily familiar. On the same day correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service.

3. The *Notice of Entry of Judgment or Order* was mailed:

- a. on (*date*):
 b. from (*city and state*):

4. The envelope was addressed and mailed as follows:

a. Name of person served:

Street address:

City:

State and zip code:

c. Name of person served:

Street address:

City:

State and zip code:

b. Name of person served:

Street address:

City:

State and zip code:

d. Name of person served:

Street address:

City:

State and zip code:

☐ Names and addresses of additional persons served are attached. (*You may use form POS-030(P).*)

5. Number of pages attached:

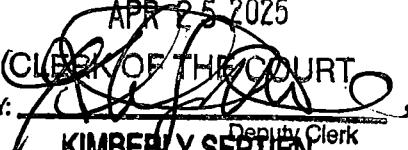
I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

 (TYPE OR PRINT NAME OF DECLARANT)

_____
 (SIGNATURE OF DECLARANT)

FILED
Superior Court of California
County of San Francisco

APR 25 2025
(CLERK OF THE COURT)
BY: 
KIMBERLY SEPTIEN Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQUOR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

HONORABLE GARRETT L. WONG
[DEPARTMENT 504]

~~[PROPOSED]~~ JUDGMENT

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

On July 27, 2021, Franciscus Dylan Rosario brought suit against Subhi Abdelhalim, individually, and dba Sonoma Liquor, in the above-entitled action arising out of an alleged automobile versus electric scooter accident which occurred on February 4, 2021.

This action came on regularly for jury trial on January 27, 2025, in Department 504 of the San Francisco County Superior Court, the Honorable Garrett L. Wong Judge presiding; the Plaintiff Franciscus Dylan Rosario appearing *in propria persona*; and Defendant Subhi Abdelhalim appearing by attorneys Priya Navaratnasingham and Alberto Reyna.

On April 15, 2025, a jury of 12 persons was regularly impaneled and sworn. Witnesses were sworn and testified. After hearing the evidence and the parties' arguments, the jury was duly instructed

1 by the Court and the cause was submitted to the jury with directions to return a verdict solely on the
2 issues of liability and causation.

3 During trial Defendant Subhi Abdelhalim denied fault for the subject accident.

4 On April 23, 2025, the jury returned its verdict as follows:

5 (1) Was Subhi Abdelhalim negligent?

6 Yes X No

7 The presiding juror signed and dated the verdict form. A true and correct copy of the Verdict
8 form was filed by the Court on April 23, 2025.

9 **NOW, THEREFORE, IT IS HEREBY ORDERED ADJUDGED, AND DECREED:**

10 1. Judgment is entered in favor of Defendant Subhi Abdelhalim individually and dba
11 Sonoma Liquor against Plaintiff Franciscus Dylan Rosario.

12 2. Costs shall be awarded to Defendant Subhi Abdelhalim individually and dba Sonoma
13 Liquor after post-trial motions for fees and costs have been filed by Defendant and heard by this Court.
14

15
16 Dated: APRIL 25, 2025

17 
18 HONORABLE GARRETT L. WONG
19 JUDGE OF THE SUPERIOR COURT
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PROOF OF SERVICE

Franciscus Rosario vs. Subhi Abdelhalim, et al.
San Francisco County Superior Court Case No. CGC-21-594102

I, the undersigned, declare:

I am employed in the County of San Francisco, State of California. I am over the age of 18 and am not a party to the within action. My business address is PHILLIPS, SPALLAS & ANGSTADT LLP, 560 Mission Street, Suite 1010, San Francisco, CA 94105.

On **April 29, 2025**, I served the foregoing document(s) described as:

1. NOTICE OF ENTRY OF JUDGMENT OR ORDER

on all other parties and/ or their attorney(s) of record to this action as follows:

☐	BY MAIL SERVICE: by placing such envelopes for collection and to be mailed on this date following ordinary business practices.
☐	By FACSIMILE: By faxing a copy of the above-referenced document(s) to the addressee at the number set forth beneath their above-listed address. At the completion of the transmission, a Transmission Report was generated, confirming transmission and receipt by the addressee(s).
☒	By E-MAIL: based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the document to be sent to the persons at the e-mail addresses listed below. I did not receive, within a reasonable time after the transmission, an electronic message or other indication that the transmission was unsuccessful.
☐	By PERSONAL DELIVERY: By personally delivering a true copy thereof to the person(s) and at the address(es) set forth below.
☐	By OVERNIGHT DELIVERY (FedEx): At the address(es) listed herein below by placing a true copy thereof enclosed in a sealed envelope with a label (billed to our account) affixed to the envelope. I am readily familiar with my office business practice for collection and processing of correspondence for FedEx and the within correspondence will be deposited with FedEx on this date in the ordinary course of business.

Franciscus Dylan Rosario

7624 Melody Dr.

Rohnert Park, CA 94928

E: soltrinox@gmail.com

E: victoriarosario4621@gmail.com

E: karim@lakunacollective.com

E: iamevankeegan@gmail.com

(Plaintiff In Pro Per)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on **April 29, 2025** at Los Angeles, California.



Rachael McGregor

EXHIBIT T

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange (a California
reciprocal insurer/inter-insurance exchange);
Does No.1-No.50;
DEFENDANTS

Case No.: [TO BE ASSIGNED]

COMPLAINT FOR DAMAGES

DEMAND FOR JURY TRIAL

1
2 **1. Fraud, Intentional Misrepresentation (Deceit)**

3 **2. Fraud, Concealment (Half-Truth / Active Concealment)** (Against CSAA Insurance Ex-
4 change and DOES 1–50)

5 **INTRODUCTION**

6 **GRAVAMEN AND SEPARATE INJURY**

7 1. This is an action for common-law fraud arising from CSAA's routine administrative claim de-
8 nial sent directly to Plaintiff on February 25, 2021, 21 days after a vehicle collision (February
9 4, 2021), at a time when Plaintiff was unrepresented and had not threatened litigation.

10 2. Plaintiff is a third-party claimant against CSAA's insured. This action does not seek to re-
11 litigate the insured's negligence liability or to recover policy benefits. This action seeks dam-

ages for CSAA's own tortious conduct: CSAA's institutional practice of issuing definitive denials while representing it had "concluded" a careful investigation, when in fact CSAA had not obtained readily available material incident evidence (911/CAD/BWC recordings) that would have required CSAA to contest fault rather than categorically deny liability. This action is based on common-law fraud and is not barred by Moradi-Shalal v. Fireman's Fund Ins. Cos. (1988) 46 Cal.3d 287, as common-law fraud claims remain actionable even when arising from claims handling. (Zhang v. Superior Court (2013) 57 Cal.4th 364, 379-380 [Moradi-Shalal bars private actions under Insurance Code § 790.03 but does not bar common-law fraud claims].)

3. CSAA's denial letter (Exhibit A, Page 0001, ll. 20-24) represented as fact that CSAA had "concluded [its] investigation," had "carefully review[ed] the facts and circumstances," and had "concluded that our insured is not liable," and therefore "must decline [the] claim," purportedly based on "the facts currently available."
4. These representations were false or recklessly made. Before issuing Exhibit A, CSAA did not perform basic investigation steps and did not obtain readily obtainable incident records. The material incident evidence that CSAA failed to obtain, including the insured's recorded statement in the 911/dispatch recording admitting "I barely hit him" and body-worn camera footage containing eyewitness statements, would have required any reasonable insurer to contest fault rather than issue a categorical denial. CSAA's misrepresentation that it had "concluded" an investigation after "carefully reviewing" facts, when it had not obtained this material evidence, constitutes actionable fraud under Civil Code sections 1709 and 1710. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974 [fraud requires false representation, knowledge of falsity or reckless disregard, intent to defraud, justifiable reliance, and resulting damage].)
5. CSAA's fraud caused prolonged litigation and serious economic harm. Had CSAA conducted a proper investigation and disclosed the material incident evidence, the claim would have been resolved through settlement or early contested litigation on fault, not through years of protracted proceedings. Instead, CSAA's misrepresentation forced Plaintiff into extended liti-

1 gation, requiring Plaintiff to personally prosecute the underlying action, establish evidentiary
2 foundation for materials CSAA should have obtained, and address CSAA's later false claims
3 of "no knowledge" about evidence that was in defense possession for years.

4 6. Plaintiff seeks separate economic damages limited to fraud-caused delay and reliance expen-
5 ditures, not personal-injury damages from the collision.

6 7. This action is pleaded strictly as common-law deceit and concealment, not under Insurance
7 Code § 790.03 or any statute lacking a private right of action. (Zhang v. Superior Court,
8 supra, 57 Cal.4th at 379-380.)

9 **I. PARTIES**

10 8. Plaintiff FRANCISCUS DYLAN ROSARIO ("Plaintiff") is an individual residing in San
11 Francisco, California. Plaintiff is an artificial intelligence architect and technology profes-
12 sional whose work commands high compensation in the technology market. Plaintiff will
13 prove compensation history and lost earnings with employment records, tax records, and
14 contract documentation.

15 9. Defendant CSAA INSURANCE EXCHANGE ("CSAA") is, on information and belief, a
16 California reciprocal insurer/inter-insurance exchange engaged in the business of insurance
17 in California, including automobile liability insurance. CSAA insured Subhi Abdelhalim
18 ("the insured") under a policy applicable to the collision described below.

19 10. Plaintiff is ignorant of the true names and capacities of Defendants sued as DOES 1 through
20 50 and therefore sues them by fictitious names. Plaintiff will amend this Complaint to allege
21 their true names and capacities when ascertained. Each DOE Defendant was responsible
22 in some manner for the acts alleged, whether as claims personnel, supervisors, managers,
23 officers, vendors, or agents, and each acted within the course and scope of agency and/or
24 employment.

25 **II. JURISDICTION AND VENUE**

26 11. This Court has jurisdiction because the amount in controversy exceeds \$25,000 and the matter
27 is an unlimited civil case.

28 12. Venue is proper in this County because CSAA conducts business in San Francisco County

1 and the collision occurred in this County. This action is related to the Underlying Action,
2 Rosario v. Abdelhalim, Case No. CGC-21-594102, currently pending in this Court.

3 **III. GENERAL ALLEGATIONS**

4 **A. COLLISION AND CLAIM SUBMISSION**

5 13. On February 4, 2021, Plaintiff was involved in a motor vehicle collision in San Francisco,
6 California with Subhi Abdelhalim ("the insured").

7 14. At all relevant times, the insured was covered by an automobile liability insurance policy
8 issued by CSAA.

9 15. Within days after the collision, Plaintiff submitted a claim to CSAA directly. Plaintiff was
10 a layperson and not represented by counsel during the initial claim submission and CSAA's
11 early denial.

12 **B. CSAA'S FALSE DENIAL LETTER**

13 16. On February 25, 2021, CSAA sent Exhibit A (Page 0001) to Plaintiff, a written denial/rejection
14 letter dated February 25, 2021, signed by Sarah Rash, Claims Representative (Exhibit A, Page
15 0001, ll. 39-41).

16 17. Exhibit A contained the following affirmative misrepresentations of material fact: a. "We
17 have concluded our investigation of your claim." (Exhibit A, Page 0001, l. 20) b. "Based
18 on our investigation, and after carefully reviewing the facts and circumstances of your claim,
19 we have concluded that our insured is not liable for your damages resulting from this loss.
20 Therefore we must decline your claim." (Exhibit A, Page 0001, ll. 21-22) c. "Our decision is
21 based on the facts currently available." (Exhibit A, Page 0001, l. 24)

22 18. These statements were representations of completed conduct, statements about what CSAA
23 had done (concluded an investigation, carefully reviewed facts), not mere opinions about li-
24 ability. Under California law, once CSAA chose to speak definitively about investigation
25 completion, it created a duty not to mislead. (Warner Constr. Corp. v. City of Los Angeles
26 (1970) 2 Cal.3d 285, 294 [one who makes a representation must use reasonable care to make
27 it complete and not misleading].) A fact is material if a reasonable person would attach im-

1 portance to it in determining a course of action. (Engalla v. Permanente Medical Group, Inc.,
2 supra, 15 Cal.4th at 977.) CSAA's representations about having "concluded" an investigation
3 and "carefully reviewed" facts were material because a reasonable person would attach impor-
4 tance to whether an insurer had actually completed a thorough investigation before accepting
5 a denial as final.

6 **C. INVESTIGATION OMISSIONS PROVING FALSITY**

7 19. Before sending Exhibit A, CSAA did not perform the following basic investigation steps that
8 a reasonable insurer would perform before claiming it had "concluded" an investigation:
9 a. CSAA did not contact Plaintiff to obtain Plaintiff's recorded or written statement. b. CSAA
10 did not request photographs, repair estimates, or vehicle inspection information from Plaintiff. c.
11 CSAA did not identify any witness interviews or scene investigation. d. CSAA did not request or
12 confirm the SFPD incident/report number and/or dispatch identifiers from Plaintiff. e. CSAA did
13 not obtain or review SFPD body-worn camera video. f. CSAA did not obtain dispatch/911/CAD
14 records containing the insured's recorded statements.

15 20. Exhibit D (Page 0002, ll. 12-20) reflects that CSAA (through vendor Metropolitan Reporting
16 Bureau) engaged in records-retrieval activity after the February 25, 2021 denial. This post-
17 denial retrieval is inconsistent with Exhibit A's statement that CSAA had already "concluded"
18 an investigation after "carefully reviewing the facts and circumstances." Exhibit D shows
19 CSAA had access to vendor channels for obtaining police reports (claim number 1004-09-
20 1054, policy number CAAS100310857, police report number 210079556) but did not utilize
21 these channels before issuing Exhibit A.

22 **D. MATERIAL INCIDENT EVIDENCE CSAA FAILED TO OBTAIN**

23 21. Dispatch/CAD records and 911/dispatch recordings were generated in connection with the
24 February 4, 2021 incident and were associated with identifiable incident numbers/dispatch
25 identifiers existing as part of the SFPD incident file.

26 22. The 911/dispatch recording contains the insured's statement to the effect of "I barely hit
27 him" (or substantially similar wording). This recorded statement is a party admission directly
28 attributable to CSAA's insured (Evid. Code § 1220) and is material incident information that

1 a reasonable investigation would obtain and evaluate before claiming the investigation was
2 "concluded" and issuing a categorical denial. Under California law, a fact is material if it
3 would be likely to affect the conduct of a reasonable person with reference to the transaction
4 in question. (Engalla v. Permanente Medical Group, Inc., *supra*, 15 Cal.4th at 977; Alliance
5 Mortgage Co. v. Rothwell (1995) 10 Cal.4th 1226, 1239 [materiality determined by whether
6 reasonable person would attach importance to fact in determining course of action].) The
7 insured's recorded admission was material because it would have affected any reasonable
8 insurer's evaluation of the claim and decision to categorically deny liability.

9 23. SFPD body-worn camera video was generated in connection with the February 4, 2021 in-
10 cident and was held in SFPD custody as part of the incident file. The BWC video contains
11 an on-scene eyewitness statement. This video was material incident information that a rea-
12 sonable investigation would obtain and evaluate before claiming the investigation was "con-
13 cluded" and issuing a categorical denial.

14 24. A reasonable insurer investigating a vehicle collision claim would routinely obtain dispatch/911/CAD
15 materials and police body-worn camera footage as part of standard incident documentation,
16 regardless of whether such materials ultimately prove or disprove liability.

17 25. Had CSAA obtained this material incident evidence before issuing Exhibit A, CSAA would
18 have been required to contest fault rather than categorically deny liability. The insured's
19 recorded admission ("I barely hit him") and the eyewitness statements in the BWC footage
20 would have required any reasonable insurer to acknowledge potential liability and either settle
21 the claim or contest fault through proper litigation, not issue a categorical denial.

22 **E. CSAA'S LATER FALSE CLAIMS OF "NO KNOWLEDGE"**

23 26. On September 30, 2022, Plaintiff produced 911 audio, body cam footage (five videos), and
24 CAD log to defense counsel retained by CSAA, as established by sworn testimony (Hearing
25 Tr. (Feb. 18, 2025) p. 139, ll. 20-22). These materials were transferred to current defense
26 counsel (PHILLIPS, SPALLAS & ANGSTADT LLP) in August 2024, and CAD numbers
27 were provided to defense counsel Alberto Reyna on September 9, 2024.

28 27. Despite having possession of these materials for years, on January 17, 2025, defense counsel

1 retained by CSAA filed Motion in Limine No. 17, claiming: "Defendant has no idea where
2 this 911 call log or audio recording came from"; "this alleged log and recording were not
3 produced during discovery, rather produced at the eleventh hour prior to trial"; and "It does
4 not appear that either the log or the recording were obtained via proper subpoena process."

5 28. These representations were false. The materials had been in defense possession since Septem-
6 ber 30, 2022, approximately 2.5 years before MIL 17 was filed. Current defense counsel had
7 possession since August 2024, approximately 5 months before filing MIL 17. CAD numbers
8 were provided to defense counsel on September 9, 2024, months before the "no knowledge"
9 claim.

10 29. CSAA's institutional practice of maintaining "no-receipt/no-knowledge" positions about ma-
11 terials that were in its possession or readily obtainable exemplifies the fraud alleged herein.
12 This pattern demonstrates that CSAA's February 25, 2021 denial was not an isolated mistake
13 but part of a standardized workflow designed to avoid material evidence and maintain categor-
14 ical denial postures. Under California law, a pattern of conduct may establish the institutional
15 nature of fraud and support punitive damages. (Robinson Helicopter Co., Inc. v. Dana Corp.
16 (2004) 34 Cal.4th 979, 993 [pattern of fraudulent conduct supports finding of oppression or
17 malice].)

18 **F. UNDERLYING ACTION**

19 30. On July 27, 2021, Plaintiff filed an underlying civil action related to the collision: Rosario v.
20 Abdelhalim, Case No. CGC-21-594102, in the Superior Court of California, County of San
21 Francisco (the "Underlying Action").

22 31. This fraud action does not seek to re-litigate personal injury damages from the collision.
23 It seeks damages for separate economic injury proximately caused by CSAA's deceit and
24 concealment during pre-suit claims handling. Plaintiff does not seek reversal or modification
25 of any judgment in the Underlying Action; Plaintiff seeks only independent tort damages for
26 fraud-caused economic injury.

IV. CSAA'S PRE-SUIT MISREPRESENTATIONS

PARTICULARITY

32. Date: February 25, 2021.

33. Method: Written letter on CSAA letterhead (Exhibit A, Page 0001).

34. Author/Authority: Sarah Rash, acting as CSAA's claims representative/authorized agent (Exhibit A, Page 0001, ll. 39-41).

35. Recipient: Plaintiff (unrepresented; direct-to-claimant).

36. Exact statements (verbatim): a. "We have concluded our investigation of your claim." (Exhibit A, Page 0001, l. 20) b. "Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim." (Exhibit A, Page 0001, ll. 21-22) c. "Our decision is based on the facts currently available." (Exhibit A, Page 0001, l. 24)

37. Why false when made: The actionable misrepresentation is CSAA's factual representation that it had already completed a careful investigation and review of facts, and that its denial was the product of that completed process. Under California law, fraud requires: (1) a false representation, concealment, or nondisclosure; (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. (Engalla v. Permanente Medical Group, Inc., *supra*, 15 Cal.4th at 974; Civ. Code, §§ 1709, 1710.)

Exhibit A was false or made with deliberate recklessness because:

a. CSAA represented it had "concluded" an investigation (Exhibit A, Page 0001, l. 20) without performing basic investigation steps (§19) and without obtaining readily obtainable material incident records (911/CAD/BWC). Under California law, a representation made with reckless disregard for its truth or falsity satisfies the scienter requirement. (Engalla v. Permanente Medical Group, Inc., *supra*, 15 Cal.4th at 974; Seeger v. Odell (1941) 18 Cal.2d 409, 414 [reckless disregard of truth equivalent to knowledge of falsity].)

b. CSAA's certainty ("concluded," "carefully reviewing," "concluded not liable," "must decline") (Exhibit A, Page 0001, ll. 20-22) is inconsistent with an honest investigation that had not obtained

two distinct sources of material incident information: (1) the 911/dispatch recording containing the insured's party admission; and (2) the police body-worn camera footage containing eyewitness statements.

c. CSAA sent Exhibit A directly to an unrepresented claimant and reasonably foresaw Plaintiff would treat the denial as a definitive factual outcome of a completed investigation, discouraging further pursuit and delaying counsel retention.

d. Dispatch/911/CAD materials contain material incident information (including the insured's statement "I barely hit him") that a reasonable investigation would obtain and evaluate before claiming the investigation was "concluded." CSAA's failure to obtain/review and/or disclose such materials renders Exhibit A false, misleading, or reckless.

e. BWC video contains material incident information (including an on-scene eyewitness statement) that a reasonable investigation would obtain and evaluate before claiming the investigation was "concluded." CSAA's failure to obtain/review and/or disclose BWC renders Exhibit A false, misleading, or reckless.

38. How each statement is false: a. "We have concluded our investigation" (Exhibit A, Page 0001, l. 20) → false because CSAA did not obtain Plaintiff's statement (§19(a)). b. "After carefully reviewing the facts" (Exhibit A, Page 0001, ll. 21-22) → false because CSAA did not obtain dispatch/911/CAD materials (§19(f)). c. "Concluded that our insured is not liable" (Exhibit A, Page 0001, ll. 21-22) → false because CSAA did not review BWC video (§19(e)). d. "Based on the facts currently available" (Exhibit A, Page 0001, l. 24) → false because CSAA had not obtained material incident records that were readily obtainable (Exhibit D, Page 0002, ll. 12-20).

39. Actionable fact vs. opinion: This is a misrepresentation of completed conduct (investigation completion), not an advocacy position about liability. Under California law, statements of fact are actionable in fraud, while statements of opinion generally are not. (Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells (2000) 86 Cal.App.4th 303, 310.) However, a statement of opinion may be actionable if the speaker has superior knowledge or special information not available to the recipient. (Id. at 310-311.) Exhibit A did not merely express a non-actionable

1 opinion like "we dispute liability." It asserted the completion of an investigation (Exhibit A,
2 Page 0001, l. 20) and a denial decision based on careful review of facts (Exhibit A, Page
3 0001, ll. 21-22), communicated as a final factual basis for declining the claim. The action-
4 able misrepresentation is CSAA's statement of what it did (i.e., that it had "concluded" an
5 investigation and "carefully reviewed" facts), a representation about completed conduct and
6 process, not merely a legal position or opinion about liability. This completed-fact misstate-
7 ment is independently actionable regardless of whether CSAA's ultimate liability conclusion
8 would otherwise be protected as opinion. (Warner Constr. Corp. v. City of Los Angeles,
9 supra, 2 Cal.3d at 294.)

10 **V. COMMON-LAW DUTY**

- 11 40. CSAA owed common-law duties supporting deceit and concealment liability, including: a. A
12 duty not to make affirmative misrepresentations of material fact (Civ. Code, §§ 1709, 1710);
13 and b. A duty not to make misleading half-truths. Once CSAA chose to speak definitively
14 about investigation completion and denial basis, it had a duty to disclose material facts nec-
15 essary to make those statements not misleading. CSAA actively concealed by not disclosing
16 known material facts after choosing to speak (LiMandri v. Judkins (1997) 52 Cal.App.4th
17 326, 337 [one who voluntarily speaks must tell the whole truth and not make misleading
18 half-truths].) Under Civil Code section 1710, deceit includes "[t]he suppression of a fact, by
19 one who is bound to disclose it, or who gives information of other facts which are likely to
20 mislead for want of communication of that fact." (Id. at 336-337.)
- 21 41. This action is pleaded as common-law fraud and is not based on Insurance Code § 790.03 as
22 an enforceable duty to third-party claimants. (Zhang v. Superior Court, supra, 57 Cal.4th at
23 379-380 [Moradi-Shalal bars private actions under Insurance Code § 790.03 but does not bar
24 common-law fraud claims].)

25 **VI. RELIANCE AND CAUSATION**

- 26 42. Plaintiff justifiably relied on Exhibit A as a layperson during the unrepresented period. Un-
27 der California law, justifiable reliance does not require the plaintiff to investigate indepen-
28 dently unless the falsity is obvious or the plaintiff has actual knowledge of facts that would

1 make reliance unreasonable. (Alliance Mortgage Co. v. Rothwell, *supra*, 10 Cal.4th at
2 1239; Seeger v. Odell, *supra*, 18 Cal.2d at 415.) CSAA, as a licensed insurer, possessed
3 superior knowledge and specialized expertise regarding claims investigation standards, ac-
4 cess to police records (BWC/CAD), and standard investigation protocols that Plaintiff, as a
5 layperson, did not possess. Plaintiff was legally entitled to rely on CSAA's statement of fact
6 ("we concluded the investigation") (Exhibit A, Page 0001, l. 20) when CSAA had access
7 to information and investigation channels that Plaintiff lacked. (Neu-Visions Sports, Inc. v.
8 Soren/McAdam/Bartells, *supra*, 86 Cal.App.4th at 310-311 [reliance on superior knowledge
9 of professional is justifiable].)

10 43. After receiving Exhibit A on or about February 25, 2021, Plaintiff delayed retaining counsel
11 and delayed initiating independent incident-record requests (dispatch/911/CAD and BWC)
12 because Exhibit A represented that CSAA had already completed ("concluded") an investi-
13 gation (Exhibit A, Page 0001, l. 20) after "carefully reviewing" facts (Exhibit A, Page 0001,
14 ll. 21-22), and that liability had already been finally evaluated and denied based on "facts
15 currently available" (Exhibit A, Page 0001, l. 24).

16 44. Plaintiff was unrepresented, lacked knowledge of which specific public records to request,
17 lacked incident identifiers initially, and reasonably understood Exhibit A to mean CSAA had
18 already performed the core investigation steps that an insurer would ordinarily perform be-
19 fore issuing a categorical denial. Under California law, a plaintiff's lack of sophistication
20 and the defendant's superior knowledge are factors supporting justifiable reliance. (Alliance
21 Mortgage Co. v. Rothwell, *supra*, 10 Cal.4th at 1239.)

22 45. CSAA's misrepresentation/half-truth proximately caused Plaintiff to delay verification and
23 incur incremental, out-of-pocket expenditures that would have been materially reduced or
24 avoided with a truthful investigation-completion statement and timely investigation, includ-
25 ing: (a) fees and costs to obtain incident records at a later time and through more burdensome
26 channels; (b) court and service fees incurred to force record acquisition and authentication
27 after delay; and (c) additional documentable expenses listed in Exhibit G that are traceable to
28 fraud-driven delay rather than to the underlying collision itself. Under California law, prox-

imate cause exists when the defendant's conduct is a substantial factor in bringing about the injury. (Engalla v. Permanente Medical Group, Inc., supra, 15 Cal.4th at 976.)

46. Lost earnings, leave of absence, and lost opportunity costs: Plaintiff's occupation requires sustained, high-cognitive-load work in the technology sector as an artificial intelligence architect. Because CSAA's misrepresentation and concealment forced an extended dispute and litigation posture and delayed resolution, Plaintiff was required to devote substantial time and effort to verification, discovery, evidentiary foundation, motion practice, and trial preparation, and to personally prosecute key aspects of the Underlying Action. The fraud-driven protraction materially interfered with Plaintiff's ability to pursue and maintain gainful employment and/or high-value project work, resulting in a protracted leave of absence and delayed return to the workforce. Plaintiff suffered consequential economic damages including (a) lost wages and/or contract income; (b) loss of earning capacity during and after the leave period; and (c) lost professional opportunities and projects that Plaintiff could not pursue due to the diversion and uncertainty created by CSAA's fraud-driven denial posture. Under California law, fraud damages may include all detriment proximately caused, including consequential economic harm. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [fraud damages include all detriment proximately caused]; Civ. Code, § 3333.)

47. Evidentiary dispute over 911 receipt/logging as a protraction driver: A substantial driver of the protracted timeline was the evidentiary dispute over the existence, provenance, and defense receipt/logging of the 911/CAD materials and related incident recordings. As later proceedings showed, those materials existed, were material, and were in defense possession by at least September 30, 2022, yet they were treated as late, unknown-origin, or not properly received/logged, requiring Plaintiff to expend extensive time establishing foundation and addressing the dispute. This protracted and avoidable litigation burden was a substantial factor in Plaintiff's extended leave of absence and resulting lost earnings and lost opportunities. CSAA's "no-receipt/no-knowledge" positions, including later sworn representations that CSAA "never received" or had "no idea" about materials that were in its possession or readily obtainable, exemplify the institutional "deny-first / no-contact / no-receipt" practice

1 that forced Plaintiff into avoidable evidentiary disputes and protracted litigation burdens.

2 **VII. DISCOVERY OF FRAUD / DELAYED DISCOVERY / SOL**

3 48. CSAA's concealment and misrepresentations delayed discovery of the true evidentiary cir-
4 cumstances.

5 49. Delayed discovery (CCP 338(d)): Plaintiff brings this action within three years of discovering
6 facts constituting CSAA's fraud. Under Code of Civil Procedure section 338(d), the statute
7 of limitations for fraud is three years from discovery of the facts constituting the fraud. (Fox
8 v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807 [delayed discovery rule applies
9 when plaintiff has no reason to suspect fraud].) Plaintiff first discovered the fraud on or
10 about March 28th 2025, when Plaintiff obtained Exhibit D (Page 0002, ll. 12-20) showing
11 post-denial records-retrieval activity inconsistent with CSAA's 2/25/2021 representation that
12 it had already concluded a careful investigation.

13 50. Why earlier discovery was not reasonable: Before that date, Plaintiff was an unrepresented
14 layperson and reasonably relied on CSAA's definitive "investigation concluded" represen-
15 tation (Exhibit A, Page 0001, l. 20), lacked the necessary incident identifiers and access
16 channels to obtain police media promptly, and had no reason to suspect that CSAA's denial
17 was issued without a completed investigation. Under California law, the delayed discovery
18 rule applies when the plaintiff has no reason to suspect fraud and the defendant's concealment
19 prevents discovery. (Fox v. Ethicon Endo-Surgery, Inc., *supra*, 35 Cal.4th at 807-808.)

20 51. Once Plaintiff obtained the post-denial retrieval proof and understood the significance, Plain-
21 tiff promptly pursued verification steps and obtained incident materials (including dispatch/911/CAD
22 and BWC records) as reflected in Exhibits B and C, and incurred related documented expenses
23 reflected in Exhibit G.

24 52. This action is timely under Code of Civil Procedure § 338(d) (three years from discovery of
25 the fraud).

VIII. NON-APPLICABILITY OF LITIGATION PRIVILEGE AND ANTI-SLAPP

A. ROUTINE BUSINESS DENIAL, NOT LITIGATION ACTIVITY

53. CSAA may assert the litigation privilege (Civ. Code, § 47(b)) and/or seek anti-SLAPP relief (Code Civ. Proc., § 425.16). Plaintiff alleges the gravamen of this action arises from routine business claims-handling conduct, particularly Exhibit A issued within weeks of the collision directly to an unrepresented claimant, before Plaintiff threatened suit, before a demand letter, and before CSAA retained defense counsel, not from communications made to achieve the objects of litigation. Under California law, the litigation privilege applies only to communications made "in furtherance of" or "to achieve the objects of" litigation. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057.) The anti-SLAPP statute applies only to acts "in furtherance of" the right of petition or free speech. (Code Civ. Proc., § 425.16, subd. (b)(1).)

54. At the time CSAA issued Exhibit A, all of the following were true: a. Plaintiff had no legal counsel; b. Plaintiff had not threatened litigation verbally or in writing; c. Plaintiff had not sent a pre-suit demand letter threatening suit; d. Plaintiff had not drafted or filed a complaint; e. CSAA's communication was issued through claims personnel in ordinary claim adjustment, not through litigation counsel; f. On information and belief, CSAA had not retained defense counsel for litigation in this matter at the time of Exhibit A; and g. Exhibit A functioned as a standard administrative claims decision that would have been issued in the ordinary course of claims handling regardless of whether litigation was ever filed.

55. Exhibit A was not made "to achieve the objects of litigation" or in furtherance of petitioning activity; it was a routine business denial to an unrepresented claimant in the administrative claims phase. Exhibit A does not reference a lawsuit, a court filing, petitioning, or any litigation objective; it communicates a standard coverage/liability position and claim decision.

56. Exhibit A was a standard administrative claim denial that would have occurred regardless of whether litigation was later filed. Any later litigation conduct is pleaded only as evidence of pattern, knowledge, and ratification, not as an independent basis of liability. Under Cal-

1 ifornia law, the gravamen of the action determines whether it arises from protected activity.
2 (Baral v. Schnitt (2016) 1 Cal.5th 376, 396 [court looks to gravamen of action, not individual
3 allegations].)

4 **B. ABSENCE OF SERIOUS CONSIDERATION OF LITIGATION**

5 57. At the time CSAA issued Exhibit A, litigation was not under "serious consideration" by
6 CSAA, nor was it "imminent." Exhibit A was a routine administrative act of claims adjust-
7 ing, not a pre-litigation communication. (Edwards v. Centex Real Estate Corp. (1997) 53
8 Cal.App.4th 15, 35-36 [litigation must be under "serious consideration" for privilege to ap-
9 ply].) Under Edwards, the litigation privilege applies only when litigation is under "serious
10 consideration," meaning the party has decided to pursue litigation or litigation is "imminent."
11 (Id. at 35.) Here, there was no evidence that CSAA had decided to pursue litigation or that
12 litigation was imminent at the time of Exhibit A.

13 58. On information and belief, at the time Exhibit A was authored, CSAA had not referred this
14 claim to its internal legal department or outside counsel. The file remained exclusively with
15 non-attorney claims adjusters. CSAA had not issued a "litigation hold" or evidence preser-
16 vation order regarding this claim at the time of the denial, which is standard procedure when
17 litigation is genuinely anticipated.

18 59. Whether litigation was under serious consideration at the time of Exhibit A is, at minimum, a
19 factual issue. Plaintiff alleges the surrounding circumstances show Exhibit A was an ordinary
20 claims denial rather than a litigation-related communication. (Edwards v. Centex Real Estate
21 Corp., supra, 53 Cal.App.4th at 35-36.)

22 **C. NON-COMMUNICATIVE CONDUCT AS BASIS FOR LIABILITY**

23 60. The gravamen of this action is CSAA's pre-suit, routine claims-handling conduct and inves-
24 tigation omissions, including issuing a categorical denial while representing the investigation
25 was concluded, followed by post-denial records retrieval activity inconsistent with that repre-
26 sentation. Exhibit A is evidence of the misrepresentation; Exhibit D (Page 0002, ll. 12-20) is
27 evidence of post-denial retrieval activity. Under California law, non-communicative conduct
28 is not protected by the litigation privilege. (Rusheen v. Cohen, supra, 37 Cal.4th at 1057

[privilege protects communications, not underlying conduct].) The gravamen here is CSAA's failure to perform investigation steps and its decision to issue a denial without obtaining material evidence, non-communicative conduct that is not protected.

61. Plaintiff's claims arise from CSAA's failure to perform basic verification steps and its denial-first workflow decisions, not from petitioning activity. Under Baral v. Schnitt, *supra*, 1 Cal.5th at 396, the court looks to the gravamen of the action, not individual allegations. The gravamen here is CSAA's pre-suit business conduct, not protected petitioning activity.

62. To the extent any later litigation events are referenced, they are pleaded solely to explain delayed discovery and context, not as independent bases of liability.

CAUSE OF ACTION ONE

FRAUD, INTENTIONAL MISREPRESENTATION (DECEIT)

(Against CSAA and DOES 1–50)

63. Plaintiff incorporates ¶¶1–62.

64. Misrepresentation: CSAA made the affirmative misrepresentations in Exhibit A, including that it had "concluded" its investigation (Exhibit A, Page 0001, l. 20) and, after careful review of facts (Exhibit A, Page 0001, ll. 21-22), concluded the insured was not liable and therefore declined the claim. Under California law, the elements of fraud are: (1) a false representation, concealment, or nondisclosure; (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. (Engalla v. Permanente Medical Group, Inc., *supra*, 15 Cal.4th at 974; Civ. Code, §§ 1709, 1710.) The actionable misrepresentation is CSAA's statement of what it did (i.e., that it had "concluded" an investigation and "carefully reviewed" facts), a representation about completed internal conduct and process, not merely a legal position or opinion about liability. This completed-fact misstatement is independently actionable regardless of whether CSAA's ultimate liability conclusion would otherwise be protected as opinion. CSAA had no duty to investigate under common law, but once it affirmatively represented a "concluded" investigation, it created a duty not to mislead (Civ. Code, §§ 1709-1710; Warner Constr. Corp. v. City of Los Angeles, *supra*, 2 Cal.3d at 294).

- 1 65. Knowledge/reckless disregard: CSAA knew the representations were false or made them with
2 deliberate recklessness and conscious disregard for truth by issuing a definitive "concluded
3 investigation" denial (Exhibit A, Page 0001, l. 20) without performing basic investigative
4 steps (§19) and/or while avoiding or failing to verify readily obtainable, material incident
5 records (dispatch/911/CAD and BWC) and/or failing to disclose material incident informa-
6 tion. Under California law, scienter may be established by showing the defendant knew the
7 representation was false or made it with reckless disregard for its truth or falsity. (Engalla
8 v. Permanente Medical Group, Inc., *supra*, 15 Cal.4th at 974; Seeger v. Odell, *supra*, 18
9 Cal.2d at 414 [reckless disregard equivalent to knowledge of falsity].) CSAA's issuance of a
10 categorical denial without performing basic investigation steps and without obtaining readily
11 available material evidence demonstrates reckless disregard for the truth of its "concluded
12 investigation" representation.
- 13 66. Intent to induce reliance: CSAA intended Plaintiff to accept the denial, abandon or delay the
14 claim, and/or be discouraged from retaining counsel and pursuing the claim. Under Califor-
15 nia law, intent to defraud means intent to induce reliance. (Engalla v. Permanente Medical
16 Group, Inc., *supra*, 15 Cal.4th at 974.) CSAA's communication of a definitive denial to an
17 unrepresented claimant demonstrates intent to induce reliance on the false representation that
18 the investigation was concluded.
- 19 67. Justifiable reliance: Plaintiff reasonably relied on Exhibit A as an unrepresented layper-
20 son and delayed counsel retention and verification steps. As alleged in §42, Plaintiff's re-
21 liance was justifiable given CSAA's superior knowledge and Plaintiff's lack of sophistication.
22 (Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells, *supra*, 86 Cal.App.4th at 310-311;
23 Alliance Mortgage Co. v. Rothwell, *supra*, 10 Cal.4th at 1239.)
- 24 68. Damages: Plaintiff suffered damages proximately caused by the fraud as alleged in Section
25 IX. Under California law, fraud damages include all detriment proximately caused by the
26 fraud. (Civ. Code, § 3333; Lazar v. Superior Court, *supra*, 12 Cal.4th at 638.)

CAUSE OF ACTION TWO

FRAUD, CONCEALMENT (HALF-TRUTH / ACTIVE CONCEALMENT)

(Against CSAA and DOES 1–50)

69. Plaintiff incorporates ¶¶1–68.

70. Duty to disclose/not mislead: Having chosen to speak definitively about investigation completion and denial basis, CSAA owed a duty to disclose material facts necessary to make its statements not misleading and a duty not to conceal material incident information while presenting a final investigatory conclusion. The duty arises from CSAA's non-communicative conduct (choosing to speak definitively about completed investigation) creating a duty not to mislead, not from any protected litigation communication. (LiMandri v. Judkins, *supra*, 52 Cal.App.4th at 337 [one who voluntarily speaks must tell the whole truth and not make misleading half-truths].) Under Civil Code section 1710, deceit includes "[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact." (*Id.* at 336-337.) Once CSAA chose to speak about having "concluded" an investigation, it was bound to disclose material facts necessary to make that statement not misleading.

71. Concealment/half-truth: CSAA concealed or failed to disclose material incident information (dispatch/911/CAD materials and/or BWC footage) and/or avoided verifying material sources while maintaining a categorical denial posture communicated as the result of a concluded investigation. CSAA actively concealed by not disclosing known material facts after choosing to speak (LiMandri v. Judkins, *supra*, 52 Cal.App.4th at 337). The concealment is proven by CSAA's non-communicative conduct, failing to obtain or verify readily available incident records before issuing a definitive denial (per ¶19, ¶22, ¶23), then later obtaining those same records (Exhibit D, Page 0002, ll. 12-20), with the letter serving as evidence of that conduct. The actionable concealment is CSAA's failure to disclose material incident information while representing it had "concluded" an investigation (Exhibit A, Page 0001, l. 20), which misrepresents completed internal conduct (investigation completion), not merely an opinion about liability. Under California law, concealment may be established by showing the defen-

1 dant suppressed a material fact that it was bound to disclose. (Civ. Code, § 1710, subd. (3);
2 LiMandri v. Judkins, *supra*, 52 Cal.App.4th at 336-337.)

3 72. Intent: CSAA intended to mislead Plaintiff to delay or devalue the claim and reduce CSAA's
4 exposure. As alleged in ¶66, CSAA's communication of a definitive denial to an unrepre-
5 sented claimant demonstrates intent to induce reliance on the false representation.

6 73. Reliance and damages: Plaintiff reasonably relied on CSAA's half-truths and omissions and
7 suffered damages proximately caused by that concealment as alleged in Section IX. As al-
8 leged in ¶42-44, Plaintiff's reliance was justifiable, and as alleged in ¶45-47, Plaintiff suffered
9 damages proximately caused by the concealment.

10 **IX. DAMAGES**

11 74. Plaintiff seeks damages according to proof. Plaintiff will support economic damages with an
12 Expense Schedule and supporting documents attached as Exhibit G.

13 75. Legal standard: California law provides that every person who suffers detriment from the
14 unlawful act or omission of another may recover damages therefor, as provided by law. (Civ.
15 Code, § 3281.) In an action for the breach of an obligation not arising from contract, the
16 measure of damages is the amount which will compensate for all the detriment proximately
17 caused by the defendant's conduct, whether it could have been anticipated or not. (Civ. Code,
18 § 3333.) Consistent with these standards, Plaintiff seeks consequential economic damages
19 proximately caused by CSAA's deceit and concealment, including lost earnings, loss of earn-
20 ing capacity, and contract/project opportunity losses, to the extent proven with competent ev-
21 idence and non-speculative methodology. (Lazar v. Superior Court, *supra*, 12 Cal.4th at 638
22 [fraud damages include all detriment proximately caused]; Sargon Enterprises, Inc. v. Univ.
23 of S. Cal. (2012) 55 Cal.4th 747, 774 [damages must be proven with reasonable certainty and
24 non-speculative methodology].) Under California law, fraud damages are not limited to out-
25 of-pocket losses but may include all detriment proximately caused, including consequential
26 economic harm. (Alliance Mortgage Co. v. Rothwell, *supra*, 10 Cal.4th at 1240-1241 [fraud
27 damages may include consequential economic harm]; Robinson Helicopter Co., Inc. v. Dana
28 Corp., *supra*, 34 Cal.4th at 990 [fraud damages include all detriment proximately caused].)

A. ECONOMIC DAMAGES

76. Delay/time-value damages and consequential economic harm: Plaintiff seeks economic damages proximately caused by CSAA's fraud, including time-value damages and other consequential economic harm that can be proven with a reasonable method and competent evidence. These damages include, but are not limited to, the out-of-pocket expenditures listed in ¶¶77 below and the lost-earnings and opportunity damages described in ¶¶76.1 to 76.3:

76.1. Lost earnings and loss of earning capacity: Plaintiff seeks damages for lost earnings and loss of earning capacity caused by the fraud-driven protraction and diversion described herein, including wages, contract income, and comparable compensation components Plaintiff would have earned but for CSAA's misconduct. (Civ. Code, §§ 3281, 3333; Lazar v. Superior Court, *supra*, 12 Cal.4th at 638; Sargon Enterprises, Inc. v. Univ. of S. Cal., *supra*, 55 Cal.4th at 774.) Under California law, lost earnings and loss of earning capacity are recoverable as fraud damages when proven with reasonable certainty. (Sargon Enterprises, Inc. v. Univ. of S. Cal., *supra*, 55 Cal.4th at 774-775 [lost profits must be proven with reasonable certainty and non-speculative methodology]; Grupe v. Glick (1945) 26 Cal.2d 680, 693 [lost earnings recoverable when proven with reasonable certainty].) Plaintiff will prove these amounts through employment records, tax records, contemporaneous recruiting communications, contracts/term sheets/SOWs, and other admissible documentation.

76.2. Lost professional opportunities and projects: To the extent Plaintiff proves identified opportunities that were lost because Plaintiff was diverted by the fraud-driven protraction and evidentiary disputes, Plaintiff seeks damages for lost profits or lost net contract value tied to identifiable projects, customers, or definable revenue streams, proven with reasonable certainty and non-speculative methodology. (Civ. Code, § 3333; Sargon Enterprises, Inc. v. Univ. of S. Cal., *supra*, 55 Cal.4th at 774-775; Grupe v. Glick, *supra*, 26 Cal.2d at 693; Southern California Disinfecting Co. v. Lomkin (1960) 183 Cal.App.2d 431, 450 [lost profits recoverable when proven with reasonable certainty]; Little v. Amber Hotel Co. (2011) 202 Cal.App.4th 280, 292 [lost profits must be proven with reasonable certainty]; Asahi Kasei Pharma Corp. v. Actelion Ltd. (2013) 222 Cal.App.4th 945, 964 [lost profits recoverable when proven with reasonable certainty].)

1 76.3. Diversion and replacement costs: To the extent Plaintiff proves actual replacement expenses
2 incurred to cover work Plaintiff could not perform due to fraud-driven litigation diversion (e.g.,
3 contractors, assistants, project management support), Plaintiff seeks those replacement costs as
4 consequential economic damages according to proof. Under California law, replacement costs are
5 recoverable as consequential damages when proximately caused by the fraud. (Civ. Code, § 3333;
6 Lazar v. Superior Court, *supra*, 12 Cal.4th at 638.)

7 77. Out-of-pocket damages: Plaintiff incurred and actually paid documentable expenses after
8 2/25/2021 that were the foreseeable result of CSAA's fraud-induced delay, including (i)
9 records and subpoena fees to obtain dispatch/911/CAD and BWC materials CSAA should
10 have obtained before denial, (ii) service and court-reporter costs necessary to authenticate
11 and use those materials once delayed, and (iii) other documented verification costs listed in
12 Exhibit G. Plaintiff will prove these damages with receipts and payment confirmations. Under
13 California law, out-of-pocket expenses are recoverable as fraud damages when proximately
14 caused by the fraud. (Civ. Code, § 3333; Lazar v. Superior Court, *supra*, 12 Cal.4th at 638.)

15 78. Fraud Damages vs. PI Litigation Costs: Plaintiff is not seeking damages that would have been
16 incurred even with an honest investigation, only incremental costs traceable to fraud-driven
17 delay/escalation. These are separate and distinct from personal injury damages. To the extent
18 attorney fees are recoverable as "tort of another" damages (Prentice v. North Amer. Title
19 Guar. Corp. (1962) 59 Cal.2d 618, 620-621 [attorney fees recoverable as "tort of another"
20 damages when defendant's tort forces plaintiff into litigation with third party]), Plaintiff will
21 prove them with actual evidence per Mai v. HKT Cal Inc. (2021) 66 Cal.App.5th 504, 520-
22 521 [attorney fees recoverable as "tort of another" damages when proven to be natural and
23 proximate result of defendant's tort], showing fees were the natural/proximate result of being
24 forced into litigation with a third party due to CSAA's tort.

25 79. Foreseeable reliance costs: These expenditures were the foreseeable consequence of CSAA's
26 fraud-induced delay and denial posture. CSAA reasonably foresaw that its representation
27 of a "concluded investigation" (Exhibit A, Page 0001, l. 20) would cause an unrepresented
28 claimant to delay independent verification and incur costs that would have been materially

1 reduced if the claim had been properly adjusted earlier. Under California law, damages are
2 recoverable if they were reasonably foreseeable as a probable result of the fraud. (Alliance
3 Mortgage Co. v. Rothwell, supra, 10 Cal.4th at 1240-1241.)

- 4 80. Damages method: Plaintiff's economic damages are the actual, documented reliance expen-
5 ditures (Exhibit G) that are fairly traceable to fraud-driven delay and escalation, net of any
6 amounts Plaintiff would have incurred even absent the misrepresentation. Plaintiff will prove
7 damages by receipts, invoices, and payment confirmations. Under California law, fraud dam-
8 ages must be proven with reasonable certainty and non-speculative methodology. (Sargon
9 Enterprises, Inc. v. Univ. of S. Cal., supra, 55 Cal.4th at 774-775.)

10 **B. NON-ECONOMIC DAMAGES**

- 11 81. Plaintiff does not seek non-economic damages in this pleading unless Plaintiff later amends
12 with concrete supporting facts.

13 **C. PUNITIVE DAMAGES**

- 14 82. Plaintiff seeks punitive damages under Civil Code § 3294 based on fraud, malice, and/or
15 oppression. Under Civil Code section 3294, punitive damages may be recovered when the
16 defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).)
17 "Fraud" for purposes of punitive damages means an intentional misrepresentation, deceit, or
18 concealment of a material fact known to the defendant with the intention of depriving the
19 plaintiff of property or legal rights or otherwise causing injury. (Civ. Code, § 3294, subd.
20 (c)(3).) "Malice" means conduct intended to cause injury or despicable conduct carried on
21 with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294,
22 subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel and
23 unjust hardship in conscious disregard of that person's rights. (Civ. Code, § 3294, subd.
24 (c)(2).)

- 25 83. Managing-agent authorization/ratification: Plaintiff is informed and believes the February
26 25, 2021 denial decision and issuance of a categorical "investigation concluded / insured not
27 liable" letter to an unrepresented claimant required review and/or approval within CSAA's
28 claims supervision structure. Plaintiff alleges, on information and belief, that supervisory

1 personnel with discretionary authority over claim denials authorized, approved, or ratified the
2 denial despite the absence of basic investigation steps and despite post-denial records retrieval
3 reflected by Exhibit D (Page 0002, ll. 12-20). Under Civil Code section 3294, subdivision
4 (b), punitive damages may be recovered against a corporation only if the wrongful conduct
5 was authorized or ratified by an officer, director, or managing agent of the corporation. (Civ.
6 Code, § 3294, subd. (b); White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 573 [managing
7 agent must have discretionary authority over policy decisions].) The denial language is stan-
8 dardized and categorical (Exhibit A, Page 0001, ll. 20-22), was communicated as the final
9 product of an investigation, and was issued without basic pre-denial steps described in ¶19
10 and without disclosure of material incident-record information. Plaintiff will seek discovery
11 of the claim file activity log, supervisor approval entries, and claim-handling procedures to
12 establish authorization, ratification, or conscious disregard by CSAA's managing agents.

13 **D. INTEREST AND COSTS**

14 84. Plaintiff seeks prejudgment interest as allowed by law and costs of suit. Under Civil Code
15 section 3287, prejudgment interest may be recovered on damages that are certain or capable
16 of being made certain by calculation. (Civ. Code, § 3287, subd. (a).)

17 **PRAYER**

18 WHEREFORE, Plaintiff prays for judgment against Defendants CSAA and DOES 1–50 as fol-
19 lows:

- 20 1. For economic damages according to proof, including (without limitation) the expenses sum-
21 marized in Exhibit G and the consequential lost-earnings, earning-capacity, and opportunity
22 damages alleged herein;
- 23 2. For punitive damages according to proof;
- 24 3. For prejudgment interest as allowed by law;
- 25 4. For costs of suit; and
- 26 5. For such other and further relief as the Court deems just and proper.

1 **PRAYER**

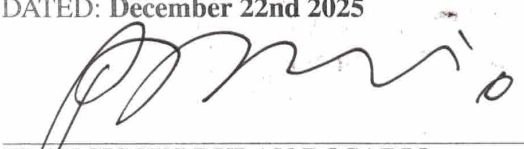
2 WHEREFORE, Plaintiff prays for judgment against Defendants CSAA and DOES 1-50 as fol-
3 lows:

- 4 1. For economic damages according to proof, including (without limitation) the expenses sum-
5 marized in Exhibit G and the consequential lost-earnings, earning-capacity, and opportunity
6 damages alleged herein;
- 7 2. For punitive damages according to proof;
- 8 3. For prejudgment interest as allowed by law;
- 9 4. For costs of suit; and
- 10 5. For such other and further relief as the Court deems just and proper.

11 **DEMAND FOR JURY TRIAL**

12 Plaintiff hereby demands a trial by jury on all issues so triable.

DATED: December 22nd 2025


FRANCISCUS DYLAN ROSARIO

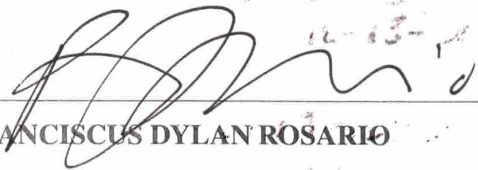
Plaintiff, In Pro Per
7648 Melody Dr., Rhonert Park, CA 94928
650.488.7510
soltrinox@gmail.com

1 **VERIFICATION**

2 I, **FRANCISCUS DYLAN ROSARIO**, am the Plaintiff in the above-entitled action. I have read
3 the foregoing Complaint and know its contents. The same is true of my own knowledge except as
4 to matters stated on information and belief, and as to those matters I believe them to be true.

5 I declare under penalty of perjury under the laws of the State of California that the foregoing is
6 true and correct.

7 Executed on **December 22nd 2025** at **Rhonert Park**, California.

8 
9 **FRANCISCUS DYLAN ROSARIO**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **DECLARATION OF TYLER J.**
7 **O'CONNELL IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED**
8 **COMPLAINT ("FAC")**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert